

Fundamental Rights - Guided Learning Edition

Slow explanation first. Exact constitutional and legal language second. Cases, exceptions and exam language third. Complete source data remains available in the final Data Vault.

1 First Pass Understand simply	2 Exact Law Pass Add text and doctrine	3 Exam Pass Practise use	4 Data Vault Retain every detail
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The index lists the opening roadmap, guided modules, understanding-check answers and the Complete Data Vault. Page numbers and PDF bookmarks are generated from the final layout.

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Fundamental Rights - Guided Learning Edition

This additional teaching edition separates **understanding** from **legal precision**. Read the guided modules first. Exact constitutional text, cases, amendments, verified PYQs, current-law controls, complete practice and the source-authored ASCII master remain available in the final **Complete Data Vault**.

OPENING ROADMAP - BEGIN HERE

What this topic means

Fundamental Rights are enforceable constitutional guarantees that protect liberty, equality, dignity, conscience, cultural autonomy and access to remedies. They limit public power, directly regulate some private conduct and sometimes require the State to protect people against private domination. They are qualified by constitutional text, not revocable gifts of government.

Why it matters

For a citizen or any person in India, Part III explains when government may classify, arrest, censor, regulate religion, collect data, restrict movement, acquire property or design affirmative action. For UPSC, the challenge is exactness: **citizen versus person, State versus public-duty body, direct versus indirect horizontal effect, protected interest versus listed restriction, Article 32 versus 226, and right versus remedy**.

Visual roadmap of modules

START: How does Part III control power?

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|
+--> Module 1: architecture, beneficiaries, vertical/horizontal reach and waiver
+--> Module 2: Articles 12-13, State/instrumentality and voidness doctrines
+--> Module 3: Article 14 classification and arbitrariness
+--> Module 4: Articles 15-18, affirmative action, untouchability and titles
+--> Module 5: Article 19 freedoms and exact restriction grounds
+--> Module 6: speech, press, digital liberty and current information rights
+--> Module 7: Articles 20-21, fair procedure, dignity, legal aid and speedy trial
+--> Module 8: privacy, data protection and Article 21A
+--> Module 9: Article 22 arrest and preventive detention
+--> Module 10: Articles 23-24 exploitation
+--> Module 11: Articles 25-28 religious freedom
+--> Module 12: Articles 29-30 culture and minority education
+--> Module 13: Article 32, Article 226 and writs
+--> Module 14: Articles 31A-31C and Article 300A
+--> Module 15: Articles 33-35 and Emergency effects
+--> Module 16: doctrine evolution, PYQs, current anchors and answer building
|
+--> FINAL ANSWERS --> COMPLETE DATA VAULT
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How to use this book

Pass	What to read	Result
First Pass	Teacher Explains + analogy + visual	Build the mental model without case overload
Exact Law Pass	Now Add the Exact Law	Add Articles, clauses, amendments, tests and holdings
Exam Pass	Confusion + remember + exam use	Convert law into elimination and GS-II writing
Data Vault	Tables, matrices, PYQs, edge cases, glossary, register notes and full source annex	Retrieve every retained detail

Estimated effort

Module group	Suggested effort	Main task
Modules 1-4	35-50 minutes each	architecture, gateway and equality
Modules 5-9	35-55 minutes each	freedom, dignity, privacy and detention
Modules 10-13	30-45 minutes each	exploitation, religion, minorities and remedies
Modules 14-16	40-55 minutes each	savings, Emergency, current anchors and exam use
Data Vault	use after the core	exact retrieval, practice and source preservation

FOUNDATION - MUST UNDERSTAND: Learn the claimant -> respondent -> Article -> limit -> remedy sequence before memorising case names.

EXACT CONSTITUTIONAL/LEGAL LAYER - MUST KNOW: Add exact clauses, restriction grounds, tests, amendments and holdings only after the concept is clear.

EXAM APPLICATION - MUST PRACTISE: Train close-option distinctions and doctrine-evolution paragraphs.

ADVANCED/REFERENCE - READ AFTER THE CORE: The Complete Data Vault preserves the full active learning source, workbook, advanced refinements, PYQs and current-source controls.

MODULE 1 - PART III AS AN OPERATING SYSTEM: CLAIMANT, POWER, LIMIT AND REMEDY

WHAT ARE WE LEARNING?

How should we see Fundamental Rights before memorising individual Articles?

TEACHER EXPLAINS

TEACHER EXPLAINS: Fundamental Rights are not a loose list of ideals. Part III works as an operating system. Articles 12-13 identify the public power that is bound and the law that may become void. Articles 14-30 state the protected interests. Article 32 supplies a constitutional remedy. Articles 31A-31C and 33-35 create defined saving or control rules. Articles 358-359 explain exceptional Emergency effects. Every problem should therefore be read through four questions: **who claims, against whom, under which right, and with what remedy?**

The beneficiary and the respondent are separate questions. Some rights belong only to citizens; many protect every person. Most rights are enforced vertically against the State, but Articles 15(2), 17, 23 and 24 directly regulate specified private conduct. Courts may also require the State to protect people against private domination through positive duties, as the workplace-harassment framework in *Vishaka* illustrates.

A person ordinarily cannot waive a Fundamental Right merely because a contract or consent form says so. Rights are part of a public constitutional order, not only a private bargain. This is why the correct method begins with constitutional text and structure, not with the slogan that every right is absolute.

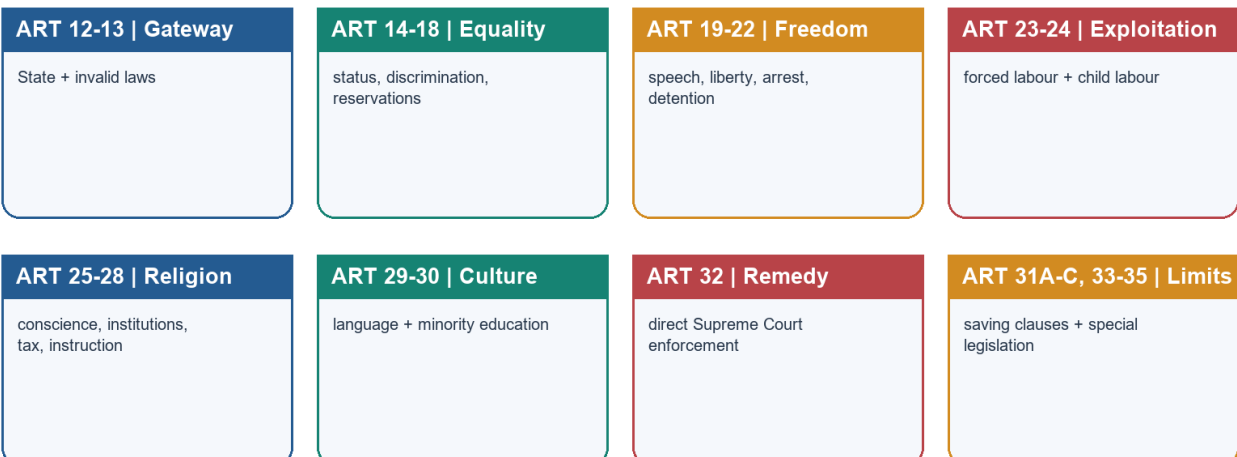
SIMPLE EXAMPLE / ANALOGY

Think of Part III as a hospital. Articles 12-13 are the reception desk: they decide whether the institution and rule come within the constitutional system. Articles 14-30 are the specialist wards. Article 32 is the emergency door. Saving and Emergency clauses are special protocols; they are not permission to close the hospital.

VISUAL FIRST

Part III architecture

Articles 12-35: rights, remedies, limits and special controls



Core logic: right -> permissible limit -> review -> effective remedy

Part III links gatekeepers, six present rights, remedies and special controls.

FUNDAMENTAL-RIGHTS PROBLEM

|
+--> 1. CLAIMANT: citizen / person / group / minority?

+-> 2. RESPONDENT: State / instrumentality / public-duty body / private actor?
+-> 3. RIGHT: protected interest + exact Article and clause
+-> 4. LIMIT: valid law + listed ground + fair procedure + proportionality
+-> 5. REMEDY: Article 32 / Article 226 / correct writ
+-> 6. CONTROL: saving clause, Article 33-35 or Emergency rule?

NOW ADD THE EXACT LAW

NOW ADD THE EXACT LAW: Part III contains Articles 12-35. The six present rights are: equality (14-18), freedom and personal protection (19-22), protection against exploitation (23-24), freedom of religion (25-28), cultural and educational rights (29-30), and constitutional remedies (32). The Right to Property left Part III through the Forty-fourth Amendment and now appears in Article 300A. Direct horizontal provisions include Articles 15(2), 17, 23 and 24. *Basheshar Nath v. CIT* supports the general non-waiver rule. *Vishaka v. State of Rajasthan* shows how Articles 14, 15, 19 and 21 can generate a State duty to prevent private workplace harassment.

COMMON CONFUSION

COMMON CONFUSION: “Fundamental Rights apply only against government, so private conduct never matters.” -> **Correct position:** identify the Article. Some provisions directly reach private conduct; elsewhere the State may have a protective obligation, and Article 226 may reach a body performing a public duty.

WHAT MUST I REMEMBER?

1. Use the sequence claimant -> respondent -> Article -> limit -> remedy.
2. Citizenship decides some beneficiaries; it does not decide every Part III claim.
3. Articles 15(2), 17, 23 and 24 have express horizontal reach.
4. Positive duty is different from saying every private body is “State” under Article 12.
5. Fundamental Rights are generally not waivable private benefits.
6. Property is now Article 300A, not a Fundamental Right.
7. Saving and Emergency clauses are narrow constitutional controls, not rights-free zones.

CHECK YOUR UNDERSTANDING

1. Why must beneficiary and respondent be tested separately?
2. Name the four provisions that directly reach specified private conduct.

EXAM USE

EXAM USE: Opening: “Part III is an operating architecture of gatekeepers, rights, limits, remedies and exceptional controls.” **Answer spine:** identify claimant and respondent -> state the exact Article -> test legality and justification -> select Article 32/226 remedy -> add any narrow saving or Emergency qualification.

IF YOU WANT THE FULL DETAIL

Use Data Vault D1, D2 and D5, then Source Annex A: Sessions 1-4.

MODULE 2 - ARTICLES 12-13: WHO IS BOUND AND WHAT BECOMES VOID

WHAT ARE WE LEARNING?

How do Articles 12 and 13 turn constitutional promises into enforceable limits?

TEACHER EXPLAINS

TEACHER EXPLAINS: Article 12 answers the respondent question. It expressly includes the Union and State executives and legislatures, local authorities and “other authorities” within India or under Government of India control. Courts look beyond the label of a company, society or corporation. The cumulative inquiry asks whether government supplies deep financial, functional and administrative domination, whether a government department has effectively been transferred, and whether control is pervasive rather than merely regulatory.

Article 13 answers the invalid-law question. Pre-Constitution laws continue, but are inoperative to the extent of inconsistency with Fundamental Rights. The State may not make a post-Constitution law that takes away or abridges those rights; the law is void to the extent of contravention. “Law” includes ordinances, orders, bye-laws, rules, regulations, notifications, customs and usages having the force of law.

The phrase “to the extent” creates precision doctrines. **Severability** removes the unconstitutional part if the remainder can stand and reflects legislative intent. **Eclipse** makes a conflicting pre-Constitution rule dormant against the protected claim rather than necessarily dead for all purposes. **Non-waiver** prevents private consent from validating unconstitutional State action. Constitutional amendments are now tested through Article 368 and the basic-structure limit, not by mechanically treating every amendment as ordinary “law” under Article 13.

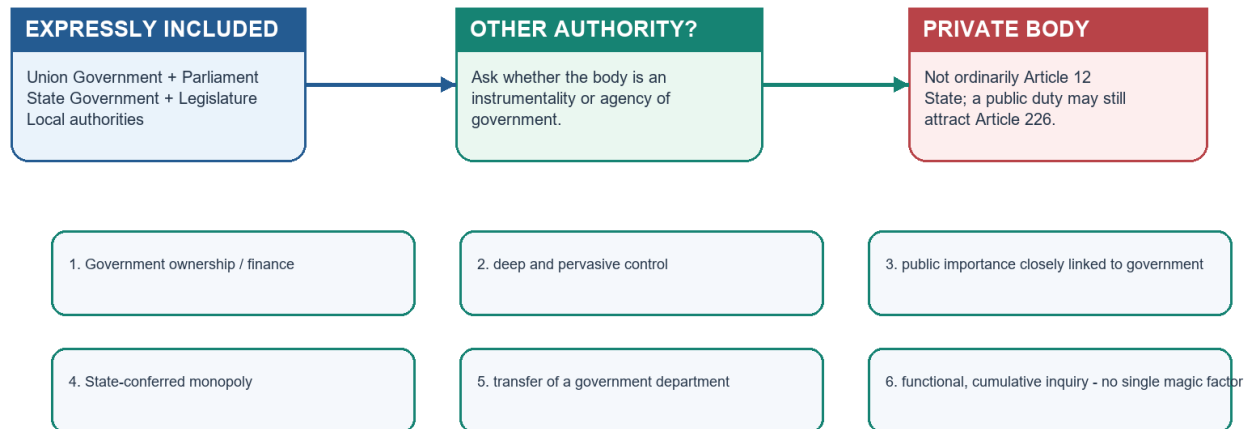
SIMPLE EXAMPLE / ANALOGY

Article 12 is the security scanner: it checks whether a body is sufficiently connected to constitutional government. Article 13 is the repair tool: it cuts out the offending part, shadows an old rule, or invalidates the unconstitutional measure without always destroying the whole statute.

VISUAL FIRST

Article 12 - is the respondent 'State'?

Textual inclusions first; instrumentality analysis for 'other authorities'

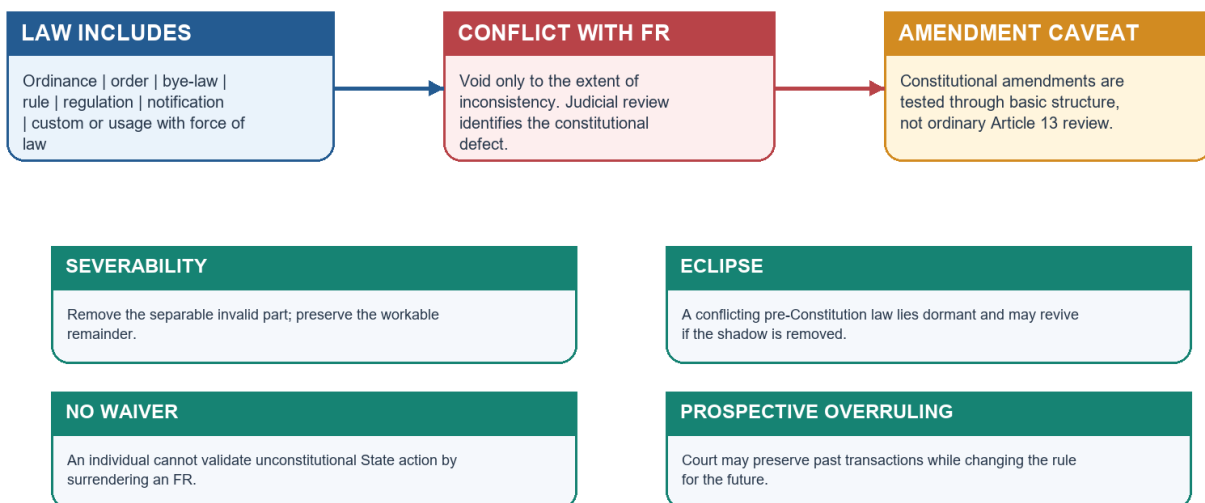


Ajay Hasia: substance and control matter more than corporate form.

Article 12 uses a cumulative instrumentality inquiry rather than a single label.

Article 13 doctrine tree

What counts as law, what becomes void, and how the Constitution responds



Article 13 supports severability, eclipse and non-waiver while amendments face basic-structure review.

NOW ADD THE EXACT LAW

NOW ADD THE EXACT LAW: *R.D. Shetty* and *Ajay Hasia* developed instrumentality indicators; *Pradeep Kumar Biswas* stressed a cumulative inquiry into financial, functional and administrative domination. *Zee Telefilms* held BCCI was not “State” on the record before the Court, while leaving public-law remedies conceptually distinct. Article 226 can reach a non-State body performing a public duty.

For Article 13, *R.M.D. Chamarbaugwala* is associated with severability; *Bhikaji Narain Dhakras* with eclipse; *Bhikaji Narain Dhakras* with non-waiver; *Golaknath* used prospective overruling and restricted

amendment power, followed by the Twenty-fourth Amendment; *Kesavananda Bharati* preserved broad amendment power but imposed the basic-structure limit.

COMMON CONFUSION

COMMON CONFUSION: “If an organisation performs an important public function, it automatically becomes State under Article 12.” -> **Correct position:** importance is relevant but not a single conclusive test. Apply the cumulative government-domination inquiry; then ask separately whether Article 226 reaches a public duty.

WHAT MUST I REMEMBER?

1. Article 12 looks at constitutional reality, not the corporate label.
2. Mere regulation is not the same as deep and pervasive control.
3. Article 226 public-duty reach is wider than Article 12 identity.
4. Article 13 uses “void to the extent of inconsistency/contravention.”
5. Severability asks whether the valid remainder can stand independently.
6. Eclipse mainly explains dormant pre-Constitution inconsistency; do not call every invalid law “revived.”
7. Amendments face Article 368/basic-structure review after *Kesavananda*.

CHECK YOUR UNDERSTANDING

1. Why can a body fail Article 12 yet still face an Article 226 writ?
2. How do severability and eclipse solve different Article 13 problems?

EXAM USE

EXAM USE: Problem answer: identify the entity -> apply financial, functional and administrative control cumulatively -> distinguish regulation/public duty -> identify pre- or post-Constitution law -> apply severability/eclipsing/non-waiver -> add Article 368/basic-structure only if an amendment is involved.

IF YOU WANT THE FULL DETAIL

Use Data Vault D2 and D3, then Source Annex A: Sessions 5-6.

MODULE 3 - ARTICLE 14: EQUALITY, CLASSIFICATION AND ANTI-ARBITRARINESS

WHAT ARE WE LEARNING?

Why does equality permit some classifications but reject arbitrary power?

TEACHER EXPLAINS

TEACHER EXPLAINS: Article 14 protects **any person**. “Equality before law” expresses the negative rule that no one has a special privilege above ordinary law. “Equal protection of laws” requires similarly situated persons to receive similar treatment while allowing relevant differentiation.

A classification survives only when two links exist: an **intelligible differentia** separates those included from those excluded, and that differentia has a **rational nexus** with the object of the law. Passing the first limb but failing the second is still unconstitutional. A class can even contain one person if special circumstances supply a rational basis; size is not the test.

Equality doctrine later moved beyond neat classification. *E.P. Royappa* treated arbitrariness as antithetical to equality; *Maneka Gandhi* linked fairness under Articles 14, 19 and 21. Unguided discretion, capricious procedure or a measure without adequate determining principle can therefore fail Article 14 even when the State writes a facial classification.

Article 14 does not erase constitutionally recognised immunities. The President and Governors receive limited protections under Article 361, legislators have specified privileges, and reasonable special rules may exist. The exam task is to distinguish a textual constitutional exception from an ordinary statutory privilege.

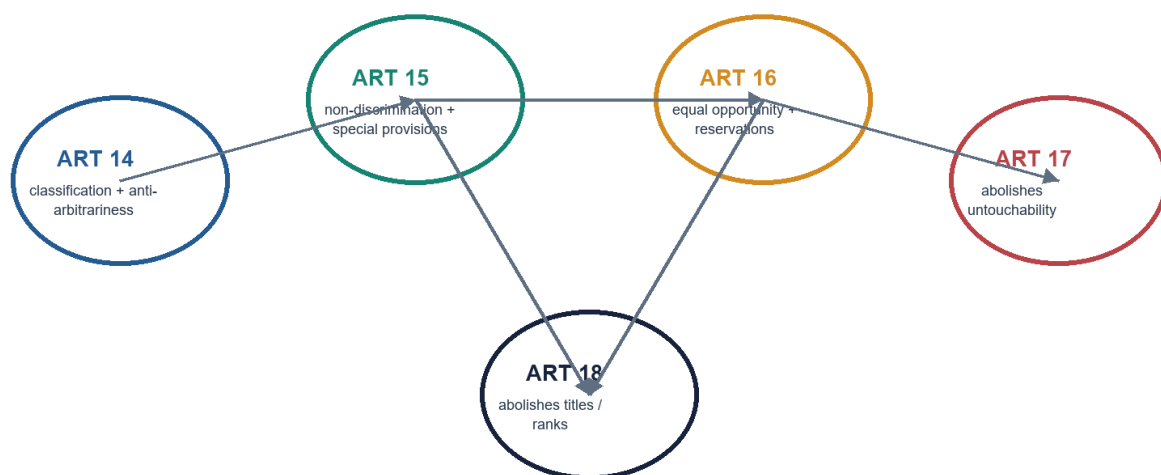
SIMPLE EXAMPLE / ANALOGY

A school may create separate sports trials for different age groups because age can relate to physical competition. It cannot separate students by shoe colour when shoe colour has no relation to the stated aim. The label is the differentia; the bridge to the aim is the nexus.

VISUAL FIRST

The equality code

Formal equality, substantive equality and anti-hierarchy work together



Equality permits differentiation when it dismantles disadvantage rather than caste hierarchy.

Test	Question
Differentia	Is there an understandable basis separating the two groups?
Nexus	Does that basis advance the law's stated object?
Arbitrariness	Is the rule or discretion capricious, unguided or procedurally unfair?
Proportionality	Where a protected freedom is limited, is the means more restrictive than needed?

NOW ADD THE EXACT LAW

NOW ADD THE EXACT LAW: Article 14 says the State shall not deny to **any person** equality before the law or equal protection of the laws within India. *State of West Bengal v. Anwar Ali Sarkar* and later doctrine insist on rational classification. *Ram Krishna Dalmia* organised the classification principles. *E.P. Royappa* and *Maneka Gandhi* established the anti-arbitrariness dimension. *Shayara Bano* contains the important manifest-arbitrariness route against legislation, but answers should state the precise context rather than treat “manifest arbitrariness” as an automatic substitute for all tests.

COMMON CONFUSION

COMMON CONFUSION: “Article 14 means every person must always receive identical treatment.”
-> **Correct position:** equality prohibits irrelevant or arbitrary difference. It also permits, and sometimes requires, different treatment of materially different situations.

WHAT MUST I REMEMBER?

1. Article 14 protects persons, not only citizens.
2. Equality before law and equal protection are complementary.
3. Classification requires both intelligible differentia and rational nexus.
4. A one-person class is not automatically invalid.
5. Arbitrary State action can fail Article 14 even beyond classic classification.
6. Unguided discretion is a recurring Prelims and Mains application.
7. Constitutional immunities must be identified from text, not invented as general exceptions.

CHECK YOUR UNDERSTANDING

1. Can a classification be intelligible yet still violate Article 14? Explain.
2. What did the anti-arbitrariness turn add beyond the two-limb classification test?

EXAM USE

EXAM USE: Article 14 paragraph: identify comparator -> state differentia -> test nexus -> test arbitrariness/procedure -> add proportionality when another freedom is burdened -> conclude with a narrow validity finding. For comparison questions, explain India's five-Article equality code rather than reducing it to the US Equal Protection Clause.

IF YOU WANT THE FULL DETAIL

Use Data Vault D2-D3 and D8, then Source Annex A: Session 7.

MODULE 4 - ARTICLES 15-18: SUBSTANTIVE EQUALITY, RESERVATION, UNTOUCHABILITY AND TITLES

WHAT ARE WE LEARNING?

How does the Constitution prohibit hierarchy while authorising targeted correction?

TEACHER EXPLAINS

TEACHER EXPLAINS: Articles 15 and 16 are not identical reservation clauses. Article 15 prohibits State discrimination against citizens on specified grounds and Article 15(2) directly protects access to shops, public restaurants, hotels, places of public entertainment and publicly maintained or dedicated wells, tanks, bathing ghats, roads and resorts. Article 16 concerns equality of opportunity in public employment.

The Constitution then adds separate enabling clauses. Article 15(3) supports special provisions for women and children; 15(4) for SEBCs, SCs and STs; 15(5) for admission measures in covered institutions while excluding Article 30(1) minority institutions; 15(6) for EWS outside 15(4)/(5) classes. Article 16(3) lets Parliament prescribe residence requirements for specified employment; 16(4) addresses inadequate representation of backward classes; 16(4A) promotion for SC/ST; 16(4B) backlog; 16(6) EWS. These are distinct constitutional tools, not one interchangeable quota power.

Reservation doctrine adds controls. *Indra Sawhney* established OBC creamy-layer exclusion, treated fifty per cent as the ordinary ceiling subject to extraordinary situations, and denied promotion reservation under 16(4), leading to constitutional amendments. *M. Nagaraj* upheld promotion amendments subject to constitutional requirements; *Jarnail Singh* removed the need to re-prove SC/ST backwardness while retaining other controls and applying the exclusion principle. *Janhit Abhiyan* upheld the 103rd Amendment EWS design by a 3:2 majority. *Davinder Singh* permits evidence-based Scheduled Caste sub-classification without altering the Article 341 list; it does not compel a sub-quota.

Article 17 abolishes untouchability in its historical caste-based sense and makes its practice punishable. Article 18 rejects titles but allows military and academic distinctions; national awards are not prohibited titles if they are not used as prefixes or suffixes.

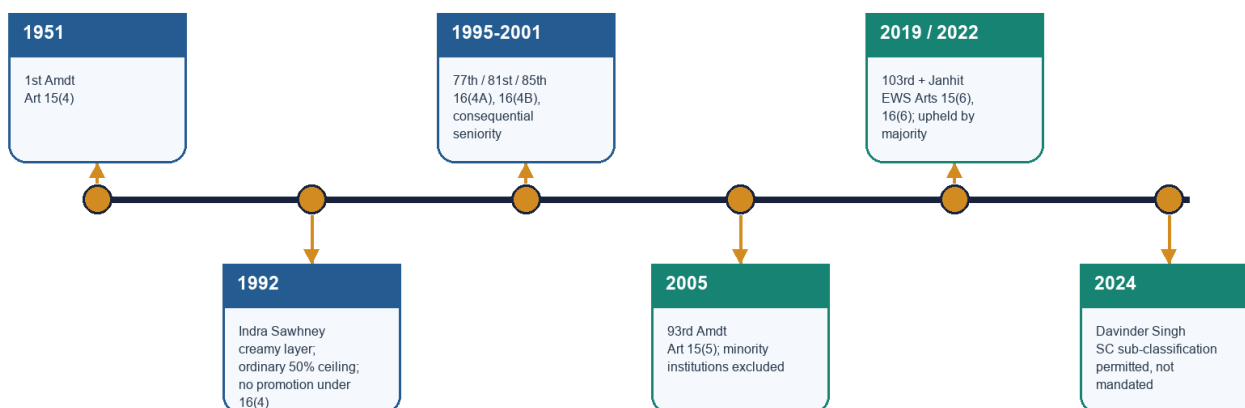
SIMPLE EXAMPLE / ANALOGY

Formal equality gives everyone the same-size shoe. Substantive equality asks whether historical exclusion means some people cannot enter the race without a corrective measure. The Constitution authorises correction, but each corrective tool has a specific clause, beneficiary and limit.

VISUAL FIRST

Reservation amendments and judgments

Use the constitutional route, the limiting principle and the latest settled holding



Article 335: efficiency is a constitutional consideration, not an automatic veto on reservation.

Reservation doctrine is a timeline of text, cases and evidence controls.

Clause	Core function
15(3)	women and children
15(4)	SEBC/SC/ST advancement
15(5)	admission measures; Article 30(1) minority institutions excluded
15(6)	EWS special provisions and reservation outside 15(4)/(5) classes
16(3)	Parliament may prescribe residence for specified public employment
16(4)	inadequately represented backward class in State services
16(4A)/(4B)	SC/ST promotion and backlog tools
16(6)	EWS public-employment reservation

NOW ADD THE EXACT LAW

NOW ADD THE EXACT LAW: *State of Madras v. Champakam Dorairajan* led to the First Amendment and Article 15(4). The 77th, 81st, 82nd and 85th Amendments created promotion, backlog, qualifying-marks and consequential-seniority tools. Article 335 requires attention to administrative efficiency while allowing specified relaxation. The 93rd Amendment inserted 15(5); the 103rd inserted 15(6) and 16(6). Article 17 is enforced through the Protection of Civil Rights Act, 1955 and the SC/ST (Prevention of Atrocities) Act, 1989. *Balaji Raghavan* held Bharat Ratna and Padma awards are not titles under Article 18 if not used as prefixes or suffixes.

COMMON CONFUSION

COMMON CONFUSION: “The fifty per cent ceiling is an exceptionless number, and Davinder Singh orders every State to sub-classify SCs.” -> **Correct position:** *Indra Sawhney* states an ordinary ceiling with exceptional reasoning; *Davinder Singh* permits evidence-based sub-classification and leaves policy choice reviewable.

WHAT MUST I REMEMBER?

1. Articles 15 and 16 are citizen rights with different fields.
2. Article 15(2) has direct private reach in specified access settings.
3. Special-provision and reservation clauses must be cited separately.
4. Creamy layer, representation data, promotion conditions and Article 335 are control questions.
5. EWS was upheld by a 3:2 majority, not unanimously.
6. Davinder Singh permits, but does not mandate, SC sub-classification.
7. Untouchability belongs to equality; begar belongs to Article 23.
8. National awards are not prohibited titles when not used as honorific prefixes/suffixes.

CHECK YOUR UNDERSTANDING

1. Why is Article 15(3) not interchangeable with Article 16(4)?
2. What exactly did Davinder Singh permit, and what did it not do?

EXAM USE

EXAM USE: Equality/reservation answer: Article 14 substantive equality -> exact 15/16 enabling clause -> *Indra Sawhney* controls -> amendment/promotion layer -> Article 335 efficiency -> *Janhit* or *Davinder* current anchor -> evidence-based, non-automatic verdict. Keep Articles 17-18 as the anti-hierarchy and anti-title completion of the equality cluster.

IF YOU WANT THE FULL DETAIL

Use Data Vault D1-D4 and D9, then Source Annex A: Sessions 8-10.

MODULE 5 - ARTICLE 19: SIX FREEDOMS AND CLAUSE-SPECIFIC RESTRICTIONS

WHAT ARE WE LEARNING?

Why is Article 19 a closed-ground discipline rather than a general reasonableness clause?

TEACHER EXPLAINS

TEACHER EXPLAINS: Article 19 protects only citizens and contains six present freedoms: speech and expression; peaceful unarmed assembly; associations, unions and cooperative societies; movement throughout India; residence and settlement; and profession, occupation, trade or business. The old property freedom in Article 19(1)(f) was removed.

Each freedom has its own restriction clause. A speech restriction must fit Article 19(2); the State cannot borrow “general public interest” from Article 19(5) or (6). Assembly under 19(3) and association under 19(4) have different closed grounds. Movement and residence share Article 19(5), including protection of Scheduled Tribes. Profession/trade under 19(6) permits public-interest regulation, qualifications and State monopoly.

The modern inquiry is cumulative: there must be law; the measure must fit the exact constitutional ground; the aim must be legitimate; the means must be rational, necessary and balanced; and procedure must contain safeguards. “Reasonable restriction” is not an executive blank cheque.

Internal movement and residence belong to Article 19(1)(d)/(e). Travel abroad is an Article 21 liberty after *Maneka Gandhi*. The right to form an association does not automatically include a right to recognition, bargaining success or every desired internal consequence.

SIMPLE EXAMPLE / ANALOGY

Six rooms share one house but have different locks. A key marked “public order” opens speech, assembly and association clauses in different formulations; it does not open movement or trade merely because it seems convenient.

VISUAL FIRST

Article 19 restriction matrix

Six citizen freedoms; each has its own closed constitutional grounds

FREEDOM	NAME	LIMIT	PERMITTED GROUNDS
19(1)(a)	Speech	19(2)	8 grounds: sovereignty/integrity; security; friendly relations; public order; decency/morality; contempt; defamation; incitement
19(1)(b)	Assembly	19(3)	sovereignty and integrity; public order
19(1)(c)	Association	19(4)	sovereignty and integrity; public order; morality
19(1)(d)	Movement	19(5)	general public; protection of Scheduled Tribes
19(1)(e)	Residence	19(5)	general public; protection of Scheduled Tribes
19(1)(g)	Profession	19(6)	general public; qualifications; State monopoly

Reasonable + by law + within the matching clause: never borrow a ground from another freedom.

Article 19 requires the exact freedom, clause and restriction ground.

Freedom	Restriction clause	Closed grounds / controls
Speech	19(2)	sovereignty/integrity; State security; friendly relations; public order; decency/morality; contempt; defamation; incitement
Assembly	19(3)	sovereignty/integrity; public order
Association	19(4)	sovereignty/integrity; public order; morality
Movement/residence	19(5)	general public; protection of Scheduled Tribes
Profession/trade	19(6)	general public; qualifications; State monopoly

NOW ADD THE EXACT LAW

NOW ADD THE EXACT LAW: Article 19(1)(b) protects peaceful assembly **without arms**. Article 19(1)(c) includes cooperative societies after the 97th Amendment. Article 19(5) supports carefully drawn tribal-protection and public-health restrictions, but their design remains reviewable. *Chintaman Rao* is a classic reasonableness authority. *Maneka Gandhi* integrated Articles 14, 19 and 21. Proportionality receives structured expression in *Modern Dental College, Puttaswamy* and later applications; answers should state the test rather than merely write “reasonable.”

COMMON CONFUSION

COMMON CONFUSION: “A restriction is valid if the government says it serves the public interest.”
 -> **Correct position:** identify the exact Article 19 clause and listed ground first. Then test legality, rational connection, necessity, balance and safeguards.

WHAT MUST I REMEMBER?

1. Article 19 is citizens-only.
2. There are six present freedoms; property is no longer one of them.
3. Restriction grounds are clause-specific and cannot be mixed.
4. Assembly must be peaceful and without arms.
5. Internal movement differs from travel abroad.
6. General public interest appears in 19(5) and 19(6), not as a universal ground.
7. Valid law, closed ground, reasonableness, proportionality and procedure form the exam sequence.

CHECK YOUR UNDERSTANDING

1. Why can “general public interest” not independently justify a speech restriction?
2. Which Article protects travel abroad, and why is that a frequent trap?

EXAM USE

EXAM USE: Article 19 application: name the freedom -> quote the exact restriction clause -> match the ground -> assess proximity and proportionality -> test Article 14 fairness and Article 21 procedure where relevant -> give a qualified conclusion.

IF YOU WANT THE FULL DETAIL

Use Data Vault D1-D2 and D9, then Source Annex A: Session 11.

MODULE 6 - SPEECH, PRESS, DIGITAL LIBERTY AND THE INCITEMENT LINE

WHAT ARE WE LEARNING?

How did Article 19(1)(a) develop from print censorship to internet shutdowns and political-funding information?

TEACHER EXPLAINS

TEACHER EXPLAINS: Freedom of the press is not separately named; it is part of speech and expression. Circulation matters because a right to publish without a practical right to reach readers would be hollow. The right to know also grows from Article 19(1)(a), especially where voters need information to make political choices.

The 1950 decisions in *Romesh Thappar* and *Brij Bhushan* exposed the narrow original speech clause and helped prompt the First Amendment, which introduced “reasonable restrictions” and added friendly relations with foreign States, public order and incitement to an offence. Sovereignty and integrity entered later through the Sixteenth Amendment.

Kedar Nath Singh upheld IPC section 124A through a narrow incitement/public-disorder reading. The provision was later held in abeyance during reconsideration. BNS section 152 uses differently framed ingredients concerning secession, armed rebellion, subversive or separatist activity and threats to

sovereignty, unity and integrity, including specified means. It is inaccurate either to call it a simple renaming or to declare its constitutional challenge finally decided when the audited source located only the Supreme Court's 28 August 2025 notice and no merits disposition through 21 August 2026.

Shreya Singhal struck down IT Act section 66A, distinguished discussion/advocacy from incitement, upheld section 69A's blocking framework with safeguards, and read down intermediary liability under section 79. *Anuradha Bhasin* protected speech and trade through the internet, required publication and review of shutdown orders and rejected indefinite suspension; it did not create a broad standalone Fundamental Right to internet access. *Subramanian Swamy* upheld criminal defamation by balancing speech with reputation.

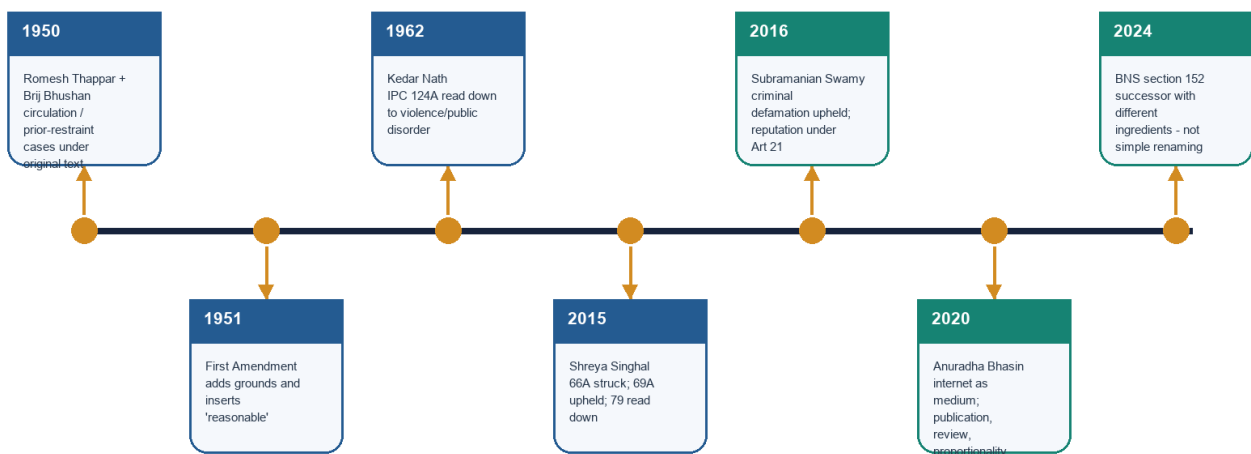
SIMPLE EXAMPLE / ANALOGY

Speech protection is like a river with marked embankments. Discussion and advocacy normally flow freely. The State must show a constitutionally listed danger with a sufficiently close connection before blocking the river; vague fear is not enough.

VISUAL FIRST

Free speech doctrine timeline

From press freedom and the First Amendment to digital speech and current criminal law



Electoral Bonds (2024): voter information under 19(1)(a) links speech to political equality.

Speech doctrine moves from prior restraint and press circulation to incitement and digital proportionality.

DISCUSSION -----> ADVOCACY -----> INCITEMENT
usually protected usually protected may fit Article 19(2)

DIGITAL RESTRICTION
law + published order + exact ground + necessity + limited duration + review

NOW ADD THE EXACT LAW

NOW ADD THE EXACT LAW: *Sakal Papers* and *Bennett Coleman* protect circulation/economic conditions that burden press freedom. *State of U.P. v. Raj Narain* and election-disclosure cases support the right to know. The 15 February 2024 Electoral Bonds judgment invalidated the scheme and enabling non-disclosure architecture; political-funding information falls within Article 19(1)(a), while unlimited corporate funding and secrecy also raised equality concerns. Current status is carried only to the active repository audit date of 21 August 2026.

COMMON CONFUSION

COMMON CONFUSION: “Shreya Singhal struck down the government's online blocking power, and Anuradha Bhasin declared internet access a standalone Fundamental Right.” -> **Correct position:** section 66A was struck; section 69A survived with safeguards. Internet is a medium for protected speech/trade; shutdown legality is tested through publication, temporariness, review and proportionality.

WHAT MUST I REMEMBER?

1. Press freedom and circulation derive from Article 19(1)(a).
2. The First Amendment and Sixteenth Amendment added different speech-control elements.
3. Discussion and advocacy differ from incitement.
4. Shreya Singhal struck section 66A, not section 69A.
5. Anuradha Bhasin rejects indefinite shutdowns and requires published, reviewable orders.
6. BNS section 152 must be analysed on its own text; its challenge is date-bounded.
7. Electoral Bonds is a right-to-information and political-equality anchor.

CHECK YOUR UNDERSTANDING

1. What is the precise Shreya Singhal distinction between advocacy and incitement?
2. Why is it wrong to describe BNS section 152 as either a mere renumbering or already invalid?

EXAM USE

EXAM USE: Speech answer: Article 19(1)(a) interest -> exact 19(2) ground -> proximity/incitement -> vagueness/overbreadth -> proportionality and procedural safeguards -> one print-era and one digital/current case -> reputation/privacy qualification.

IF YOU WANT THE FULL DETAIL

Use Data Vault D3, D7-D9, then Source Annex A: Sessions 12-14.

MODULE 7 - ARTICLES 20-21: CRIMINAL SHIELDS, FAIR PROCEDURE AND THE DIGNITY CHARTER

WHAT ARE WE LEARNING?

How did a short protection of life and liberty become the centre of Indian rights doctrine?

TEACHER EXPLAINS

TEACHER EXPLAINS: Article 20 protects every person accused or exposed to criminal punishment through three precise shields. Clause (1) bars retrospective creation of an offence and a greater retrospective penalty; it does not bar a beneficial retrospective change or every procedural alteration. Clause (2) requires both prosecution and punishment for the same offence; departmental or non-prosecutorial proceedings do not automatically trigger it. Clause (3) protects an accused against compelled testimonial self-incrimination. Physical identifying evidence is analytically distinct, but its collection still faces Article 21 and statutory safeguards.

Article 21 says no person shall be deprived of life or personal liberty except according to procedure established by law. *A.K. Gopalan* initially treated rights as separate compartments and procedure narrowly. *R.C. Cooper* shifted attention to the effect of State action. *Maneka Gandhi* then required procedure to be fair, just and reasonable and linked Articles 14, 19 and 21.

From that foundation, the Court recognised named protections: dignity in *Francis Coralie Mullin*; speedy trial in *Hussainara Khatoon*; legal aid through *M.H. Hoskot* and *Khatri*; livelihood with fair-procedure limits in *Olga Tellis*; arrest safeguards and compensation in *D.K. Basu*; privacy in *Puttaswamy*; intimate choice in *Shafin Jahan* and *Navtej Singh Johar*. These are applications of life, liberty, dignity and fair procedure-not a licence to label every desirable policy an unlimited Fundamental Right.

Legal aid and speedy trial are especially important because a formal hearing means little if the accused cannot understand, afford or reach justice. The State's duty is therefore sometimes positive: make liberty real, not merely avoid direct physical interference.

SIMPLE EXAMPLE / ANALOGY

Article 21 began like a door with one instruction: deprivation needs legal procedure. Maneka added quality control to the lock: the procedure must not be arbitrary, unfair or oppressive. Later cases identified the rooms-dignity, privacy, livelihood, legal aid and speedy trial-that meaningful liberty protects.

VISUAL FIRST

Article 20 - three criminal-law safeguards

Available to every person and protected from Article 359 suspension

20(1) EX POST FACTO

No retrospective creation or enhancement of criminal liability.

Not a bar on beneficial retrospectivity; does not govern civil liability.

20(2) DOUBLE JEOPARDY

No prosecution and punishment twice for the same offence.

Departmental action is not automatically a prior prosecution.

20(3) SELF-INCRIMINATION

Accused cannot be compelled to be a witness against oneself.

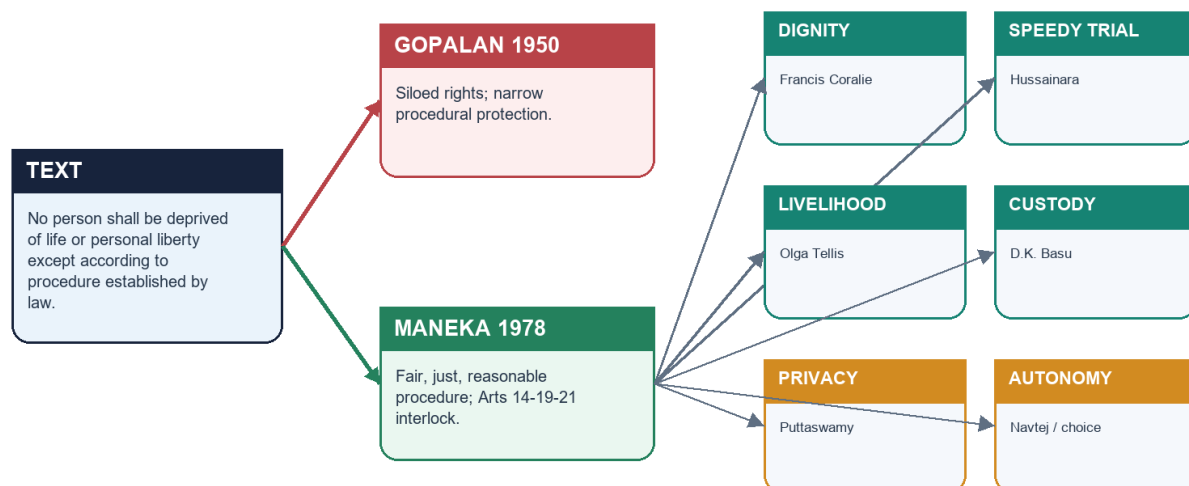
Testimonial compulsion differs from physical specimens.

Emergency shield: Articles 20 and 21 remain enforceable.

Article 20 contains three distinct shields against retrospective punishment, double jeopardy and compelled testimony.

Article 21 expansion tree

A short text became a dignity charter through fair procedure and named holdings



Qualification: recognition of a right does not automatically fix a universal policy entitlement.

Article 21 develops from Gopalan through Cooper and Maneka into named dignity protections.

NOW ADD THE EXACT LAW

NOW ADD THE EXACT LAW: *Maqbool Hussain* explains why a customs confiscation was not a prior "prosecution and punishment" for Article 20(2). *State of Bombay v. Kathi Kalu Oghad* distinguishes testimonial compulsion from physical evidence. *Nandini Satpathy* protects against compelled incriminating answers during investigation. *Selvi* held involuntary narcoanalysis, polygraph and brain-mapping techniques constitutionally impermissible. For Article 21, use the chronological Gopalan -> Cooper -> Maneka arc and then attach only the derived rights relevant to the question, with their limits.

COMMON CONFUSION

COMMON CONFUSION: “Article 21’s expansion means every socio-economic need is an immediately enforceable absolute entitlement.” -> **Correct position:** courts protect a constitutional floor through dignity and fair procedure. The exact content, institutional competence, resources and statutory design still matter.

WHAT MUST I REMEMBER?

1. Article 20 protects persons and contains three separate criminal-law shields.
2. Double jeopardy requires prosecution and punishment for the same offence.
3. Article 20(3) targets compelled testimonial communication by an accused.
4. Maneka requires fair, just and reasonable procedure.
5. Articles 14, 19 and 21 often operate together.
6. Derived rights must be named with the case and qualification.
7. Legal aid and speedy trial convert formal liberty into effective justice.

CHECK YOUR UNDERSTANDING

1. Why does collection of a fingerprint not automatically violate Article 20(3)?
2. What changed doctrinally between Gopalan and Maneka Gandhi?

EXAM USE

EXAM USE: Article 21 answer: textual guarantee -> Gopalan limitation -> Cooper effects test -> Maneka fairness/integration -> four to six question-relevant derived protections with named cases -> proportionality/safeguards -> institutional-floor qualification.

IF YOU WANT THE FULL DETAIL

Use Data Vault D2-D3 and D11, then Source Annex A: Sessions 15-16.

MODULE 8 - PRIVACY, AUTONOMY, DATA PROTECTION AND ARTICLE 21A EDUCATION

WHAT ARE WE LEARNING?

How do privacy and education show two different ways in which Article 21 grows?

TEACHER EXPLAINS

TEACHER EXPLAINS: *K.S. Puttaswamy* (2017), a nine-judge decision, held privacy intrinsic to life, personal liberty and the freedoms of Part III. Privacy includes bodily integrity, decisional autonomy and informational control. It is not absolute. A State intrusion must have legal authority, a legitimate aim, a proportionate relationship and procedural safeguards.

The test matters in surveillance, data processing, search, reproductive choice and DNA testing. Prenatal or other compulsory DNA testing engages bodily autonomy, family privacy and a child's

identity and dignity. Courts therefore require a strong foundation or eminent need, consider less intrusive proof and keep the child's welfare central. *Bhabani Prasad Jena* cautions against routine testing; *Nandlal Wasudeo Badwaik* shows reliable DNA can become decisive where testing is lawfully justified. The Bharatiya Sakshya Adhiniyam, 2023 section 116 continues the marital legitimacy presumption subject to proof of non-access.

Data protection is the statutory expression of informational privacy, not a substitute for Part III. The active source audit records Gazette notifications G.S.R. 843(E) and 846(E), both dated 13 November 2025, with phased DPDP Act/Rules commencement. Through 21 August 2026 only the first notified tranche was operative; the source does not claim full commencement.

Article 21A represents a different path. The Court first linked education with Article 21, then the 86th Amendment created an express right to free and compulsory education for children aged six to fourteen. The RTE Act, 2009 implements it. *Society for Unaided Private Schools* upheld the 25 per cent entry obligation for non-minority unaided schools; *Pramati* protected minority institutions from that application to preserve Article 30.

SIMPLE EXAMPLE / ANALOGY

Privacy is not a locked room into which the State can never enter. It is a room whose door requires a lawful warrant-like justification: purpose, necessity, balance and safeguards. Article 21A is more like a clearly marked school bus: the Constitution itself specifies the age group and Parliament supplies the route.

VISUAL FIRST

Privacy dimension	Typical constitutional question
Bodily	Is physical intervention lawful, necessary and safeguarded?
Decisional	Does the person retain choice in intimate family or identity matters?
Informational	Who collects, uses, retains or discloses personal data, and under what law?

ARTICLE 21A
6-14 years + free and compulsory education
|
+--> RTE Act 2009
+--> non-minority school obligation upheld
+--> minority-institution boundary preserved under Article 30

NOW ADD THE EXACT LAW

NOW ADD THE EXACT LAW: *Puttaswamy* supplies the constitutional status and structured privacy inquiry. *Navtej Singh Johar* applies dignity, privacy and equality to intimate autonomy; *Joseph Shine* rejects a criminal adultery rule built on marital ownership and stereotype; *Common Cause* recognises advance directives/passive euthanasia within dignity and autonomy under safeguards. Constitutional morality can help protect equal citizenship against social prejudice, but it is not a free-floating judicial power unconnected to text, structure and reason.

COMMON CONFUSION

COMMON CONFUSION: “Privacy prevents every DNA test and the entire DPDP regime was fully operational by August 2026.” -> **Correct position:** privacy requires legality, necessity, proportionality and safeguards; it does not create automatic immunity. The audited official notifications use phased commencement, and this edition claims status only through 21 August 2026.

WHAT MUST I REMEMBER?

1. Privacy is intrinsic to Article 21 and Part III, but not absolute.
2. Use legality, legitimate aim, proportionality and safeguards.
3. DNA testing demands a strong foundation, less-intrusive consideration and child-centred balance.
4. Do not erase the statutory marital-legitimacy presumption.
5. DPDP commencement is phased in the active official-source audit.
6. Article 21A covers free and compulsory education for ages six to fourteen.
7. RTE obligations and Article 30 minority protection must be read together.

CHECK YOUR UNDERSTANDING

1. Why is privacy analysis not completed merely by identifying a legitimate State aim?
2. How do Article 21A and Article 30 interact in the RTE cases?

EXAM USE

EXAM USE: Privacy answer: identify bodily/decisional/informational interest -> law -> aim -> necessity/proportionality -> safeguards -> specific case/statute -> narrow conclusion. **Education answer:** 21 evolution -> 86th Amendment/21A -> RTE implementation -> non-minority obligation -> Pramati minority boundary.

IF YOU WANT THE FULL DETAIL

Use Data Vault D3-D4 and D7-D9, then Source Annex A: Sessions 17-18.

MODULE 9 - ARTICLE 22: ORDINARY ARREST AND PREVENTIVE DETENTION

WHAT ARE WE LEARNING?

Why must ordinary arrest and preventive detention be kept in separate constitutional boxes?

TEACHER EXPLAINS

TEACHER EXPLAINS: For an ordinary arrest, Article 22(1) requires prompt communication of grounds and the right to consult and be defended by a legal practitioner of choice. Article 22(2) requires production before the nearest magistrate within twenty-four hours, excluding journey time, and forbids further custody without magistrate authority. BNSS sections 47, 48 and 58 add current statutory safeguards concerning grounds/bail information, notification of a relative or friend and the twenty-four-hour ceiling.

Article 22(3) excludes enemy aliens and preventive detainees from clauses (1)-(2). Preventive detention seeks to prevent anticipated conduct rather than punish a proved past offence. The Constitution nevertheless requires communication of grounds as soon as may be, earliest opportunity to represent, and an Advisory Board route for detention beyond the operative period. Public-interest material may be withheld under Article 22(6).

The high-yield trap is commencement. The Forty-fourth Amendment enacted a proposed two-month substitution, but that clause was not brought into force. The operative constitutional period without favourable Advisory Board opinion remains **three months**. An amendment printed in an Act is not necessarily operative law.

Preventive detention is constitutionally permitted but exceptional. Strict procedural compliance matters because courts usually cannot test an uncommitted offence as they would a criminal charge. Vague, stale, irrelevant or undisclosed grounds can undermine the opportunity to make an effective representation.

SIMPLE EXAMPLE / ANALOGY

Ordinary arrest is a rear-view mirror: the State accuses a person of something already done and must take the person quickly before a magistrate. Preventive detention looks through a windscreen at feared future conduct; because prediction is dangerous, the Constitution builds a separate but limited safeguard system.

VISUAL FIRST

Article 22 - ordinary arrest and preventive detention

Do not transfer safeguards from one branch to the other

ORDINARY ARREST | 22(1)-(2)

1. Inform grounds of arrest
2. Right to consult and be defended by lawyer
3. Produce before nearest magistrate within 24 hours (excluding journey)
4. No detention beyond 24 hours without magistrate authority

Exceptions: enemy alien; preventive detention branch

PREVENTIVE DETENTION | 22(4)-(7)

1. Detention to prevent anticipated conduct, not punish conviction
2. Beyond 3 months requires Advisory Board opinion under current text
3. Communicate grounds as soon as may be
4. Earliest opportunity to represent
5. Public-interest facts may be withheld

44th Amendment's 2-month substitution was not brought into force.

Structural anomaly: detention without trial exists inside the freedom chapter.

Article 22 separates ordinary arrest safeguards from the preventive-detention regime.

Ordinary arrest	Preventive detention
grounds communicated	grounds communicated as soon as may be
lawyer of choice	clauses 22(1)-(2) excluded
magistrate within 24 hours	representation + Advisory Board framework
prosecution for past conduct	prevention based on anticipated conduct

NOW ADD THE EXACT LAW

NOW ADD THE EXACT LAW: Article 22 does not itself abolish preventive detention. Parliament and State legislatures have legislative fields for preventive-detention laws within the Seventh Schedule. *A.K. Roy* is a major preventive-detention authority. *D.K. Basu* adds Article 21 arrest safeguards in ordinary custody. The current statutory criminal-procedure references in the source are BNSS sections 47, 48 and 58, operative with the new criminal laws from 1 July 2024.

COMMON CONFUSION

COMMON CONFUSION: "Every arrested person has all Article 22(1)-(2) rights, and the no-Board preventive detention period is now two months." -> **Correct position:** enemy aliens and preventive detainees are excluded from clauses (1)-(2); the uncommenced 44th Amendment substitution does not displace the operative three-month text.

WHAT MUST I REMEMBER?

1. Ordinary arrest and preventive detention have different constitutional logics.
2. Ordinary arrest requires grounds, lawyer and magistrate within twenty-four hours.
3. Journey time is excluded from the twenty-four-hour calculation.
4. Enemy aliens and preventive detainees are outside Article 22(1)-(2).
5. Preventive detainees receive grounds, representation and Advisory Board safeguards.
6. The operative no-Board period remains three months.
7. Commencement must be checked separately from enacted amendment text.

CHECK YOUR UNDERSTANDING

1. Why is an Advisory Board not the same as production before a magistrate?
2. What is the precise Forty-fourth Amendment preventive-detention trap?

EXAM USE

EXAM USE: Preventive-detention answer: distinguish prevention from punishment -> state Article 22(3)-(7) -> explain grounds/representation/Board -> identify the operative three-month rule -> add Article 21 fairness and strict procedural review -> conclude that constitutional permission does not remove exceptional scrutiny.

IF YOU WANT THE FULL DETAIL

Use Data Vault D1, D4 and D9, then Source Annex A: Session 19.

MODULE 10 - ARTICLES 23-24: TRAFFICKING, FORCED LABOUR AND CHILD LABOUR

WHAT ARE WE LEARNING?

How do the exploitation rights reach both government and private coercion?

TEACHER EXPLAINS

TEACHER EXPLAINS: Article 23 prohibits traffic in human beings, begar and other similar forms of forced labour. It binds both State and private actors. "Force" is not confined to physical chains. *People's Union for Democratic Rights* held that labour extracted through economic compulsion below the statutory minimum wage can implicate Article 23. The State may impose compulsory service for public purposes, but cannot discriminate in doing so only on religion, race, caste or class.

Article 24 prohibits employment of a child below fourteen years in a factory, mine or other hazardous employment. The constitutional text must be distinguished from the wider statutory framework. The Child and Adolescent Labour law, as amended, generally prohibits employment of children below fourteen across occupations, subject to specified exceptions, and regulates adolescents in hazardous work. UPSC may test whether a broader statutory rule is being incorrectly attributed to Article 24 itself.

These provisions show direct horizontality. A trafficking network, bonded-labour arrangement or prohibited employer cannot answer that only government is bound. The State also has positive duties of rescue, rehabilitation, inspection and effective enforcement. Article 21 dignity and Directive Principles strengthen the interpretation, but the core prohibition comes from Articles 23-24.

SIMPLE EXAMPLE / ANALOGY

A locked factory is an obvious case of force. A worker who must accept less than the legal minimum because hunger removes any real choice shows why constitutional force can also be economic. The law looks at effective coercion, not only visible violence.

VISUAL FIRST

EXPLOITATION

```
|
+--> TRAFFICKING
+--> BEGAR / FORCED UNPAID LABOUR
+--> ECONOMICALLY COMPELLED FORCED LABOUR
+--> PROHIBITED CHILD LABOUR
    |
    +--> direct claim against private actor
    +--> State duty to prevent, rescue and enforce
```

NOW ADD THE EXACT LAW

NOW ADD THE EXACT LAW: Article 23(1) makes contravention an offence punishable by law. Article 23(2) allows compulsory service for public purposes subject to the stated non-discrimination rule. *PUDR v. Union of India* and *Sanjit Roy v. State of Rajasthan* connect minimum wages and forced labour. Article 24's age is **below fourteen** and its textual fields are factory, mine and hazardous employment. Keep Article 17 untouchability in the equality cluster and Article 23 begar in exploitation.

COMMON CONFUSION

COMMON CONFUSION: "Article 23 covers only slavery by the State, and Article 24 itself bans every kind of work by anyone under eighteen." -> **Correct position:** Article 23 reaches private trafficking and forced labour. Article 24 has a below-fourteen/hazardous-employment constitutional text; broader child/adolescent rules come from statute.

WHAT MUST I REMEMBER?

1. Articles 23-24 protect persons and directly reach private conduct.
2. Begar means forced unpaid labour.
3. Economic compulsion and minimum-wage breach can engage Article 23.
4. Compulsory public service is permitted subject to the stated non-discrimination rule.
5. Article 24 uses below fourteen years.
6. Constitutional and statutory child-labour scopes must not be merged.
7. Rescue and enforcement illustrate positive State obligations.

CHECK YOUR UNDERSTANDING

1. How can payment below minimum wage become an Article 23 issue?
2. What is the difference between Article 24's text and the wider statutory child-labour regime?

EXAM USE

EXAM USE: Exploitation paragraph: identify trafficking/begar/economic force/child labour -> state direct horizontal reach -> cite PUDR or Sanjit Roy -> distinguish Article 24 from statutory expansion -> add State prevention/rehabilitation duty.

IF YOU WANT THE FULL DETAIL

Use Data Vault D1-D3 and D9, then Source Annex A: Session 20.

MODULE 11 - ARTICLES 25-28: CONSCIENCE, DENOMINATIONS AND PRINCIPLED DISTANCE

WHAT ARE WE LEARNING?

How does Indian secularism protect religion while allowing regulation and social reform?

TEACHER EXPLAINS

TEACHER EXPLAINS: Article 25 protects every person's freedom of conscience and the right freely to profess, practise and propagate religion. It is subject to public order, morality, health and the other Fundamental Rights. Propagation protects communication of belief; *Rev. Stainislaus* held it does not include a right to convert another by force, fraud or allurement.

Article 25(2) lets the State regulate economic, financial, political or other secular activity associated with religion and enact social-welfare and reform measures, including opening Hindu public religious institutions to all classes and sections. The explanations include Sikh kirpans and, for the reform clause, references to Sikhs, Jains and Buddhists within the stated Hindu-institution context.

Article 26 protects every religious denomination or section in establishing institutions, managing its own affairs in matters of religion, owning/acquiring property and administering property according to law, subject to public order, morality and health. *Shirur Mutt* distinguished religious affairs from regulable secular administration and is the foundation of the Essential Religious Practices (ERP) doctrine.

ERP asks whether a practice is essential to religion, but it attracts criticism: courts may become theologians, freeze internal diversity or protect practices without adequately confronting equality and dignity. Constitutional morality is an interpretive commitment to liberty, equality and fraternity, not a slogan that allows a judge to ignore text. The safest answer separates belief, practice, secular activity, harm and other-rights effects.

Article 27 bars compulsion to pay taxes specifically appropriated to promote or maintain a particular religion; it does not bar every regulatory fee. Article 28 creates four institutional categories concerning religious instruction and attendance.

SIMPLE EXAMPLE / ANALOGY

Indian secularism is not a wall that forbids every State-religion contact. It is a traffic system: conscience receives a protected lane; secular administration and harmful conduct can be regulated; reform has a constitutional route; all faiths remain subject to equal citizenship.

VISUAL FIRST

Religious freedom and the ERP inquiry

Individual conscience, denominational autonomy and reform exist in the same design

ARTICLE 25

All persons: conscience; profess, practise, propagate.
Limits: public order, morality, health, other FRs.

ARTICLE 26

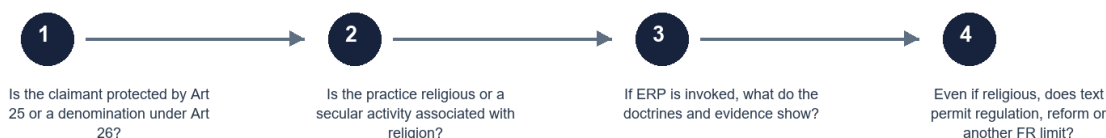
Religious denominations: institutions, religious affairs, property.
Limits: public order, morality, health.

ARTICLE 27

No tax whose proceeds are specifically appropriated to promote or maintain a particular religion.

ARTICLE 28

Religious instruction varies by institution: wholly State-maintained, trust-administered, aided or recognised.



Indian secularism: principled distance - protection, regulation and reform rather than a rigid wall.

Religious freedom separates conscience, denominational autonomy, secular regulation and reform.

Institution under Article 28	Rule
wholly maintained from State funds	no religious instruction
State-administered but founded under trust/endowment requiring instruction	exception to the above
recognised by or receiving aid from State	no compelled attendance without consent
wholly private and unaided	Article 28's State-institution restrictions do not apply in the same way

NOW ADD THE EXACT LAW

NOW ADD THE EXACT LAW: *Bijoe Emmanuel* protected students whose conscientious faith prevented anthem singing while they stood respectfully. *Shirur Mutt* protects religious affairs and permits secular regulation. *S.R. Bommai* treats secularism as a basic feature. The Indian model is often described as **principled distance**: the State may engage differently to secure equal citizenship and reform, but cannot establish a theocracy or practise hostile/selective discrimination. Current litigation claims not securely controlled by the active official audit are not presented as final.

COMMON CONFUSION

COMMON CONFUSION: “Freedom to propagate includes a right to convert by any method, and Article 27 bars every payment connected with religion.” -> **Correct position:** propagation does not protect force/fraud/allurement. Article 27 targets specified religious-promotion taxes; a valid regulatory fee is analytically different.

WHAT MUST I REMEMBER?

1. Article 25 protects persons; Article 26 protects denominations or sections.
2. Public order, morality, health and other Fundamental Rights constrain Article 25.
3. Secular activity and social reform have express constitutional routes.
4. Propagation is not coercive or fraudulent conversion.
5. ERP begins with Shirur Mutt but should be critically qualified.
6. Article 27 distinguishes tax from fee.
7. Article 28 depends on the institution's funding, administration, recognition and consent.
8. Principled distance is engagement for equal citizenship, not theocracy or total separation.

CHECK YOUR UNDERSTANDING

1. How do Articles 25 and 26 differ in claimant and subject matter?
2. Why should constitutional morality not be used as a free-floating substitute for textual analysis?

EXAM USE

EXAM USE: Religion answer: individual/denomination -> belief/practice/secular activity -> exact textual limits -> ERP and its criticism -> equality/reform effect -> Articles 27-28 if relevant -> principled-distance conclusion.

IF YOU WANT THE FULL DETAIL

Use Data Vault D2-D3 and D9, then Source Annex A: Session 21.

MODULE 12 - ARTICLES 29-30: CULTURAL CONSERVATION AND MINORITY EDUCATIONAL AUTONOMY

WHAT ARE WE LEARNING?

Why is Article 29 not minority-only, and why is Article 30 autonomy not immunity from regulation?

TEACHER EXPLAINS

TEACHER EXPLAINS: Article 29(1) belongs to **any section of citizens** residing in India or any part of it with a distinct language, script or culture. It protects conservation and is not limited to minorities. Article 29(2) says no citizen may be denied admission into an educational institution maintained by the State or receiving State aid only on religion, race, caste, language or any of them.

Article 30 protects **all minorities**, whether based on religion or language, in the right to establish and administer educational institutions of their choice. Its text does not simply say “citizens.” Article 30(1A) protects the right from destructive acquisition terms; Article 30(2) forbids discrimination in granting aid because an institution is under minority management.

Administration means meaningful institutional choice, but not maladministration. Academic standards, teacher qualifications, transparency and measures preventing exploitation may be valid if they do not erase the minority character or displace the management's core. *T.M.A. Pai Foundation* generally assesses minority status at the State level and balances autonomy with regulation. *P.A. Inamdar* protects autonomy in unaided professional institutions under its framework. *St. Xavier's College* and *Malankara Syrian Catholic College* permit regulation for excellence but reject destruction of the management core.

Article 29(2) and Article 30 can operate together. An aided minority institution does not lose its identity, but aid is not a licence to ignore every constitutional admission obligation. The precise result depends on institution type, aid, the rule challenged and whether regulation improves standards or takes over administration.

SIMPLE EXAMPLE / ANALOGY

Article 29 is a museum key available to any distinct section of citizens that wants to conserve language, script or culture. Article 30 is a school-management key for religious or linguistic minorities. A safety inspection may regulate the school; it cannot quietly take the key away.

VISUAL FIRST

Articles 29-30 - culture and minority education

Article 29 is not confined to minorities; Article 30 is

ARTICLE 29

29(1): any section of citizens with a distinct language, script or culture may conserve it.

29(2): no citizen may be denied admission to State-maintained or State-aided institutions only on religion, race, caste or language.

Trap: Article 29 can protect a majority section too.

ARTICLE 30

Religious or linguistic minorities may establish and administer educational institutions.

Aid cannot be denied merely because management is minority-based.

Regulation for standards is valid; there is no right to maladminister.

Minority status is generally assessed State-wise.

Balance: institutional autonomy survives, but academic excellence and fairness remain regulable

Article 29 protects citizen sections and admissions; Article 30 protects minority institutions.

Provision	Beneficiary	Core protection
29(1)	any section of citizens	conserve distinct language, script or culture
29(2)	citizen seeking admission	no denial only on religion, race, caste or language in State-maintained/aided institution
30(1)	religious or linguistic minority	establish and administer institution of choice
30(2)	minority-managed institution	no aid discrimination because of minority management

NOW ADD THE EXACT LAW

NOW ADD THE EXACT LAW: The 93rd Amendment's Article 15(5) expressly excludes Article 30(1) minority institutions. *Pramati* preserves minority institutions from the RTE admission obligation to protect Article 30. Do not import an unverified current determination about a particular institution's minority status; use the settled doctrinal tests owned by the active source.

COMMON CONFUSION

COMMON CONFUSION: "Articles 29 and 30 are both available only to minorities, and minority institutions cannot be regulated." -> **Correct position:** Article 29 protects any qualifying section of citizens; Article 30 protects religious/linguistic minorities. Regulation for standards is valid if it does not destroy minority administration.

WHAT MUST I REMEMBER?

1. Article 29 is not minority-exclusive.
2. Article 29 uses citizen-specific language.
3. Article 30's text protects all religious or linguistic minorities.
4. Minority status is generally assessed State-wise under T.M.A. Pai.
5. Administration does not include maladministration.
6. Aided status brings additional constitutional obligations.
7. Article 15(5) and RTE doctrine preserve an Article 30 minority-institution boundary.

CHECK YOUR UNDERSTANDING

1. Why is it textually wrong to place Article 30 in a simple citizen-only list?
2. How can regulation be valid without becoming a takeover of minority administration?

EXAM USE

EXAM USE: Minority-rights answer: separate 29(1), 29(2) and 30 -> identify citizen section or religious/linguistic minority -> classify aided/unaided and school/professional context -> apply T.M.A. Pai/Inamdar/St. Xavier's/Pramati -> test whether regulation preserves standards or destroys identity.

IF YOU WANT THE FULL DETAIL

Use Data Vault D1, D3 and D5, then Source Annex A: Session 22.

MODULE 13 - ARTICLE 32, ARTICLE 226 AND THE FIVE WRITS

WHAT ARE WE LEARNING?

How do we choose the correct court and writ for a constitutional injury?

TEACHER EXPLAINS

TEACHER EXPLAINS: Article 32 guarantees the right to move the Supreme Court for enforcement of Fundamental Rights. The Court may issue directions, orders or writs including habeas corpus, mandamus, prohibition, certiorari and quo warranto. Article 32 is itself a Fundamental Right, but a petitioner must still identify a Part III violation and the legally suitable remedy.

Article 226 empowers High Courts to issue the same remedial forms for Fundamental Rights **and for any other purpose**, meaning other legal rights. It is also wider in public-duty reach and operates through territorial/cause-of-action rules. This does not make Article 32 inferior; the two jurisdictions have different constitutional designs.

Habeas corpus tests unlawful detention and can operate even against private detention.

Mandamus compels performance of a public duty. **Prohibition** stops a court or tribunal before it completes action beyond jurisdiction. **Certiorari** quashes a completed order for jurisdictional or serious legal error. **Quo warranto** tests the legal authority by which a person occupies a substantive

public office.

Public Interest Litigation relaxed standing so a public-spirited person can raise serious rights injuries affecting those unable to approach the court. It is not a licence for publicity, private vendetta or judicial management of every policy disagreement. Alternative remedy can influence High Court discretion, but does not erase constitutional jurisdiction.

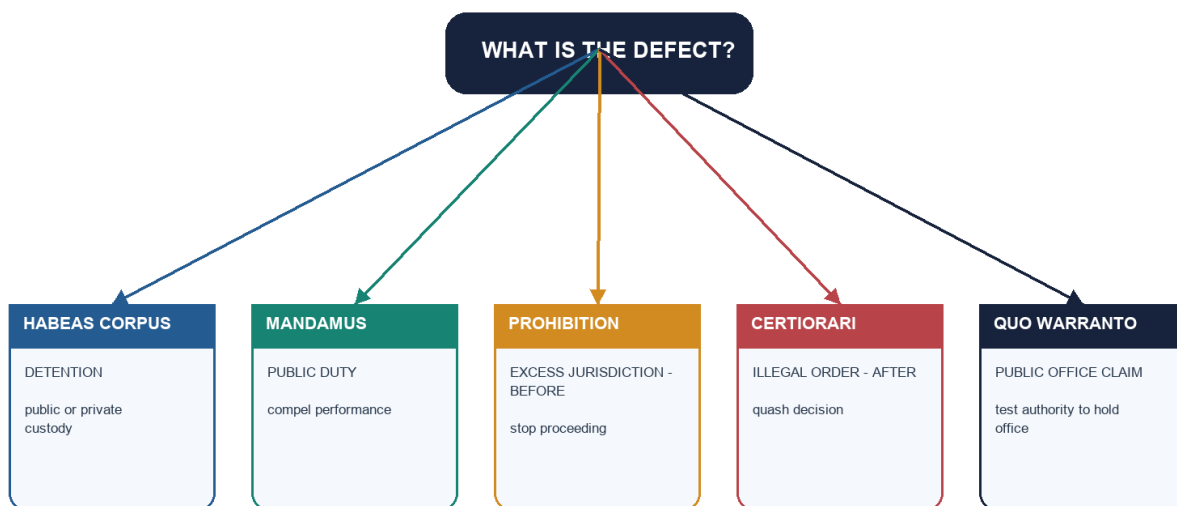
SIMPLE EXAMPLE / ANALOGY

Choose a writ like a repair tool. If a person is unlawfully locked up, use the key that opens detention review-habeas corpus. If an authority refuses a duty, use mandamus. If a tribunal is about to cross its legal boundary, use prohibition; if it already did, certiorari. If the wrong person sits in a public chair, quo warranto.

VISUAL FIRST

Select the writ by the defect

Start from the constitutional injury, not from memorised Latin



Article 32: Fundamental Rights only | Article 226: Fundamental Rights plus other legal rights.

The writ-selection tree matches detention, omitted duty, threatened excess, completed order and unlawful office.

Feature	Article 32	Article 226
Court	Supreme Court	High Court
Subject	Fundamental Rights	Fundamental Rights + other legal rights
Status	itself a Fundamental Right	constitutional discretionary jurisdiction
Respondent reach	FR enforcement	wider public-duty reach
Territorial logic	national apex jurisdiction	territory/cause-of-action requirements

NOW ADD THE EXACT LAW

NOW ADD THE EXACT LAW: Dr Ambedkar described Article 32 as the Constitution's "heart and soul." *L. Chandra Kumar* treats judicial review under Articles 32 and 226/227 as part of the basic structure. *Andi Mukta* illustrates mandamus against a body owing a public duty. Writ labels are not magic words: the court examines the function, jurisdictional defect, detention, duty or office actually challenged.

COMMON CONFUSION

COMMON CONFUSION: "Article 32 is wider because it is a Fundamental Right, and mandamus can be issued against any private person." -> **Correct position:** Article 32 is guaranteed for FR enforcement; Article 226 is wider in subject matter and public-duty reach. Mandamus requires a public duty, while habeas corpus can address private detention.

WHAT MUST I REMEMBER?

1. Article 32 is a Fundamental Right and an enforcement forum.
2. Article 226 covers Fundamental Rights and other legal rights.
3. Habeas corpus tests detention; mandamus compels public duty.
4. Prohibition is preventive; certiorari is usually corrective.
5. Quo warranto tests authority to hold public office.
6. Public duty matters more than private corporate form for mandamus.
7. PIL relaxes standing but does not remove legal injury and good-faith requirements.

CHECK YOUR UNDERSTANDING

1. Which writ should be used before a tribunal completes action beyond jurisdiction, and why?
2. Why is Article 226 wider without making Article 32 constitutionally unimportant?

EXAM USE

EXAM USE: Remedy answer: identify injury -> choose 32 or 226 -> select writ by defect -> explain respondent/public duty -> add standing/alternative-remedy qualification -> state the relief precisely.

IF YOU WANT THE FULL DETAIL

Use Data Vault D3 and D6, then Source Annex A: Session 23.

MODULE 14 - ARTICLES 31A-31C, THE NINTH SCHEDULE AND ARTICLE 300A PROPERTY

WHAT ARE WE LEARNING?

How did property move out of Part III while saving clauses remained reviewable?

TEACHER EXPLAINS

TEACHER EXPLAINS: The original Constitution protected property through Articles 19(1)(f) and 31. Land reform and redistributive legislation produced repeated amendments. The First Amendment inserted Articles 31A and 31B and the Ninth Schedule. The Twenty-fifth Amendment inserted Article 31C for laws giving effect to Article 39(b) or (c). The Forty-fourth Amendment removed Articles 19(1)(f) and 31 from Part III and inserted Article 300A: no person shall be deprived of property save by authority of law.

Article 31A protects specified reform categories, chiefly laws concerning acquisition of estates and related rights, from Articles 14 and 19 subject to its text and, for specified State laws, Presidential assent. Article 31B validates laws placed in the Ninth Schedule, but *I.R. Coelho* holds that post-24 April 1973 insertions remain open to basic-structure review through their rights impact.

Original Article 31C protects a genuine Article 39(b)/(c) law from Articles 14 and 19 challenge. *Kesavananda Bharati* controlled its immunity; the 42nd Amendment tried to extend protection to all Directive Principles, but *Minerva Mills* invalidated that extension. *Property Owners Association* (5 November 2024) confirms that original 31C survives and that privately owned resources may contextually be material resources of the community, but not every private asset automatically qualifies.

Article 300A protects **every person**, not only citizens. Deprivation needs valid law, not mere executive instruction. It is a constitutional right outside Part III, so the ordinary route is usually Article 226 or other legal remedies rather than treating property as a current Fundamental Right.

SIMPLE EXAMPLE / ANALOGY

Imagine a bridge moved from the Part III express lane to another constitutional road. The bridge still exists-Article 300A-but its route, remedies and tests differ. The Ninth Schedule is a protective tunnel, not an invisible bunker beyond the basic structure.

VISUAL FIRST

Saving clauses and emergency controls

Immunity and suspension are narrow constitutional mechanisms, not blanket erasure

31A

specified estate / reform categories

31B

Ninth Schedule; post-24 Apr 1973 entries face basic-structure review

31C

original Art 39(b)/(c) protective scope survives

33-35

forces, martial-law indemnity and Parliament-only legislation

CONTROL	TRIGGER	EFFECT	NON-DEROGABLE
Art 358	Emergency on war / external aggression	Art 19 protection restricted within constitutional conditions	20, 21 unaffected
Art 359	Presidential order during Emergency	right to move court for specified FRs suspended	20, 21 cannot be included

Martial law is local military control; National Emergency is a detailed constitutional regime.

Saving clauses, property and Emergency controls must be kept distinct.

PROPERTY TIMELINE

1950: 19(1)(f) + Article 31

1951: 31A + 31B + Ninth Schedule

1971: 31C for Article 39(b)/(c)

1973: Kesavananda basic-structure date

1978: property leaves Part III

NOW: Article 300A - every person; authority of law

NOW ADD THE EXACT LAW

NOW ADD THE EXACT LAW: *Waman Rao* uses 24 April 1973 as a constitutional dividing line for Ninth Schedule review; *I.R. Coelho* confirms post-date entries can be tested for basic-structure damage. *K.T. Plantation* explains Article 300A's authority-of-law and public-purpose/compensation dimensions without recreating the old property Fundamental Right. *Property Owners Association* supplies the current Article 31C/material-resources control in the source audit.

COMMON CONFUSION

COMMON CONFUSION: "Ninth Schedule laws cannot be reviewed, Article 31C protects every DPSP law, and property is only an ordinary statutory right." -> **Correct position:** post-1973 Ninth Schedule entries face basic-structure review; surviving 31C is tied to 39(b)/(c); Article 300A is a constitutional right protecting every person.

WHAT MUST I REMEMBER?

1. Property is not a present Fundamental Right.
2. Article 300A protects every person against deprivation except by authority of law.
3. Article 31A, 31B and 31C perform different saving functions.
4. The Ninth Schedule is not absolutely immune after *I.R. Coelho*.
5. Surviving Article 31C is tied to Article 39(b)/(c), not all DPSPs.

6. Property Owners rejects the claim that every private asset is automatically a community resource.
7. Article 32 is not the default property remedy merely because Article 300A is constitutional.

CHECK YOUR UNDERSTANDING

1. Why does Article 31B not create absolute immunity for every Ninth Schedule law?
2. What is the precise difference between the former property Fundamental Right and Article 300A?

EXAM USE

EXAM USE: Saving/property answer: trace amendment timeline -> distinguish 31A/31B/31C -> add Kesavananda/Waman Rao/Coelho -> state Property Owners qualification -> finish with 44th Amendment and Article 300A authority-of-law distinction.

IF YOU WANT THE FULL DETAIL

Use Data Vault D1, D3-D4 and D9, then Source Annex A: Session 24.

MODULE 15 - ARTICLES 33-35 AND EMERGENCY EFFECTS UNDER ARTICLES 358-359

WHAT ARE WE LEARNING?

Which rights may be specially controlled, and what actually happens during an Emergency?

TEACHER EXPLAINS

TEACHER EXPLAINS: Article 33 authorises **Parliament** to restrict or abrogate Fundamental Rights of members of the Armed Forces, forces maintaining public order, intelligence or counter-intelligence organisations and connected communications systems, to secure proper discharge of duties and discipline. This is not a general executive power and does not mean these personnel have no constitutional protection.

Article 34 permits Parliament to indemnify persons or validate acts connected with maintenance or restoration of order in an area where martial law was in force. Martial law is not defined in the Constitution and differs from a National Emergency: one concerns local exceptional military control/restoration, the other is an express constitutional proclamation under Part XVIII. Article 35 reserves specified Part III legislative subjects to Parliament, including Article 16(3), Article 32(3), Articles 33-34 and punishment for acts declared offences under Part III.

Article 358 and Article 359 must never be merged. Article 358 operates automatically on Article 19 only when the Emergency is declared on war or external aggression, not armed rebellion, and post-44th conditions connect the law/executive action to the Emergency. Article 359 requires a Presidential order and suspends the right to move a court for enforcement of rights named in that order; it does not textually erase the right itself. Articles 20 and 21 can never be included after the Forty-fourth Amendment.

ADM Jabalpur denied habeas relief during the 1975-77 Emergency and stands repudiated; *Puttaswamy* expressly overruled its constitutional approach. The non-derogable Articles 20 and 21

and judicial-review commitment are the Constitution's institutional memory of Emergency abuse.

SIMPLE EXAMPLE / ANALOGY

Article 358 is an automatic switch for one circuit-Article 19-under only two types of Emergency. Article 359 is a written order that blocks court enforcement of listed circuits for a period, but the two protected circuits, Articles 20 and 21, cannot be switched off.

VISUAL FIRST

Feature	Article 358	Article 359
Trigger	Emergency based on war/external aggression	Presidential order during Emergency
Rights	Article 19 only	rights specified in order
Operation	automatic within constitutional conditions	order-based
Effect	State freed from Article 19 constraint for covered action	right to move court for enforcement suspended
Articles 20-21	not relevant to 358	cannot be included

MARTIAL LAW != NATIONAL EMERGENCY
local exceptional coercive control != express Part XVIII proclamation

NOW ADD THE EXACT LAW

NOW ADD THE EXACT LAW: The 44th Amendment narrowed Article 358 and protected Articles 20-21 from Article 359 orders. Laws seeking Article 358/359 protection must satisfy the post-amendment nexus/recital conditions described in the Constitution. Article 34 recognition does not automatically abolish habeas corpus or every right. Article 35 is a legislative-competence provision, not a separate individual freedom.

COMMON CONFUSION

COMMON CONFUSION: "A National Emergency automatically suspends all Fundamental Rights, while martial law and Emergency are the same." -> **Correct position:** Article 358 is limited to Article 19 and external Emergency grounds; Article 359 is order-based and excludes Articles 20-21. Martial law is a distinct local exceptional condition.

WHAT MUST I REMEMBER?

1. Only Parliament uses Article 33's restriction/abrogation power.
2. Article 34 concerns indemnity/validation where martial law existed.
3. Article 35 reserves specified Part III legislation to Parliament.
4. Article 358 is automatic, Article 19-only and external-Emergency specific.
5. Article 359 needs a Presidential order and concerns enforcement of named rights.
6. Articles 20 and 21 cannot be included in an Article 359 order.
7. Martial law and National Emergency are not synonyms.
8. ADM Jabalpur's approach is repudiated and overruled.

CHECK YOUR UNDERSTANDING

1. Why is Article 359 described as suspending enforcement rather than deleting the right?
2. Which Emergency ground does not activate Article 358?

EXAM USE

EXAM USE: Emergency answer: Articles 33-35 competence/discipline -> martial-law distinction -> 358 trigger/right/effect -> 359 order/right/effect -> 44th Amendment and non-derogable 20-21 -> ADM Jabalpur constitutional-memory conclusion.

IF YOU WANT THE FULL DETAIL

Use Data Vault D1, D4 and D9, then Source Annex A: Sessions 25-26.

MODULE 16 - DOCTRINE EVOLUTION, CURRENT ANCHORS, PYQ DEMANDS AND ANSWER BUILDING

WHAT ARE WE LEARNING?

How do we convert a wide legal syllabus into a precise Prelims choice and a balanced GS-II answer?

TEACHER EXPLAINS

TEACHER EXPLAINS: Do not write Fundamental Rights as a case-name parade. Each case should perform one job in a doctrinal evolution. For Article 21, use Gopalan -> Cooper -> Maneka -> named dignity applications -> Puttaswamy proportionality. For equality, use classification -> Royappa anti-arbitrariness -> enabling reservation clauses -> Indra Sawhney controls -> Janhit/Davinder current refinement. For speech, use 1950 cases -> First Amendment -> Kedar Nath incitement discipline -> Shreya Singhal digital vagueness -> Anuradha Bhasin shutdown procedure -> Electoral Bonds political information.

Three general ideas add depth when supported. **Proportionality** asks whether a lawful measure pursuing a legitimate aim is suitably connected, necessary and balanced with safeguards.

Constitutional morality protects the Constitution's liberty, equality and fraternity commitments against social domination, but remains tied to text and structure. **Transformative constitutionalism** explains why Part III attacks caste, gender and status hierarchies and sometimes requires positive protection, not merely State abstention.

Current anchors must be dated. The active official-source audit through 21 August 2026 retains five controlled propositions: Electoral Bonds protects political-funding information; *Davinder Singh* permits evidence-based SC sub-classification; *Property Owners* preserves original Article 31C and a contextual private-resource inquiry; DPDP commencement is phased; BNS section 152 is operative and under a notified constitutional challenge without a located final merits disposition. This edition does not extend the control date or invent later outcomes.

Prelims elimination begins with exact words: citizen/person, tax/fee, internal/foreign travel, automatic/order-based Emergency effect, preventive-detention period, prohibition/certiorari, title/award, direct/indirect horizontality. Mains answers begin with the claimant and State action, not a

generic history of Part III.

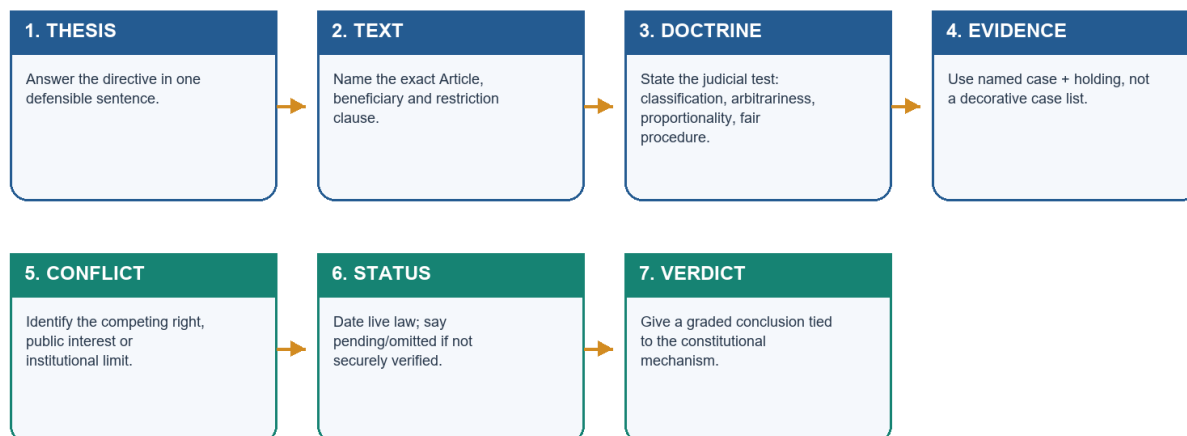
SIMPLE EXAMPLE / ANALOGY

Cases are stepping stones across a river. Naming every stone does not cross the river. A good answer shows how one stone changes the route: Gopalan's narrow channel, Cooper's effect test, Maneka's fair procedure and Puttaswamy's privacy test.

VISUAL FIRST

Fundamental Rights Mains answer spine

Convert a broad rights question into a controlled constitutional argument



Claim -> evidence -> analysis -> qualification

A marks-oriented answer identifies the claimant, Article, limit, case and remedy.

10-MARK SPINE

claimant/respondent -> Article -> protected interest -> exact limit
-> one controlling case -> remedy -> qualified verdict

15/20-MARK SPINE

architecture -> doctrine evolution -> clause-level application
-> competing right/DPSP -> proportionality -> remedy
-> current dated anchor -> balanced conclusion

NOW ADD THE EXACT LAW

NOW ADD THE EXACT LAW: The active source verifies 21 routed PYQs: six Mains questions, thirteen 2018-2023 Prelims routes labelled **INFERRED ANSWER - NOT OFFICIALLY VERIFIED**, the 2024 privacy question with an official local key, and the 2026 Article 13/custom question with a provisional non-official key. Exact stems, keys, explanations, original practice and remedials remain in Data Vault D8 and Source Annex A/B.

COMMON CONFUSION

COMMON CONFUSION: “More case names automatically produce more marks, and every current case should be described as finally settled.” -> **Correct position:** use a short doctrine chain in which every holding proves a claim and carries a limit. Date-bound current status must state what the official record does and does not establish.

WHAT MUST I REMEMBER?

1. Use cases as doctrine evolution, not decoration.
2. Every case sentence should contain holding + use + limit.
3. Proportionality is structured justification, not the word “balance.”
4. Constitutional morality remains tied to constitutional text and values.
5. Current claims stop at the verified control date.
6. Prelims depends on close wording and exception discipline.
7. Mains begins with claimant, State action, Article and directive.
8. End with a reasoned verdict, not an automatic “balance is needed.”

CHECK YOUR UNDERSTANDING

1. How would you turn Gopalan, Cooper, Maneka and Puttaswamy into one doctrine-evolution paragraph?
2. What information must accompany a current case before it is safe to use in a Mains answer?

EXAM USE

EXAM USE: Universal answer framework: direct thesis -> exact text and beneficiary -> doctrine evolution -> named evidence showing what it proves -> competing value/limit -> proportionality and procedure -> Article 32/226 remedy -> dated current anchor -> graded verdict. See the exact PYQ demand map before practising.

IF YOU WANT THE FULL DETAIL

Use Data Vault D2-D3, D7-D12, then Source Annex A/B for every complete solution.

FINAL ANSWERS - CHECK YOUR UNDERSTANDING

Module 1 answers

1. Beneficiary asks who owns the right; respondent asks who is constitutionally bound. A non-citizen may own Article 14, while a private body may fail Article 12 but still be directly bound by Article 23 or face Article 226 for a public duty.
2. Articles 15(2), 17, 23 and 24.

Module 2 answers

1. Article 12 status and Article 226 public-duty reach are different inquiries. A body may lack pervasive governmental domination yet owe a public legal duty enforceable by a High Court.
2. Severability removes an unconstitutional portion when the valid remainder can stand. Eclipse primarily makes a conflicting pre-Constitution rule dormant against the protected claim, allowing possible revival if the constitutional obstacle is validly removed.

Module 3 answers

1. Yes. An intelligible differentia fails if it has no rational nexus with the law's object.
2. It allowed Article 14 to invalidate capricious, unguided or unfair State action even when classic group comparison was incomplete.

Module 4 answers

1. Article 15(3) authorises special provisions for women and children across the Article 15 field; Article 16(4) is a public-employment provision for an inadequately represented backward class. Their beneficiaries, field and conditions differ.
2. It permitted evidence-based sub-classification within Scheduled Castes without changing the Article 341 list. It did not require every State to create a sub-quota.

Module 5 answers

1. Speech restrictions must fit the closed grounds in Article 19(2). "General public interest" belongs to Articles 19(5) and 19(6), not to speech as a freestanding ground.
2. Article 21 protects travel abroad through personal liberty and fair procedure. Article 19(1)(d) concerns movement throughout the territory of India.

Module 6 answers

1. Discussion and advocacy normally remain protected; restriction becomes constitutionally stronger at incitement, where expression has the required close connection to a listed Article 19(2) harm.
2. Section 152 has differently framed ingredients and is operative. The active audit located a constitutional-challenge notice but no final merits decision through 21 August 2026.

Module 7 answers

1. Article 20(3) targets compelled testimonial communication by an accused. Fingerprints and other physical identifying material are analytically distinct, though Article 21 and statutory safeguards still apply.
2. Gopalan accepted narrow lawful procedure and compartmentalised rights. Maneka required fair, just and reasonable procedure and linked Articles 14, 19 and 21.

Module 8 answers

1. A legitimate aim is only one step. The State must also show legal authority, suitable connection, necessity, balance and adequate safeguards.
2. Article 21A and the RTE Act create education obligations, but Pramati protects Article 30 minority institutions from an application that would destroy their constitutional autonomy.

Module 9 answers

1. A magistrate independently authorises ordinary post-arrest custody. An Advisory Board reviews preventive detention under a special constitutional regime; it is not the ordinary criminal-production safeguard.
2. The 44th Amendment enacted a two-month substitution, but it was not commenced. The operative no-Advisory-Board period remains three months.

Module 10 answers

1. PUJDR treated severe economic compulsion and payment below the statutory minimum as capable of making labour “forced” under Article 23.
2. Article 24 text covers children below fourteen in factories, mines and hazardous employment. Statute creates a broader child/adolescent labour framework with its own definitions and exceptions.

Module 11 answers

1. Article 25 protects every person's conscience and profession/practice/propagation; Article 26 protects a religious denomination or section in institutional and religious affairs.
2. Constitutional morality derives authority from constitutional text, structure and liberty-equality-fraternity commitments. Detached from them, it becomes an undefined personal preference rather than a legal test.

Module 12 answers

1. Article 29 speaks of sections of citizens and citizen admissions; Article 30 speaks of all religious or linguistic minorities. The beneficiary language is not identical.
2. Standards, qualifications, transparency and anti-exploitation rules may regulate an institution. A rule becomes unconstitutional when it takes over or destroys the minority management's core and identity.

Module 13 answers

1. Prohibition, because it prevents the tribunal from completing action outside jurisdiction. Certiorari ordinarily quashes a completed defective order.
2. Article 226 reaches Fundamental Rights and other legal rights and has wider public-duty scope. Article 32 remains a guaranteed Fundamental Right for Supreme Court enforcement of Part III.

Module 14 answers

1. I.R. Coelho permits basic-structure review of post-24 April 1973 Ninth Schedule insertions by examining their rights impact.
2. The former protection was inside Part III and included Article 19(1)(f)/31 remedies. Article 300A is a constitutional right of every person outside Part III requiring authority of law.

Module 15 answers

1. Article 359 changes access to court for enforcement of named rights during the order; it does not amend the constitutional text or permanently extinguish the right.
2. Armed rebellion. Article 358 is limited to Emergencies based on war or external aggression.

Module 16 answers

1. Gopalan used narrow legal procedure and rights silos; Cooper tested the effect of State action; Maneka required fair, just and reasonable procedure across Articles 14, 19 and 21; Puttaswamy applied that dignity-based liberty to bodily, decisional and informational privacy through structured justification.
2. State the official decision or notification, date, precise holding/operation, control date, later procedural status if verified, and what no located official source permits you to claim.

COMPLETE DATA VAULT - ADVANCED/REFERENCE

Use this section after the guided core. It is deliberately dense and visually distinct.

D1. Articles 12-35 table

Article	Subject	Exact retrieval cue	Guided destination
12	Definition of State	Union/State executive and legislature, local and other authorities	Module 2; D2/D5
13	Laws inconsistent with Fundamental Rights	voidness, broad definition of law, doctrines	Module 2; D2
14	Equality before law and equal protection	persons; classification and anti-arbitrariness	Module 3
15	Non-discrimination and special provisions	citizens; clause-specific substantive equality; 15(2) horizontal	Module 4
16	Equality of public-employment opportunity	citizens; residence, reservation, promotion, backlog, EWS	Module 4
17	Abolition of untouchability	direct horizontal prohibition; punishable by law	Module 4
18	Abolition of titles	military/academic distinctions; award-use qualification	Module 4
19	Six freedoms	citizens; clause-specific restriction grounds	Modules 5-6
20	Criminal-law protections	persons; ex post facto, double jeopardy, self-incrimination	Module 7
21	Life and personal liberty	persons; fair, just and reasonable procedure; dignity	Modules 7-8
21A	Free and compulsory education	children aged six to fourteen	Module 8
22	Arrest and preventive detention	persons with enemy-alien/preventive-detention distinction	Module 9
23	Trafficking and forced labour	persons; direct horizontal reach	Module 10
24	Child labour	below fourteen in factory, mine or hazardous employment	Module 10
25	Conscience and religion	persons; public order, morality, health, other FRs	Module 11
26	Religious denominations	institutional religious affairs and property, subject to listed limits	Module 11
27	Religious-promotion taxation	persons; tax/fee distinction	Module 11
28	Religious instruction/attendance	institution-category and consent rules	Module 11
29	Culture and admissions	sections of citizens; citizen admission protection	Module 12
30	Minority educational institutions	religious or linguistic minorities; autonomy with regulation	Module 12
31	Right to property	omitted from Part III by the Forty-fourth Amendment	Module 14; D4
31A	Saving of specified reform laws	specified categories protected from Articles 14/19 subject to text	Module 14

Article	Subject	Exact retrieval cue	Guided destination
31B	Ninth Schedule	listed-law protection subject to I.R. Coelho basic-structure review	Module 14
31C	Article 39(b)/(c) laws	surviving original protection from Articles 14/19	Module 14
31D	Anti-national activities provision	inserted by 42nd Amendment and repealed by 43rd	D4/D9
32	Constitutional remedies	Supreme Court enforcement and writs	Module 13
33	Rights of forces etc.	Parliament may restrict/abrogate for duty and discipline	Module 15
34	Martial-law indemnity	Parliamentary indemnity/validation in affected area	Module 15
35	Parliament-only Part III legislation	specified competence and punishment provisions	Module 15

D2. Doctrine and test matrix

Doctrine/test	Operational rule	Leading anchors	Qualification
State/instrumentality	financial + functional + administrative domination; cumulative control	R.D. Shetty; Ajay Hasia; Pradeep Kumar Biswas	mere regulation/public importance is not conclusive
Public-duty writ	body may face Article 226 for a public duty without being Article 12 State	Andi Mukta; Zee Telefilms distinction	do not collapse into Article 12
Severability	remove invalid part if remainder is workable and intended	R.M.D. Chamarbaugwala	void only to extent
Eclipse	inconsistent pre-Constitution law becomes dormant against protected claim	Bhikaji Narain Dhakras	not automatic repeal; use carefully for post-Constitution law
Waiver	person generally cannot validate unconstitutional State action by consent	Bashesar Nath	public constitutional guarantee
Prospective overruling	new constitutional rule may operate prospectively	Golaknath	case-specific judicial technique
Reasonable classification	intelligible differentia + rational nexus	Ram Krishna Dalmia	both limbs required
Anti-arbitrariness	capricious/unguided State action violates equality	E.P. Royappa; Maneka Gandhi	do not replace every textual test with a slogan
Manifest arbitrariness	legislation may fail for capricious, irrational determining principle	Shayara Bano opinions	state fragmented context precisely
Proportionality	law + legitimate aim + suitability + necessity + balance + safeguards	Modern Dental College; Puttaswamy; Anuradha Bhasin	formulations vary; explain steps
Incitement/vagueness	discussion/advocacy protected; incitement and close harm matter	Shreya Singhal; Kedar Nath	closed Article 19(2) grounds still control
Essential Religious Practices	identify protected religious matter versus secular/regulable activity	Shirur Mutt	judicial-theology and equality criticisms
Constitutional morality	liberty/equality/fraternity discipline social and public power	Navtej; Joseph Shine	not free-floating personal morality
Basic structure	amendment cannot destroy foundational constitutional identity	Kesavananda; Minerva Mills	full doctrine belongs to Topic 10
Ninth Schedule review	post-24 April 1973 entry tested for basic-structure damage	Waman Rao; I.R. Coelho	not blanket invalidity
Positive obligation	State may need prevention/remedy against private domination	Vishaka; D.K. Basu line	does not make every private actor State

D3. Case chronology and holdings matrix

Year	Case	Holding used in this edition	Limit/control
1950	A.K. Gopalan v. State of Madras	narrow procedure and compartmentalised rights	later displaced by Cooper/Maneka
1950	Romesh Thappar v. State of Madras	early speech/public-order limit exposed	read with First Amendment change
1950	Brij Bhushan v. State of Delhi	prior restraint struck under original speech clause	historical constitutional setting
1951	State of Madras v. Champakam Dorairajan	communal admission order failed; prompted Article 15(4)	pre-First-Amendment text
1954	Commissioner, HRE v. Shirur Mutt	religious affairs versus secular regulation; ERP foundation	ERP later criticised/refined
1958	Basheshar Nath v. CIT	Fundamental Rights generally cannot be waived	public constitutional order
1961	State of Bombay v. Kathi Kalu Oghad	testimonial compulsion distinguished from physical evidence	Article 21/statutory safeguards remain
1962	Kedar Nath Singh v. State of Bihar	sedition read toward incitement/public disorder	do not automatically transpose to BNS 152
1967	I.C. Golaknath v. State of Punjab	restricted amendment of FRs; prospective overruling	superseded by 24th Amendment/Kesavananda framework
1970	R.C. Cooper v. Union of India	effect of State action; rights not isolated compartments	bridge to Maneka
1973	Kesavananda Bharati v. State of Kerala	amendment power subject to basic structure	not a ban on amendment
1974	E.P. Royappa v. State of Tamil Nadu	arbitrariness antithetical to equality	apply with textual context
1976	ADM Jabalpur v. Shivkant Shukla	denied habeas during Emergency	repudiated and overruled
1978	Maneka Gandhi v. Union of India	fair, just and reasonable procedure; 14-19-21 integration	travel abroad under Article 21
1978	Nandini Satpathy v. P.L. Dani	protection against compelled incriminating answers in investigation	accused/testimonial nexus
1979	Hussainara Khatoon v. State of Bihar	speedy trial under Article 21	requires systemic implementation
1980	Minerva Mills v. Union of India	limited amendment power and FR-DPSP harmony	struck all-DPSP extension of 31C
1981	Francis Coralie Mullin v. Administrator, UT Delhi	life includes dignity	derived-right claims need defined content
1982	People's Union for Democratic Rights v. Union of India	economic compulsion/minimum wage can implicate forced labour	Article 23 direct reach
1985	Olga Tellis v. Bombay Municipal Corporation	livelihood linked to Article 21	not immunity from eviction; fair procedure required
1986	Bijoe Emmanuel v. State of Kerala	conscience protected for respectful anthem non-singing	fact-specific public-order setting

Year	Case	Holding used in this edition	Limit/control
1992	Indra Sawhney v. Union of India	OBC creamy layer, ordinary ceiling, no 16(4) promotion	later amendments/promotion cases
1994	S.R. Bommai v. Union of India	secularism as basic feature	federal/emergency context
1995	State of Karnataka v. Appa Balu Ingale	Article 17 attacks caste untouchability in practice	historical caste meaning
1997	Vishaka v. State of Rajasthan	positive protection against workplace harassment	operated until legislation
2002	T.M.A. Pai Foundation v. State of Karnataka	minority status generally State-wise; autonomy plus regulation	institution-type context matters
2005	P.A. Inamdar v. State of Maharashtra	unaided professional-institution autonomy under then framework	read with later amendment/statute
2007	I.R. Coelho v. State of Tamil Nadu	post-1973 Ninth Schedule laws face basic-structure review	not automatic invalidation
2010	Selvi v. State of Karnataka	involuntary narco/polygraph/brain mapping unconstitutional	consent and safeguards matter
2014	NALSA v. Union of India	gender identity protected by equality, expression and dignity	implementation remains separate
2014	Pramati Educational & Cultural Trust v. Union of India	minority institutions protected from RTE application	Article 30 boundary
2015	Shreya Singhal v. Union of India	66A void; advocacy/incitement; 69A upheld; 79 read down	do not claim all blocking power struck
2016	Subramanian Swamy v. Union of India	criminal defamation upheld	speech balanced with reputation
2017	K.S. Puttaswamy v. Union of India	privacy intrinsic to Article 21/Part III	lawful proportionate intrusion possible
2017	Shayara Bano v. Union of India	instant triple talaq set aside; manifest-arbitrariness route in opinions	state the fractured majority carefully
2018	Navtej Singh Johar v. Union of India	dignity, privacy, equality and intimate autonomy	constitutional morality tied to text/values
2018	Joseph Shine v. Union of India	adultery offence invalid; autonomy and anti-stereotype	civil consequences remain distinct
2020	Anuradha Bhasin v. Union of India	published, temporary, reviewable and proportionate shutdown orders	no broad standalone internet right
2022	Janhit Abhiyan v. Union of India	103rd Amendment/EWS upheld 3:2	not unanimous
2024-02-15	Association for Democratic Reforms v. Union of India	Electoral Bonds secrecy architecture invalid; political-funding information	status controlled through 21 Aug 2026
2024-08-01	State of Punjab v. Davinder Singh	evidence-based SC sub-classification permissible	permission, not mandate; Article 341 list unchanged
2024-11-05	Property Owners Association v. State of Maharashtra	original 31C survives; resource inquiry contextual	not every private asset qualifies

D4. Amendments, Emergency and property timeline

Year	Amendment/event	Fundamental-Rights effect
1951	First Amendment	inserted 15(4), 31A, 31B/Ninth Schedule; recast 19(2) with reasonable restrictions and added grounds
1955	Fourth Amendment	strengthened property-acquisition and 31A/31B framework
1963	Sixteenth Amendment	added sovereignty and integrity grounds to 19(2)-(4) and related oath controls
1971	Twenty-fourth Amendment	affirmed Parliament's amendment power; inserted Articles 13(4) and 368 changes
1971	Twenty-fifth Amendment	inserted Article 31C for Article 39(b)/(c) laws
1972	Twenty-ninth Amendment	added Kerala land-reform laws to Ninth Schedule
1976	Forty-second Amendment	attempted to extend 31C to all DPSPs; inserted 31D
1977	Forty-third Amendment	repealed Article 31D
1978	Forty-fourth Amendment	removed property from Part III; inserted 300A; narrowed 358; excluded 20/21 from 359; uncommenced detention change
1995	Seventy-seventh Amendment	inserted 16(4A) promotion reservation for SC/ST
2000	Eighty-first Amendment	inserted 16(4B) backlog vacancies
2000	Eighty-second Amendment	added Article 335 proviso for qualifying-mark/standard relaxation
2001	Eighty-fifth Amendment	consequential seniority in promotion framework
2002	Eighty-sixth Amendment	inserted Article 21A; revised Article 45; added 51A(k)
2005	Ninety-third Amendment	inserted Article 15(5) educational special-provision power
2011	Ninety-seventh Amendment	added cooperative societies to Article 19(1)(c)
2019	One Hundred and Third Amendment	inserted 15(6) and 16(6) EWS provisions
2021	One Hundred and Fifth Amendment	restored States' power to identify SEBCs for their purposes

Property/Emergency rapid chain

PROPERTY: 19(1)(f)+31 -> 31A/B -> 31C -> 44th Amendment -> Article 300A

EMERGENCY: ADM Jabalpur failure -> 44th Amendment -> 358 narrowed + 20/21 protected from 359

RESERVATION: 15(4) -> Indra Sawhney -> 77/81/82/85 -> 93rd -> 103rd -> Davinder Singh

D5. Citizen-only, person-rights and group-rights matrix

Provision	Beneficiary	Respondent/reach
14	any person	primarily State; anti-arbitrariness
15(1)	citizen	State
15(2)	citizen	State and specified private access discrimination
16	citizen	State/public employment
17	everyone protected against untouchability	State and private actors
18	citizens/persons in clause-specific form	State/citizen title controls
19	citizen	State
20	person	State criminal process
21	person	State plus positive-protection duties
21A	children aged 6-14	State; statutory school obligations with Article 30 boundary
22	person subject to textual exceptions	State arrest/detention
23	person	State and private actors
24	child below 14	State and private employers
25	person	State; conscience/religion
26	religious denomination or section	State
27	person	State taxation
28	person/student/guardian in clause context	covered educational institutions
29	section of citizens / citizen	State and State-maintained/aided admissions
30	religious or linguistic minority	State; institution regulation
32	holder of a Fundamental Right	Supreme Court remedy

D6. Writs and Article 32/226 retrieval table

Writ	Purpose	Typical respondent/defect	Trap/limit
Habeas corpus	produce detained person and test legality	public or private unlawful detention	not issued when custody is demonstrably lawful under valid authority
Mandamus	compel performance of public duty	public authority or body owing public duty	not a general order enforcing purely private contract
Prohibition	stop proceedings before completion	court/tribunal acting outside jurisdiction	preventive, not for a completed order
Certiorari	quash completed defective order	court/tribunal/public decision with jurisdictional/legal error	corrective; not an appeal on every factual disagreement
Quo warranto	test authority to hold public office	holder of substantive public office	focuses on legal qualification, not personal injury

Court comparison: Article 32 is guaranteed for Supreme Court enforcement of Fundamental Rights. Article 226 is wider for Fundamental Rights and other legal rights, with broader public-duty and territorial operation.

D7. Current-source matrix - controlled through 21 August 2026

Item	Authoritative control in active source	Proposition retained	No overclaim
Electoral Bonds	15 Feb 2024 official Supreme Court judgment	political-funding information within 19(1)(a); secrecy architecture invalid	no later altering decision claimed through 21 Aug 2026
Davinder Singh	1 Aug 2024 official Supreme Court judgment	evidence-based SC sub-classification permissible; Article 341 list unchanged	no mandatory national sub-quota
Property Owners Association	5 Nov 2024 official Supreme Court judgment	original 31C survives; private-resource inquiry contextual	not every private asset is community material resource
BNS/BNSS	operative from 1 Jul 2024; official criminal-law texts	BNSS arrest safeguards supplement Article 22; BNS 152 has distinct wording	not a simple 124A renaming
BNS section 152 challenge	Supreme Court notice dated 28 Aug 2025 in active audit	vires challenge notified/tagged	no final merits disposition located through control date
DPDP Act/Rules	Gazette G.S.R. 843(E)/846(E), 13 Nov 2025	phased commencement; first tranche operative by 21 Aug 2026	whole regime not described as fully operative

CURRENT-LAW LIMIT: This edition inherits the active repository's official-source audit through **21 August 2026**. It does not claim a later final order, later commencement event or later statutory change without a located authoritative source.

D8. Exact PYQ demand map

PYQ	Exact demand/theme	Answer/key control
Mains 2019 GS-II Q5	What can France learn from Indian secularism?	Compare strict separation with principled distance using Articles 17 and 25-28; qualify ERP/intervention risks.
Mains 2021 GS-II Q13	India-US Right to Equality	Compare text, group-conscious equality, private reach, scrutiny/tests and remedies.
Mains 2022 GS-II Q2	Movement and residence are not absolute	Use 19(1)(d)/(e), exact 19(5) grounds, internal/foreign travel distinction and proportionality.
Mains 2023 GS-II Q11	Living Constitution and expanding Article 21	Build Gopalan-Cooper-Maneka chronology plus named dignity rights and institutional limit.
Mains 2023 GS-II Q12	Gender justice provisions and cases	Integrate Articles 14-16, 19, 21, 23, DPSPs/duty and targeted anti-stereotype cases.
Mains 2024 GS-II Q12	Privacy and prenatal DNA/paternity	Answer both halves: Puttaswamy test, bodily/child interests, section 116 presumption and eminent need.
Prelims 2018 Q92	Privacy intrinsic to life/liberty	INFERRED, not official: Article 21 and Part III freedoms.
Prelims 2019 Q56	Right to marry choice	INFERRED, not official: Article 21 autonomy.
Prelims 2019 Q85	Meaning of liberty	INFERRED, not official: opportunity to develop oneself fully.
Prelims 2020 Q4	Untouchability cluster	INFERRED, not official: Right to Equality.
Prelims 2021 Q79	Privacy Article	INFERRED, not official: Article 21.
Prelims 2021 Q82	Judicial custody	INFERRED, not official: magistrate/jail custody; interrogation requires court approval.
Prelims 2021 Q83	Parole	INFERRED, not official: not automatic right; State rules.
Prelims 2021 Q85	Unguided discretion	INFERRED, not official: Article 14.
Prelims 2021 Q92	Right to Property	INFERRED, not official: constitutional/legal right available to any person.
Prelims 2021 Q96	Awards and titles	INFERRED, not official: national awards are not Article 18 titles; source explanation retained.
Prelims 2022 Q18	Mandamus and quo warranto	INFERRED, not official: select writ by public duty/public office.
Prelims 2023 Q31	Due process	INFERRED, not official: Maneka fairness without erasing textual phrase.
Prelims 2023 Q40	Reservation and efficiency	INFERRED, not official: Article 335 relationship.

PYQ	Exact demand/theme	Answer/key control
Prelims 2024 Q76	Privacy	OFFICIAL LOCAL UPSC KEY VERIFIED: D; exact stem/solution in annex.
Prelims 2026 Q54	Article 13 and custom	PROVISIONAL 2026 KEY - NOT OFFICIAL: D; exact stem/solution in annex.

The exact stems, option sets, official/inferred/provisional labels, full explanations and all six Mains model answers remain in Source Annex A/B. No inferred or provisional key is presented as an official UPSC key.

D9. Exceptions and edge cases

Trap	Precise correction
Article 30 beneficiary	Text says all religious or linguistic minorities; do not mechanically label it citizen-only.
Article 29 beneficiary	Not minority-only; it protects sections of citizens and citizen admission rights.
Horizontal reach	15(2), 17, 23 and 24 directly reach specified private conduct; other claims may use positive duty/statute/public-duty writ.
Article 12	Public function alone is not always conclusive; apply cumulative government domination.
Article 13 eclipse	Primarily a pre-Constitution dormant-law doctrine; do not call every invalid post-Constitution law eclipsed.
Classification	An intelligible differentia without rational nexus still fails.
Reservation ceiling	Fifty per cent is an ordinary doctrinal ceiling with exceptional reasoning, not an unqualified mathematical statement.
Davinder Singh	Permits evidence-based sub-classification; does not mandate it or alter Article 341 list.
Article 18	Military/academic distinctions and properly used national awards are not prohibited titles.
Travel	Internal movement/residence = Article 19; travel abroad = Article 21.
Shreya Singhal	66A struck; 69A blocking framework not struck; section 79 read down.
Anuradha Bhasin	Protected internet as medium and shutdown procedure; no broad standalone internet FR holding.
Article 20(2)	Requires prosecution and punishment for same offence; departmental/administrative action may differ.
Article 20(3)	Testimonial compulsion differs from physical evidence; other safeguards remain.
Derived Article 21 rights	Name the holding and limit; do not convert every aspiration into an absolute entitlement.
Article 22 period	Operative no-Advisory-Board period is three months; 44th Amendment two-month substitution uncommenced.
Article 24	Constitutional below-14 hazardous-employment text differs from wider statute.
Article 27	Bar concerns specified tax appropriation, not every regulatory fee.
Propagation	Does not protect force, fraud or allurement conversion.
Minority administration	No right to maladminister; valid standards cannot destroy identity/control.
Writ sequence	Prohibition prevents; certiorari quashes completed action.
Article 31B	Ninth Schedule not absolutely immune after I.R. Coelho.

Trap	Precise correction
Article 31C	Surviving protection tied to Article 39(b)/(c), not all DPSPs.
Article 300A	Constitutional right of every person, not present FR or citizen-only right.
Article 358	Article 19 only; war/external aggression Emergency.
Article 359	Order-based enforcement suspension; Articles 20-21 excluded.
Current claims	Stop at 21 Aug 2026 audit; do not invent later final judgments or full DPDP commencement.

D10. Glossary

Term	Meaning for this topic
Arbitrariness	capricious or unreasoned State action lacking fair determining principle
Authority of law	deprivation must be supported by valid enacted law, not mere executive order
Begar	forced unpaid labour
Citizen-only right	a guarantee whose text gives the claim to citizens
Constitutional morality	fidelity to constitutional liberty, equality, fraternity, text and structure
Differentia	basis used to separate one class from another
Eclipse	dormancy of inconsistent law against the protected constitutional claim
ERP	Essential Religious Practices doctrine distinguishing protected religious matters from regulable secular activity
Horizontal application	right operating against private conduct directly or through positive/statutory duties
Instrumentality	entity constitutionally treated as State because government domination is sufficiently deep
Intelligible	understandable and non-arbitrary
Manifest arbitrariness	extreme caprice/irrationality in a legislative determining principle
Nexus	rational connection between classification and law's object
Positive obligation	State duty to prevent, protect, investigate or remedy rights harm
Preventive detention	detention aimed at anticipated future conduct rather than punishment for proved offence
Principled distance	Indian secular engagement or separation calibrated to equal citizenship and reform
Proportionality	structured test of legality, aim, suitability, necessity, balance and safeguards
Severability	removal of unconstitutional part while valid independent remainder survives
State action	conduct attributable to constitutionally bound public power
Transformative constitutionalism	use of constitutional guarantees to dismantle entrenched status hierarchy
Vertical application	right enforced against the State
Waiver	intentional surrender; generally unavailable to validate unconstitutional State action

D11. Final consolidated register notes

Part III operating map

- Gatekeepers: Articles 12-13.
- Equality: Articles 14-18.
- Freedom and personal protection: Articles 19-22.
- Exploitation: Articles 23-24.
- Religion: Articles 25-28.
- Culture/education: Articles 29-30.
- Remedy: Article 32.
- Savings/control: Articles 31A-31C and 33-35.
- Emergency effects: Articles 358-359.
- Property today: Article 300A, every person, authority of law.

Beneficiary and reach drill

- Citizen-specific: Articles 15, 16, 19 and 29.
- Person-protective anchors: Articles 14, 20, 21, 22, 23, 24, 25 and 27; read every clause exactly.
- Group/institution rights: Articles 26 and 30.
- Direct specified horizontal reach: 15(2), 17, 23, 24.
- Public-duty route: Article 226 may reach a non-State body.
- Positive duty: State protection may be required without converting every private actor into State.

Article 12-13 decision drill

- Article 12: cumulative financial, functional and administrative domination.
- Mere regulation or importance is not enough.
- Article 13: pre-law inconsistency / post-law prohibition / void to extent.
- Doctrines: severability, eclipse, non-waiver, prospective overruling.
- Amendment: Article 368 + basic structure, not ordinary Article 13 alone.

Equality and reservation control

- Article 14: differentia + nexus + anti-arbitrariness.
- Articles 15/16: separate grounds, fields and enabling clauses.
- Indra Sawhney: OBC creamy layer, ordinary ceiling, no 16(4) promotion.
- Promotion amendments: 77th/81st/82nd/85th; Nagaraj/Jarnail controls.
- EWS: 103rd Amendment upheld 3:2 in Janhit.
- Davinder: evidence-based SC sub-classification permitted, not mandated.
- Article 17 = caste untouchability; Article 18 = no titles, awards qualified.

Article 19 exact-law drill

- Speech 19(2): sovereignty/integrity; State security; friendly relations; public order; decency/morality; contempt; defamation; incitement.
- Assembly 19(3): sovereignty/integrity; public order.
- Association 19(4): sovereignty/integrity; public order; morality.

- Movement/residence 19(5): general public; Scheduled Tribe protection.
- Profession/trade 19(6): general public; qualifications; State monopoly.
- Foreign travel = Article 21.
- Shreya: 66A void, 69A survives, 79 read down.
- Anuradha: publish/review/proportionality; no standalone internet-right overclaim.

Criminal process, dignity and privacy

- Article 20(1): no retrospective offence/greater penalty.
- 20(2): prosecution + punishment + same offence.
- 20(3): accused + compulsion + testimonial communication.
- Article 21 arc: Gopalan -> Cooper -> Maneka.
- Named rights: dignity, legal aid, speedy trial, livelihood with limits, custodial safeguards, privacy and choice.
- Privacy: law + aim + proportionality + safeguards.
- DNA: strong foundation/eminence need + less-intrusive proof + child welfare + statutory presumption.
- DPDP: phased commencement only through audit date.

Education, detention and exploitation

- Article 21A: 6-14; RTE Act; Pramati minority boundary.
- Ordinary arrest: grounds + lawyer + magistrate within 24 hours.
- Preventive detention: separate regime; operative no-Board period 3 months.
- Article 23: trafficking, begar, economic forced labour; private reach.
- Article 24: below 14 / factory, mine, hazardous employment; statute broader.

Religion and minority institutions

- 25: persons; conscience/profess/practise/propagate; limits + reform.
- 26: denomination; religious affairs and property; public order/morality/health.
- ERP: Shirur Mutt foundation; judicial-theology/equality critique.
- 27: specified tax, not every fee.
- 28: funding/administration/aid/consent categories.
- 29: not minority-only; sections of citizens and admission rule.
- 30: religious/linguistic minorities; administration, not maladministration.

Remedies, savings and Emergency

- 32 = Supreme Court + FR; 226 = High Court + FR/other legal rights.
- Writs: detention / duty / threatened excess / completed error / public office.
- 31A, 31B, 31C are distinct.
- Coelho: post-1973 Ninth Schedule basic-structure review.
- Property Owners: original 31C survives; not every private asset.
- 33 Parliament; 34 martial-law indemnity; 35 Parliament-only fields.
- 358 automatic Article 19 under war/external aggression.

- 359 order-based enforcement suspension; never Articles 20-21.

Current and PYQ answer control

- Current control date: 21 August 2026.
- Electoral Bonds: political-funding information and equality/transparency.
- Davinder: permission, evidence, Article 341 unchanged.
- Property Owners: 31C survives, contextual resource inquiry.
- BNS 152: distinct text, operative, challenge notice, no located final merits decision.
- DPDP: only notified tranche operative by control date.
- Inferred/provisional Prelims keys remain labelled non-official.
- Every Mains paragraph: claim -> exact Article/case -> what it proves -> limit -> remedy/verdict.

D12. Latest authored complete-topic ASCII master

Latest source-authored ten-panel master follows. High-yield use: Follow the panels as one topic-specific conceptual atlas: root question, classifications, processes or arguments, comparisons, objections and a final answer-writing spine. This text-native master is separate from both graphical flowchart artifacts.

ASCII MASTER FLOW - PANEL 1/10: Part III as an operating architecture, not a list

PART III

```
+-- GATEKEEPERS: Article 12 defines State; Article 13 controls law
+-- EQUALITY: Articles 14-18
+-- FREEDOMS: Articles 19-22
+-- EXPLOITATION: Articles 23-24
+-- RELIGION: Articles 25-28
+-- CULTURE / EDUCATION: Articles 29-30
+-- REMEDY: Article 32
+-- SAVINGS / SPECIAL CONTROL: Articles 31A-31C and 33-35
```

REACH

vertical: person versus State

horizontal: express private reach in Articles 15(2), 17, 23 and 24

positive duty: State may need to protect rights against private domination

RIGHT = protected claim + justified limit + effective remedy.

ASCII MASTER FLOW - PANEL 2/10: Article 12 and 13: who is bound and what becomes void

ARTICLE 12 INQUIRY

Union/State organs + local authorities + other authorities

- > deep and pervasive control?
- > financial, functional and administrative domination?
- > public importance tied to government?
- > Pradeep Kumar Biswas: cumulative instrumentality inquiry

ARTICLE 13 INQUIRY

pre-Constitution inconsistent law -> void to extent of inconsistency

post-Constitution abridging law -> prohibited and void to that extent

"law" includes ordinance, rule, regulation, notification, custom and usage

DOCTRINES

severability | eclipse | waiver generally unavailable | prospective overruling

AMENDMENTS: Article 13(4) + Article 368 -> Kesavananda basic-structure review.

ASCII MASTER FLOW - PANEL 3/10: Equality code and reservation doctrine

ARTICLE 14

equality before law + equal protection
classification = intelligible differentia + rational nexus
Royappa/Maneka = arbitrariness is antithetical to equality

ARTICLES 15-16

non-discrimination + enabling substantive-equality clauses
Champakam -> First Amendment -> Article 15(4)
Indra Sawhney -> creamy layer, ordinary 50% ceiling, no 16(4) promotion
77th/81st/82nd/85th -> promotion, backlog, qualification and seniority tools
Nagaraj/Jarnail -> inadequacy data and Article 335 efficiency controls
103rd + Janhit -> EWS upheld by majority
Davinder Singh 2024 -> evidence-based SC sub-classification allowed, not mandated

ARTICLES 17-18 abolish untouchability and reject titles with narrow exceptions.

ASCII MASTER FLOW - PANEL 4/10: Article 19: six freedoms and restriction-ground discipline

ARTICLE 19(1), CITIZENS ONLY

speech | assembly | association | movement | residence | profession
|
valid law + listed ground + reasonableness + proportionality

SPEECH GROUNDS UNDER 19(2)

sovereignty/integrity | State security | friendly relations | public order
decency/morality | contempt | defamation | incitement

ANCHORS

press and right to know derive from 19(1)(a)
Shreya Singhal: 66A void; advocacy differs from incitement
Anuradha Bhasin: shutdown orders require publication and proportionality
Kedar Nath: sedition read toward incitement
BNS section 152 requires exact analysis, not a claim that sedition was merely renamed.

ASCII MASTER FLOW - PANEL 5/10: Articles 20-22: criminal process, dignity and detention

ARTICLE 20: ALL PERSONS

+- no retrospective criminal offence or enhanced penalty
+- no prosecution and punishment twice for same offence
+- no compelled testimonial self-incrimination by an accused

ARTICLE 21

Gopalan compartmentalisation -> R.C. Cooper linkage
-> Maneka: just, fair and reasonable procedure
-> dignity family: privacy, livelihood, legal aid and speedy trial
Puttaswamy test: legality + legitimate aim + proportionality + safeguards

ARTICLE 22

ordinary arrest: grounds + lawyer + magistrate within 24 hours
preventive detention: distinct safeguards; no-board period remains three months
44th Amendment's proposed two-month substitution has not commenced.

ASCII MASTER FLOW - PANEL 6/10: Exploitation, religion and minority autonomy

ARTICLES 23-24

trafficking and forced labour prohibited; minimum-wage coercion can implicate 23
children below 14 barred from factories, mines and hazardous employment under 24

ARTICLES 25-28

individual conscience and profession, practice and propagation
Article 26 denomination management
limits: public order, morality, health and other FRs
State may regulate secular activity and enact social reform

ARTICLES 29-30

29(1): any section of citizens with distinct language, script or culture
29(2): admission non-discrimination in covered institutions
30: religious and linguistic minorities may establish and administer institutions

Autonomy survives regulation; regulation cannot erase institutional identity.

ASCII MASTER FLOW - PANEL 7/10: Article 32: writ remedies and the enforcement ladder

RIGHT VIOLATED

- +-- ARTICLE 32 -> SUPREME COURT for Fundamental Rights
- +-- ARTICLE 226 -> HIGH COURT for FRs and other legal rights

|

WRIT CHOICE

HABEAS CORPUS	produce detained person; test detention
MANDAMUS	compel public duty
PROHIBITION	stop jurisdictional excess before completion
CERTIORARI	quash completed order for jurisdictional or legal error
QUO WARRANTO	test authority to hold public office

Article 32 is itself a Fundamental Right; legal fit still matters.

Article 226 is territorially and remedially wider, not constitutionally inferior.

ASCII MASTER FLOW - PANEL 8/10: Saving clauses, property and amendment doctrine

ARTICLE 31A

specified reform categories protected from Article 14/19 attack

ARTICLE 31B + NINTH SCHEDULE

listed-law protection

- > I.R. Coelho: post-24 Apr 1973 insertions face basic-structure review

ARTICLE 31C

original protection for genuine Article 39(b)/(c) laws against 14 and 19

- > Kesavananda limits immunity
- > Minerva Mills defeats extension to all DPSPs
- > Property Owners 2024 preserves original 31C
- > not every private asset is automatically a community resource

44th Amendment: Article 31 leaves Part III

Article 300A: every person; deprivation only by authority of law.

ASCII MASTER FLOW - PANEL 9/10: Article 358 and 359: emergency effects are not the same

ARTICLE 358

automatic operation

Article 19 only

war/external-aggression Emergency

changes State's Article 19 limit

post-44th nexus conditions apply

ARTICLE 359

Presidential order required

specified rights named in order

Emergency while order operates

suspends enforcement, not text

Articles 20 and 21 cannot be included

ARTICLES 33-35

Parliament may tailor FRs for forces and specified services;

may indemnify martial-law acts and has exclusive competence over listed matters.

MARTIAL LAW != NATIONAL EMERGENCY

local exceptional coercive control differs from constitutional proclamation.

No rule says all Fundamental Rights automatically disappear in Emergency.

ASCII MASTER FLOW - PANEL 10/10: Exact 10/15-mark architecture: liberty, limitation and remedy

10 MARKS / 150 WORDS

1. Identify claimant, State action and exact Article.
2. State citizen/person reach, vertical/horizontal effect and duty.
3. Apply protected interest -> listed limit -> proportionality.
4. Add one controlling case and Article 32 or 226 remedy.
5. Conclude on validity with a narrow qualification.

15 MARKS / 250 WORDS

1. Frame Part III through gatekeepers, rights, limits, remedies and savings.
2. Explain the Article family with clause-level accuracy.
3. Apply Article 14 fairness and Article 19/21 proportionality where relevant.
4. Integrate rights-DPSP harmony through Minerva Mills.
5. Test amendment/immunity through Kesavananda and I.R. Coelho.
6. Distinguish Article 358 from 359 if Emergency is involved.
7. Conclude: governance requires legality, justification and remedy.

D13. Source-Preservation Annex - exact active learning and workbook content

This annex is generated directly from polity-07: learner-v2:g15 and its paired solved-practice workbook. Heading levels and image paths are adapted only so the material renders inside this additional edition. The substantive legal text, cases, PYQs, keys and labels, original practice, advanced refinements, register notes and ASCII master are retained.

SOURCE ANNEX A - ACTIVE COMPLETE LEARNING MARKDOWN

Source path: upsc-ai-kit\knowledge\Learner-v2-Refreshed\Polity\Subject-Wide-Syllabus\learning-sessions\polity-07\g15\polity-07_Complete-Learning-Session_2026-08-23.md **SHA-256:**
35ad4b4563d9a1eb8d2b5ee66f7176cd2c6f05308b6ccba081262277fc1720c3

SOURCE HEADING [1] - Fundamental Rights - Learner-v2 Source-Complete Learning Session

Catalogue identity: Polity · Subject-wide Syllabus · polity-07

Generation identity: polity-07: learner-v2:g2 · generated 21 August 2026 · supersedes polity-07: legacy-v1:g1 in metadata only

Approval: false - explicit approval of this exact generation is still required.

Evidence key: [FACT] = source-supported constitutional/statutory/judicial proposition · [ANALYSIS] = exam synthesis · [CURRENT] = dated official status · [LIMIT] = ownership, search or interpretation boundary.

SOURCE HEADING [2] - BASIC LEARNING SESSION

Fundamental Rights	
Refreshed Teaching Navigation — BASIC CORE REF	
01 PART III AS AN ARCHITECTURE: RIGHTS, LIMITS, REMEDIES AND SPECIAL CONTROLS Articles 12-35 and 31A-31C are in Part III, but they are not separately	02 BENEFICIARIES, VERTICAL AND HORIZONTAL REACH, POSITIVE AND NEGATIVE DUTIES Positive duty, equal protection may require protection from private
03 QUALIFIED RIGHTS, REASONABLE RESTRICTIONS AND PROPORTIONALITY Legality, 9 is not automatically valid law either than	04 ARTICLE 12 - THE STATE AND THE INSTRUMENTALITY INQUIRY Article 123 covers a narrow range for the public law element of
05 ARTICLE 13 - LAW, JUDICIAL REVIEW AND THE VOIDNESS DOCTRINES Article 13 is not automatically valid law taking away or adding	06 ARTICLE 14 - TWIN EQUALITY, CLASSIFICATION AND ANTI-ARBITRARINESS Article 14 is not automatically valid law taking away or adding
07 ARTICLES 15 AND 16 - NON-DISCRIMINATION AND PROTECTIVE DISCRIMINATION Article 15 is not automatically valid law	08 RESERVATION DOCTRINE: CREAMY LAYER, CEILING, PROMOTION, EFFICIENCY, EWS AND SC Efficiency is not automatically valid law
09 ARTICLES 17 AND 18 - ANTI-UNTOUCHABILITY AND ANTI-TITLE GUARANTEES Article 17 is not automatically valid law	10 ARTICLE 19 - SIX FREEDOMS AND EXACT RESTRICTION GROUNDS "Unreasonable" administrative control may be valid
11 SPEECH, PRESS, RIGHT TO KNOW AND THE FIRST AMENDMENT SETTLEMENT Freedom of the press is derived from Article 19(1)(a)	12 SEDITION, LANGUAGE, THIS SECTION 152 AND SPEECH-INCITEMENT DISCIPLINE "Sedition" was strictly intended in its narrow, not 18th century type
13 DIGITAL SPEECH: SHREYA SINGHAL, INTERNET SHUTDOWNS AND CRIMINAL DEFAMATION Technically, Digital Speech (Shreya Singhal), Internet Shutdowns, and	14 ARTICLE 20 - EX POST FACTO LAW, DOUBLE JEOPARDY AND SELF-INCRIMINATION Article 20 creates three personal protection shields against
15 ARTICLE 21 - GOPALAN TO MANEKA: FAIR PROCEDURE AND THE DIGNITY CHARTER Article 21 is a strong guarantee because it covers human dignity too	16 PRIVACY, PROPORTIONALITY, DNA TESTING AND DATA PROTECTION Article 17 creates three personal protection shields against
17 ARTICLE 21A - EDUCATION AS A FUNDAMENTAL RIGHT Article 21A is not automatically valid law	18 ARTICLE 22 - ORDINARY ARREST, PREVENTIVE DETENTION AND THE UNENFORCED 44TH Article 22 creates three personal protection shields against
19 ARTICLES 23-24 - EXPLOITATION, FORCED LABOUR AND CHILD LABOUR Article 23 is not automatically valid law	20 ARTICLES 25-28 - CONSCIENCE, DENOMINATION, SECULAR REGULATION AND Article 25 creates three personal protection shields against
21 ARTICLES 29-30 - CULTURAL CONSERVATION AND MINORITY EDUCATIONAL AUTONOMY Article 29 is not automatically valid law	22 ARTICLE 32 AND THE FIVE WRITS Supreme Court cannot refuse Article 32 - does not mean easy
23 ARTICLES 31A, 31B AND 31C - SAVING PROVISIONS WITHOUT BLANKET IMMUNITY Article 31C is not automatically valid law	24 RIGHT TO PROPERTY: ARTICLE 31 TRANSITION TO ARTICLE 300A Calling property merely a "right" is incomplete
25 ARTICLES 33-35 AND MARTIAL LAW Article 33 is not automatically valid law	26 ARTICLES 35B AND 35C - TWO DIFFERENT EMERGENCY MECHANISMS The Fundamental Rights are automatically suspended in Emergency
27 ARTICLE 359: THE NON-DEROGABLE ARTICLES 29 AND 31C CORE Emergency: the first four amendments' protection of Articles 29	

Refreshed teaching navigation

Distinct embedded teaching-navigation image. The separate continuous Cārvāka-style flowchart package remains an independent at-a-glance artifact.

SOURCE HEADING [3] - Source audit, preservation, syllabus boundary and package counts

- **Mandatory source order followed:** immutable complete Topic 07 owner -> Basic owner -> Advanced owner -> Constitution, syllabus/README and repository PYQ ledgers -> local OCR-searchable Laxmikanth books and official/local papers -> live official Supreme Court, Gazette, MeitY, MHA and India Code controls. Qdrant was not used.
- **Non-compression:** every substantive Core section, Advanced refinement, verified routed PYQ, close-option trap, doctrinal distinction, criticism, answer architecture and consolidated register-note family from the 2,000+ line owner is retained. Four former remedials were promoted to core MCQs so the package contains exactly 40 core MCQs + 8 remedials without deleting any source-owned practice concept.
- **Verified relevant PYQs:** 21 total - six Mains, thirteen inferred-key Prelims routes from 2018-2023, official-keyed 2024 Prelims Q76, and provisionally keyed 2026 Prelims Q54. Inferred and provisional answers remain expressly non-official.
- **Original Mains practice:** nine solved models - 3 x 10 marks, 3 x 15 marks and 3 x 20 marks - each ending with "Why this earns marks".
- **Preservation:** legacy polity-07: legacy-v1:g1 files remain untouched with SHA-256 hashes F5C07AC6B100C268B5A3586D63297631CECFC04CE6B79B232B2444902B2A933F, 22DAC47BD22FAA4AFDE76CF081B3443576B3E9410DA56970430ED14D57067602 and C58AFAF55D856A8EEF81795DF214430C7134ABF75F3276703D654B3474741F0E.
- **Flowchart audit:** recursive filename/tracker/content checks found no dedicated approved Fundamental Rights flowchart. The new companion remains separate and approved: false.
- **Syllabus boundary:** this topic owns Part III doctrine and remedies. Full basic-structure development remains Topic 10, Emergency architecture Topic 14, FR-DPSP reconciliation Topic 08, Supreme Court/PIL institutional detail Topic 18, and distributive-policy evaluation remains with Social Justice.

SOURCE HEADING [3] - OFFICIAL LIVE-STATUS DECISION - CHECKED THROUGH 21 AUGUST 2026

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (CURRENT CASES): Current Part III analysis must be date-bounded: Electoral Bonds protects political-funding information, Davinder Singh permits evidence-based Scheduled Caste sub-classification, Property Owners preserves original Article 31C, DPDP commencement is phased, and BNS section 152 remains under a notified constitutional challenge without a located final merits decision.

- [FACT] The official 15 February 2024 Electoral Bonds judgment remains the controlling merits decision. Later compliance proceedings did not alter its Article 19(1)(a) information holding; a bounded official-domain search located no later altering review/clarification through 21 August 2026.
- [FACT] The official 1 August 2024 *Davinder Singh* judgment continues to permit evidence-based Scheduled Caste sub-classification without changing the Article 341 list; no later official altering decision was located.
- [FACT] The official 5 November 2024 *Property Owners Association* judgment continues to preserve original Article 31C for genuine Article 39(b)/(c) laws and rejects the claim that every private asset is automatically a community material resource; no later official altering decision was located.

- [FACT] Gazette G.S.R. 843(E) and 846(E), both dated 13 November 2025, finally notified phased DPDP Act/Rules commencement. As of 21 August 2026 only the first notified tranche is operative; the one-year and eighteen-month tranches remain future.
- [FACT] BNS and BNSS have operated since 1 July 2024. BNSS Sections 47, 48 and 58 preserve information-of-grounds/bail, relative-or-friend notification and the twenty-four-hour custody ceiling, alongside Article 22.
- [FACT] The Supreme Court issued notice on 28 August 2025 only on the vires of BNS Section 152 in *Abhisar Sharma* and tagged the matter with W.P.(C) No. 720/2025. A bounded official-domain search located no final merits disposition through 21 August 2026.
- [LIMIT] No Waqf, Places of Worship or Sabarimala final-status claim is made without a securely located official controlling decision.

SOURCE HEADING [4] - Answer-line control register

The following sentences appear unchanged in the relevant teaching stage, the learning PDF and the separate flowchart companion.

1. **ARCHITECTURE:** Part III is a constitutional operating system, not a bare catalogue: Articles 12-13 identify bound power and invalid law, Articles 14-30 secure six present rights, Article 32 supplies the remedy, and Articles 31A-35 plus 358-359 control exceptional protection or enforcement.
2. **BENEFICIARIES / HORIZONTALITY:** Fundamental-right analysis must separate beneficiary from respondent: some guarantees belong only to citizens, many protect every person, and Articles 15(2), 17, 23 and 24 directly reach specified private conduct while positive duties may require State protection.
3. **QUALIFIED RIGHTS / PROPORTIONALITY:** Indian Fundamental Rights are qualified but not defeasible at executive will: every restriction must rest on valid law, fit the exact constitutional ground, pursue a legitimate aim and remain rational, necessary, balanced and procedurally safeguarded.
4. **PROPERTY / EMERGENCY CORE:** The Forty-fourth Amendment moved property from Part III to the constitutional guarantee in Article 300A and made Articles 20 and 21 non-derogable from an Article 359 enforcement order.
5. **ARTICLE 12:** Article 12 looks beyond legal form to governmental domination: an entity may be State when its financial, functional and administrative relationship reveals pervasive governmental control, while Article 226 may separately reach a non-State body performing a public duty.
6. **ARTICLE 13:** Article 13 converts rights into judicially enforceable limits by defining law broadly and using severability, eclipse and non-waiver, while constitutional amendments are reviewed through Article 368 and the basic-structure boundary.
7. **ARTICLE 14:** Article 14 combines equality before law with equal protection: it permits reasonable classification only through intelligible differentia and rational nexus, and independently invalidates arbitrary State action.
8. **ARTICLES 15-16:** Articles 15 and 16 move equality from non-discrimination to substantive opportunity by prohibiting exact grounds yet authorising carefully targeted special provisions and reservation through distinct enabling clauses.

9. **RESERVATION CONTROL:** Reservation is a technique of substantive equality, but its design remains evidence-based, reviewable and attentive to creamy-layer exclusion, representation, promotion conditions, backlog treatment, EWS text and administrative efficiency.
10. **ARTICLES 17-18:** Articles 17 and 18 attack inherited civic hierarchy horizontally and symbolically: untouchability is abolished and punishable, while titles are prohibited without invalidating military, academic or properly used national distinctions.
11. **ARTICLE 19:** Article 19 protects six citizen freedoms through clause-specific discipline: the State must identify the exact restriction clause and closed ground, after which reasonableness and proportionality test the means.
12. **ARTICLE 20:** Article 20 creates three person-protective criminal shields against retrospective penal liability, repeated prosecution-and-punishment for the same offence, and compelled testimonial self-incrimination.
13. **ARTICLE 21:** Article 21 became a dignity charter when Maneka Gandhi required fair, just and reasonable procedure and linked liberty with Articles 14 and 19, enabling named protections without turning every policy aspiration into an unlimited entitlement.
14. **ARTICLE 21A:** Article 21A constitutionalises free and compulsory education for children aged six to fourteen, implemented by the RTE Act while preserving the distinct Article 30 position of minority institutions.
15. **ARTICLE 22:** Article 22 separates ordinary arrest from preventive detention: the first carries grounds, counsel and twenty-four-hour production safeguards, while the second follows a distinct regime whose current no-Advisory-Board ceiling remains three months.
16. **ARTICLES 23-24:** Articles 23-24 constitutionalise labour dignity against State and private exploitation: trafficking, begar (forced unpaid labour), economically compelled forced labour and prohibited child labour attract both rights remedies and statutory enforcement.
17. **ARTICLES 25-28:** Indian religious freedom protects conscience and denominational autonomy while permitting public-order, health, morality, secular-regulation and social-reform controls; the governing model is principled distance, not either theocracy or an absolute wall.
18. **ARTICLES 29-30:** Articles 29-30 protect cultural conservation, non-discriminatory admission and minority educational autonomy, but Article 29 is not minority-exclusive and Article 30 protects administration rather than maladministration.
19. **ARTICLE 32 / WRITS:** Article 32 makes the Supreme Court a guaranteed Fundamental-Rights forum, while Article 226 is wider in subject matter and public-duty reach; the correct writ follows the defect-detention, unperformed duty, threatened excess, defective order or unlawful public office.
20. **SAVING / CONTROL PROVISIONS:** Articles 31A-31C, 33-35 create defined constitutional controls rather than rights-free zones: their field, purpose and legislative competence remain text-bound and subject to basic-structure review where applicable.
21. **EMERGENCY:** Article 358 automatically displaces Article 19 constraints only during war or external-aggression Emergency within its conditions, whereas Article 359 requires a Presidential order suspending court enforcement of specified rights and can never include Articles 20 or 21.
22. **CURRENT CASES:** Current Part III analysis must be date-bounded: Electoral Bonds protects political-funding information, Davinder Singh permits evidence-based Scheduled Caste sub-classification, Property Owners preserves original Article 31C, DPDP commencement is phased, and BNS section 152 remains under a notified constitutional challenge without a located

final merits decision.

23. **FINAL VERDICT:** Fundamental Rights are neither absolute liberties nor revocable State gifts: they are transformative, judicially enforceable guarantees whose legitimacy lies in exact text, proportionate limitation, positive protection and a non-derogable rule-of-law core.

SOURCE HEADING [4] - Package method, roadmap boundary and current-law control

- Source order followed: certified Core owner Polity/basic/Fundamental-Rights.md -> separately labelled optional Advanced owner Polity/advanced/07_Fundamental-Rights.md -> audited local PYQ ledgers, official/local papers and keys, and OCR-searchable M. Laxmikanth chapter -> official constitutional, statutory and Supreme Court materials -> Qdrant not used.
- [LIMIT] The Core learning session below independently secures the paper outcome. The optional Advanced section adds doctrinal depth; skipping it does not remove any essential Article, restriction ground, writ, saving clause, Emergency rule, routed PYQ or answer structure.
- [FACT] Part III contains Articles 12-35. The six present rights are equality, freedom, protection against exploitation, freedom of religion, cultural and educational rights, and constitutional remedies.
- [FACT] The Right to Property ceased to be a Fundamental Right through the Forty-fourth Amendment. Article 300A now protects every person against deprivation of property except by authority of law.
- [FACT] Fundamental Rights are qualified, not absolute. The Constitution itself specifies the beneficiaries, respondent, exceptions and restriction grounds; courts review whether the State stayed within those limits.
- [CURRENT] Legal status was checked through 21 August 2026 against located official Supreme Court, Gazette, MeitY, MHA and India Code materials. Bounded official-domain searches located no later decision altering Electoral Bonds, Davinder Singh or Property Owners. The package uses the notified DPDP commencement schedule and the official 28 August 2025 Section 152 notice order, but makes no unverified final-status claim about Waqf, Sabarimala or Places of Worship litigation.
- [CURRENT] *Association for Democratic Reforms v. Union of India*, 15 February 2024, invalidated the Electoral Bond Scheme and enabling non-disclosure architecture: voter information about political funding falls within Article 19(1)(a), while unlimited corporate funding and secrecy impaired political equality and transparency.
- [CURRENT] *State of Punjab v. Davinder Singh*, 1 August 2024, held that sub-classification within Scheduled Castes is constitutionally permissible. It permits evidence-based sub-classification; it does not compel every State to create a sub-quota.
- [CURRENT] *Property Owners Association v. State of Maharashtra*, 5 November 2024, confirmed that original Article 31C survives for laws genuinely giving effect to Article 39(b) or (c). Privately owned resources may in context qualify as material resources of the community, but not every private asset does.
- [CURRENT] The Bharatiya Nyaya Sanhita, 2023 has operated from 1 July 2024. Section 152 is a successor provision concerning secession, armed rebellion, subversive or separatist activity and threats to sovereignty, unity and integrity. It is not accurately described as a simple renaming of IPC section 124A.

- [CURRENT] Gazette notification G.S.R. 843(E), 13 November 2025 commenced Section 2, Sections 18-26, Sections 35 and 38-43, and Section 44(1) and (3), with the remaining Act provisions scheduled one year or eighteen months later. The Digital Personal Data Protection Rules, 2025 were finally notified by G.S.R. 846(E) with the same staged logic.
- [LIMIT] Supreme Court/PIL institutional detail belongs to Polity 18; Emergency architecture to Polity 14; amendment/basic structure to Polity 10; FR-DPSP reconciliation to Polity 08; and policy evaluation of reservations to Social Justice. This package retains the constitutional mechanism needed for Fundamental Rights answers.

Concise source/control note

- Constitution of India, Part III and related Articles: Legislative Department, Government of India.
- Bharatiya Nyaya Sanhita, 2023 and Bharatiya Sakshya Adhiniyam, 2023: official Ministry of Home Affairs criminal-law texts and commencement notification.
- Digital Personal Data Protection Act, 2023 and Digital Personal Data Protection Rules, 2025: official MeitY/Gazette texts and phased commencement notifications.
- *Association for Democratic Reforms v. Union of India*, 2024 INSC 113, official Supreme Court judgment dated 15 February 2024.
- *State of Punjab v. Davinder Singh*, 2024 INSC 562, official Supreme Court judgment dated 1 August 2024.
- *Property Owners Association v. State of Maharashtra*, 2024 INSC 835, official Supreme Court judgment dated 5 November 2024.
- *I.R. Coelho v. State of Tamil Nadu* (2007), *K.S. Puttaswamy v. Union of India* (2017), and the other named decisions are used for their settled propositions.
- Local PYQ control: 5 historical Mains demands (2019, 2021, 2022 and two in 2023), the 2024 privacy/DNA Mains demand, 13 routed Prelims questions from 2018-2023, official-keyed 2024 Privacy question, and provisionally keyed 2026 Article 13/custom question.
- Key discipline: all 2018-2023 Prelims solutions are labelled **INFERRED ANSWER - NOT OFFICIALLY VERIFIED**; the 2024 answer is labelled **OFFICIAL LOCAL UPSC KEY VERIFIED**; the 2026 answer is labelled **PROVISIONAL 2026 KEY - NOT OFFICIAL**.
- Practice counts: 21 verified routed PYQs; 40 core MCQs; 8 remedial MCQs; 9 original solved Mains questions across 10, 15 and 20 marks.
- Visual count: 16 original compact PNG learning assets under `notes/Polity/assets/07_Fundamental-Rights/`.

SOURCE HEADING [4] - Roadmap

Stage	Coverage	Paper outcome
Architecture	Part III, beneficiaries, vertical/horizontal reach, qualified nature, property and Emergency core	Eliminates foundational close-option errors
Gateway	Articles 12-13, State, law, judicial review and doctrines	Builds the enforceability mechanism
Equality	Articles 14-18, classification, arbitrariness, affirmative action, reservations, untouchability and titles	Handles the densest Prelims/GS-II zone
Freedom	Article 19 freedoms and exact grounds; Articles 20-22	Secures speech, liberty, criminal safeguards and detention
Community rights	Articles 23-30	Covers exploitation, secularism, ERP and minority institutions
Remedies and controls	Article 32, writs, Articles 31A/B/C, 33-35, 358-359	Connects right, remedy, immunity and suspension
Current law	Electoral Bonds, Davinder Singh, Property Owners, BNS section 152 and DPDP control	Prevents stale or fabricated status claims
Application	Verified PYQs, 48 original/remedial MCQs and 9 solved Mains questions	Converts doctrine into marks
Optional Advanced	Proportionality, horizontality, positive duties and transformative equality	Adds depth without making Core incomplete

SOURCE HEADING [3] - SESSION 1 - PART III AS AN ARCHITECTURE: RIGHTS, LIMITS, REMEDIES AND SPECIAL CONTROLS

SOURCE HEADING [4] - DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Part III is a constitutional operating system, not a bare catalogue: Articles 12-13 identify bound power and invalid law, Articles 14-30 secure six present rights, Article 32 supplies the remedy, and Articles 31A-35 plus 358-359 control exceptional protection or enforcement.

Technical definition: Articles 12-13 and 31A-35 are in Part III, but they are not separately counted among the six present Fundamental Rights.

SOURCE HEADING [4] - ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Part III is a constitutional operating system, not a bare catalogue: Articles 12-13 identify bound power and invalid law, Articles 14-30 secure six present rights, Article 32 supplies the remedy, and Articles 31A-35 plus 358-359 control exceptional protection or enforcement.

SOURCE HEADING [4] - MUST-WRITE KEYWORDS

- Part Iii As An Architecture
- Rights
- Limits
- Remedies

- **Special Controls**
- **CONTENT CLASSIFICATION**

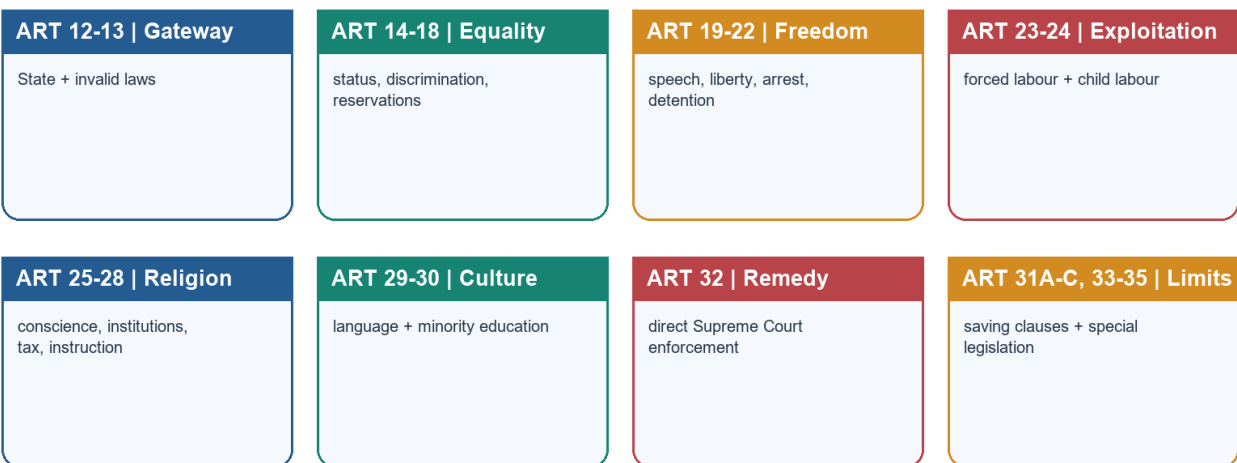
How to use them: Frame the answer through Part III As An Architecture; define Rights, connect Limits with Remedies to explain the mechanism, and use Special Controls for the decisive comparison or qualification.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (ARCHITECTURE): Part III is a constitutional operating system, not a bare catalogue: Articles 12-13 identify bound power and invalid law, Articles 14-30 secure six present rights, Article 32 supplies the remedy, and Articles 31A-35 plus 358-359 control exceptional protection or enforcement.

CONTENT CLASSIFICATION: CORE PRELIMS + CORE MAINS

Part III architecture

Articles 12-35: rights, remedies, limits and special controls



Core logic: right -> permissible limit -> review -> effective remedy

Part III is a connected design: Articles 12-13 open the gate, rights occupy Articles 14-30, Article 32 enforces them, and special clauses discipline immunity or suspension.

[FACT] Part III is not merely a list of entitlements. It has four interacting elements:

1. **Gateway:** Article 12 identifies the State; Article 13 invalidates inconsistent law.
2. **Substantive rights:** Articles 14-30 protect equality, freedom, labour dignity, conscience and cultural autonomy.
3. **Enforcement:** Article 32 guarantees access to the Supreme Court for Fundamental Rights; Article 226 supplies wider High Court writ power.
4. **Constitutional controls:** Articles 31A-31C, 33-35 and 358-359 define limited immunity, special legislation or Emergency consequences.

[ANALYSIS] The correct exam method is therefore:

identify the right -> identify its beneficiary and respondent -> locate the exact permitted restriction
-> apply the judicial test -> choose the remedy -> state any saving or Emergency caveat.

SOURCE HEADING [4] - Six rights and their Article spans

Right	Articles	Core exam question
Equality	14-18	Is the distinction rational, non-arbitrary and compatible with substantive equality?
Freedom	19-22	Which freedom/liberty is engaged, and does the limit fit the exact constitutional clause?
Against exploitation	23-24	Does coercion or prohibited child labour exist, including through private action?
Freedom of religion	25-28	Is the claim religious, denominational or secular, and which textual limit applies?
Cultural and educational rights	29-30	Is the claimant a section of citizens or a religious/linguistic minority institution?
Constitutional remedies	32	Which writ and which court can cure the constitutional injury?

UPSC trap: Articles 12-13 and 31A-35 are in Part III, but they are not separately counted among the six present Fundamental Rights.

SOURCE HEADING [4] - CLOSING RECALL FLOW - PART III AS AN ARCHITECTURE: RIGHTS, LIMITS, REMEDIES AND SPECIAL CONTROLS

START / CONCEPT: PART III AS AN ARCHITECTURE: RIGHTS, LIMITS, REMEDIES AND SPECIAL CONTROLS
 |
 v
 EXACT TERMS: Part Iii As An Architecture · Rights · Limits · Remedies · Special Controls · CONTENT
 CLASSIFICATION
 |
 v
 MECHANISM / ARGUMENT: Articles 12-13 and 31A-35 are in Part III, but they are not separately counted among the six present Fundamental Rights.
 |
 v
 CONSEQUENCE / CONTRAST: Part III is not merely a list of entitlements.
 |
 v
 UPSC TRAP / ANSWER-USE: Do not miss this limiting distinction: articles 12-13 and 31A-35 are in Part III.
 |
 v
 ANSWER-GRABBING FORMULATION: Part III is a constitutional operating system, not a bare catalogue: Articles 12-13 identify bound power and invalid law, Articles 14-30 secure six present rights, Article 32 supplies the remedy, and Articles 31A-35 plus 358-359 control exceptional protection or enforcement.

SOURCE HEADING [3] - SESSION 2 - BENEFICIARIES, VERTICAL AND HORIZONTAL REACH, POSITIVE AND NEGATIVE DUTIES

SOURCE HEADING [4] - DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Vertical: the usual model is individual versus State.

Technical definition: Positive duty: equal protection may require protection from private violence; Article 21 can require legal aid, custodial safeguards and fair investigation; Article 17 requires abolition backed by penal law.

SOURCE HEADING [4] - ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Fundamental-right analysis must separate beneficiary from respondent: some guarantees belong only to citizens, many protect every person, and Articles 15(2), 17, 23 and 24 directly reach specified private conduct while positive duties may require State protection.

SOURCE HEADING [4] - MUST-WRITE KEYWORDS

- **Beneficiaries**
- **Vertical**
- **Horizontal Reach**
- **Positive**
- **Negative Duties**
- **CONTENT CLASSIFICATION**

How to use them: Frame the answer through Beneficiaries; define Vertical, connect Horizontal Reach with Positive to explain the mechanism, and use Negative Duties for the decisive comparison or qualification.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (BENEFICIARIES / HORIZONTALITY): Fundamental-right analysis must separate beneficiary from respondent: some guarantees belong only to citizens, many protect every person, and Articles 15(2), 17, 23 and 24 directly reach specified private conduct while positive duties may require State protection.

CONTENT CLASSIFICATION: CORE PRELIMS + CORE MAINS

Who can claim - and against whom?

Read the beneficiary words and the respondent axis separately

RIGHT FAMILY	CITIZENS ONLY	ALL PERSONS	DIRECT PRIVATE REACH
Equality	15, 16	14	15(2), 17
Freedom	19	20, 21, 22	limited/evolving
Exploitation	-	23, 24	23, 24
Religion	-	25-28	mainly State; 25/26 disputes
Culture	29 textually	30 says minorities	institutional regulation
Remedies	depends on right	depends on right	habeas corpus can reach private detention

Trap: citizen-only does not mean State-only; horizontality is a separate question.

Beneficiary language and the respondent axis are separate. A right may protect all persons yet remain mainly vertical, or may be citizen-specific yet reach private discrimination.

SOURCE HEADING [4] - Citizen-only and person-protective guarantees

Provision	Textual beneficiary	Exam-safe formulation
Article 14	any person	Citizens, non-citizens and juristic persons may invoke it where applicable.
Article 15	citizen / citizens	Citizen-specific; Article 15(2) also reaches specified private exclusion.
Article 16	all citizens	Citizen-specific equality in public employment.
Article 19	all citizens	The six freedoms are citizen-only. Companies do not become citizens, though shareholder/media claims may be framed through affected citizens.
Articles 20-22	person / no person	Protect persons, subject to Article 22's enemy-alien and preventive-detention distinctions.
Articles 23-24	person-oriented prohibitions	Reach State and private exploitation.
Articles 25-28	all persons / denominations / institutional rules	Religious freedom is not citizen-only.
Article 29	section of citizens / no citizen	Textually citizen-linked.
Article 30	all minorities	The clause does not use the word citizen; standard exam lists treat it as minority/citizen-linked, but quote the text accurately.

SOURCE HEADING [4] - Vertical and horizontal application

- **Vertical:** the usual model is individual versus State. Articles 14, 16 and 19 primarily discipline State action.
- **Express horizontal reach:** Article 15(2) covers denial of access to specified public-facing places; Article 17 abolishes untouchability; Articles 23-24 prohibit exploitation by private actors too.
- **Remedial reach:** habeas corpus may issue against private detention; High Courts may use Article 226 against a non-State body performing a public duty.
- [LIMIT] *Kaushal Kishor v. State of Uttar Pradesh* (2023) contains important reasoning on the operation of Articles 19 and 21 beyond the State. Do not convert it into the loose proposition that every Fundamental Right now applies fully against every private person.

SOURCE HEADING [4] - Negative and positive dimensions

- **Negative duty:** the State must not censor speech outside Article 19(2), discriminate only on prohibited grounds, or deprive liberty through unfair procedure.
- **Positive duty:** equal protection may require protection from private violence; Article 21 can require legal aid, custodial safeguards and fair investigation; Article 17 requires abolition backed by penal law.
- [ANALYSIS] Modern rights adjudication therefore asks not only, "Did the State interfere?" but also, "Did the State reasonably protect the conditions in which the right can be exercised?"

SOURCE HEADING [4] - CLOSING RECALL FLOW - BENEFICIARIES, VERTICAL AND HORIZONTAL REACH, POSITIVE AND NEGATIVE DUTIES

START / CONCEPT: BENEFICIARIES, VERTICAL AND HORIZONTAL REACH, POSITIVE AND NEGATIVE DUTIES

|

v

EXACT TERMS: Beneficiaries · Vertical · Horizontal Reach · Positive · Negative Duties · CONTENT CLASSIFICATION

|

v

MECHANISM / ARGUMENT: Positive duty: equal protection may require protection from private violence; Article 21 can require legal aid, custodial safeguards and fair investigation; Article 17 requires abolition backed by penal law.

|

v

CONSEQUENCE / CONTRAST: Negative duty: the State must not censor speech outside Article 19(2), discriminate only on prohibited grounds, or deprive liberty through unfair procedure.

|

v

UPSC TRAP / ANSWER-USE: Do not convert it into the loose proposition that every Fundamental Right now applies fully against every private person.

|

v

ANSWER-GRABBING FORMULATION: Fundamental-right analysis must separate beneficiary from respondent: some guarantees belong only to citizens, many protect every person, and Articles 15(2), 17, 23 and 24 directly reach specified private conduct while positive duties may require State protection.

SOURCE HEADING [3] - SESSION 3 - QUALIFIED RIGHTS, REASONABLE RESTRICTIONS AND PROPORTIONALITY

SOURCE HEADING [4] - DEFINITION / WHAT THIS IS CALLED

Plain-language definition: "Reasonable restriction" and proportionality are related but not interchangeable slogans.

Technical definition: Legality: Is the restriction authorised by valid law rather than unsupported executive preference?

SOURCE HEADING [4] - ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Indian Fundamental Rights are qualified but not defeasible at executive will: every restriction must rest on valid law, fit the exact constitutional ground, pursue a legitimate aim and remain rational, necessary, balanced and procedurally safeguarded.

SOURCE HEADING [4] - MUST-WRITE KEYWORDS

- Qualified Rights
- Reasonable Restrictions
- Proportionality
- CONTENT CLASSIFICATION
- Legality
- Legitimate constitutional aim

How to use them: Frame the answer through Qualified Rights; define Reasonable Restrictions, connect Proportionality with CONTENT CLASSIFICATION to explain the mechanism, and use Legality for the decisive comparison or qualification.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (QUALIFIED RIGHTS /

PROPORTIONALITY): Indian Fundamental Rights are qualified but not defeasible at executive will: every restriction must rest on valid law, fit the exact constitutional ground, pursue a legitimate aim and remain rational, necessary, balanced and procedurally safeguarded.

CONTENT CLASSIFICATION: CORE MAINS

[FACT] Fundamental Rights are not absolute. Their qualification takes different forms:

- Article 14 permits reasonable classification but bars class legislation and arbitrariness.
- Article 19 contains six freedoms and four different restriction clauses; the grounds are closed, not illustrative.
- Articles 25-26 are expressly subject to public order, morality and health; Article 25 is also subject to other Fundamental Rights.
- Article 22 itself authorises preventive detention while imposing minimum safeguards.
- Articles 31A-31C save specified laws from specified challenges.

SOURCE HEADING [4] - The modern review sequence

1. **Legality:** Is the restriction authorised by valid law rather than unsupported executive preference?
2. **Legitimate constitutional aim:** Does it fit the exact provision, such as Article 19(2) public order?
3. **Rational connection:** Is the measure capable of advancing that aim?
4. **Necessity:** Is a less rights-restrictive but equally effective measure available?
5. **Balancing:** Is the rights cost excessive relative to the public benefit?
6. **Procedural safeguards:** Are reasons, publication, hearing, review and time limits present?

[ANALYSIS] "Reasonable restriction" and proportionality are related but not interchangeable slogans. Always begin with the Article's text; proportionality disciplines the chosen means.

SOURCE HEADING [4] - CLOSING RECALL FLOW - QUALIFIED RIGHTS, REASONABLE RESTRICTIONS AND PROPORTIONALITY

START / CONCEPT: QUALIFIED RIGHTS, REASONABLE RESTRICTIONS AND PROPORTIONALITY

|
v

EXACT TERMS: Qualified Rights · Reasonable Restrictions · Proportionality · CONTENT CLASSIFICATION
· Legality · Legitimate constitutional aim

|
v

MECHANISM / ARGUMENT: Legality: Is the restriction authorised by valid law rather than unsupported executive preference?

|
v

CONSEQUENCE / CONTRAST: "Reasonable restriction" and proportionality are related but not interchangeable slogans.

|
v

UPSC TRAP / ANSWER-USE: Article 19 contains six freedoms and four different restriction clauses; the grounds are closed, not illustrative.

|
v

ANSWER-GRABBING FORMULATION: Indian Fundamental Rights are qualified but not defeasible at executive will: every restriction must rest on valid law, fit the exact constitutional ground, pursue a legitimate aim and remain rational, necessary, balanced and procedurally safeguarded.

SOURCE HEADING [3] - SESSION 4 - ARTICLE 12 - THE STATE AND THE INSTRUMENTALITY INQUIRY

SOURCE HEADING [4] - DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 12 looks beyond legal form to governmental domination: an entity may be State when its financial, functional and administrative relationship reveals pervasive governmental control, while Article 226 may separately reach a non-State body performing a public duty.

Technical definition: Article 226 can reach a non-State body for the public-law element of its work.

SOURCE HEADING [4] - ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 12 looks beyond legal form to governmental domination: an entity may be State when its financial, functional and administrative relationship reveals pervasive governmental control, while Article 226 may separately reach a non-State body performing a public duty.

SOURCE HEADING [4] - MUST-WRITE KEYWORDS

- Article 12 - The State
- The Instrumentality Inquiry
- CONTENT CLASSIFICATION
- public duty
- Article 12
- Article 226

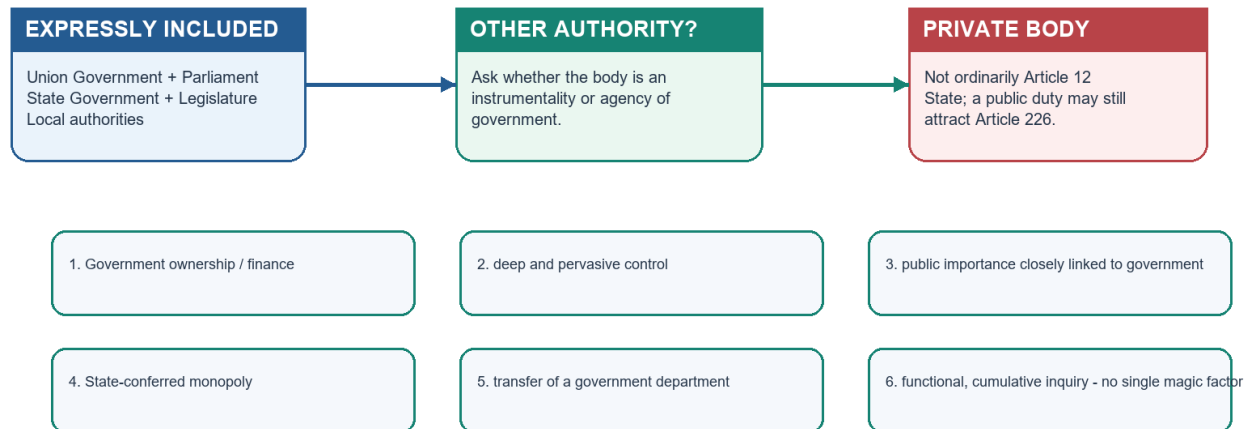
How to use them: Frame the answer through Article 12 - The State; define The Instrumentality Inquiry, connect CONTENT CLASSIFICATION with public duty to explain the mechanism, and use Article 12 for the decisive comparison or qualification.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (ARTICLE 12): Article 12 looks beyond legal form to governmental domination: an entity may be State when its financial, functional and administrative relationship reveals pervasive governmental control, while Article 226 may separately reach a non-State body performing a public duty.

CONTENT CLASSIFICATION: CORE PRELIMS + CORE MAINS

Article 12 - is the respondent 'State'?

Textual inclusions first; instrumentality analysis for 'other authorities'



Ajay Hasia: substance and control matter more than corporate form.

Article 12 begins with express bodies and then asks whether an 'other authority' is functionally an instrumentality or agency of government.

[FACT] Article 12 includes:

- Government and Parliament of India;
- Government and Legislature of each State;
- all local authorities; and
- other authorities within India or under the control of the Government of India.

SOURCE HEADING [4] - Other authorities

[FACT] *Rajasthan Electricity Board v. Mohan Lal* rejected an unduly narrow reading tied only to sovereign functions. *R.D. Shetty* and *Ajay Hasia* developed the instrumentality/agency approach.

Relevant indicators include:

- substantial government ownership or finance;
- deep and pervasive control;
- functions of public importance closely related to governmental functions;
- State-conferred monopoly;
- transfer of a government department; and
- the cumulative factual relationship rather than the body's corporate form.

[LIMIT] No single factor is conclusive. The later approach in *Pradeep Kumar Biswas* asks whether the body is financially, functionally and administratively dominated by or under government control of a pervasive character.

SOURCE HEADING [4] - Article 12 versus Article 226

- A body may fail the Article 12 State test yet still perform a **public duty**.
- Article 226 can reach a non-State body for the public-law element of its work.
- [ANALYSIS] Therefore, "not State under Article 12" does not always mean "immune from writ jurisdiction."

UPSC trap: registration as a society or company neither automatically includes nor excludes a body from Article 12.

SOURCE HEADING [4] - CLOSING RECALL FLOW - ARTICLE 12 - THE STATE AND THE INSTRUMENTALITY INQUIRY

START / CONCEPT: ARTICLE 12 - THE STATE AND THE INSTRUMENTALITY INQUIRY

|

v

EXACT TERMS: Article 12 - The State · The Instrumentality Inquiry · CONTENT CLASSIFICATION · public duty · Article 12 · Article 226

|

v

MECHANISM / ARGUMENT: The later approach in Pradeep Kumar Biswas asks whether the body is financially, functionally and administratively dominated by or under government control of a pervasive character.

|

v

CONSEQUENCE / CONTRAST: Therefore, "not State under Article 12" does not always mean "immune from writ jurisdiction.".

|

v

UPSC TRAP / ANSWER-USE: Do not miss this limiting distinction: registration as a society or company neither automatically includes nor excludes a body from...

|

v

ANSWER-GRABBING FORMULATION: Article 12 looks beyond legal form to governmental domination: an entity may be State when its financial, functional and administrative relationship reveals pervasive governmental control, while Article 226 may separately reach a non-State body performing a public duty.

SOURCE HEADING [3] - SESSION 5 - ARTICLE 13 - LAW, JUDICIAL REVIEW AND THE VOIDNESS DOCTRINES

SOURCE HEADING [4] - DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 13(1): pre-Constitution laws are void to the extent of inconsistency with Fundamental Rights.

Technical definition: Article 13(2): the State shall not make law taking away or abridging Fundamental Rights; contravening law is void to the extent of contravention.

SOURCE HEADING [4] - ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 13 converts rights into judicially enforceable limits by defining law broadly and using severability, eclipse and non-waiver, while constitutional amendments are reviewed through Article 368 and the basic-structure boundary.

SOURCE HEADING [4] - MUST-WRITE KEYWORDS

- Article 13 - Law
- Judicial Review
- The Voidness Doctrines
- CONTENT CLASSIFICATION
- to the extent
- Test

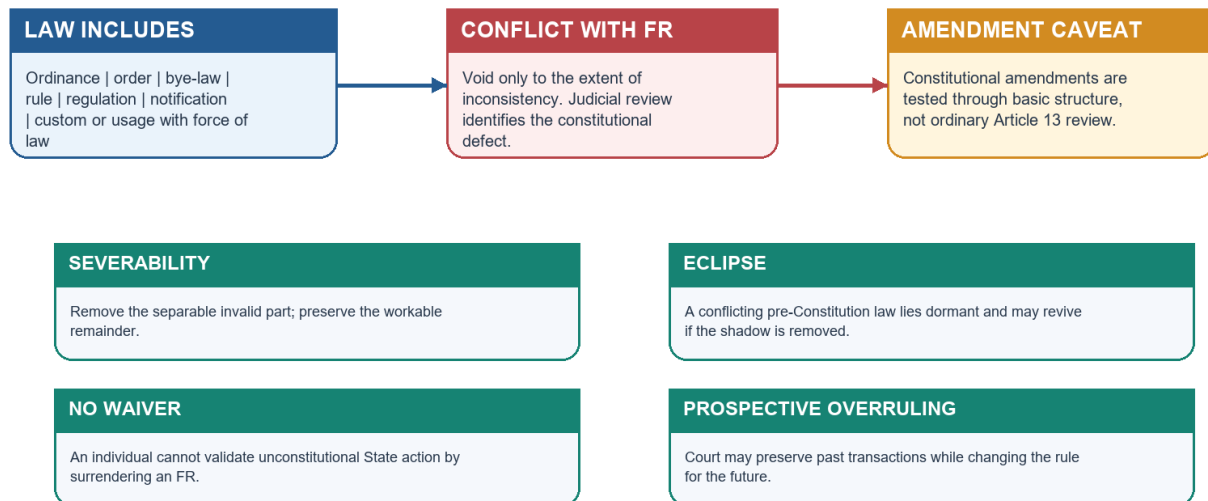
How to use them: Frame the answer through Article 13 - Law; define Judicial Review, connect The Voidness Doctrines with CONTENT CLASSIFICATION to explain the mechanism, and use to the extent for the decisive comparison or qualification.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (ARTICLE 13): Article 13 converts rights into judicially enforceable limits by defining law broadly and using severability, eclipse and non-waiver, while constitutional amendments are reviewed through Article 368 and the basic-structure boundary.

CONTENT CLASSIFICATION: CORE PRELIMS + CORE MAINS

Article 13 doctrine tree

What counts as law, what becomes void, and how the Constitution responds



Article 13 defines law broadly, invalidates inconsistency to its extent, and operates through severability, eclipse, non-waiver and carefully used prospective overruling.

SOURCE HEADING [4] - What "law" includes

[FACT] Article 13(3)(a) includes an ordinance, order, bye-law, rule, regulation, notification, custom or usage having in the territory of India the force of law.

SOURCE HEADING [4] - Pre- and post-Constitution law

- Article 13(1): pre-Constitution laws are void **to the extent** of inconsistency with Fundamental Rights.
- Article 13(2): the State shall not make law taking away or abridging Fundamental Rights; contravening law is void to the extent of contravention.
- Article 13(3): defines law and laws in force.
- Article 13(4): inserted by the Twenty-fourth Amendment; Article 13 does not apply to constitutional amendments under Article 368.

SOURCE HEADING [4] - Doctrine of severability

[FACT] If the invalid provision can be separated from the valid remainder without defeating the legislative scheme, only the offending portion falls. The phrase "to the extent of" supports limited invalidation.

Test: Can the remainder operate independently, and would the legislature have enacted it without the invalid part?

SOURCE HEADING [4] - Doctrine of eclipse

[FACT] *Bhikaji Narain Dhakras* explains that a conflicting pre-Constitution law is not erased for all purposes; it lies dormant against the Fundamental Right and can revive if the constitutional shadow is removed.

[LIMIT] The classic eclipse rule chiefly concerns pre-Constitution law. A post-Constitution law made in direct violation of Article 13(2) is ordinarily void from inception to the extent of violation.

SOURCE HEADING [4] - No waiver of Fundamental Rights

[FACT] *Basheshar Nath v. Commissioner of Income Tax* held that an individual cannot waive a Fundamental Right so as to validate unconstitutional State action. *Olga Tellis* later rejected estoppel against a Fundamental Right.

[ANALYSIS] Rights are structural limits on public power, not merely private benefits that the holder may bargain away.

SOURCE HEADING [4] - Prospective overruling

[FACT] *I.C. Golaknath v. State of Punjab* used prospective overruling: it announced a rule for the future without unsettling past amendments. *Kesavananda Bharati* displaced Golaknath's amendment theory but retained the Indian court's capacity to calibrate temporal effect where justified.

SOURCE HEADING [4] - Constitutional amendments and basic structure

Stage	Proposition
<i>Shankari Prasad / Sajjan Singh</i>	Constitutional amendment not ordinary "law" under Article 13.
<i>Golaknath</i> (1967)	Amendment treated as law; Parliament could not abridge FRs; applied prospectively.
Twenty-fourth Amendment	Expressly affirmed amendment power and added Article 13(4).
<i>Kesavananda Bharati</i> (1973)	Parliament may amend every Part, including FRs, but cannot damage basic structure.
<i>Minerva Mills</i> (1980)	Limited amending power and harmony between Parts III and IV are basic features.

[LIMIT] The complete amendment doctrine belongs to Polity 10. Here the exam rule is: ordinary law is tested under Article 13; constitutional amendment is tested under the basic-structure limitation.

SOURCE HEADING [4] - CLOSING RECALL FLOW - ARTICLE 13 - LAW, JUDICIAL REVIEW AND THE VOIDNESS DOCTRINES

START / CONCEPT: ARTICLE 13 - LAW, JUDICIAL REVIEW AND THE VOIDNESS DOCTRINES

|

v

EXACT TERMS: Article 13 - Law • Judicial Review • The Voidness Doctrines • CONTENT CLASSIFICATION • to the extent • Test

|

v

MECHANISM / ARGUMENT: Article 13(4): inserted by the Twenty-fourth Amendment; Article 13 does not apply to constitutional amendments under Article 368.

|

v

CONSEQUENCE / CONTRAST: Article 13(2): the State shall not make law taking away or abridging Fundamental Rights; contravening law is void to the extent of contravention.

|

v

UPSC TRAP / ANSWER-USE: Bhikaji Narain Dhakras explains that a conflicting pre-Constitution law is not erased for all purposes; it lies dormant against the Fundamental Right and can revive if the constitutional shadow is removed.

|

v

ANSWER-GRABBING FORMULATION: Article 13 converts rights into judicially enforceable limits by defining law broadly and using severability, eclipse and non-waiver, while constitutional amendments are reviewed through Article 368 and the basic-structure boundary.

SOURCE HEADING [3] - SESSION 6 - ARTICLE 14 - TWIN EQUALITY, CLASSIFICATION AND ANTI-ARBITRARINESS

SOURCE HEADING [4] - DEFINITION / WHAT THIS IS CALLED

Plain-language definition: classification tests the structure of differentiation; arbitrariness tests irrational, capricious or disproportionate State power even where a neat class is difficult to identify.

Technical definition: Intelligible differentia: the included group must be distinguishable from the excluded group.

SOURCE HEADING [4] - ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

classification tests the structure of differentiation; arbitrariness tests irrational, capricious or disproportionate State power even where a neat class is difficult to identify.

SOURCE HEADING [4] - MUST-WRITE KEYWORDS

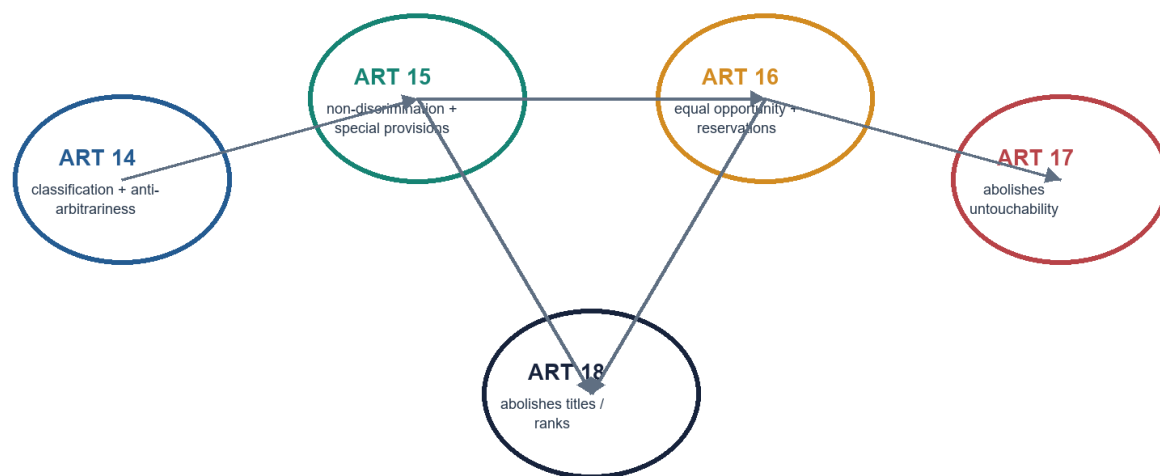
- Article 14 - Twin Equality
- Anti-Arbitrariness
- CONTENT CLASSIFICATION
- class legislation
- Intelligible differentia
- Rational nexus

How to use them: Frame the answer through Article 14 - Twin Equality; define Anti-Arbitrariness, connect CONTENT CLASSIFICATION with class legislation to explain the mechanism, and use Intelligible differentia for the decisive comparison or qualification.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (ARTICLE 14): Article 14 combines equality before law with equal protection: it permits reasonable classification only through intelligible differentia and rational nexus, and independently invalidates arbitrary State action.

The equality code

Formal equality, substantive equality and anti-hierarchy work together



Equality permits differentiation when it dismantles disadvantage rather than caste hierarchy.

Articles 14-18 form a code against privilege, exclusion, caste hierarchy and artificial rank, while permitting carefully designed substantive equality.

SOURCE HEADING [4] - Twin concepts

Concept	Source	Nature	Meaning
Equality before law	British rule-of-law tradition	negative	no special privilege; equal submission to ordinary law
Equal protection of laws	US Fourteenth Amendment influence	positive	like cases treated alike; State may differentiate to correct relevant differences

[FACT] Article 14 protects every person. It forbids **class legislation**, not all classification.

SOURCE HEADING [4] - Reasonable classification test

1. **Intelligible differentia**: the included group must be distinguishable from the excluded group.
2. **Rational nexus**: the differentia must relate to the law's object.

[LIMIT] The classification cannot be artificial, evasive or unrelated. The object itself must be constitutionally legitimate.

SOURCE HEADING [4] - From classification to arbitrariness

- *E.P. Royappa* treated equality and arbitrariness as sworn enemies.
- *Maneka Gandhi* linked Articles 14, 19 and 21 and required non-arbitrary, fair procedure.
- *Ajay Hasia* reinforced that arbitrary State action violates Article 14.
- *Shayara Bano* used manifest arbitrariness in reviewing legislation.

[ANALYSIS] A high-scoring answer does not abandon classification for arbitrariness. It uses both:

classification tests the structure of differentiation; arbitrariness tests irrational, capricious or disproportionate State power even where a neat class is difficult to identify.

SOURCE HEADING [4] - Constitutional exceptions and immunities

- President and Governors receive specified immunities under Article 361.
- Legislative speech and votes receive privileges under Articles 105 and 194.
- Foreign sovereigns/diplomats and international organisations may possess recognised immunities.
- [LIMIT] These are constitutionally or legally structured immunities, not proof that rule of law is absent.

SOURCE HEADING [4] - CLOSING RECALL FLOW - ARTICLE 14 - TWIN EQUALITY, CLASSIFICATION AND ANTI-ARBITRARINESS

START / CONCEPT: ARTICLE 14 - TWIN EQUALITY, CLASSIFICATION AND ANTI-ARBITRARINESS

|

v

EXACT TERMS: Article 14 - Twin Equality · Anti-Arbitrariness · CONTENT CLASSIFICATION · class legislation · Intelligible differentia · Rational nexus

|

v

MECHANISM / ARGUMENT: Intelligible differentia: the included group must be distinguishable from the excluded group.

|

v

CONSEQUENCE / CONTRAST: These are constitutionally or legally structured immunities, not proof that rule of law is absent.

|

v

UPSC TRAP / ANSWER-USE: A high-scoring answer does not abandon classification for arbitrariness.

|

v

ANSWER-GRABBING FORMULATION: classification tests the structure of differentiation; arbitrariness tests irrational, capricious or disproportionate State power even where a neat class is difficult to identify.

SOURCE HEADING [3] - SESSION 7 - ARTICLES 15 AND 16 - NON-DISCRIMINATION AND PROTECTIVE DISCRIMINATION

SOURCE HEADING [4] - DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Articles 15(4) and 16(4) are not grudging exceptions to equality.

Technical definition: Article 15(4) followed State of Madras v.

SOURCE HEADING [4] - ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Articles 15(4) and 16(4) are not grudging exceptions to equality.

SOURCE HEADING [4] - MUST-WRITE KEYWORDS

- Articles 15
- Protective Discrimination
- CONTENT CLASSIFICATION
- only
- special provisions for women and children
- 16 - Non-Discrimination

How to use them: Frame the answer through Articles 15; define Protective Discrimination, connect CONTENT CLASSIFICATION with only to explain the mechanism, and use special provisions for women and children for the decisive comparison or qualification.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (ARTICLES 15-16): Articles 15 and 16 move equality from non-discrimination to substantive opportunity by prohibiting exact grounds yet authorising carefully targeted special provisions and reservation through distinct enabling clauses.

CONTENT CLASSIFICATION: CORE PRELIMS + CORE MAINS

SOURCE HEADING [4] - Article 15

[FACT] Article 15(1) bars the State from discriminating against a citizen on grounds **only** of religion, race, caste, sex, place of birth or any of them.

[FACT] Article 15(2) prevents a citizen, on those grounds only, from being subjected to disability in access to:

- shops, public restaurants, hotels and places of public entertainment; and
- wells, tanks, bathing ghats, roads and places of public resort maintained wholly/partly from State funds or dedicated to public use.

This clause has direct horizontal force.

SOURCE HEADING [4] - Enabling clauses under Article 15

Clause	Constitutional purpose
15(3)	special provisions for women and children
15(4)	advancement of socially and educationally backward classes, SCs and STs
15(5)	admission-related special provisions in educational institutions, including private aided/unaided institutions, excluding Article 30(1) minority institutions
15(6)	EWS special provisions, including reservation up to 10 per cent, for classes outside 15(4)/(5) coverage

[FACT] Article 15(4) followed *State of Madras v. Champakam Dorairajan* and the First Amendment. Article 15(5) came through the Ninety-third Amendment. Article 15(6) came through the 103rd Amendment.

SOURCE HEADING [4] - Article 16

[FACT] Article 16(1) guarantees equality of opportunity to citizens in public employment. Article 16(2) bars discrimination on religion, race, caste, sex, descent, place of birth, residence or any of them.

Clause	Function
16(3)	Parliament may prescribe residence requirements for specified employment
16(4)	enables reservation for a backward class inadequately represented in State services
16(4A)	enables promotion reservation with consequential seniority for SCs/STs, subject to doctrine
16(4B)	allows unfilled reserved vacancies to be treated as a separate class for carry-forward

Clause	Function
16(5)	permits religion-linked office requirements in a religious/denominational institution
16(6)	enables EWS reservation up to 10 per cent outside existing reserved classes

[ANALYSIS] Articles 15(4) and 16(4) are not grudging exceptions to equality. They are textual methods of substantive equality. Yet they remain enabling powers, not an individual Fundamental Right to demand reservation in every setting.

SOURCE HEADING [4] - CLOSING RECALL FLOW - ARTICLES 15 AND 16 - NON-DISCRIMINATION AND PROTECTIVE DISCRIMINATION

START / CONCEPT: ARTICLES 15 AND 16 - NON-DISCRIMINATION AND PROTECTIVE DISCRIMINATION
 |
 v
 EXACT TERMS: Articles 15 · Protective Discrimination · CONTENT CLASSIFICATION · only · special provisions for women and children · 16 - Non-Discrimination
 |
 v
 MECHANISM / ARGUMENT: Article 15(4) followed State of Madras v.
 |
 v
 CONSEQUENCE / CONTRAST: shops, public restaurants, hotels and places of public entertainment; and wells, tanks, bathing ghats, roads and places of public resort maintained wholly/partly from State funds or dedicated to public use.
 |
 v
 UPSC TRAP / ANSWER-USE: Do not miss this limiting distinction: this clause has direct horizontal force.
 |
 v
 ANSWER-GRABBING FORMULATION: Articles 15(4) and 16(4) are not grudging exceptions to equality.

SOURCE HEADING [3] - SESSION 8 - RESERVATION DOCTRINE: CREAMY LAYER, CEILING, PROMOTION, EFFICIENCY, EWS AND SC SUB-CLASSIFICATION

SOURCE HEADING [4] - DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Reservation is a technique of substantive equality, but its design remains evidence-based, reviewable and attentive to creamy-layer exclusion, representation, promotion conditions, backlog treatment, EWS text and administrative efficiency.

Technical definition: Efficiency is not a veto owned by the unreserved category.

SOURCE HEADING [4] - ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Reservation is a technique of substantive equality, but its design remains evidence-based, reviewable and attentive to creamy-layer exclusion, representation, promotion conditions, backlog treatment, EWS text and administrative efficiency.

SOURCE HEADING [4] - MUST-WRITE KEYWORDS

- Reservation Doctrine
- Creamy Layer
- Ceiling
- Promotion
- Efficiency
- Ews

How to use them: Frame the answer through Reservation Doctrine; define Creamy Layer, connect Ceiling with Promotion to explain the mechanism, and use Efficiency for the decisive comparison or qualification.

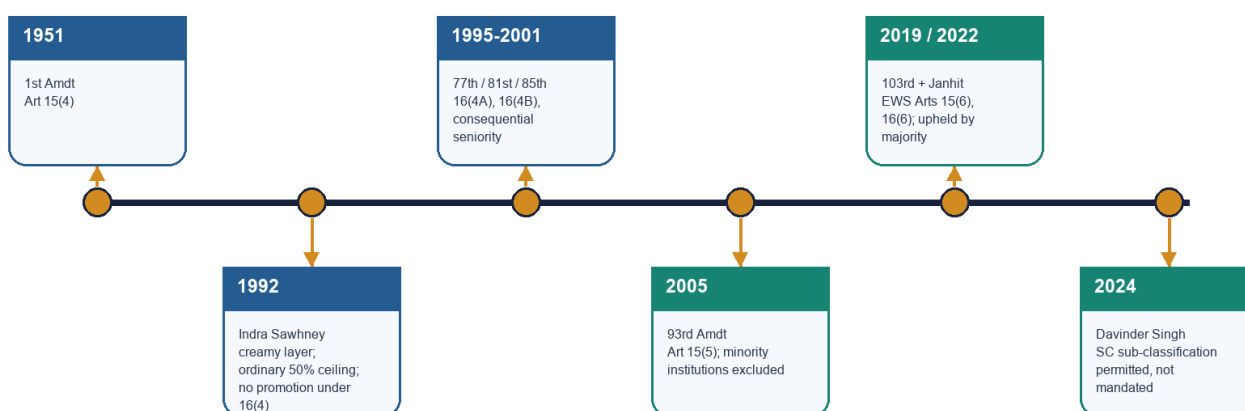
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (RESERVATION CONTROL):

Reservation is a technique of substantive equality, but its design remains evidence-based, reviewable and attentive to creamy-layer exclusion, representation, promotion conditions, backlog treatment, EWS text and administrative efficiency.

CONTENT CLASSIFICATION: CORE PRELIMS + CORE MAINS

Reservation amendments and judgments

Use the constitutional route, the limiting principle and the latest settled holding



Article 335: efficiency is a constitutional consideration, not an automatic veto on reservation.

Reservation doctrine is a timeline of constitutional amendments and judicial controls, culminating in the 2024 permission for evidence-based SC sub-classification.

SOURCE HEADING [4] - Indra Sawhney (1992)

[FACT] The nine-judge decision:

- upheld 27 per cent OBC reservation;
- required exclusion of the OBC creamy layer;
- treated the 50 per cent ceiling as the ordinary constitutional rule, with extraordinary situations narrowly conceived;
- held that Article 16(4) did not authorise reservation in promotion; and
- accepted sub-classification among backward classes where rationally designed.

[LIMIT] "Fifty per cent can never be crossed" is too absolute. The case described an ordinary ceiling with exceptional-space language; later constitutional amendments and EWS doctrine require precise treatment.

SOURCE HEADING [4] - Promotion amendments and doctrine

- 77th Amendment: Article 16(4A), promotion reservation for SCs/STs.
- 81st Amendment: Article 16(4B), backlog vacancies as a separate class.

- 82nd Amendment: proviso to Article 335 permitting relaxation in qualifying marks/standards for SC/ST promotion reservation.
- 85th Amendment: consequential seniority.
- *M. Nagaraj* upheld the amendments but required constitutional discipline, including quantifiable data on inadequate representation and attention to Article 335.
- *Jarnail Singh* removed the requirement that the State prove backwardness of SCs/STs afresh, while retaining data-based inadequacy and efficiency controls.

SOURCE HEADING [4] - Creamy layer

- [FACT] The settled Indra Sawhney creamy-layer rule directly concerns OBC reservation.
- [LIMIT] Do not automatically state that a single identical creamy-layer rule now governs every SC/ST reservation context. Concurring opinions and later debates must not be converted into a universal holding.

SOURCE HEADING [4] - Article 335 and efficiency

[FACT] Claims of SCs/STs in services must be considered consistently with maintaining administrative efficiency. The proviso permits relaxation in qualifying marks or evaluation standards for specified promotion-reservation purposes.

[ANALYSIS] Efficiency is not a veto owned by the unreserved category. A constitutional answer should ask how representative administration, competence, training and fair standards interact.

SOURCE HEADING [4] - EWS

[FACT] The 103rd Amendment inserted Articles 15(6) and 16(6). In *Janhit Abhiyan v. Union of India* (2022), a majority upheld:

- economic criteria as a basis for the EWS class;
- exclusion of classes already covered by SC/ST/OBC reservation; and
- the additional 10 per cent design against a basic-structure challenge.

[LIMIT] The decision was by majority, not unanimity.

SOURCE HEADING [4] - Davinder Singh (2024)

[CURRENT] A seven-judge Bench overruled the bar created by *E.V. Chinnaiah* and held that States may sub-classify Scheduled Castes for distributing reservation benefits more effectively.

Exam-safe propositions:

1. sub-classification is **permitted**, not constitutionally mandated;
2. it cannot alter the Presidential List under Article 341;
3. it must rest on evidence of differential disadvantage/representation rather than political assertion;
4. a State cannot reserve the entire benefit for one sub-class and exclude the rest; and
5. judicial review remains available.

[LIMIT] The judgment does not authorise a State to add or delete castes from the Scheduled Castes list.

SOURCE HEADING [4] - CLOSING RECALL FLOW - RESERVATION DOCTRINE: CREAMY LAYER, CEILING, PROMOTION, EFFICIENCY, EWS AND SC SUB-CLASSIFICATION

START / CONCEPT: RESERVATION DOCTRINE: CREAMY LAYER, CEILING, PROMOTION, EFFICIENCY, EWS AND SC SUB-CLASSIFICATION

|

v

EXACT TERMS: Reservation Doctrine · Creamy Layer · Ceiling · Promotion · Efficiency · Ews

|

v

MECHANISM / ARGUMENT: Efficiency is not a veto owned by the unreserved category.

|

v

CONSEQUENCE / CONTRAST: Jarnail Singh removed the requirement that the State prove backwardness of SCs/STs afresh, while retaining data-based inadequacy and efficiency controls.

|

v

UPSC TRAP / ANSWER-USE: Do not automatically state that a single identical creamy-layer rule now governs every SC/ST reservation context.

|

v

ANSWER-GRABBING FORMULATION: Reservation is a technique of substantive equality, but its design remains evidence-based, reviewable and attentive to creamy-layer exclusion, representation, promotion conditions, backlog treatment, EWS text and administrative efficiency.

SOURCE HEADING [3] - SESSION 9 - ARTICLES 17 AND 18 - ANTI-UNTOUCHABILITY AND ANTI-TITLE GUARANTEES

SOURCE HEADING [4] - DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Articles 17 and 18 attack inherited civic hierarchy horizontally and symbolically: untouchability is abolished and punishable, while titles are prohibited without invalidating military, academic or properly used national distinctions.

Technical definition: Article 17 is transformative: it does not merely restrain government classification; it constitutionally abolishes a social hierarchy and requires public enforcement.

SOURCE HEADING [4] - ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Articles 17 and 18 attack inherited civic hierarchy horizontally and symbolically: untouchability is abolished and punishable, while titles are prohibited without invalidating military, academic or properly used national distinctions.

SOURCE HEADING [4] - MUST-WRITE KEYWORDS

- Articles 17
- Anti-Title Guarantees
- CONTENT CLASSIFICATION
- Article 17
- Article 18
- 18 - Anti-Untouchability

How to use them: Frame the answer through Articles 17; define Anti-Title Guarantees, connect CONTENT CLASSIFICATION with Article 17 to explain the mechanism, and use Article 18 for the decisive comparison or qualification.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (ARTICLES 17-18): Articles 17 and 18 attack inherited civic hierarchy horizontally and symbolically: untouchability is abolished and punishable, while titles are prohibited without invalidating military, academic or properly used national distinctions.

CONTENT CLASSIFICATION: CORE PRELIMS + CORE MAINS

SOURCE HEADING [4] - Article 17

[FACT] Untouchability is abolished; its practice in any form is forbidden; enforcement of any disability arising from it is an offence punishable by law.

- It is absolute in text and operates against private persons.
- The Protection of Civil Rights Act, 1955 penalises untouchability disabilities.
- The Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act, 1989 addresses specified caste atrocities.
- [LIMIT] "Untouchability" is understood in its historical caste-based constitutional sense, not every form of social avoidance.

[ANALYSIS] Article 17 is transformative: it does not merely restrain government classification; it constitutionally abolishes a social hierarchy and requires public enforcement.

SOURCE HEADING [4] - Article 18

Clause	Rule
18(1)	State shall not confer titles except military or academic distinctions
18(2)	citizen shall not accept a title from a foreign State
18(3)	non-citizen holding office of profit/trust under State requires President's consent to accept foreign title
18(4)	office-holder requires President's consent for present, emolument or office from foreign State

[FACT] *Balaji Raghavan v. Union of India* (1996) held that Bharat Ratna and Padma awards are not prohibited titles, but they cannot be used as prefixes or suffixes.

UPSC trap: Article 17 belongs to the Right to Equality, not the Right against Exploitation.

SOURCE HEADING [4] - CLOSING RECALL FLOW - ARTICLES 17 AND 18 - ANTI-UNTOUCHABILITY AND ANTI-TITLE GUARANTEES

START / CONCEPT: ARTICLES 17 AND 18 - ANTI-UNTOUCHABILITY AND ANTI-TITLE GUARANTEES

|
v

EXACT TERMS: Articles 17 · Anti-Title Guarantees · CONTENT CLASSIFICATION · Article 17 · Article 18 · 18 - Anti-Untouchability

|
v

MECHANISM / ARGUMENT: Untouchability is abolished; its practice in any form is forbidden; enforcement of any disability arising from it is an offence punishable by law.

|
v

CONSEQUENCE / CONTRAST: Article 17 is transformative: it does not merely restrain government classification; it constitutionally abolishes a social hierarchy and requires public enforcement.

|
v

UPSC TRAP / ANSWER-USE: "Untouchability" is understood in its historical caste-based constitutional sense, not every form of social avoidance.

|
v

ANSWER-GRABBING FORMULATION: Articles 17 and 18 attack inherited civic hierarchy horizontally and symbolically: untouchability is abolished and punishable, while titles are prohibited without invalidating military, academic or properly used national distinctions.

SOURCE HEADING [3] - SESSION 10 - ARTICLE 19 - SIX FREEDOMS AND EXACT RESTRICTION GROUNDS

SOURCE HEADING [4] - DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 19 protects six citizen freedoms through clause-specific discipline: the State must identify the exact restriction clause and closed ground, after which reasonableness and proportionality test the means.

Technical definition: "Offensiveness", administrative convenience or vague hurt sentiment is not an independent Article 19(2) ground.

SOURCE HEADING [4] - ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 19 protects six citizen freedoms through clause-specific discipline: the State must identify the exact restriction clause and closed ground, after which reasonableness and proportionality test the means.

SOURCE HEADING [4] - MUST-WRITE KEYWORDS

- Article 19 - Six Freedoms
- Exact Restriction Grounds
- CONTENT CLASSIFICATION
- within India
- Speech
- Assembly

How to use them: Frame the answer through Article 19 - Six Freedoms; define Exact Restriction Grounds, connect CONTENT CLASSIFICATION with within India to explain the mechanism, and use Speech for the decisive comparison or qualification.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (ARTICLE 19): Article 19 protects six citizen freedoms through clause-specific discipline: the State must identify the exact restriction clause and closed ground, after which reasonableness and proportionality test the means.

Article 19 restriction matrix

Six citizen freedoms; each has its own closed constitutional grounds

FREEDOM	NAME	LIMIT	PERMITTED GROUNDS
19(1)(a)	Speech	19(2)	8 grounds: sovereignty/integrity; security; friendly relations; public order; decency/morality; contempt; defamation; incitement
19(1)(b)	Assembly	19(3)	sovereignty and integrity; public order
19(1)(c)	Association	19(4)	sovereignty and integrity; public order; morality
19(1)(d)	Movement	19(5)	general public; protection of Scheduled Tribes
19(1)(e)	Residence	19(5)	general public; protection of Scheduled Tribes
19(1)(g)	Profession	19(6)	general public; qualifications; State monopoly

Reasonable + by law + within the matching clause: never borrow a ground from another freedom.

Each Article 19 freedom has a matching restriction clause. The grounds are not interchangeable.

SOURCE HEADING [4] - The six freedoms

- Article 19(1)(a): speech and expression.
- Article 19(1)(b): assemble peaceably and without arms.
- Article 19(1)(c): form associations or unions or co-operative societies.
- Article 19(1)(d): move freely throughout India.
- Article 19(1)(e): reside and settle in any part of India.
- Article 19(1)(g): practise any profession or carry on any occupation, trade or business.

SOURCE HEADING [4] - Exact grounds

Freedom	Restriction clause	Exact constitutional grounds
Speech	19(2)	sovereignty and integrity of India; security of State; friendly relations with foreign States; public order; decency or morality; contempt of court; defamation; incitement to an offence
Assembly	19(3)	sovereignty and integrity of India; public order
Association	19(4)	sovereignty and integrity of India; public order; morality
Movement/residence	19(5)	interests of general public; protection of interests of any Scheduled Tribe
Profession/trade	19(6)	interests of general public; professional/technical qualifications; State monopoly

[FACT] The restrictions must be imposed by law and be reasonable. "Offensiveness", administrative convenience or vague hurt sentiment is not an independent Article 19(2) ground.

SOURCE HEADING [4] - Internal movement, residence and travel abroad

- Articles 19(1)(d) and (e) concern movement/residence **within India**.
- Travel abroad is protected through personal liberty under Article 21 after *Maneka Gandhi*.
- Article 19(5) expressly recognises protection of Scheduled Tribe interests.

SOURCE HEADING [4] - Assembly and association cautions

- Assembly must be peaceful and unarmed.
- There is no Fundamental Right to strike.
- The right to form an association does not automatically include a right to government recognition or to achieve every object of the association.

SOURCE HEADING [4] - Profession and trade

- Reasonable licensing, qualifications and health/safety regulation can be valid.
- The State may create a monopoly under Article 19(6).
- No Fundamental Right protects an inherently harmful or legally prohibited trade as though it were an ordinary occupation.

SOURCE HEADING [4] - CLOSING RECALL FLOW - ARTICLE 19 - SIX FREEDOMS AND EXACT RESTRICTION GROUNDS

START / CONCEPT: ARTICLE 19 - SIX FREEDOMS AND EXACT RESTRICTION GROUNDS

|

v

EXACT TERMS: Article 19 - Six Freedoms · Exact Restriction Grounds · CONTENT CLASSIFICATION · within India · Speech · Assembly

|

v

MECHANISM / ARGUMENT: The restrictions must be imposed by law and be reasonable.

|

v

CONSEQUENCE / CONTRAST: "Offensiveness", administrative convenience or vague hurt sentiment is not an independent Article 19(2) ground.

|

v

UPSC TRAP / ANSWER-USE: The right to form an association does not automatically include a right to government recognition or to achieve every object of the association.

|

v

ANSWER-GRABBING FORMULATION: Article 19 protects six citizen freedoms through clause-specific discipline: the State must identify the exact restriction clause and closed ground, after which reasonableness and proportionality test the means.

SOURCE HEADING [3] - SESSION 11 - SPEECH, PRESS, RIGHT TO KNOW AND THE FIRST AMENDMENT SETTLEMENT

SOURCE HEADING [4] - DEFINITION / WHAT THIS IS CALLED

Plain-language definition: State of Madras (1950): circulation is part of speech; the ban failed under the original narrow Article 19(2).

Technical definition: Freedom of the press is derived from Article 19(1)(a).

SOURCE HEADING [4] - ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

State of Madras (1950): circulation is part of speech; the ban failed under the original narrow Article 19(2).

SOURCE HEADING [4] - MUST-WRITE KEYWORDS

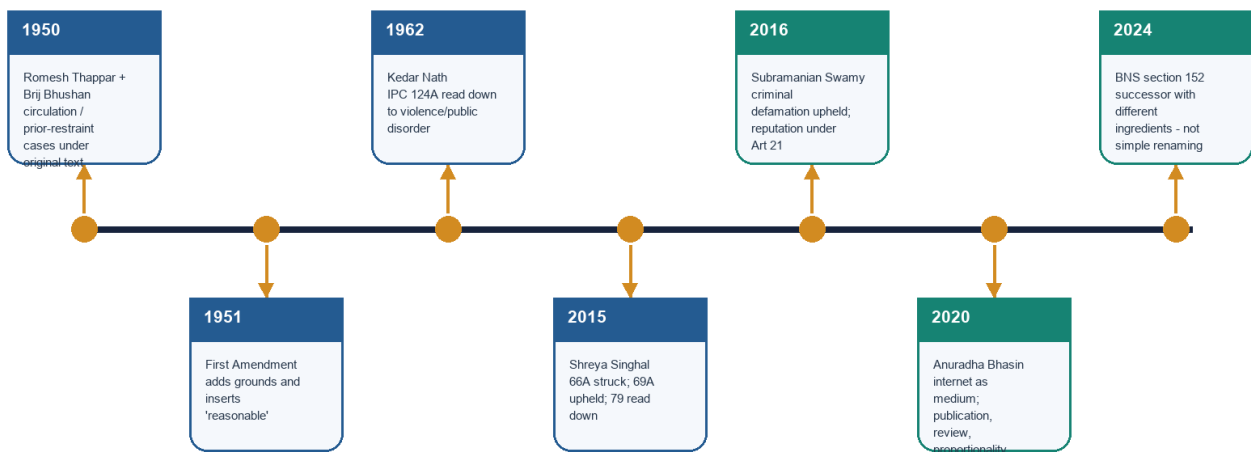
- **Speech**

- Press
- Right To Know
- The First Amendment Settlement
- reasonable
- Article 19

How to use them: Frame the answer through Speech; define Press, connect Right To Know with The First Amendment Settlement to explain the mechanism, and use reasonable for the decisive comparison or qualification.

Free speech doctrine timeline

From press freedom and the First Amendment to digital speech and current criminal law



Electoral Bonds (2024): voter information under 19(1)(a) links speech to political equality.

Free-speech doctrine moved from the 1950 press cases to reasonableness, incitement, digital safeguards and a differently drafted successor criminal provision.

SOURCE HEADING [4] - Press and circulation

[FACT] There is no separate press Article. Freedom of the press is derived from Article 19(1)(a).

- *Romesh Thappar v. State of Madras* (1950): circulation is part of speech; the ban failed under the original narrow Article 19(2).
- *Brij Bhushan v. State of Delhi* (1950): pre-censorship order failed under the original text.
- [LIMIT] These cases pre-date the First Amendment. Do not quote them as if present Article 19(2) lacked "public order."

SOURCE HEADING [4] - First Amendment, 1951

[FACT] It:

- inserted the word **reasonable** before restrictions;
- added public order, friendly relations with foreign States and incitement to an offence; and
- responded to the 1950 decisions.

[FACT] "Sovereignty and integrity of India" came through the Sixteenth Amendment, 1963, not the First Amendment.

[ANALYSIS] The First Amendment both widened the State's grounds and strengthened judicial control through the reasonableness requirement.

SOURCE HEADING [4] - Right to know

[FACT] The right to receive information necessary for democratic choice has been read into Article 19(1)(a). Candidate-disclosure cases and the Right to Information framework build on this democratic-speech logic.

[CURRENT] In the Electoral Bonds judgment (15 February 2024), the Supreme Court held that non-disclosure of political funding violated the voter's right to information. The Court also invalidated the unlimited-corporate-contribution change as manifestly arbitrary.

[ANALYSIS] The case links three constitutional ideas:

information -> informed voting -> political equality and accountable government.

SOURCE HEADING [4] - CLOSING RECALL FLOW - SPEECH, PRESS, RIGHT TO KNOW AND THE FIRST AMENDMENT SETTLEMENT

START / CONCEPT: SPEECH, PRESS, RIGHT TO KNOW AND THE FIRST AMENDMENT SETTLEMENT

|
v

EXACT TERMS: Speech · Press · Right To Know · The First Amendment Settlement · reasonable · Article 19

|
v

MECHANISM / ARGUMENT: The First Amendment both widened the State's grounds and strengthened judicial control through the reasonableness requirement.

|
v

CONSEQUENCE / CONTRAST: Do not quote them as if present Article 19(2) lacked "public order.".

|
v

UPSC TRAP / ANSWER-USE: Do not miss this limiting distinction: the right to receive information necessary for democratic choice has been read into Article...

|
v

ANSWER-GRABBING FORMULATION: State of Madras (1950): circulation is part of speech; the ban failed under the original narrow Article 19(2).

SOURCE HEADING [3] - SESSION 12 - SEDITION LINEAGE, BNS SECTION 152 AND SPEECH-INCITEMENT DISCIPLINE

SOURCE HEADING [4] - DEFINITION / WHAT THIS IS CALLED

Plain-language definition: [CURRENT] BNS section 152 targets purposeful/knowing acts through words, signs, visible representation, electronic communication, financial means or otherwise that.

Technical definition: "sedition was simply renamed" is inaccurate; and "all sedition-type criminalisation disappeared" is also inaccurate.

SOURCE HEADING [4] - ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

"sedition was simply renamed" is inaccurate; and "all sedition-type criminalisation disappeared" is also inaccurate.

SOURCE HEADING [4] - MUST-WRITE KEYWORDS

- Sedition Lineage
- Bns Section 152
- Speech-Incitement Discipline

- not
- **Article 19**
- **The Supreme Court**

How to use them: Frame the answer through Sedition Lineage; define Bns Section 152, connect Speech-Incitement Discipline with not to explain the mechanism, and use Article 19 for the decisive comparison or qualification.

SOURCE HEADING [4] - Kedar Nath Singh (1962)

[FACT] The Supreme Court upheld IPC section 124A only by reading it down to speech involving incitement to violence or a tendency/intention to create public disorder. Strong criticism of government, without that connection, was protected.

[LIMIT] The case did **not** strike down section 124A.

SOURCE HEADING [4] - S.G. Vombatkere

[FACT] On 11 May 2022, the Supreme Court placed use of IPC section 124A in abeyance while reconsideration occurred. On 12 September 2023, the constitutional challenge was directed to a Bench of at least five judges.

[CURRENT] The Supreme Court's official order in Abhisar Sharma v. Union of India, 28 August 2025, issued notice only on the vires of BNS Section 152 and tagged the matter with W.P.(C) No. 720/2025. A bounded official-domain search through 21 August 2026 located no final merits disposition. The IPC has meanwhile been repealed for new offences under the new criminal-code framework.

SOURCE HEADING [4] - Bharatiya Nyaya Sanhita section 152

[CURRENT] BNS section 152 targets purposeful/knowing acts through words, signs, visible representation, electronic communication, financial means or otherwise that:

- excite or attempt to excite secession;
- excite armed rebellion or subversive activities;
- encourage feelings of separatist activities; or
- endanger India's sovereignty, unity and integrity.

[LIMIT] It differs from IPC section 124A's language of hatred, contempt or disaffection toward government established by law. Therefore:

- "sedition was simply renamed" is inaccurate; and
- "all sedition-type criminalisation disappeared" is also inaccurate.

[ANALYSIS] Any constitutional answer should still test legality, precision, overbreadth, incitement/public-order connection and proportionality under Article 19(2).

SOURCE HEADING [4] - CLOSING RECALL FLOW - SEDITION LINEAGE, BNS SECTION 152 AND SPEECH-INCITEMENT DISCIPLINE

START / CONCEPT: SEDITION LINEAGE, BNS SECTION 152 AND SPEECH-INCITEMENT DISCIPLINE



EXACT TERMS: Sedition Lineage · Bns Section 152 · Speech-Incitement Discipline · not · Article 19 · The Supreme Court



MECHANISM / ARGUMENT: The Supreme Court upheld IPC section 124A only by reading it down to speech involving incitement to violence or a tendency/intention to create public disorder.



CONSEQUENCE / CONTRAST: [CURRENT] BNS section 152 targets purposeful/knowing acts through words, signs, visible representation, electronic communication, financial means or otherwise that.



UPSC TRAP / ANSWER-USE: Do not miss this limiting distinction: any constitutional answer should still test legality, precision, overbreadth, incitement/public-order connection and proportionality under...



ANSWER-GRABBING FORMULATION: "sedition was simply renamed" is inaccurate; and "all sedition-type criminalisation disappeared" is also inaccurate.

SOURCE HEADING [3] - SESSION 13 - DIGITAL SPEECH: SHREYA SINGHAL, INTERNET SHUTDOWNS AND CRIMINAL DEFAMATION

SOURCE HEADING [4] - DEFINITION / WHAT THIS IS CALLED

Plain-language definition: [CURRENT] The current criminal provision is BNS section 356, not the repealed IPC sections 499-500.

Technical definition: Technically, Digital Speech: Shreya Singhal, Internet Shutdowns And Criminal Defamation is analysed by relating Digital Speech to Shreya Singhal, then testing the relationship through Internet Shutdowns and Criminal Defamation.

SOURCE HEADING [4] - ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

[CURRENT] The current criminal provision is BNS section 356, not the repealed IPC sections 499-500.

SOURCE HEADING [4] - MUST-WRITE KEYWORDS

- Digital Speech
- Shreya Singhal
- Internet Shutdowns
- Criminal Defamation
- through
- Article 19

How to use them: Frame the answer through Digital Speech; define Shreya Singhal, connect Internet Shutdowns with Criminal Defamation to explain the mechanism, and use through for the decisive comparison or qualification.

SOURCE HEADING [4] - Shreya Singhal (2015)

[FACT] The Court:

- struck down IT Act section 66A for vagueness and overbreadth;
- distinguished protected discussion and advocacy from punishable incitement;

- upheld section 69A blocking power because of its structured safeguards; and
- read down intermediary liability under section 79 so "actual knowledge" was tied to court/government process.

Trap: *Shreya Singhal* did not strike down all blocking powers and did not declare the internet itself a Fundamental Right.

SOURCE HEADING [4] - Anuradha Bhasin (2020)

[FACT] Speech under Article 19(1)(a) and trade under Article 19(1)(g), when conducted through the internet, remain constitutionally protected. The Court required:

- publication of restriction orders;
- proportionality review;
- periodic review;
- rejection of indefinite suspension; and
- careful use of section 144-type powers.

[LIMIT] The Court protected freedoms exercised **through** the internet; it did not pronounce a freestanding universal Fundamental Right to internet access.

SOURCE HEADING [4] - Criminal defamation

[FACT] *Subramanian Swamy v. Union of India* (2016) upheld criminal defamation by balancing Article 19(1)(a) with reputation under Article 21 and the express Article 19(2) ground of defamation.

[CURRENT] The current criminal provision is BNS section 356, not the repealed IPC sections 499-500.

[ANALYSIS] A critical answer should still note the chilling effect, criminal-process burden and availability of civil remedies, while accurately stating the binding holding.

SOURCE HEADING [4] - CLOSING RECALL FLOW - DIGITAL SPEECH: SHREYA SINGHAL, INTERNET SHUTDOWNS AND CRIMINAL DEFAMATION

START / CONCEPT: DIGITAL SPEECH: SHREYA SINGHAL, INTERNET SHUTDOWNS AND CRIMINAL DEFAMATION

|

v

EXACT TERMS: Digital Speech · Shreya Singhal · Internet Shutdowns · Criminal Defamation · through · Article 19

|

v

MECHANISM / ARGUMENT: struck down IT Act section 66A for vagueness and overbreadth; distinguished protected discussion and advocacy from punishable incitement; upheld section 69A blocking power because of its structured safeguards; and read down intermediary liability under section 79 so "actual knowledge" was tied to court/government process.

|

v

CONSEQUENCE / CONTRAST: A critical answer should still note the chilling effect, criminal-process burden and availability of civil remedies, while accurately stating the binding holding.

|

v

UPSC TRAP / ANSWER-USE: Do not miss this limiting distinction: and careful use of section 144-type powers.

|

v

ANSWER-GRABBING FORMULATION: [CURRENT] The current criminal provision is BNS section 356, not the repealed IPC sections 499-500.

SOURCE HEADING [3] - SESSION 14 - ARTICLE 20 - EX POST FACTO LAW, DOUBLE JEOPARDY AND SELF-INCRIMINATION

SOURCE HEADING [4] - DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 20(3) is not a blanket right to suppress every material derived from the body.

Technical definition: Article 20 creates three person-protective criminal shields against retrospective penal liability, repeated prosecution-and-punishment for the same offence, and compelled testimonial self-incrimination.

SOURCE HEADING [4] - ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 20 creates three person-protective criminal shields against retrospective penal liability, repeated prosecution-and-punishment for the same offence, and compelled testimonial self-incrimination.

SOURCE HEADING [4] - MUST-WRITE KEYWORDS

- **Article 20 - Ex Post Facto Law**
- **Double Jeopardy**
- **Self-Incrimination**
- **CONTENT CLASSIFICATION**
- **Article 20**
- **Article 21**

How to use them: Frame the answer through Article 20 - Ex Post Facto Law; define Double Jeopardy, connect Self-Incrimination with CONTENT CLASSIFICATION to explain the mechanism, and use Article 20 for the decisive comparison or qualification.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (ARTICLE 20): Article 20 creates three person-protective criminal shields against retrospective penal liability, repeated prosecution-and-punishment for the same offence, and compelled testimonial self-incrimination.

CONTENT CLASSIFICATION: CORE PRELIMS + CORE MAINS

Article 20 - three criminal-law safeguards

Available to every person and protected from Article 359 suspension

20(1) EX POST FACTO

No retrospective creation or enhancement of criminal liability.

Not a bar on beneficial retrospectivity; does not govern civil liability.

20(2) DOUBLE JEOPARDY

No prosecution and punishment twice for the same offence.

Departmental action is not automatically a prior prosecution.

20(3) SELF-INCRIMINATION

Accused cannot be compelled to be a witness against oneself.

Testimonial compulsion differs from physical specimens.

Emergency shield: Articles 20 and 21 remain enforceable.

Article 20 contains three criminal-law safeguards and, with Article 21, remains enforceable during an Article 359 order.

SOURCE HEADING [4] - Article 20(1): ex post facto criminal law

- No person may be convicted for an act that was not an offence when done.
- No greater penalty may be imposed than the law authorised when the offence occurred.
- A beneficial retrospective criminal change may operate in the accused's favour.
- The clause concerns conviction and penalty, not every retrospective civil, tax or procedural law.

SOURCE HEADING [4] - Article 20(2): double jeopardy

- Text: no person shall be prosecuted and punished for the same offence more than once.
- Both prosecution and punishment must ordinarily be present for the constitutional bar.
- Departmental proceedings are not automatically a prior criminal prosecution.
- Distinguish the wider procedural doctrines of autrefois acquit/convict under criminal law.

SOURCE HEADING [4] - Article 20(3): self-incrimination

Three elements:

1. the person is accused of an offence;
2. compulsion exists; and
3. the person is made a witness against oneself.

[FACT] *M.P. Sharma and State of Bombay v. Kathi Kalu Oghad* distinguish testimonial compulsion from physical evidence such as fingerprints, specimen signatures or bodily samples. *Selvi v. State of Karnataka* treated involuntary narco-analysis, polygraph and brain-mapping techniques as violating testimonial autonomy and personal liberty.

[LIMIT] Article 20(3) is not a blanket right to suppress every material derived from the body.

SOURCE HEADING [4] - CLOSING RECALL FLOW - ARTICLE 20 - EX POST FACTO LAW, DOUBLE JEOPARDY AND SELF-INCRIMINATION

START / CONCEPT: ARTICLE 20 - EX POST FACTO LAW, DOUBLE JEOPARDY AND SELF-INCRIMINATION



EXACT TERMS: Article 20 - Ex Post Facto Law · Double Jeopardy · Self-Incrimination · CONTENT
CLASSIFICATION · Article 20 · Article 21



MECHANISM / ARGUMENT: Article 20(3) is not a blanket right to suppress every material derived from the body.



CONSEQUENCE / CONTRAST: No person may be convicted for an act that was not an offence when done.



UPSC TRAP / ANSWER-USE: Departmental proceedings are not automatically a prior criminal prosecution.



ANSWER-GRABBING FORMULATION: Article 20 creates three person-protective criminal shields against retrospective penal liability, repeated prosecution-and-punishment for the same offence, and compelled testimonial self-incrimination.

SOURCE HEADING [3] - SESSION 15 - ARTICLE 21 - GOPALAN TO MANEKA: FAIR PROCEDURE AND THE DIGNITY CHARTER

SOURCE HEADING [4] - DEFINITION / WHAT THIS IS CALLED

Plain-language definition: India did not textually replace "procedure established by law" with the American phrase "due process." The exam-safe formulation is that Maneka imported a due-process standard of fairness and non-arbitrariness.

Technical definition: Article 21 is a living guarantee because courts translate dignity into concrete safeguards.

SOURCE HEADING [4] - ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 21 became a dignity charter when Maneka Gandhi required fair, just and reasonable procedure and linked liberty with Articles 14 and 19, enabling named protections without turning every policy aspiration into an unlimited entitlement.

SOURCE HEADING [4] - MUST-WRITE KEYWORDS

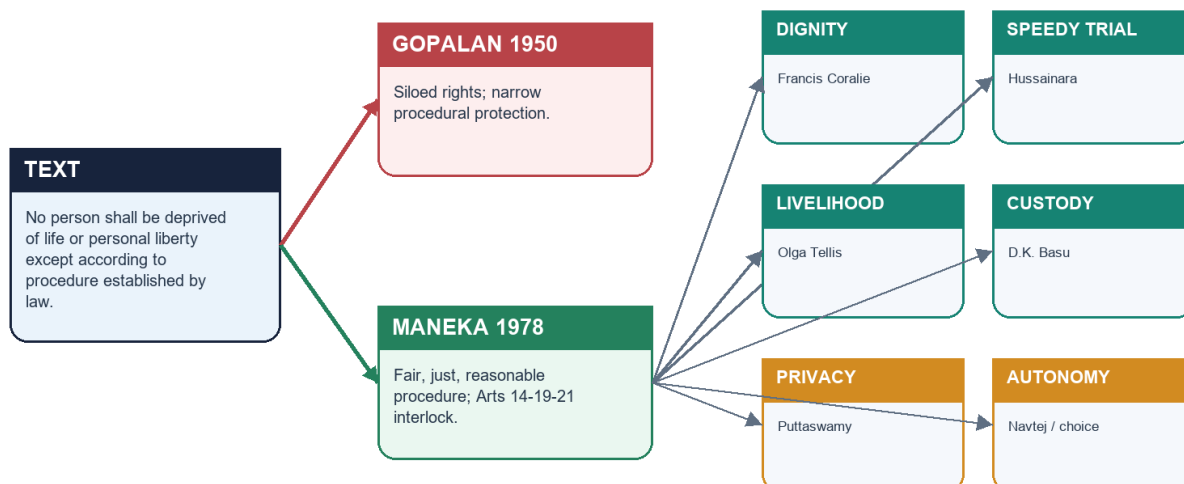
- Article 21 - Gopalan To Maneka
- Fair Procedure
- The Dignity Charter
- CONTENT CLASSIFICATION
- standard
- speedy trial

How to use them: Frame the answer through Article 21 - Gopalan To Maneka; define Fair Procedure, connect The Dignity Charter with CONTENT CLASSIFICATION to explain the mechanism, and use standard for the decisive comparison or qualification.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (ARTICLE 21): Article 21 became a dignity charter when Maneka Gandhi required fair, just and reasonable procedure and linked liberty with Articles 14 and 19, enabling named protections without turning every policy aspiration into an unlimited entitlement.

Article 21 expansion tree

A short text became a dignity charter through fair procedure and named holdings



Qualification: recognition of a right does not automatically fix a universal policy entitlement.

Article 21 expanded from a narrow procedural guarantee into a dignity charter through Maneka Gandhi and named substantive holdings.

SOURCE HEADING [4] - Text and early approach

[FACT] Article 21 protects every person: no person shall be deprived of life or personal liberty except according to procedure established by law.

- *A.K. Gopalan* (1950) read rights in separate silos and accepted a narrow procedural approach.
- *R.C. Cooper* (1970) weakened the silo theory by examining the effect of State action across rights.
- *Maneka Gandhi* (1978) completed the turn: procedure must be fair, just and reasonable, and Articles 14, 19 and 21 interlock.

[LIMIT] India did not textually replace "procedure established by law" with the American phrase "due process." The exam-safe formulation is that *Maneka* imported a due-process **standard** of fairness and non-arbitrariness.

SOURCE HEADING [4] - Life means dignified life

[FACT] *Francis Coralie Mullin* held that life is more than animal existence and includes human dignity.

Named Article 21 anchors:

Right/dimension	Authority	Exact proposition and limit
speedy trial	<i>Hussainara Khatoon</i>	unreasonable undertrial delay violates fair procedure; no universal judicial stopwatch was created
free legal aid	<i>M.H. Hoskot</i> , <i>Hussainara</i> , Article 39A	indigent accused must have meaningful legal assistance

Right/dimension	Authority	Exact proposition and limit
livelihood	<i>Olga Tellis</i>	livelihood forms part of life; eviction power still survived subject to fair procedure
prisoner dignity	<i>Sunil Batra</i>	prisoner is not a non-person; arbitrary solitary confinement/bar fetters restricted
arrest safeguards/compensation	<i>D.K. Basu</i>	arrest memo, information, records, medical/counsel safeguards; public-law compensation can follow custodial violation
shelter	<i>Chameli Singh</i>	shelter linked to dignified life; not a judicial guarantee of a house to every claimant
health/emergency care	<i>Parmanand Katara, Paschim Banga</i>	immediate care and reasonable public-health obligations
clean environment	<i>Subhash Kumar</i> and environmental line	pollution-free water/air linked to life, balanced through environmental law
travel abroad	<i>Maneka Gandhi</i>	personal liberty includes foreign travel subject to fair lawful procedure
choice/marriage	<i>Lata Singh, Shafin Jahan</i>	adult choice, dignity and autonomy protected
sexual autonomy	<i>Navtej Singh Johar</i>	consensual adult same-sex intimacy protected through dignity, privacy and equality
reproductive autonomy	<i>Suchita Srivastava</i> , later abortion jurisprudence	bodily integrity and reproductive choice protected subject to valid law
passive euthanasia/living will	<i>Common Cause</i>	dignified dying recognised within carefully controlled passive-euthanasia framework

[ANALYSIS] Article 21 is a living guarantee because courts translate dignity into concrete safeguards. The qualification is equally important: named rights often secure fair process and minimum protection, not an unlimited judicially supplied welfare entitlement.

SOURCE HEADING [4] - CLOSING RECALL FLOW - ARTICLE 21 - GOPALAN TO MANEKA: FAIR PROCEDURE AND THE DIGNITY CHARTER

START / CONCEPT: ARTICLE 21 - GOPALAN TO MANEKA: FAIR PROCEDURE AND THE DIGNITY CHARTER



EXACT TERMS: Article 21 - Gopalan To Maneka · Fair Procedure · The Dignity Charter · CONTENT
CLASSIFICATION · standard · speedy trial



MECHANISM / ARGUMENT: India did not textually replace "procedure established by law" with the American phrase "due process." The exam-safe formulation is that Maneka imported a due-process standard of fairness and non-arbitrariness.



CONSEQUENCE / CONTRAST: Maneka Gandhi (1978) completed the turn: procedure must be fair, just and reasonable, and Articles 14, 19 and 21 interlock.



UPSC TRAP / ANSWER-USE: The qualification is equally important: named rights often secure fair process and minimum protection, not an unlimited judicially supplied welfare entitlement.



ANSWER-GRABBING FORMULATION: Article 21 became a dignity charter when Maneka Gandhi required fair, just and reasonable procedure and linked liberty with Articles 14 and 19, enabling named protections without turning every policy aspiration into an unlimited entitlement.

SOURCE HEADING [3] - SESSION 16 - PRIVACY, PROPORTIONALITY, DNA TESTING AND DATA PROTECTION

SOURCE HEADING [4] - DEFINITION / WHAT THIS IS CALLED

Plain-language definition: 843(E), as of 21 August 2026 the definition and Data Protection Board/institutional provisions specified in the notification are operative.

Technical definition: A nine-judge Bench held unanimously that privacy is a Fundamental Right protected as an intrinsic part of life and personal liberty under Article 21 and as part of the freedoms guaranteed by Part III.

SOURCE HEADING [4] - ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

843(E), as of 21 August 2026 the definition and Data Protection Board/institutional provisions specified in the notification are operative.

SOURCE HEADING [4] - MUST-WRITE KEYWORDS

- Privacy
- Proportionality
- Dna Testing
- Data Protection
- law
- legitimate State aim

How to use them: Frame the answer through Privacy; define Proportionality, connect Dna Testing with Data Protection to explain the mechanism, and use law for the decisive comparison or qualification.

SOURCE HEADING [4] - Puttaswamy (2017)

[FACT] A nine-judge Bench held unanimously that privacy is a Fundamental Right protected as an intrinsic part of life and personal liberty under Article 21 and as part of the freedoms guaranteed by Part III.

Privacy includes:

- bodily privacy and integrity;
- decisional autonomy;
- informational privacy;
- family, marriage, procreation and intimate choice; and
- protection against arbitrary State surveillance.

SOURCE HEADING [4] - Privacy limitation test

An interference requires:

1. **law**;
2. **legitimate State aim**;
3. **proportionality** between means and aim; and
4. **procedural safeguards** against abuse.

SOURCE HEADING [4] - DNA and paternity

[FACT] Compulsory DNA testing engages privacy, bodily integrity, dignity, identity and the child's interests. Courts do not order it as a routine fishing inquiry.

[CURRENT] Bharatiya Sakshya Adhiniyam, 2023 section 116 carries the conclusive presumption of legitimacy for a child born during a valid marriage or within 280 days after dissolution while the mother remains unmarried, unless non-access is shown.

[ANALYSIS] The answer balance is:

- truth and identity may justify testing in a strong case;
- the statutory legitimacy presumption and child's social dignity weigh heavily;
- less intrusive evidence must be considered;
- the order must be necessary and proportionate; and
- refusal consequences cannot be mechanically converted into forced bodily intrusion.

SOURCE HEADING [4] - DPDP control

[CURRENT] The Digital Personal Data Protection Act, 2023 supplies a statutory framework for digital personal data processing, consent/legitimate uses, data-principal rights, data-fiduciary obligations and enforcement.

[CURRENT] Under G.S.R. 843(E), as of 21 August 2026 the definition and Data Protection Board/institutional provisions specified in the notification are operative. Section 6(9) and Section 27(1)(d) are scheduled for 13 November 2026; most substantive processing, rights, obligations and penalty provisions are scheduled for 13 May 2027. Under G.S.R. 846(E), Rules 1, 2 and 17-21 are operative, Rule 4 is scheduled after one year, and Rules 3, 5-16, 22 and 23 after eighteen months.

[LIMIT] Notification is not full implementation: informational privacy remains constitutionally reviewable under Puttaswamy.

SOURCE HEADING [4] - CLOSING RECALL FLOW - PRIVACY, PROPORTIONALITY, DNA TESTING AND DATA PROTECTION

START / CONCEPT: PRIVACY, PROPORTIONALITY, DNA TESTING AND DATA PROTECTION

|

v

EXACT TERMS: Privacy · Proportionality · Dna Testing · Data Protection · law · legitimate State aim

|

v

MECHANISM / ARGUMENT: A nine-judge Bench held unanimously that privacy is a Fundamental Right protected as an intrinsic part of life and personal liberty under Article 21 and as part of the freedoms guaranteed by Part III.

|

v

CONSEQUENCE / CONTRAST: Notification is not full implementation: informational privacy remains constitutionally reviewable under Puttaswamy.

|

v

UPSC TRAP / ANSWER-USE: Courts do not order it as a routine fishing inquiry.

|

v

ANSWER-GRABBING FORMULATION: 843(E), as of 21 August 2026 the definition and Data Protection Board/ institutional provisions specified in the notification are operative.

SOURCE HEADING [3] - SESSION 17 - ARTICLE 21A - EDUCATION AS A FUNDAMENTAL RIGHT

SOURCE HEADING [4] - DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 21A demonstrates a shift from judge-developed Article 21 content to an express, age-bounded Fundamental Right implemented by statute.

Technical definition: recast Article 45 toward early childhood care and education below six years; and added Article 51A(k), a parental/guardian duty to provide educational opportunity to children aged six to fourteen.

SOURCE HEADING [4] - ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 21A demonstrates a shift from judge-developed Article 21 content to an express, age-bounded Fundamental Right implemented by statute.

SOURCE HEADING [4] - MUST-WRITE KEYWORDS

- Article 21A - Education As A Fundamental Right
- CONTENT CLASSIFICATION
- Article 21A
- Article 30
- Article 45
- Article 51A

How to use them: Frame the answer through Article 21A - Education As A Fundamental Right; define CONTENT CLASSIFICATION, connect Article 21A with Article 30 to explain the mechanism, and use Article 45 for the decisive comparison or qualification.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (ARTICLE 21A): Article 21A constitutionalises free and compulsory education for children aged six to fourteen, implemented by the RTE Act while preserving the distinct Article 30 position of minority institutions.

CONTENT CLASSIFICATION: CORE PRELIMS + CORE MAINS

[FACT] The Eighty-sixth Amendment inserted Article 21A: the State shall provide free and compulsory education to children aged six to fourteen in the manner determined by law.

The constitutional package also:

- recast Article 45 toward early childhood care and education below six years; and
- added Article 51A(k), a parental/guardian duty to provide educational opportunity to children aged six to fourteen.

SOURCE HEADING [4] - Judicial and statutory sequence

- *Mohini Jain* (1992) gave education an expansive Article 21 reading.
- *Unni Krishnan* (1993) confined the enforceable core and shaped the six-to-fourteen constitutional response.
- Right of Children to Free and Compulsory Education Act, 2009 operationalises Article 21A.
- *Society for Unaided Private Schools* upheld the 25 per cent admission obligation for non-minority unaided schools.
- *Pramati Educational and Cultural Trust* protected minority institutions from that application to preserve Article 30(1).

[ANALYSIS] Article 21A demonstrates a shift from judge-developed Article 21 content to an express, age-bounded Fundamental Right implemented by statute.

SOURCE HEADING [4] - CLOSING RECALL FLOW - ARTICLE 21A - EDUCATION AS A FUNDAMENTAL RIGHT

START / CONCEPT: ARTICLE 21A - EDUCATION AS A FUNDAMENTAL RIGHT

|

v

EXACT TERMS: Article 21A - Education As A Fundamental Right · CONTENT CLASSIFICATION · Article 21A · Article 30 · Article 45 · Article 51A

|

v

MECHANISM / ARGUMENT: recast Article 45 toward early childhood care and education below six years; and added Article 51A(k), a parental/guardian duty to provide educational opportunity to children aged six to fourteen.

|

v

CONSEQUENCE / CONTRAST: The resulting consequence is that article 21A demonstrates a shift from judge-developed Article 21 content to an express, age-bounded...

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v

UPSC TRAP / ANSWER-USE: Do not miss this limiting distinction: article 21A demonstrates a shift from judge-developed Article 21 content to an express, age-bounded...

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v

ANSWER-GRABBING FORMULATION: Article 21A demonstrates a shift from judge-developed Article 21 content to an express, age-bounded Fundamental Right implemented by statute.

SOURCE HEADING [3] - SESSION 18 - ARTICLE 22 - ORDINARY ARREST, PREVENTIVE DETENTION AND THE UNENFORCED 44TH AMENDMENT CLAUSE

SOURCE HEADING [4] - DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Preventive detention is the rights chapter's deepest structural contradiction: it constitutionalises detention without trial, yet surrounds it with minimum review, communication and representation safeguards.

Technical definition: Article 22 separates ordinary arrest from preventive detention: the first carries grounds, counsel and twenty-four-hour production safeguards, while the second follows a distinct regime whose current no-Advisory-Board ceiling remains three months.

SOURCE HEADING [4] - ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 22 separates ordinary arrest from preventive detention: the first carries grounds, counsel and twenty-four-hour production safeguards, while the second follows a distinct regime whose current no-Advisory-Board ceiling remains three months.

SOURCE HEADING [4] - MUST-WRITE KEYWORDS

- Article 22 - Ordinary Arrest
- Preventive Detention
- The Unenforced 44Th Amendment Clause
- CONTENT CLASSIFICATION
- three months
- Article 22

How to use them: Frame the answer through Article 22 - Ordinary Arrest; define Preventive Detention, connect The Unenforced 44Th Amendment Clause with CONTENT CLASSIFICATION to explain the mechanism, and use three months for the decisive comparison or qualification.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (ARTICLE 22): Article 22 separates ordinary arrest from preventive detention: the first carries grounds, counsel and twenty-four-hour production safeguards, while the second follows a distinct regime whose current no-Advisory-Board ceiling remains three months.

CONTENT CLASSIFICATION: CORE PRELIMS + CORE MAINS

Article 22 - ordinary arrest and preventive detention

Do not transfer safeguards from one branch to the other

ORDINARY ARREST | 22(1)-(2)

1. Inform grounds of arrest
2. Right to consult and be defended by lawyer
3. Produce before nearest magistrate within 24 hours (excluding journey)
4. No detention beyond 24 hours without magistrate authority

Exceptions: enemy alien; preventive detention branch

PREVENTIVE DETENTION | 22(4)-(7)

1. Detention to prevent anticipated conduct, not punish conviction
2. Beyond 3 months requires Advisory Board opinion under current text
3. Communicate grounds as soon as may be
4. Earliest opportunity to represent
5. Public-interest facts may be withheld

44th Amendment's 2-month substitution was not brought into force.

Structural anomaly: detention without trial exists inside the freedom chapter.

Article 22 separates ordinary arrest from preventive detention; importing one branch's safeguards into the other creates predictable errors.

SOURCE HEADING [4] - Ordinary arrest: Articles 22(1)-(2)

A person arrested must:

- be informed as soon as may be of the grounds;
- not be denied the right to consult and be defended by a legal practitioner of choice;
- be produced before the nearest magistrate within 24 hours, excluding journey time; and
- not be detained beyond that period without magistrate authority.

SOURCE HEADING [4] - Exceptions under Article 22(3)

Clauses (1) and (2) do not apply to:

- an enemy alien; or
- a person arrested/detained under preventive-detention law.

[LIMIT] This does not mean preventive detainees have no constitutional protection. Clauses (4)-(7) supply a different safeguard architecture.

SOURCE HEADING [4] - Preventive detention

- Prevents anticipated conduct rather than punishing a proved offence.
- Current constitutional text permits detention up to **three months** without Advisory Board approval.
- Beyond that, an Advisory Board must report sufficient cause, subject to parliamentary law under clauses (4)-(7).
- Grounds must be communicated as soon as may be.
- Earliest opportunity to make a representation must be given.
- Facts considered against public interest to disclose may be withheld.

SOURCE HEADING [4] - The Forty-fourth Amendment trap

[FACT] The amendment proposed reducing the no-Advisory-Board period from three months to two months and restructuring the Board.

[CURRENT] That substitution was never brought into force. The operative constitutional period remains **three months**.

[ANALYSIS] Preventive detention is the rights chapter's deepest structural contradiction: it constitutionalises detention without trial, yet surrounds it with minimum review, communication and representation safeguards.

SOURCE HEADING [4] - CLOSING RECALL FLOW - ARTICLE 22 - ORDINARY ARREST, PREVENTIVE DETENTION AND THE UNENFORCED 44TH AMENDMENT CLAUSE

START / CONCEPT: ARTICLE 22 - ORDINARY ARREST, PREVENTIVE DETENTION AND THE UNENFORCED 44TH AMENDMENT CLAUSE

|
v

EXACT TERMS: Article 22 - Ordinary Arrest • Preventive Detention • The Unenforced 44Th Amendment Clause • CONTENT CLASSIFICATION • three months • Article 22

|
v

MECHANISM / ARGUMENT: Beyond that, an Advisory Board must report sufficient cause, subject to parliamentary law under clauses (4)-(7).

|
v

CONSEQUENCE / CONTRAST: This does not mean preventive detainees have no constitutional protection.

|
v

UPSC TRAP / ANSWER-USE: Clauses (1) and (2) do not apply to.

|
v

ANSWER-GRABBING FORMULATION: Article 22 separates ordinary arrest from preventive detention: the first carries grounds, counsel and twenty-four-hour production safeguards, while the second follows a distinct regime whose current no-Advisory-Board ceiling remains three months.

SOURCE HEADING [3] - SESSION 19 - ARTICLES 23-24 - EXPLOITATION, FORCED LABOUR AND CHILD LABOUR

SOURCE HEADING [4] - DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 24's text is narrower than a complete ban on every kind of child work, while the amended statute creates broader prohibitions and defined exceptions.

Technical definition: Union of India (Asiad Workers), payment below the legal minimum in conditions of economic compulsion could amount to forced labour.

SOURCE HEADING [4] - ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 24's text is narrower than a complete ban on every kind of child work, while the amended statute creates broader prohibitions and defined exceptions.

SOURCE HEADING [4] - MUST-WRITE KEYWORDS

- Articles 23-24 - Exploitation
- Forced Labour
- Child Labour
- CONTENT CLASSIFICATION
- Article 23
- Article 24

How to use them: Frame the answer through Articles 23-24 - Exploitation; define Forced Labour, connect Child Labour with CONTENT CLASSIFICATION to explain the mechanism, and use Article 23 for the decisive comparison or qualification.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (ARTICLES 23-24): Articles 23-24 constitutionalise labour dignity against State and private exploitation: trafficking, begar (forced unpaid labour), economically compelled forced labour and prohibited child labour attract both rights remedies and statutory enforcement.

CONTENT CLASSIFICATION: CORE PRELIMS + CORE MAINS

SOURCE HEADING [4] - Article 23

[FACT] It prohibits:

- traffic in human beings;
- begar (forced unpaid labour); and
- other similar forms of forced labour.

It binds the State and private persons and protects citizens and non-citizens.

[FACT] In *People's Union for Democratic Rights v. Union of India* (Asiad Workers), payment below the legal minimum in conditions of economic compulsion could amount to forced labour. *Bandhua Mukti Morcha* linked bonded labour abolition, dignity and State enforcement.

[FACT] Article 23(2) permits compulsory service for public purposes, but the State cannot discriminate in imposing it only on religion, race, caste or class.

SOURCE HEADING [4] - Article 24

[FACT] No child below fourteen may be employed in a factory, mine or other hazardous employment.

Relevant statutory architecture includes:

- Child and Adolescent Labour (Prohibition and Regulation) Act, 1986 as amended in 2016;
- Bonded Labour System (Abolition) Act, 1976;
- anti-trafficking criminal provisions; and
- education protections under Article 21A and the RTE Act.

[LIMIT] Article 24's text is narrower than a complete ban on every kind of child work, while the amended statute creates broader prohibitions and defined exceptions. Keep constitutional and statutory propositions separate.

SOURCE HEADING [4] - CLOSING RECALL FLOW - ARTICLES 23-24 - EXPLOITATION, FORCED LABOUR AND CHILD LABOUR

START / CONCEPT: ARTICLES 23-24 - EXPLOITATION, FORCED LABOUR AND CHILD LABOUR

|

v

EXACT TERMS: Articles 23-24 - Exploitation · Forced Labour · Child Labour · CONTENT CLASSIFICATION
· Article 23 · Article 24

|

v

MECHANISM / ARGUMENT: Union of India (Asiad Workers), payment below the legal minimum in conditions of economic compulsion could amount to forced labour.

|

v

CONSEQUENCE / CONTRAST: The resulting consequence is that article 24's text is narrower than a complete ban on every kind of child...

|

v

UPSC TRAP / ANSWER-USE: Do not miss this limiting distinction: article 24's text is narrower than a complete ban on every kind of child...

|

v

ANSWER-GRABBING FORMULATION: Article 24's text is narrower than a complete ban on every kind of child work, while the amended statute creates broader prohibitions and defined exceptions.

SOURCE HEADING [3] - SESSION 20 - ARTICLES 25-28 - CONSCIENCE, DENOMINATION, SECULAR REGULATION AND PRINCIPLED DISTANCE

SOURCE HEADING [4] - DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Indian religious freedom protects conscience and denominational autonomy while permitting public-order, health, morality, secular-regulation and social-reform controls; the governing model is principled distance, not either theocracy or an absolute wall.

Technical definition: identify whether the claimant is an individual or denomination; distinguish religious practice from associated secular activity; examine essentiality where the doctrine is invoked; apply public order, morality, health, reform and other-FR limits; and state the criticism that secular judges may become arbiters of theology.

SOURCE HEADING [4] - ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Indian religious freedom protects conscience and denominational autonomy while permitting public-order, health, morality, secular-regulation and social-reform controls; the governing model is principled distance, not either theocracy or an absolute wall.

SOURCE HEADING [4] - MUST-WRITE KEYWORDS

- Articles 25-28 - Conscience

- Denomination
- Secular Regulation
- Principled Distance
- CONTENT CLASSIFICATION
- wholly maintained from State funds

How to use them: Frame the answer through Articles 25-28 - Conscience; define Denomination, connect Secular Regulation with Principled Distance to explain the mechanism, and use CONTENT CLASSIFICATION for the decisive comparison or qualification.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (ARTICLES 25-28): Indian religious freedom protects conscience and denominational autonomy while permitting public-order, health, morality, secular-regulation and social-reform controls; the governing model is principled distance, not either theocracy or an absolute wall.

CONTENT CLASSIFICATION: CORE PRELIMS + CORE MAINS

Religious freedom and the ERP inquiry

Individual conscience, denominational autonomy and reform exist in the same design

ARTICLE 25

All persons: conscience; profess, practise, propagate.
Limits: public order, morality, health, other FRs.

ARTICLE 26

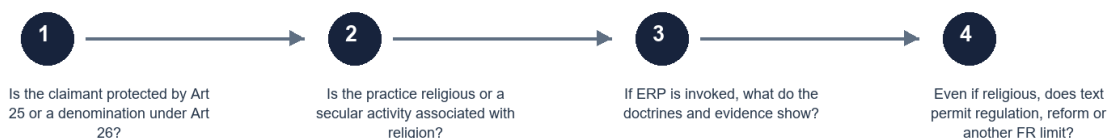
Religious denominations: institutions, religious affairs, property.
Limits: public order, morality, health.

ARTICLE 27

No tax whose proceeds are specifically appropriated to promote or maintain a particular religion.

ARTICLE 28

Religious instruction varies by institution: wholly State-maintained, trust-administered, aided or recognised.



Indian secularism: principled distance - protection, regulation and reform rather than a rigid wall.

Religious freedom requires four separate questions: individual conscience, denominational autonomy, taxation and institutional religious instruction.

SOURCE HEADING [4] - Article 25

[FACT] All persons have freedom of conscience and the right freely to profess, practise and propagate religion, subject to:

- public order;
- morality;
- health;
- the other provisions of Part III; and
- State regulation/reform under Article 25(2).

[FACT] Propagation is not a right to convert another person by force, fraud or allurement. *Rev. Stainislaus v. State of Madhya Pradesh* upheld that distinction.

[FACT] Carrying the kirpan is included in the profession of Sikh religion. For Article 25(2)(b), reference to Hindus includes Sikhs, Jains and Buddhists.

SOURCE HEADING [4] - Article 26

Every religious denomination or section, subject to public order, morality and health, may:

1. establish and maintain religious/charitable institutions;
2. manage its own affairs in matters of religion;
3. own and acquire property; and
4. administer property according to law.

[LIMIT] Article 26(b) religious affairs receive stronger autonomy than secular administration of property, which remains regulable.

SOURCE HEADING [4] - Essential Religious Practices doctrine

[FACT] *Shirur Mutt* distinguished religious matters from secular activities associated with religion and anchored essentiality in the religion's doctrines.

The exam sequence:

1. identify whether the claimant is an individual or denomination;
2. distinguish religious practice from associated secular activity;
3. examine essentiality where the doctrine is invoked;
4. apply public order, morality, health, reform and other-FR limits; and
5. state the criticism that secular judges may become arbiters of theology.

[FACT] In *Indian Young Lawyers Association* (Sabarimala, 2018), the majority invalidated the exclusion of women of the specified age group through equality, denomination and constitutional-morality reasoning.

[LIMIT] A bounded official-source check through 21 August 2026 located no final later decision that this package can securely use; it therefore states only the 2018 majority holding and does not speculate about the review/reference.

SOURCE HEADING [4] - Article 27

[FACT] No person shall be compelled to pay taxes whose proceeds are specifically appropriated to promote or maintain a particular religion or denomination.

Trap: Article 27 distinguishes a tax for religious promotion from a regulatory fee or a general tax whose expenditure may incidentally benefit religious institutions.

SOURCE HEADING [4] - Article 28

Institution	Religious instruction position
wholly maintained from State funds	prohibited
State-administered but established under endowment/trust requiring instruction	permitted
State-recognised	instruction/worship cannot be compelled without consent
State-aided	instruction/worship cannot be compelled without consent

SOURCE HEADING [4] - Principled-distance secularism

[ANALYSIS] Indian secularism is not a rigid wall:

- the State protects conscience and denominational autonomy;
- it may engage equally with religions;
- it may regulate secular administration; and
- it may intervene for social welfare, reform, dignity and equality.

This is why the Indian model can both protect religious practice and constitutionally dismantle untouchability or exclusion.

SOURCE HEADING [4] - CLOSING RECALL FLOW - ARTICLES 25-28 - CONSCIENCE, DENOMINATION, SECULAR REGULATION AND PRINCIPLED DISTANCE

START / CONCEPT: ARTICLES 25-28 - CONSCIENCE, DENOMINATION, SECULAR REGULATION AND PRINCIPLED DISTANCE

|

v

EXACT TERMS: Articles 25-28 - Conscience · Denomination · Secular Regulation · Principled Distance
· CONTENT CLASSIFICATION · wholly maintained from State funds

|

v

MECHANISM / ARGUMENT: Propagation is not a right to convert another person by force, fraud or allurement.

|

v

CONSEQUENCE / CONTRAST: A bounded official-source check through 21 August 2026 located no final later decision that this package can securely use; it therefore states only the 2018 majority holding and does not speculate about the review/reference.

|

v

UPSC TRAP / ANSWER-USE: Do not miss this limiting distinction: article 27 distinguishes a tax for religious promotion from a regulatory fee or a...

|

v

ANSWER-GRABBING FORMULATION: Indian religious freedom protects conscience and denominational autonomy while permitting public-order, health, morality, secular-regulation and social-reform controls; the governing model is principled distance, not either theocracy or an absolute wall.

SOURCE HEADING [3] - SESSION 21 - ARTICLES 29-30 - CULTURAL CONSERVATION AND MINORITY EDUCATIONAL AUTONOMY

SOURCE HEADING [4] - DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Articles 29-30 protect cultural conservation, non-discriminatory admission and minority educational autonomy, but Article 29 is not minority-exclusive and Article 30 protects administration rather than maladministration.

Technical definition: Article 29 is not confined to minorities.

SOURCE HEADING [4] - ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Articles 29-30 protect cultural conservation, non-discriminatory admission and minority educational autonomy, but Article 29 is not minority-exclusive and Article 30 protects administration rather than maladministration.

SOURCE HEADING [4] - MUST-WRITE KEYWORDS

- Articles 29-30 - Cultural Conservation
- Minority Educational Autonomy
- CONTENT CLASSIFICATION
- Qualified rule
- Article 29
- Article 30

How to use them: Frame the answer through Articles 29-30 - Cultural Conservation; define Minority Educational Autonomy, connect CONTENT CLASSIFICATION with Qualified rule to explain the mechanism, and use Article 29 for the decisive comparison or qualification.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (ARTICLES 29-30): Articles 29-30 protect cultural conservation, non-discriminatory admission and minority educational autonomy, but Article 29 is not minority-exclusive and Article 30 protects administration rather than maladministration.

CONTENT CLASSIFICATION: CORE PRELIMS + CORE MAINS

Articles 29-30 - culture and minority education

Article 29 is not confined to minorities; Article 30 is

ARTICLE 29

29(1): any section of citizens with a distinct language, script or culture may conserve it.

29(2): no citizen may be denied admission to State-maintained or State-aided institutions only on religion, race, caste or language.

Trap: Article 29 can protect a majority section too.

ARTICLE 30

Religious or linguistic minorities may establish and administer educational institutions.

Aid cannot be denied merely because management is minority-based.

Regulation for standards is valid; there is no right to maladminister.

Minority status is generally assessed State-wise.

Balance: institutional autonomy survives, but academic excellence and fairness remain regulable

Article 29 protects sections of citizens and non-discriminatory admission; Article 30 specifically protects religious and linguistic minority institutions.

SOURCE HEADING [4] - Article 29

- Article 29(1): any section of citizens with a distinct language, script or culture has the right to conserve it.
- Article 29(2): no citizen may be denied admission to a State-maintained or State-aided educational institution on grounds only of religion, race, caste, language or any of them.

[FACT] Article 29 is not confined to minorities. A majority section with a distinct culture/language can invoke Article 29(1).

SOURCE HEADING [4] - Article 30

[FACT] All religious or linguistic minorities have the right to establish and administer educational institutions of their choice.

Related protections:

- acquisition law must not make the Article 30(1) guarantee illusory;
- State aid cannot discriminate merely because the institution is minority-managed; and
- regulation for academic standards, sanitation, teacher qualifications, fairness and excellence can be valid.

SOURCE HEADING [4] - Governing cases

- *T.M.A. Pai Foundation* (2002): minority status generally assessed State-wise; administration includes meaningful institutional choice, subject to regulation.
- *P.A. Inamdar* (2005): autonomy in unaided professional institutions; no State-imposed reservation under the then framework.
- *St. Xavier's College* and *Malankara Syrian Catholic College*: regulatory excellence is valid, but the State cannot destroy the minority management's core.

Qualified rule: Article 30 protects administration, not maladministration.

SOURCE HEADING [4] - Article 29(2) and Article 30 interaction

[ANALYSIS] Aided minority institutions retain Article 30 identity but cannot treat State aid as a licence to ignore every admission-related constitutional obligation. The exact balance depends on the institution type and governing authority.

SOURCE HEADING [4] - CLOSING RECALL FLOW - ARTICLES 29-30 - CULTURAL CONSERVATION AND MINORITY EDUCATIONAL AUTONOMY

START / CONCEPT: ARTICLES 29-30 - CULTURAL CONSERVATION AND MINORITY EDUCATIONAL AUTONOMY



EXACT TERMS: Articles 29-30 - Cultural Conservation · Minority Educational Autonomy · CONTENT CLASSIFICATION · Qualified rule · Article 29 · Article 30



MECHANISM / ARGUMENT: acquisition law must not make the Article 30(1) guarantee illusory; State aid cannot discriminate merely because the institution is minority-managed; and regulation for academic standards, sanitation, teacher qualifications, fairness and excellence can be valid.



CONSEQUENCE / CONTRAST: Aided minority institutions retain Article 30 identity but cannot treat State aid as a licence to ignore every admission-related constitutional obligation.



UPSC TRAP / ANSWER-USE: Article 29 is not confined to minorities.



ANSWER-GRABBING FORMULATION: Articles 29-30 protect cultural conservation, non-discriminatory admission and minority educational autonomy, but Article 29 is not minority-exclusive and Article 30 protects administration rather than maladministration.

SOURCE HEADING [3] - SESSION 22 - ARTICLE 32 AND THE FIVE WRITS

SOURCE HEADING [4] - DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 32 makes the Supreme Court a guaranteed Fundamental-Rights forum, while Article 226 is wider in subject matter and public-duty reach; the correct writ follows the defect-detention, unperformed duty, threatened excess, defective order or unlawful public office.

Technical definition: "Supreme Court cannot refuse Article 32" does not mean every petition must receive final relief despite alternate remedy, disputed facts or absence of a Fundamental Right.

SOURCE HEADING [4] - ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 32 makes the Supreme Court a guaranteed Fundamental-Rights forum, while Article 226 is wider in subject matter and public-duty reach; the correct writ follows the defect-detention, unperformed duty, threatened excess, defective order or unlawful public office.

SOURCE HEADING [4] - MUST-WRITE KEYWORDS

- Article 32
- The Five Writs
- CONTENT CLASSIFICATION
- Habeas corpus
- unlawful detention
- Mandamus

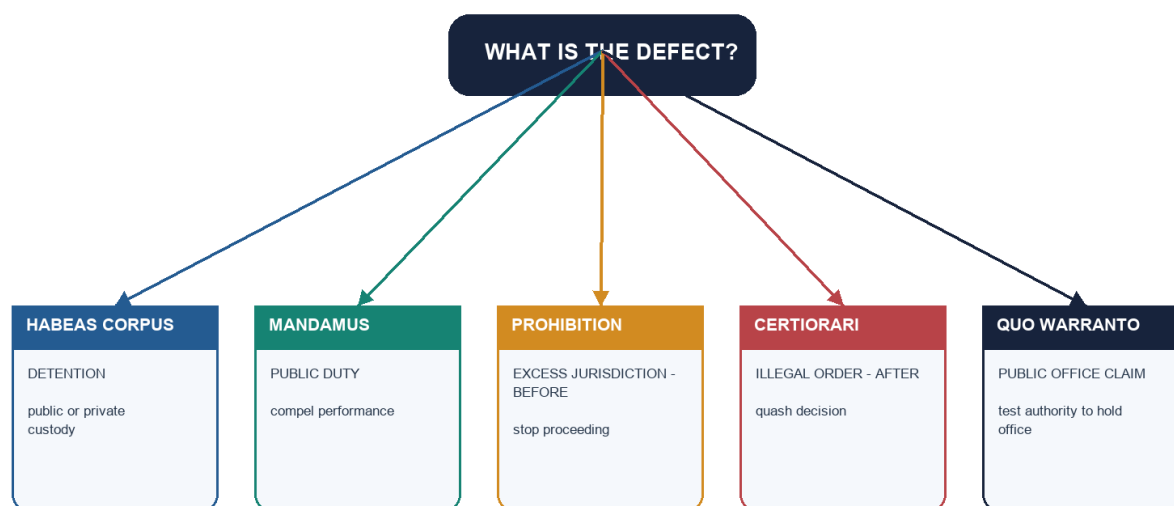
How to use them: Frame the answer through Article 32; define The Five Writs, connect CONTENT CLASSIFICATION with Habeas corpus to explain the mechanism, and use unlawful detention for the decisive comparison or qualification.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (ARTICLE 32 / WRITS): Article 32 makes the Supreme Court a guaranteed Fundamental-Rights forum, while Article 226 is wider in subject matter and public-duty reach; the correct writ follows the defect—detention, unperformed duty, threatened excess, defective order or unlawful public office.

CONTENT CLASSIFICATION: CORE PRELIMS + CORE MAINS

Select the writ by the defect

Start from the constitutional injury, not from memorised Latin



Article 32: Fundamental Rights only | Article 226: Fundamental Rights plus other legal rights.

Choose a writ from the defect: detention, unperformed public duty, threatened jurisdictional excess, an illegal order or unlawful occupation of public office.

[FACT] Article 32 guarantees the right to move the Supreme Court for enforcement of Fundamental Rights. Dr B.R. Ambedkar called it the Constitution's "heart and soul."

[FACT] Judicial review and the central remedial role of Articles 32/226 form part of the basic structure, though the complete institutional doctrine belongs to Polity 18.

SOURCE HEADING [4] - Five writs

Writ	Defect cured	Key limits
Habeas corpus	unlawful detention	may issue against public or private detention; not a substitute for appeal from every competent-court custody order
Mandamus	failure of public duty	not ordinarily for private duty, purely discretionary power, contractual obligation, or against President/Governor in constitutional capacity
Prohibition	lower court/tribunal threatens jurisdictional excess	preventive; issued before the impugned proceeding/order is completed
Certiorari	jurisdictional error, legal error or natural-justice defect in an order	curative/quashing; reaches judicial, quasi-judicial and appropriate administrative decisions
Quo warranto	unlawful claim to substantive public office	applicant need not show personal injury; office must be public and legally created

SOURCE HEADING [4] - Article 32 versus Article 226

Dimension	Supreme Court, Article 32	High Court, Article 226
Purpose	Fundamental Rights enforcement	Fundamental Rights plus any other legal right/public duty
Nature	Article 32 remedy is itself a Fundamental Right	discretionary constitutional jurisdiction
Territorial reach	national constitutional jurisdiction	within territorial jurisdiction/cause-of-action rules
Respondent	determined by right/writ	can reach public-duty bodies beyond Article 12 State

[LIMIT] "Supreme Court cannot refuse Article 32" does not mean every petition must receive final relief despite alternate remedy, disputed facts or absence of a Fundamental Right. It means the constitutional guarantee cannot be abolished or reduced to ordinary legislative grace.

SOURCE HEADING [4] - PIL boundary

[ANALYSIS] Relaxed standing made rights of bonded labourers, prisoners and marginalised groups practically enforceable. Detailed PIL growth, epistolary jurisdiction and institutional criticism are cross-linked to Polity 18.

SOURCE HEADING [4] - CLOSING RECALL FLOW - ARTICLE 32 AND THE FIVE WRITS

START / CONCEPT: ARTICLE 32 AND THE FIVE WRITS

|

v

EXACT TERMS: Article 32 • The Five Writs • CONTENT CLASSIFICATION • Habeas corpus • unlawful detention • Mandamus

|

v

MECHANISM / ARGUMENT: "Supreme Court cannot refuse Article 32" does not mean every petition must receive final relief despite alternate remedy, disputed facts or absence of a Fundamental Right.

|

v

CONSEQUENCE / CONTRAST: It means the constitutional guarantee cannot be abolished or reduced to ordinary legislative grace.

|

v

UPSC TRAP / ANSWER-USE: Do not miss this limiting distinction: detailed PIL growth, epistolary jurisdiction and institutional criticism are cross-linked to Polity 18.

|

v

ANSWER-GRABBING FORMULATION: Article 32 makes the Supreme Court a guaranteed Fundamental-Rights forum, while Article 226 is wider in subject matter and public-duty reach; the correct writ follows the defect-detention, unperformed duty, threatened excess, defective order or unlawful public office.

SOURCE HEADING [3] - SESSION 23 - ARTICLES 31A, 31B AND 31C - SAVING PROVISIONS WITHOUT BLANKET IMMUNITY

SOURCE HEADING [4] - DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Articles 31A, 31B And 31C - Saving Provisions Without Blanket Immunity comprises Articles 31A, CONTENT CLASSIFICATION and Article 31A as its core connected dimensions.

Technical definition: original Article 31C survives; Article 39(b) can in context include privately owned resources; not every privately owned resource automatically becomes a material resource of the community; the inquiry is context-specific, considering resource nature, community impact, scarcity, concentration and common good.

SOURCE HEADING [4] - ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Articles 31A-31C, 33-35 create defined constitutional controls rather than rights-free zones: their field, purpose and legislative competence remain text-bound and subject to basic-structure review where applicable.

SOURCE HEADING [4] - MUST-WRITE KEYWORDS

- Articles 31A
- CONTENT CLASSIFICATION
- Article 31A
- 31B
- 31C - Saving Provisions Without Blanket Immunity
- 24 April 1973

How to use them: Frame the answer through Articles 31A; define CONTENT CLASSIFICATION, connect Article 31A with 31B to explain the mechanism, and use 31C - Saving Provisions Without Blanket Immunity for the decisive comparison or qualification.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (SAVING / CONTROL PROVISIONS): Articles 31A-31C, 33-35 create defined constitutional controls rather than rights-free zones: their field, purpose and legislative competence remain text-bound and subject to basic-structure review where applicable.

CONTENT CLASSIFICATION: CORE PRELIMS + CORE MAINS

Saving clauses and emergency controls

Immunity and suspension are narrow constitutional mechanisms, not blanket erasure

31A

specified estate / reform categories

31B

Ninth Schedule; post-24 Apr 1973 entries face basic-structure review

31C

original Art 39(b)/(c) protective scope survives

33-35

forces, martial-law indemnity and Parliament-only legislation

CONTROL	TRIGGER	EFFECT	NON-DEROGABLE
Art 358	Emergency on war / external aggression	Art 19 protection restricted within constitutional conditions	20, 21 unaffected
Art 359	Presidential order during Emergency	right to move court for specified FRs suspended	20, 21 cannot be included

Martial law is local military control; National Emergency is a detailed constitutional regime.

Saving clauses protect defined fields, while Emergency clauses separately govern temporary enforceability. Neither creates a general rights-free zone.

SOURCE HEADING [4] - Article 31A

[FACT] Saves specified categories of laws, chiefly connected with acquisition of estates, management/amalgamation of property and related reform, from specified Article 14/19 challenges, subject to its text and provisos.

[LIMIT] It is not a general immunity for every property-related law.

SOURCE HEADING [4] - Article 31B and the Ninth Schedule

[FACT] Article 31B validates listed Acts/Regulations through the Ninth Schedule notwithstanding inconsistency with Fundamental Rights.

[FACT] *I.R. Coelho v. State of Tamil Nadu* (2007) held that laws inserted after **24 April 1973** remain open to basic-structure review. The court examines whether the protected law's effect damages rights forming part of basic structure.

Trap: Ninth Schedule placement is not absolute immunity after *I.R. Coelho*.

SOURCE HEADING [4] - Article 31C

[FACT] The original Article 31C protects a law genuinely giving effect to Article 39(b) or 39(c) from Article 14/19 challenge, with the constitutional history shaped by *Kesavananda Bharati* and *Minerva Mills*.

[CURRENT] *Property Owners Association* (5 November 2024) held:

- original Article 31C survives;
- Article 39(b) can in context include privately owned resources;
- not every privately owned resource automatically becomes a material resource of the community;
- the inquiry is context-specific, considering resource nature, community impact, scarcity, concentration and common good.

[LIMIT] Do not say Article 39(b) converts all private property into community property. Do not say Article 31C protects every DPSP-implementing law; its surviving scope is Article 39(b)/(c).

SOURCE HEADING [4] - CLOSING RECALL FLOW - ARTICLES 31A, 31B AND 31C - SAVING PROVISIONS WITHOUT BLANKET IMMUNITY

START / CONCEPT: ARTICLES 31A, 31B AND 31C - SAVING PROVISIONS WITHOUT BLANKET IMMUNITY

|

v

EXACT TERMS: Articles 31A • CONTENT CLASSIFICATION • Article 31A • 31B • 31C - Saving Provisions Without Blanket Immunity • 24 April 1973

|

v

MECHANISM / ARGUMENT: Do not say Article 39(b) converts all private property into community property.

|

v

CONSEQUENCE / CONTRAST: It is not a general immunity for every property-related law.

|

v

UPSC TRAP / ANSWER-USE: Ninth Schedule placement is not absolute immunity after *I.R. Coelho*.

|

v

ANSWER-GRABBING FORMULATION: Articles 31A-31C, 33-35 create defined constitutional controls rather than rights-free zones: their field, purpose and legislative competence remain text-bound and subject to basic-structure review where applicable.

SOURCE HEADING [3] - SESSION 24 - RIGHT TO PROPERTY: ARTICLE 31 TRANSITION TO ARTICLE 300A

SOURCE HEADING [4] - DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 300A is a constitutional right, though not a Fundamental Right.

Technical definition: Calling property merely a "legal right" is incomplete.

SOURCE HEADING [4] - ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 300A is a constitutional right, though not a Fundamental Right.

SOURCE HEADING [4] - MUST-WRITE KEYWORDS

- Right To Property
- Article 31 Transition To Article 300A
- CONTENT CLASSIFICATION
- constitutional right
- Location
- Part III

How to use them: Frame the answer through Right To Property; define Article 31 Transition To Article 300A, connect CONTENT CLASSIFICATION with constitutional right to explain the mechanism, and use Location for the decisive comparison or qualification.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (PROPERTY): The Forty-fourth Amendment moved property from Part III to the constitutional guarantee in Article 300A.

CONTENT CLASSIFICATION: CORE PRELIMS + CORE MAINS

[FACT] Article 31 originally protected property as a Fundamental Right. The Forty-fourth Amendment removed Article 31 and Article 19(1)(f). Article 300A now provides: no person shall be deprived of property save by authority of law.

Feature	Former Fundamental Right	Present Article 300A position
Location	Part III	Part XII
Beneficiary	citizen/property framework	every person
Direct Article 32 claim	available when Article 31/19 engaged	not merely because Article 300A is violated; ordinarily Article 226/ordinary remedies
Standard	Fundamental Rights scrutiny	authority of valid law; non-arbitrariness and public-law limits still matter

[LIMIT] Calling property merely a "legal right" is incomplete. Article 300A is a **constitutional right**, though not a Fundamental Right.

SOURCE HEADING [4] - CLOSING RECALL FLOW - RIGHT TO PROPERTY: ARTICLE 31 TRANSITION TO ARTICLE 300A

START / CONCEPT: RIGHT TO PROPERTY: ARTICLE 31 TRANSITION TO ARTICLE 300A

|
v

EXACT TERMS: Right To Property · Article 31 Transition To Article 300A · CONTENT CLASSIFICATION · constitutional right · Location · Part III

|
v

MECHANISM / ARGUMENT: Article 300A now provides: no person shall be deprived of property save by authority of law.

|
v

CONSEQUENCE / CONTRAST: Calling property merely a "legal right" is incomplete.

|
v

UPSC TRAP / ANSWER-USE: Do not miss this limiting distinction: article 300A is a constitutional right, though not a Fundamental Right.

|
v

ANSWER-GRABBING FORMULATION: Article 300A is a constitutional right, though not a Fundamental Right.

SOURCE HEADING [3] - SESSION 25 - ARTICLES 33-35 AND MARTIAL LAW

SOURCE HEADING [4] - DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Parliament may indemnify persons for acts done in connection with maintenance/restoration of order where martial law was in force and validate sentences or acts.

Technical definition: Martial law does not automatically erase habeas corpus or create unlimited military power.

SOURCE HEADING [4] - ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Martial law does not automatically erase habeas corpus or create unlimited military power.

SOURCE HEADING [4] - MUST-WRITE KEYWORDS

- **Articles 33-35**
- **Martial Law**
- **Constitutional basis**
- **implicit recognition through Article 34; term undefined**
- **express Articles 352-360 framework**
- **Cause**

How to use them: Frame the answer through Articles 33-35; define Martial Law, connect Constitutional basis with implicit recognition through Article 34; term undefined to explain the mechanism, and use express Articles 352-360 framework for the decisive comparison or qualification.

SOURCE HEADING [4] - Article 33

[FACT] Parliament may determine the extent to which Fundamental Rights are restricted or abrogated for:

- armed forces;
- forces maintaining public order;
- intelligence/counter-intelligence organisations; and
- connected telecommunication systems,

to ensure proper discharge of duties and discipline.

[LIMIT] This power belongs to Parliament, not State legislatures.

SOURCE HEADING [4] - Article 34

[FACT] Parliament may indemnify persons for acts done in connection with maintenance/restoration of order where martial law was in force and validate sentences or acts.

SOURCE HEADING [4] - Article 35

[FACT] Parliament has exclusive legislative competence over specified Part III matters, including:

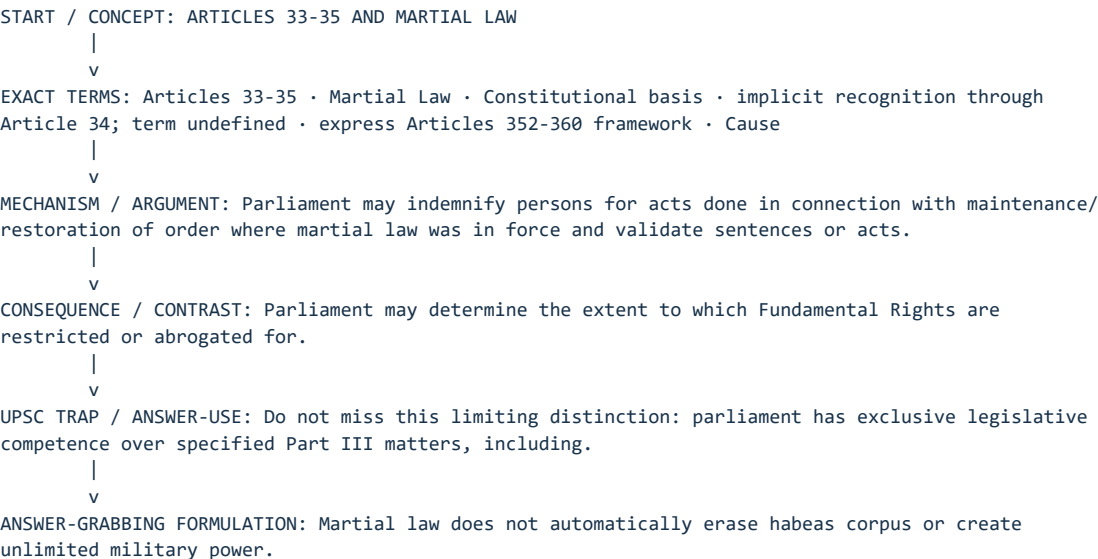
- residence requirements under Article 16(3);
- legislation under Articles 32(3), 33 and 34; and
- punishment for acts declared offences under Part III.

SOURCE HEADING [4] - Martial law versus National Emergency

Dimension	Martial law	National Emergency
Constitutional basis	implicit recognition through Article 34; term undefined	express Articles 352-360 framework
Cause	breakdown requiring military control/restoration	war, external aggression or armed rebellion
Area	ordinarily a disturbed locality	whole or part of India
Ordinary government/courts	may be displaced/restricted in area	continue under modified federal/rights rules
Rights effect	tied to actual military control and indemnity	Articles 358/359 apply according to text

[LIMIT] Martial law does not automatically erase habeas corpus or create unlimited military power.

SOURCE HEADING [4] - CLOSING RECALL FLOW - ARTICLES 33-35 AND MARTIAL LAW



SOURCE HEADING [3] - SESSION 26 - ARTICLES 358 AND 359 - TWO DIFFERENT EMERGENCY MECHANISMS

SOURCE HEADING [4] - DEFINITION / WHAT THIS IS CALLED

Plain-language definition: the specified right is not textually deleted; its judicial enforcement is suspended; Articles 20 and 21 cannot be included; the order must identify the rights and duration/area; and Article 359(1A) contains law/action protections with constitutional conditions.

Technical definition: "All Fundamental Rights are automatically suspended in Emergency" is wrong.

SOURCE HEADING [4] - ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 358 automatically displaces Article 19 constraints only during war or external-aggression Emergency within its conditions, whereas Article 359 requires a Presidential order suspending court enforcement of specified rights and can never include Articles 20 or 21.

SOURCE HEADING [4] - MUST-WRITE KEYWORDS

- **Articles 358**
- **CONTENT CLASSIFICATION**
- **war or external aggression**
- **Trigger**
- **Emergency based on war/external aggression**
- **359 - Two Different Emergency Mechanisms**

How to use them: Frame the answer through Articles 358; define CONTENT CLASSIFICATION, connect war or external aggression with Trigger to explain the mechanism, and use Emergency based on war/external aggression for the decisive comparison or qualification.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (EMERGENCY): Article 358 automatically displaces Article 19 constraints only during war or external-aggression Emergency within its conditions, whereas Article 359 requires a Presidential order suspending court enforcement of specified rights and can never include Articles 20 or 21.

CONTENT CLASSIFICATION: CORE PRELIMS + CORE MAINS

SOURCE HEADING [4] - Article 358

[FACT] During a National Emergency based on **war or external aggression**, Article 19 does not restrict State power to make/take otherwise inconsistent law/executive action within Article 358's conditions.

After the Forty-fourth Amendment:

- it does not operate for an Emergency based only on armed rebellion;
- protection is tied to law related to the Emergency and the required recital; and
- the law ceases to have effect when the Emergency ends to the extent of inconsistency, except past acts.

SOURCE HEADING [4] - Article 359

[FACT] The President may suspend the right to move a court for enforcement of specified Part III rights and suspend pending proceedings for the stated period/area.

Critical distinctions:

- the specified right is not textually deleted; its judicial enforcement is suspended;
- Articles 20 and 21 cannot be included;
- the order must identify the rights and duration/area; and

- Article 359(1A) contains law/action protections with constitutional conditions.

SOURCE HEADING [4] - 358 versus 359

Point	Article 358	Article 359
Trigger	Emergency based on war/external aggression	any valid National Emergency plus Presidential order
Rights affected	Article 19	specified Part III rights except 20 and 21
Operation	automatic within text	order-based
Core effect	Article 19 restriction on State power displaced	court-enforcement right suspended

UPSC trap: "All Fundamental Rights are automatically suspended in Emergency" is wrong.

SOURCE HEADING [4] - CLOSING RECALL FLOW - ARTICLES 358 AND 359 - TWO DIFFERENT EMERGENCY MECHANISMS

START / CONCEPT: ARTICLES 358 AND 359 - TWO DIFFERENT EMERGENCY MECHANISMS

|

v

EXACT TERMS: Articles 358 • CONTENT CLASSIFICATION • war or external aggression • Trigger •
Emergency based on war/external aggression • 359 - Two Different Emergency Mechanisms

|

v

MECHANISM / ARGUMENT: During a National Emergency based on war or external aggression, Article 19 does not restrict State power to make/take otherwise inconsistent law/executive action within Article 358's conditions.

|

v

CONSEQUENCE / CONTRAST: the specified right is not textually deleted; its judicial enforcement is suspended; Articles 20 and 21 cannot be included; the order must identify the rights and duration/area; and Article 359(1A) contains law/action protections with constitutional conditions.

|

v

UPSC TRAP / ANSWER-USE: "All Fundamental Rights are automatically suspended in Emergency" is wrong.

|

v

ANSWER-GRABBING FORMULATION: Article 358 automatically displaces Article 19 constraints only during war or external-aggression Emergency within its conditions, whereas Article 359 requires a Presidential order suspending court enforcement of specified rights and can never include Articles 20 or 21.

SOURCE HEADING [3] - SESSION 27 - ARTICLE 359: THE NON-DEROGABLE ARTICLES 20 AND 21 CORE

SOURCE HEADING [4] - DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Speech: Article 19 protects discussion and advocacy through a closed list of reasonable grounds; the modern challenge is often vague criminalisation or unreviewable process rather than absence of doctrine.

Technical definition: Emergency: the Forty-fourth Amendment's protection of Articles 20 and 21 is the constitutional memory of 1975-77: necessity cannot extinguish the minimum rule of law.

SOURCE HEADING [4] - ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Current Part III analysis must be date-bounded: Electoral Bonds protects political-funding information, Davinder Singh permits evidence-based Scheduled Caste sub-classification, Property Owners preserves original Article 31C, DPDP commencement is phased, and BNS section 152 remains under a notified constitutional challenge without a located final merits decision.

SOURCE HEADING [4] - MUST-WRITE KEYWORDS

- Article 359
- The Non-Derogable Articles 20
- CONTENT CLASSIFICATION
- Rapid recall
- Direct thesis
- Exact text

How to use them: Frame the answer through Article 359; define The Non-Derogable Articles 20, connect CONTENT CLASSIFICATION with Rapid recall to explain the mechanism, and use Direct thesis for the decisive comparison or qualification.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (ARTICLE 359 CORE): A Presidential order under Article 359 cannot suspend the right to move a court for enforcement of Articles 20 and 21.

CONTENT CLASSIFICATION: CORE PRELIMS + CORE MAINS

[FACT] The Forty-fourth Amendment also entrenched an Emergency lesson: a Presidential order under Article 359 cannot suspend the right to move a court for enforcement of Articles 20 and 21.

Rapid recall: property moved out of Part III; criminal safeguards and life/personal liberty became non-derogable under Article 359.

SOURCE HEADING [4] - CURRENT-LAW DASHBOARD - SECURELY VERIFIED POSITIONS ONLY

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (CURRENT CASES): Current Part III analysis must be date-bounded: Electoral Bonds protects political-funding information, Davinder Singh permits evidence-based Scheduled Caste sub-classification, Property Owners preserves original Article 31C, DPDP commencement is phased, and BNS section 152 remains under a notified constitutional challenge without a located final merits decision.

CONTENT CLASSIFICATION: CURRENT-LAW CONTROL

Development	Settled proposition used	What this package does not claim
Electoral Bonds, 15 Feb 2024	political-funding information under Article 19(1)(a); scheme/enabling secrecy architecture invalid; unlimited corporate funding change manifestly arbitrary	no later political-finance reform is invented
Davinder Singh, 1 Aug 2024	SC sub-classification permitted, evidence-based and reviewable; Article 341 list unchanged	no mandatory national sub-quota or unverified State percentage
Property Owners, 5 Nov 2024	original Article 31C survives for 39(b)/(c); private resource inquiry context-specific	not every private asset is a material resource

Development	Settled proposition used	What this package does not claim
BNS section 152, operative 1 Jul 2024	different successor ingredients; Supreme Court issued vires notice on 28 Aug 2025	not called a simple renaming; no later final merits disposition was located through 21 Aug 2026
DPDP Act/Rules	G.S.R. 843(E) and 846(E), 13 Nov 2025, create phased commencement; only the first notified tranche is operative by 21 Aug 2026	do not state that the whole Act/Rules are already operative
Sabarimala	2018 majority holding stated	no unverified 2026 hearing/order outcome
Places of Worship / Waqf	omitted from current-status teaching	no reliance on unverified interim-order summaries

SOURCE HEADING [4] - 28. Prelims close-option laboratory

Confusion pair	Correct elimination rule
citizen-only vs all-person	15, 16, 19, 29 are textually citizen-specific; 14, 20, 21, 22, 23-25 protect persons; quote Article 30's actual "all minorities" wording
State-only vs private reach	15(2), 17, 23 and 24 directly reach private conduct
equality vs exploitation	untouchability is Article 17 in equality; begar (forced unpaid labour) is Article 23
internal movement vs foreign travel	Article 19(1)(d)/(e) internal; travel abroad under Article 21
tax vs fee under Article 27	only specified religious-promotion tax is barred
propagation vs conversion	propagation does not include coercive/fraudulent conversion
procedure established vs due process	<i>Maneka</i> requires fair, just and reasonable procedure; do not erase the textual distinction
preventive detention period	three months remains operative; 44th Amendment's two-month substitution unenforced
Article 358 vs 359	358 automatic and Article 19/external Emergency; 359 order-based and cannot include 20/21
property status	constitutional right under 300A, not Fundamental Right
awards vs titles	national awards valid; no prefix/suffix
Article 31B	Ninth Schedule is reviewable after 24 Apr 1973 under basic structure
Article 31C	surviving scope tied to 39(b)/(c), not all DPSPs
internet right	speech/trade through internet protected; no broad standalone holding in <i>Anuradha Bhasin</i>
BNS 152	successor with different ingredients; neither simple renaming nor total disappearance

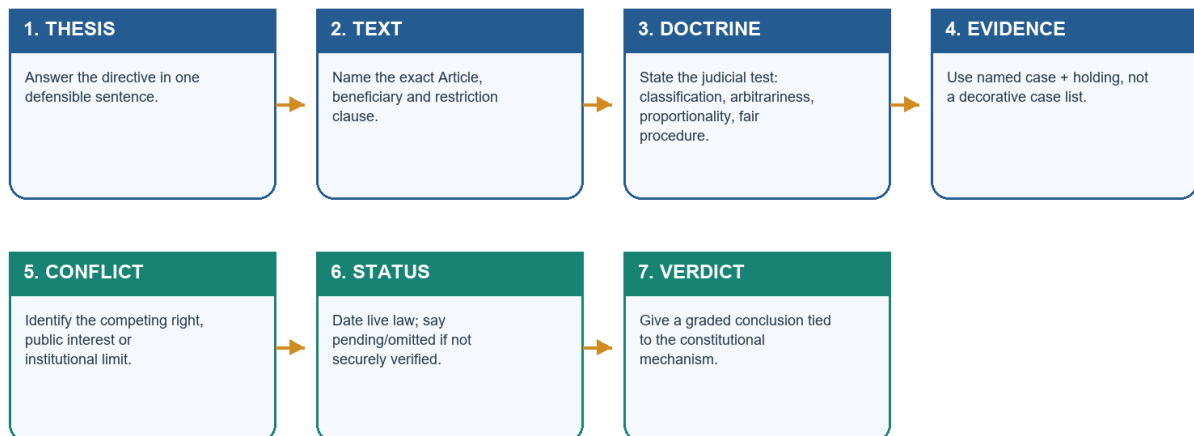
SOURCE HEADING [4] - GS-II ANSWER ARCHITECTURE AND QUALIFIED CONCLUSIONS

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (FINAL VERDICT): Fundamental Rights are neither absolute liberties nor revocable State gifts: they are transformative, judicially enforceable guarantees whose legitimacy lies in exact text, proportionate limitation, positive protection and a non-derogable rule-of-law core.

CONTENT CLASSIFICATION: CORE MAINS

Fundamental Rights Mains answer spine

Convert a broad rights question into a controlled constitutional argument



Claim -> evidence -> analysis -> qualification

A high-scoring Fundamental Rights answer moves from thesis and exact text to doctrine, named evidence, competing interests, dated status and a graded verdict.

SOURCE HEADING [4] - Universal answer spine

1. **Direct thesis:** answer whether the right is absolute, expanding, horizontal, discriminatory or adequately protected.
2. **Exact text:** Article, beneficiary, respondent and restriction clause.
3. **Doctrine:** classification, arbitrariness, proportionality, fair procedure, ERP or writ test.
4. **Named evidence:** one case for each claim, with its holding.
5. **Competing interest:** another right, public order, efficiency, reform or institutional competence.
6. **Current control:** use only securely verified dated law.
7. **Qualified verdict:** defend rights without pretending that limits disappear.

SOURCE HEADING [4] - Mark-scaled evidence load

Marks	Structure	Evidence density
10	thesis -> 2-3 constitutional dimensions -> one limit -> verdict	2-3 Articles/cases
15	thesis -> text -> doctrine evolution/comparison -> current application -> counterpoint -> verdict	4-6 named authorities
20	thesis -> architecture -> multiple rights/mechanisms -> institutional and implementation critique -> current law -> graded reform/verdict	5-8 named authorities

SOURCE HEADING [4] - Qualified conclusions

- **Equality:** Indian equality is substantive and anti-hierarchical; classification and affirmative action are constitutional methods, but evidence and non-arbitrariness prevent distributive power from becoming patronage.
- **Speech:** Article 19 protects discussion and advocacy through a closed list of reasonable grounds; the modern challenge is often vague criminalisation or unreviewable process rather than absence of doctrine.
- **Article 21:** the living Constitution transformed procedure into dignity, but named rights must remain linked to enforceable standards rather than unlimited policy promises.
- **Religion:** principled distance protects conscience while preserving reform; the constitutional question is not religion versus State, but which sphere is religious, secular, unequal or harmful.
- **Remedies:** Article 32 gives rights institutional reality, while Article 226 supplies wider public-law reach; the remedy must still fit the injury.
- **Emergency:** the Forty-fourth Amendment's protection of Articles 20 and 21 is the constitutional memory of 1975-77: necessity cannot extinguish the minimum rule of law.

SOURCE HEADING [4] - EIGHTH-EDITION INTEGRATION: DOCTRINE ROUTING AND PART XVI BOUNDARY

SOURCE HEADING [4] - Article 13 doctrines in the wider interpretation map

Doctrine	Trigger	Effect	Qualification
Severability	A separable part violates the Constitution	Invalid part falls; workable valid remainder survives	Court cannot rewrite an inseparable legislative scheme
Eclipse	A pre-Constitution law conflicts with a Fundamental Right	Law becomes unenforceable to the extent of conflict and may revive if the impediment is removed	Classical field is pre-Constitution law; eclipse is not repeal
Waiver	A person purportedly consents to unconstitutional State action	Fundamental-right limits cannot ordinarily be waived to validate the action	Do not extend the rule to every private statutory/procedural right
Prospective overruling	A new constitutional rule would disrupt settled transactions	Court may shape future temporal effect	Requires an express judicial choice; it is not automatic

[LIMIT] Pith and substance, colourable legislation, territorial nexus and repugnancy are primarily legislative-competence doctrines. Their consolidated route is `basic/Constitutional-Interpretation-Doctrines.md` and their federal application belongs to Topic 13; they should not be presented as Article 13 doctrines.

SOURCE HEADING [4] - Part XVI: identity of a class versus entitlement to a benefit

[FACT] Articles 341 and 342 govern specification of Scheduled Castes and Scheduled Tribes: Presidential notification identifies the list and Parliament alone includes or excludes entries. Article 342A separately structures the Central SEBC List and, after the 105th Amendment, State/UT lists prepared by law for their own purposes.

[ANALYSIS] The exam sequence is:

IDENTIFICATION OF CLASS
Arts 341 / 342 / 342A
↓
SEPARATE BENEFIT AUTHORITY
Arts 15, 16, 330, 332, 335 or valid legislation/policy
↓
EVIDENCE, EQUALITY AND JUDICIAL REVIEW

[LIMIT] A constitutional list does not itself create every reservation or benefit. Conversely, evidence-based sub-classification for distributing benefits does not permit a State to alter the Article 341 list.

SOURCE HEADING [4] - Answer-writing evidence chain

- **Claim:** Indian equality distinguishes class identification from benefit design.
- **Named evidence:** Articles 341-342A identify protected classes; Articles 15(4)-(6), 16(4)-(6), 330, 332 and 335 provide distinct benefit or representation routes.
- **Analysis:** Separating the two questions protects list integrity while permitting tailored, evidence-based substantive equality.
- **Qualification:** *Davinder Singh* permits evidence-based SC sub-classification for distribution; it does not transfer Parliament's Article 341 inclusion/exclusion power to States.

Cross-links: [basic/Special-Provisions-Relating-to-Certain-Classes.md](#) and [basic/Constitutional-Interpretation-Doctrines.md](#).

SOURCE HEADING [4] - CLOSING RECALL FLOW - ARTICLE 359: THE NON-DEROGABLE ARTICLES 20 AND 21 CORE

START / CONCEPT: ARTICLE 359: THE NON-DEROGABLE ARTICLES 20 AND 21 CORE
|
v
EXACT TERMS: Article 359 · The Non-Derogable Articles 20 · CONTENT CLASSIFICATION · Rapid recall · Direct thesis · Exact text
|
v
MECHANISM / ARGUMENT: Speech: Article 19 protects discussion and advocacy through a closed list of reasonable grounds; the modern challenge is often vague criminalisation or unreviewable process rather than absence of doctrine.
|
v
CONSEQUENCE / CONTRAST: Article 21: the living Constitution transformed procedure into dignity, but named rights must remain linked to enforceable standards rather than unlimited policy promises.
|
v
UPSC TRAP / ANSWER-USE: Remedies: Article 32 gives rights institutional reality, while Article 226 supplies wider public-law reach; the remedy must still fit the injury.
|
v
ANSWER-GRABBING FORMULATION: Current Part III analysis must be date-bounded: Electoral Bonds protects political-funding information, *Davinder Singh* permits evidence-based Scheduled Caste sub-classification, Property Owners preserves original Article 31C, DPDP commencement is phased, and BNS section 152 remains under a notified constitutional challenge without a located final merits decision.

SOURCE HEADING [2] - BASIC MCQS / REMEDIATION

SOURCE HEADING [3] - Forty core diagnostic MCQs

Answer placement is balanced, deterministic and non-patterned using a stable topic seed., repeated ten times.

SOURCE HEADING [4] - Q1. With reference to the architecture of Part III, consider the following statements:

1. Article 12 identifies bodies bound as the State for Part III purposes.
2. Article 13 makes every inconsistent law wholly non-existent for all purposes.
3. Article 32 is itself a Fundamental Right.
4. Articles 31A-31C create defined protections rather than a general immunity from judicial review.

Which of the statements given above are correct?

- A. 2, 3 and 4 only
- B. 1, 2, 3 and 4
- C. 1 and 2 only
- D. 1, 3 and 4 only

Answer: D.

Explanation: Statement 2 is overbroad: Article 13 uses "to the extent of" inconsistency, supporting severability and, for pre-Constitution law, eclipse. Article 32 is both a right and remedy. Saving clauses operate within their text and remain subject to basic-structure controls where applicable.

SOURCE HEADING [4] - Q2. Which one of the following correctly distinguishes beneficiary and horizontal application?

- A. Article 15 is citizen-specific, while Article 15(2) can directly prohibit specified private exclusion.
- B. Article 17 is citizen-only because caste is linked to citizenship.
- C. Every right available to all persons necessarily applies directly against private actors.
- D. Article 19 protects every person but only against the State.

Answer: A.

Explanation: Beneficiary and respondent are separate axes. Article 15 protects citizens, yet clause (2) reaches specified private denial of public-facing facilities. Article 17 is absolute and horizontal. Article 19 is citizen-only.

SOURCE HEADING [4] - Q3. A society is almost entirely financed by government, performs a function transferred from a department, and is subject to pervasive administrative control. Which is the most appropriate constitutional approach?

- A. It cannot be State because it is registered as a society.
- B. Its functional, financial and administrative relationship may make it an instrumentality under Article 12.
- C. It is automatically Parliament under Article 12.
- D. Only a statutory corporation can be an "other authority."

Answer: B.

Explanation: *Ajay Hasia* rejects form over substance. Registration as a society does not prevent Article 12 status. The inquiry is cumulative and functional; no claim that it becomes Parliament is involved.

SOURCE HEADING [4] - Q4. Which statement about Article 13 is correct?

- A. Every invalid part necessarily destroys the entire Act.
- B. A custom having the force of law is included, while constitutional amendments are controlled through Article 368 and basic structure.
- C. Constitutional amendments are ordinary laws and can be invalidated solely under Article 13(2).
- D. Custom is outside "law" because it is not enacted.

Answer: B.

Explanation: Article 13(3)(d) expressly includes custom/usage with force of law. Article 13(4) and *Kesavananda Bharati* place constitutional-amendment review on the basic-structure route. Severability prevents automatic destruction of the entire Act.

SOURCE HEADING [4] - Q5. A pre-Constitution transport law conflicts with a newly enforceable Fundamental Right but is not repealed. Later, the constitutional bar is validly removed. Which doctrine most directly explains possible revival?

- A. Pith and substance
- B. Colourable legislation
- C. Eclipse
- D. Territorial nexus

Answer: C.

Explanation: Under *Bhikaji Narain Dhakras*, a conflicting pre-Constitution law can remain dormant or eclipsed and revive if the shadow is removed. The other doctrines concern legislative competence.

SOURCE HEADING [4] - Q6. Which sequence most accurately describes the amendment-Fundamental Rights relationship?

- A. Golaknath created basic structure; Kesavananda abolished amendment review.
- B. *Minerva Mills* held that every DPSP automatically overrides every FR.
- C. Golaknath restricted amendment of FRs prospectively; the 24th Amendment responded; Kesavananda allowed amendment subject to basic structure.
- D. The 24th Amendment deleted Article 13.

Answer: C.

Explanation: *Golaknath* used prospective overruling and treated amendment power restrictively. The 24th Amendment affirmed Article 368 power and inserted Article 13(4). *Kesavananda* established the basic-structure limit; *Minerva Mills* defended limited amendment and Part III-IV harmony.

SOURCE HEADING [4] - Q7. A law creates two classes using an intelligible criterion, but the criterion has no relation to the law's stated objective. Under Article 14, the classification

- A. is valid because only intelligibility matters.
- B. is valid if passed unanimously.
- C. can be tested only under Article 21.

- D. fails the rational-nexus limb.

Answer: D.

Explanation: Reasonable classification requires both intelligible differentia and rational nexus to the objective. Legislative support does not cure constitutional irrationality.

SOURCE HEADING [4] - Q8. Which one best captures the relationship between classification and arbitrariness under Article 14?

- A. Classification tests differentiation; anti-arbitrariness also controls capricious State power beyond a neat class comparison.
- B. Classification applies only to executive action and arbitrariness only to statutes.
- C. Any classification is arbitrary.
- D. Anti-arbitrariness abolished all classification analysis.

Answer: A.

Explanation: *E.P. Royappa, Maneka Gandhi* and later cases broaden Article 14 without discarding reasonable-classification analysis. Both tools can be relevant.

SOURCE HEADING [4] - Q9. Which special provision is constitutionally authorised by Article 15(3)?

- A. Preventive detention without statutory authority
- B. A title conferred for social service
- C. A residence requirement for State employment made by a State executive order
- D. A measure specifically advancing women and children

Answer: D.

Explanation: Article 15(3) expressly saves special provisions for women and children. Article 16(3) residence conditions require parliamentary law; titles and detention are unrelated.

SOURCE HEADING [4] - Q10. Which statement concerning Article 16(4) is most accurate?

- A. It applies to private employment generally.
- B. It abolishes the Article 335 efficiency consideration.
- C. It enables the State to reserve appointments/posts for a backward class inadequately represented in State services.
- D. It creates an enforceable individual right to reservation in every service.

Answer: C.

Explanation: Article 16(4) is enabling and representation-linked. It does not compel reservation everywhere, does not generally regulate private employment and must operate with the wider constitutional scheme.

SOURCE HEADING [4] - Q11. Consider the following pairs:

1. Article 16(4A) - promotion reservation for SCs/STs
2. Article 16(4B) - separate treatment of backlog reserved vacancies
3. Article 335 proviso - relaxation in qualifying marks/standards for specified promotion reservation

How many pairs are correctly matched?

- A. None

- B. Only one
- C. All three
- D. Only two

Answer: C.

Explanation: All three are correctly matched. The provisions must still be read with *Nagaraj, Jarnail Singh* and data/efficiency doctrine.

SOURCE HEADING [4] - Q12. After State of Punjab v. Davinder Singh (2024), which proposition is correct?

- A. States may alter the Presidential Scheduled Castes list.
- B. One sub-class may receive the entire reservation without review.
- C. Every State must create a sub-quota.
- D. Evidence-based sub-classification within Scheduled Castes is permissible, without changing the Article 341 list.

Answer: D.

Explanation: The judgment permits, but does not mandate, sub-classification. Article 341 list-making remains constitutionally distinct, and exclusionary or unsupported design remains reviewable.

SOURCE HEADING [4] - Q13. Which combination is correct?

- A. Article 17 belongs to exploitation; Article 18 abolishes academic degrees.
- B. Article 17 permits caste disability if customary; Article 18 applies only to citizens.
- C. Article 17 directly reaches private untouchability; national awards are not Article 18 titles if not used as prefixes/suffixes.
- D. Article 17 covers only government untouchability; national awards are always prohibited.

Answer: C.

Explanation: Article 17 abolishes untouchability in any form and is horizontally enforceable. *Balaji Raghavan* upheld national awards while forbidding title-like use. Academic and military distinctions are expressly permitted.

SOURCE HEADING [4] - Q14. Which Article 19 restriction pairing is correct?

- A. Speech - protection of Scheduled Tribes under Article 19(5)
- B. Profession - contempt of court under Article 19(6)
- C. Association - sovereignty and integrity, public order and morality under Article 19(4)
- D. Movement - friendly relations with foreign States under Article 19(2)

Answer: C.

Explanation: Restriction grounds are clause-specific. ST protection belongs to movement/residence; friendly relations and contempt belong to speech; profession uses general-public interest, qualifications and State monopoly.

SOURCE HEADING [4] - Q15. With reference to the First Amendment's speech impact, consider the following:

1. It added public order.
2. It added friendly relations with foreign States.

3. It inserted "reasonable" before restrictions.
4. It added sovereignty and integrity of India.

Which are correct?

- A. 3 and 4 only
- B. 1 and 2 only
- C. 1, 2, 3 and 4
- D. 1, 2 and 3 only

Answer: D.

Explanation: The first three came through the First Amendment, 1951. Sovereignty and integrity was added by the Sixteenth Amendment, 1963.

SOURCE HEADING [4] - Q16. The 2024 Electoral Bonds judgment is best understood as holding that

- A. only the Scheme's administrative circular, not enabling provisions, was invalid.
- B. funding non-disclosure violated voter information, and unlimited corporate contribution architecture was manifestly arbitrary.
- C. donor privacy always defeats voter information.
- D. political funding lies wholly outside Article 19(1)(a).

Answer: B.

Explanation: The judgment connected political-funding information to informed voting and invalidated the Scheme/enabling secrecy architecture; it also found deletion of corporate limits manifestly arbitrary.

SOURCE HEADING [4] - Q17. Which statement accurately compares IPC section 124A and BNS section 152?

- A. BNS section 152 criminalises every criticism of government.
- B. Their wording and punishment are identical.
- C. Section 152 uses different ingredients focused on secession, armed rebellion, subversion, separatist activity and sovereignty/unity/integrity; "simple renaming" is inaccurate.
- D. Kedar Nath struck down section 124A, so no lineage exists.

Answer: C.

Explanation: The successor provision changes the protected object and ingredients and expressly covers electronic communication/financial means. *Kedar Nath* upheld the old law only through reading down.

SOURCE HEADING [4] - Q18. Which is a correct statement of Shreya Singhal?

- A. It struck down section 66A, upheld section 69A with safeguards and read down section 79.
- B. It held all offensive speech punishable.
- C. It upheld section 66A but struck down section 69A.
- D. It created a standalone Fundamental Right to internet access.

Answer: A.

Explanation: Vagueness, overbreadth and chilling effect invalidated 66A. Structured blocking under 69A survived, while intermediary knowledge under 79 was narrowed.

SOURCE HEADING [4] - Q19. Anuradha Bhasin most directly supports which proposition?

- A. Secret orders are valid if based on public order.
- B. Speech and trade through the internet are protected; orders require publication, review and proportionality, and indefinite suspension is impermissible.
- C. The Court declared internet access an independent Fundamental Right.
- D. All internet shutdowns are per se unconstitutional.

Answer: B.

Explanation: The Court protected constitutional freedoms exercised through the medium and imposed procedural/proportionality controls. It did not create the broad standalone right or invalidate every shutdown automatically.

SOURCE HEADING [4] - Q20. Which statement about criminal defamation is correct?

- A. *Subramanian Swamy* upheld criminal defamation; the present offence is carried by BNS section 356.
- B. Defamation is not mentioned in Article 19(2).
- C. Reputation has no Article 21 dimension.
- D. *Subramanian Swamy* invalidated criminal defamation.

Answer: A.

Explanation: Defamation is an express Article 19(2) ground, and the Court recognised reputation within Article 21. A critical answer may question proportionality without misstating the holding.

SOURCE HEADING [4] - Q21. Which Article 20 statement is correct?

- A. Article 20 can be included in an Article 359 suspension order.
- B. Article 20(1) bars retrospective creation/enhancement of criminal liability but permits a beneficial retrospective change.
- C. Article 20(3) applies only to citizens.
- D. Article 20(2) bars every departmental proceeding after a criminal case.

Answer: B.

Explanation: Article 20 protects all persons and is non-derogable under Article 359. Double jeopardy requires constitutional conditions; beneficial criminal retrospectivity is not the evil targeted by clause (1).

SOURCE HEADING [4] - Q22. Which of the following is most likely protected by Article 20(3)?

- A. Compelled testimonial disclosure by an accused that communicates personal knowledge against oneself
- B. Routine measurement of height
- C. Compulsory fingerprinting
- D. Collection of a lawfully authorised physical specimen in every circumstance

Answer: A.

Explanation: The core is compelled testimonial communication by an accused. Physical evidence is not automatically testimonial, though collection methods still face Article 21/statutory safeguards.

SOURCE HEADING [4] - Q23. Which sequence best represents Article 21's doctrinal expansion?

- A. Gopalan's siloed approach -> Cooper's effect analysis -> Maneka's fair, just and reasonable procedure
- B. Golaknath -> Minerva Mills -> Indra Sawhney
- C. Puttaswamy -> Gopalan -> Maneka
- D. Maneka -> Gopalan -> Cooper

Answer: A.

Explanation: The first sequence traces the transformation of liberty doctrine. The last concerns amendment/reservation rather than the Article 21 procedural arc.

SOURCE HEADING [4] - Q24. A court considers compulsory prenatal DNA testing solely because one party makes a bare allegation. Which is the strongest constitutional objection?

- A. Privacy is absolute, so DNA testing can never be ordered.
- B. Testing requires a strong lawful need, necessity, child-centred proportionality and attention to BSA section 116, not a roving inquiry.
- C. Article 21 does not protect bodily integrity.
- D. Paternity can never be litigated.

Answer: B.

Explanation: Privacy can yield to proportionate lawful need, but bare allegations do not satisfy that threshold. The legitimacy presumption and the child's dignity are material.

SOURCE HEADING [4] - Q25. Which statement about Article 21A is correct?

- A. It guarantees free and compulsory education for ages six to fourteen and is implemented principally through the RTE Act, 2009.
- B. It applies only to citizens over fourteen.
- C. It was inserted by the Forty-fourth Amendment.
- D. It guarantees university education to every person.

Answer: A.

Explanation: The Eighty-sixth Amendment inserted the age-bounded right and related changes to Article 45 and Article 51A(k).

SOURCE HEADING [4] - Q26. Which is correct regarding preventive detention under the current constitutional text?

- A. Article 22 prohibits it completely.
- B. Clauses 22(1)-(2) apply identically to preventive detention.
- C. Three months remains the no-Advisory-Board constitutional period because the 44th Amendment's two-month substitution was not commenced.
- D. Grounds never need communication.

Answer: C.

Explanation: Preventive detention is constitutionally permitted but separately safeguarded. Communication/representation duties apply subject to the public-interest withholding clause.

SOURCE HEADING [4] - Q27. Consider the following:

1. Article 23 applies against private forced labour.
2. Economic compulsion and payment below the legal minimum can enter forced-labour analysis.
3. Article 24 bars children below fourteen from factories, mines and hazardous employment.

How many are correct?

- A. Only two
- B. None
- C. Only one
- D. All three

Answer: D.

Explanation: All are correct. *PUDR* supplied the economic-compulsion insight; Article 24's constitutional text is hazard/factory/mine focused.

SOURCE HEADING [4] - Q28. Which statement correctly distinguishes Articles 25 and 26?

- A. Article 25 protects all persons and is subject to other Part III provisions; Article 26 protects denominations subject to public order, morality and health.
- B. Article 25 has no reform clause.
- C. Both are subject to other Fundamental Rights in identical words.
- D. Article 26 protects only individuals, not denominations.

Answer: A.

Explanation: The textual limits differ. Article 25(2) expressly permits secular regulation and social reform; Article 26 separates religious affairs from property administration.

SOURCE HEADING [4] - Q29. Which is the most accurate statement of the Essential Religious Practices doctrine?

- A. ERP originated in the Sabarimala case.
- B. ERP eliminates Article 25(2) reform power.
- C. Any practice asserted by a believer is automatically essential.
- D. *Shirur Mutt* distinguishes religious affairs from secular activity and examines essentiality by reference to religious doctrines, while the approach is criticised for judicial theology.

Answer: D.

Explanation: *Shirur Mutt* is the foundational authority. Essentiality is not established by assertion alone, and even religious claims face textual limits.

SOURCE HEADING [4] - Q30. Which statement about Articles 29 and 30 is correct?

- A. Article 29(1) is available only to numerical minorities.
- B. Article 30 creates a right to maladminister.
- C. Article 29(2) applies only to unaided private institutions.

- D. Article 29 can protect any distinct section of citizens; Article 30 protects religious and linguistic minority educational institutions.

Answer: D.

Explanation: Article 29's text says any section of citizens. Article 30 autonomy coexists with regulations for standards, and Article 29(2) addresses State-maintained/aided admissions.

SOURCE HEADING [4] - Q31. A tribunal is about to hear a matter that the statute plainly places outside its jurisdiction. Which writ is most directly preventive?

- A. Quo warranto
- B. Habeas corpus
- C. Prohibition
- D. Certiorari only after every appeal

Answer: C.

Explanation: Prohibition stops a lower court/tribunal from proceeding beyond jurisdiction. Certiorari generally quashes an order already made, though practical boundaries can overlap.

SOURCE HEADING [4] - Q32. Which proposition about Articles 32 and 226 is correct?

- A. Article 226 cannot reach a private body performing public duty.
- B. Article 32 is confined to Fundamental Rights, while Article 226 also reaches other legal rights and public duties.
- C. Article 32 and 226 are territorially and substantively identical.
- D. Article 32 enforces all legal rights; Article 226 only Fundamental Rights.

Answer: B.

Explanation: High Court writ jurisdiction is wider in subject matter. Article 32 is itself a Fundamental Right but requires an FR injury.

SOURCE HEADING [4] - Q33. Which statement about Article 31B is correct?

- A. Post-24 April 1973 Ninth Schedule insertions may be reviewed for damage to basic structure under *I.R. Coelho*.
- B. Every Ninth Schedule law is eternally immune.
- C. Only pre-Constitution laws can enter the Ninth Schedule.
- D. Article 31B is identical to Article 31C.

Answer: A.

Explanation: *I.R. Coelho* prevents Ninth Schedule placement from becoming a device to destroy basic-structure rights. Articles 31B and 31C use distinct mechanisms.

SOURCE HEADING [4] - Q34. After Property Owners Association (2024), which proposition is correct?

- A. Original Article 31C survives for Article 39(b)/(c), and private resources require a context-specific material-resource inquiry.
- B. Article 31C was completely deleted by *Minerva Mills*.
- C. Article 31C protects laws implementing any DPSP.
- D. Every private home is automatically a material resource.

Answer: A.

Explanation: The judgment rejects both the no-private-resource extreme and the all-private-resource extreme. Surviving Article 31C is tied to 39(a)/(d).

SOURCE HEADING [4] - Q35. Which combination is correctly matched?

1. Article 33 - Parliament may restrict rights of specified disciplined forces.
 2. Article 34 - parliamentary indemnity/validation connected with martial law.
 3. Article 35 - exclusive parliamentary competence over specified Part III matters.
- A. 1 and 2 only
 - B. 1, 2 and 3
 - C. 2 and 3 only
 - D. 1 only

Answer: B.

Explanation: All are correct. State legislatures cannot exercise Article 33's special power, and martial law remains distinct from National Emergency.

SOURCE HEADING [4] - Q36. Which statement accurately distinguishes Articles 358 and 359?

- A. Article 359 deletes the specified rights permanently.
- B. Article 358 automatically concerns Article 19 in war/external-aggression Emergency; Article 359 is Presidential-order based and cannot include Articles 20-21.
- C. Article 358 applies to armed-rebellion Emergency and Article 359 can suspend Articles 20-21.
- D. Both automatically suspend all Fundamental Rights.

Answer: B.

Explanation: The mechanisms, triggers and effects differ. Article 359 suspends court enforcement for specified rights during the order; it does not amend the constitutional text.

SOURCE HEADING [4] - Q37. A candidate writes, "Article 27 prevents government from collecting any fee connected with a pilgrimage or religious institution." The correction is:

- A. Article 27 abolishes all general taxation.
- B. Article 27 applies only to citizens.
- C. Article 27 concerns religious instruction.
- D. Article 27 bars compelled taxation specifically appropriated to promote/maintain a particular religion; a regulatory or service fee is analytically different.

Answer: D.

Explanation: Tax versus fee and specific appropriation are the close-option controls. Religious instruction belongs to Article 28.

SOURCE HEADING [4] - Q38. A student writes, "Article 29 is only for minorities and Article 30 prevents all regulation." The best correction is:

- A. Both Articles apply only to the majority.
- B. Article 29(1) protects any distinct section of citizens; Article 30 minority autonomy remains subject to valid excellence/fairness regulation and carries no right to maladminister.
- C. Article 30 protects cultural festivals only.

- D. Article 29(2) permits religion-only denial of admission.

Answer: B.

Explanation: The two provisions have different claimants and objects. Institutional autonomy is real but not regulatory immunity.

SOURCE HEADING [4] - Q39. A candidate writes, "A Ninth Schedule law cannot be reviewed by any court." The correction is:

- A. Only Parliament may review it politically.
- B. Article 31B was repealed.
- C. Every Ninth Schedule law is automatically void.
- D. Post-24 April 1973 insertions are open to *I.R. Coelho* basic-structure review.

Answer: D.

Explanation: The Ninth Schedule still has protective force, but it cannot become a tunnel around basic structure.

SOURCE HEADING [4] - Q40. A student states, "Article 359 suspends the Fundamental Right itself, including Articles 20 and 21." The correct position is:

- A. Article 359 applies only to Article 19.
- B. It suspends the right to move courts for enforcement of specified rights during the order; Articles 20 and 21 cannot be included.
- C. Article 359 operates without a Presidential order.
- D. Article 359 permanently deletes the selected rights.

Answer: B.

Explanation: Enforcement suspension, textual extinction and Article 358 operation must be kept separate.

SOURCE HEADING [3] - Eight remedial MCQs

This separate eight-question remedial set rotates A -> C -> D -> B twice.

SOURCE HEADING [4] - R1. A candidate writes, "All Fundamental Rights are available only to citizens." The best correction is:

- A. Every Article protects companies in exactly the same manner.
- B. Articles 14, 20, 21, 22, 23, 24 and 25 protect persons; Articles 15, 16, 19 and 29 are textually citizen-specific, while Article 30 says "all minorities."
- C. Citizenship is irrelevant throughout Part III.
- D. Only Article 21 protects non-citizens.

Answer: B.

Explanation: The Constitution uses different beneficiary language. The remedy is textual reading, not a single memorised list detached from Article 30's wording and juristic-person limits.

SOURCE HEADING [4] - R2. A student says, "A private organisation can never face a Fundamental Rights remedy." The correct response is:

- A. Private actors are always Article 12 State.

- B. Only criminal courts can examine private rights violations.
- C. Article 32 applies to every private contract.
- D. Articles 15(2), 17, 23 and 24 have direct private reach; habeas corpus and Article 226 public-duty jurisdiction add remedial routes.

Answer: D.

Explanation: Horizontal reach is provision-specific. A private body is not automatically State, but explicit rights and public-duty remedies prevent the absolute claim.

SOURCE HEADING [4] - R3. A candidate writes, "The 50 per cent reservation ceiling is an exceptionless mathematical rule." The best correction is:

- A. Every State may cross it without reasons.
- B. There is no ceiling doctrine at all.
- C. *Indra Sawhney* states an ordinary 50 per cent rule with narrow extraordinary-situation space; later constitutional amendments and *Janhit Abhiyan* require precise treatment.
- D. The ceiling applies only to EWS.

Answer: C.

Explanation: Both absolutes are wrong. The ordinary ceiling remains a major doctrine, but EWS and exceptional-space jurisprudence make the word "never" unsafe.

SOURCE HEADING [4] - R4. A student writes, "Davinder Singh requires every State to create a Scheduled Caste sub-quota." The correction is:

- A. The case abolished SC reservation.
- B. The case transferred Article 341 list power to States.
- C. The case fixed one nationwide percentage.
- D. It permits evidence-based sub-classification without mandating it or altering the Presidential List.

Answer: D.

Explanation: Permission, compulsion and list alteration are three different propositions. Only the first is the controlling holding.

SOURCE HEADING [4] - R5. A candidate writes, "Anuradha Bhasin declared internet access a Fundamental Right." The best correction is:

- A. It concerned only Article 14.
- B. It upheld indefinite shutdowns.
- C. It protected speech and trade conducted through the internet and imposed publication, review, duration and proportionality controls; it did not make the broad standalone declaration.
- D. It removed the State's telecom-suspension power entirely.

Answer: C.

Explanation: The medium and the underlying freedom must be kept distinct. The case's procedural holdings are as important as its Article 19 analysis.

SOURCE HEADING [4] - R6. A student writes, "BNS section 152 is just IPC section 124A with a new number." The correct response is:

- A. Section 152 has differently framed ingredients centred on secession, armed rebellion, subversion, separatist activity and sovereignty/unity/integrity, including electronic/financial means.
- B. The provisions are unrelated to speech.
- C. Kedar Nath automatically invalidated it.
- D. Section 152 punishes only violence already completed.

Answer: A.

Explanation: "Simple renaming" suppresses material textual differences. Constitutional review must address the successor provision on its own language while using settled speech principles.

SOURCE HEADING [4] - R7. A candidate states, "Article 20(3) prevents collection of every bodily sample." The precise correction is:

- A. The clause applies only in civil suits.
- B. Bodily samples are always admissible regardless of procedure.
- C. The clause targets compelled testimonial communication; physical evidence is analytically distinct but still subject to Article 21 and statutory safeguards.
- D. Article 20(3) never applies to an accused.

Answer: C.

Explanation: *Kathi Kalu Oghad* supplies the testimonial/physical distinction. The correction avoids both overbreadth and a rights-free collection process.

SOURCE HEADING [4] - R8. A student says, "The 44th Amendment reduced preventive detention without Advisory Board approval to two months." The correct position is:

- A. The two-month substitution was not brought into force; the operative constitutional period remains three months.
- B. It transferred the power to courts.
- C. It increased the period to six months.
- D. It abolished preventive detention.

Answer: A.

Explanation: The amendment text and its commencement are distinct. UPSC repeatedly tests this unenforced clause.

SOURCE HEADING [2] - PYQS AND ANSWER PRACTICE

SOURCE HEADING [3] - Twenty-one verified routed PYQs with independent solutions

SOURCE HEADING [4] - Mains PYQ 1. UPSC 2019 GS-II Q5 - What can France learn from the Indian Constitution's approach to secularism? (10 marks, 150 words)

Model answer. Thesis: France can learn from India that secularism in a deeply plural society may require principled engagement with religion rather than only a strict public-private wall.

Constitutional design: Articles 25-26 protect individual conscience and denominational autonomy, while Articles 27-28 restrain religious taxation and instruction. Yet Article 25(2) allows regulation of secular activity and social reform; Article 17 abolishes untouchability. **Analysis:** This creates three lessons for French laïcité. First, equal citizenship need not erase public religious identity. Second, accommodation - such as denomination-sensitive autonomy - can coexist with public order, health, morality and equality. Third, the State may intervene asymmetrically where reform is needed, while maintaining equal concern for all faiths. *S.R. Bommai* treats secularism as a basic feature, and *Shirur Mutt* distinguishes protected religious affairs from regulable secular administration. **Qualification:** India's model also risks selective intervention and judicial theology through the ERP test; France cannot transplant it without its own constitutional history. **Conclusion:** The transferable lesson is not State religiosity, but context-sensitive neutrality: protect conscience, regulate harm and preserve equal citizenship.

Why this earns marks: It answers "what can learn," uses Articles 17 and 25-28 plus *Bommai* and *Shirur Mutt*, compares institutional logics, states a limitation and gives a graded conclusion.

SOURCE HEADING [4] - Mains PYQ 2. UPSC 2021 GS-II Q13 - Analyze the distinguishing features of the notion of Right to Equality in the Constitutions of the USA and India. (15 marks, 250 words)

Model answer. Thesis: Both Constitutions reject arbitrary hierarchy, but India constitutionalises a broader, group-conscious equality code while the US model centres on the Fourteenth Amendment's Equal Protection Clause.

Text and structure: Article 14 combines British **equality before law** with American **equal protection of laws**. India then adds Articles 15-16 on prohibited grounds and public opportunity, Article 17's abolition of untouchability, and Article 18's abolition of titles. The US Constitution has no direct equivalent of this five-Article code.

Substantive equality: India expressly authorises special provisions for women/children, SEBCs, SCs/STs and EWS under Articles 15(3)-(6), and service reservation under Article 16(4)-(6). In the US, affirmative action developed judicially/statutorily under a text that does not expressly authorise group reservations; judicial review uses tiered scrutiny.

Judicial tests: Indian courts use intelligible differentia plus rational nexus, and since *E.P. Royappa* and *Maneka Gandhi*, anti-arbitrariness. *Indra Sawhney* adds creamy-layer and ordinary ceiling discipline; *Janhit Abhiyan* upheld EWS by majority. US doctrine differentiates strict, intermediate and rational-basis scrutiny.

Enforcement and social context: Article 32 itself is a Fundamental Right; Article 17 directly reaches private caste practice. US equal-protection duties generally require State action, though civil-rights statutes regulate private discrimination.

Qualification: Neither system is purely formal or purely group-blind; both have contested affirmative-action histories. **Conclusion:** India's distinctive feature is an explicit anti-hierarchy and

protective-discrimination Constitution, whereas US equality grows from a general clause through judicial tiers.

Why this earns marks: It compares text, beneficiaries, affirmative action, judicial tests, private reach and remedies rather than merely listing provisions; it uses named doctrine and avoids caricaturing either system.

SOURCE HEADING [4] - Mains PYQ 3. UPSC 2022 GS-II Q2 - "Right of movement and residence throughout the territory of India are freely available to the Indian citizens, but these rights are not absolute." Comment. (10 marks, 150 words)

Model answer. Thesis: Articles 19(1)(d) and 19(1)(e) make internal mobility and settlement core incidents of common citizenship, but Article 19(5) expressly subjects both to reasonable restrictions.

Scope: The freedoms belong only to citizens and operate against State restriction. They promote national integration, labour mobility and personal choice. Travel abroad, however, is protected under Article 21 after *Maneka Gandhi*, not Article 19(1)(d).

Limits: Article 19(5) permits restrictions in the interests of the general public or for protection of Scheduled Tribes. Constitutionally supportable illustrations include carefully drawn protected-area/tribal-land regimes, public-health quarantine and proportionate public-order restrictions. A restriction still requires valid law, rational connection, necessity and non-arbitrariness under Articles 14 and 19.

Qualification: "General public interest" is not an executive blank cheque; excessive duration, geographic breadth or discriminatory implementation can fail reasonableness.

Conclusion: Movement and residence are presumptive freedoms within a single Union, while Article 19(5) preserves proportionate protection of vulnerable communities and genuine public interests.

Why this earns marks: It names both freedoms and the exact Article 19(5) grounds, distinguishes foreign travel, applies proportionality and ends with a qualified comment.

SOURCE HEADING [4] - Mains PYQ 4. UPSC 2023 GS-II Q11 - "The Constitution of India is a living instrument with capabilities of enormous dynamism. It is a constitution made for a progressive society." Illustrate with special reference to the expanding horizons of the right to life and personal liberty. (15 marks, 250 words)

Model answer. Thesis: Article 21 demonstrates constitutional dynamism: an apparently procedural guarantee has become a dignity-based charter without textual replacement.

Doctrinal arc: *A.K. Gopalan* read "procedure established by law" narrowly and treated rights as silos. *R.C. Cooper* shifted attention to the effect of State action. *Maneka Gandhi* then required procedure to be fair, just and reasonable and linked Articles 14, 19 and 21.

Expanding horizons: *Francis Coralie Mullin* made dignity central; *Hussainara Khatoon* recognised speedy trial; *M.H. Hoskot* and Article 39A support free legal aid; *Olga Tellis* protected livelihood through fair procedure; *D.K. Basu* constitutionalised arrest safeguards and compensation; environmental cases linked clean air/water to life. *K.S. Puttaswamy* unanimously protected bodily, decisional and informational privacy. *Navtej Singh Johar* applied dignity, privacy and equality to intimate autonomy.

Progressive constitutionalism: These holdings allow old text to answer new problems - surveillance, data processing, custodial power and reproductive choice. The later insertion of Article 21A shows that interpretation and amendment can complement each other.

Qualification: Expansion must retain administrable standards. *Olga Tellis*, for example, did not create immunity from eviction; recognition of livelihood required fair procedure. Courts should secure a rights floor without converting every policy aspiration into an unlimited entitlement.

Conclusion: Article 21 is "living" because stable text is repeatedly applied through dignity, fairness and proportionality to changing forms of power.

Why this earns marks: It directly illustrates dynamism through a chronological case arc, uses more than six named holdings, explains what each proves and includes an institutional limitation.

SOURCE HEADING [4] - Mains PYQ 5. UPSC 2023 GS-II Q12 - Explain the constitutional perspectives of Gender Justice with the help of relevant Constitutional Provisions and case laws. (15 marks, 250 words)

Model answer. Thesis: The Constitution moves gender justice from formal non-discrimination to substantive equality, dignity, autonomy and institutional protection.

Equality: Articles 14 and 16 guarantee equality and public opportunity; Article 15(1) bars discrimination only on sex, while Article 15(3) authorises special provisions for women and children. This permits corrective measures rather than requiring gender blindness.

Freedom and dignity: Articles 19(1)(a)/(g) and 21 protect voice, work, bodily integrity, reproductive choice and decisional autonomy. Article 23 attacks trafficking; Article 39(d), 42 and 51A(e) strengthen equal pay, humane work/maternity relief and rejection of practices derogatory to women's dignity.

Cases: *Vishaka v. State of Rajasthan* converted Articles 14, 19(1)(g) and 21 plus CEDAW into binding workplace-harassment safeguards until legislation. *Anuj Garg* rejected paternalistic exclusion from employment. *Joseph Shine* invalidated adultery law that treated women as marital property. *Secretary, Ministry of Defence v. Babita Puniya* rejected stereotypes in permanent commission. *Suchita Srivastava* linked reproductive choice to liberty; *Shayara Bano* used equality/manifest arbitrariness against instant triple talaq.

Qualification: Protective law can itself become paternalistic; the test is whether it expands agency or fixes women into dependency. Social justice delivery and representation remain uneven despite constitutional doctrine.

Conclusion: Gender justice requires the State to remove direct discrimination, dismantle structural stereotypes and protect equal autonomy in public and private life.

Why this earns marks: It integrates Fundamental Rights, DPSPs/duty and six targeted cases, distinguishes protection from paternalism and preserves the Social Justice implementation cross-link.

SOURCE HEADING [4] - Mains PYQ 6. UPSC 2024 GS-II Q12 - Right to privacy is intrinsic to life and personal liberty and is inherently protected under Article 21 of the Constitution. Explain. In this reference discuss the law relating to D.N.A. testing of child in the womb to establish its paternity. (15 marks, 250 words)

Model answer. Thesis: Privacy is a constitutionally protected sphere of bodily integrity, decisional autonomy and personal information, but a lawful, necessary and proportionate intrusion may be justified for a compelling adjudicatory need.

Constitutional basis: *K.S. Puttaswamy* (2017), a nine-judge decision, held privacy intrinsic to Article 21 and Part III. Interference requires law, legitimate aim, proportionality and safeguards. Pregnancy and DNA sampling engage the woman's bodily integrity, the child's identity/dignity and family privacy; they cannot be treated as ordinary documentary discovery.

Paternity framework: Bharatiya Sakshya Adhiniyam, 2023 section 116 continues the conclusive presumption that a child born during a valid marriage, or within 280 days after dissolution while the mother remains unmarried, is legitimate unless non-access is proved. The presumption protects status and social dignity. Courts have therefore required a strong prima facie foundation or eminent need before DNA testing, considered less intrusive evidence, and prioritised the child's welfare. *Bhabani Prasad Jena* cautioned against routine tests; *Nandlal Wasudeo Badwaik* shows that reliable DNA evidence can become decisive where testing is lawfully justified.

Qualification: Truth-seeking is legitimate, but compulsion must not become a roving inquiry. Refusal may have evidentiary consequences only within fair procedure; it does not automatically erase bodily autonomy or the statutory presumption.

Conclusion: Privacy does not create absolute immunity from DNA evidence; it converts the judicial question into one of legality, necessity, child-centred proportionality and safeguards.

Why this earns marks: It answers both halves, updates the evidence-law section, uses *Puttaswamy* plus paternity authorities, applies the four-part privacy test and gives a precise qualified conclusion.

SOURCE HEADING [4] - Prelims PYQ 1. UPSC 2018 GS-I Q92 - Privacy

Right to Privacy is protected as an intrinsic part of Right to Life and Personal Liberty. Which of the following in the Constitution of India correctly and appropriately imply the above statement?

- A. Article 14 and the provisions under the Amendment to the Constitution
- B. Article 17 and the Directive Principles of State Policy in Part IV
- C. Article 21 and the freedoms guaranteed in Part III
- D. Article 24 and the provisions under the 44th Amendment to the Constitution

INFERRED ANSWER - NOT OFFICIALLY VERIFIED: C (high confidence).

Explanation: *Puttaswamy* states that privacy is intrinsic to Article 21 and forms part of the freedoms guaranteed by Part III. Article 14 contributes equality review, but option A's amendment formulation is not the holding.

SOURCE HEADING [4] - Prelims PYQ 2. UPSC 2019 GS-I Q56 - Right to marry

Which Article of the Constitution of India safeguards one's right to marry the person of one's choice?

- A. Article 19
- B. Article 21
- C. Article 25
- D. Article 29

INFERRED ANSWER - NOT OFFICIALLY VERIFIED: B (high confidence).

Explanation: Adult choice in marriage is protected through life, liberty, dignity and autonomy under Article 21, illustrated by *Lata Singh* and *Shafin Jahan*.

SOURCE HEADING [4] - Prelims PYQ 3. UPSC 2019 GS-I Q85 - Liberty

In the context of polity, which one of the following would you accept as the most appropriate definition of liberty?

- A. Protection against the tyranny of political rulers
- B. Absence of restraint

- C. Opportunity to do whatever one likes
- D. Opportunity to develop oneself fully

INFERRED ANSWER - NOT OFFICIALLY VERIFIED: D (high confidence).

Explanation: Constitutional liberty is not mere absence of restraint or licence; it creates the protected sphere in which personality and capacity can develop consistently with others' equal freedom.

SOURCE HEADING [4] - Prelims PYQ 4. UPSC 2020 GS-I Q4 - Untouchability

Which one of the following categories of Fundamental Rights incorporates protection against untouchability as a form of discrimination?

- A. Right against Exploitation
- B. Right to Freedom
- C. Right to Constitutional Remedies
- D. Right to Equality

INFERRED ANSWER - NOT OFFICIALLY VERIFIED: D (high confidence).

Explanation: Article 17 lies within Articles 14-18, the Right to Equality. Article 23, not Article 17, addresses begar (forced unpaid labour) and forced labour.

SOURCE HEADING [4] - Prelims PYQ 5. UPSC 2021 GS-I Q79 - Privacy Article

'Right to Privacy' is protected under which Article of the Constitution of India?

- A. Article 15
- B. Article 19
- C. Article 21
- D. Article 29

INFERRED ANSWER - NOT OFFICIALLY VERIFIED: C (high confidence).

Explanation: Privacy is intrinsic to Article 21 and Part III. Some privacy applications also engage Article 19, but the requested Article is 21.

SOURCE HEADING [4] - Prelims PYQ 6. UPSC 2021 GS-I Q82 - Judicial custody

With reference to India, consider the following statements:

1. Judicial custody means an accused is in the custody of the concerned magistrate and such accused is locked up in police station, not in jail.
2. During judicial custody, the police officer in charge of the case is not allowed to interrogate the suspect without the approval of the court.

Which of the statements given above is/are correct?

- A. 1 only
- B. 2 only
- C. Both 1 and 2
- D. Neither 1 nor 2

INFERRED ANSWER - NOT OFFICIALLY VERIFIED: B (high confidence).

Explanation: Judicial custody ordinarily places the accused in jail under judicial authority, not a police station, so statement 1 is false. Police interrogation during judicial custody requires court permission, making statement 2 correct.

SOURCE HEADING [4] - Prelims PYQ 7. UPSC 2021 GS-I Q83 - Parole

With reference to India, consider the following statements:

1. When a prisoner makes out a sufficient case, parole cannot be denied because it becomes a matter of right.
2. State Governments have their own Prisoners Release on Parole Rules.

Which of the statements given above is/are correct?

- A. 1 only
- B. 2 only
- C. Both 1 and 2
- D. Neither 1 nor 2

INFERRED ANSWER - NOT OFFICIALLY VERIFIED: B (high confidence).

Explanation: Parole is ordinarily discretionary and governed by applicable prison/parole rules; it is not an automatic Fundamental Right. Prisons are a State subject and States maintain their own rule frameworks.

SOURCE HEADING [4] - Prelims PYQ 8. UPSC 2021 GS-I Q85 - Unguided discretion

A legislation which confers on the executive or administrative authority an unguided and uncontrolled discretionary power in the matter of application of law violates which one of the following Articles?

- A. Article 14
- B. Article 28
- C. Article 32
- D. Article 44

INFERRED ANSWER - NOT OFFICIALLY VERIFIED: A (high confidence).

Explanation: Uncanalised discretion is arbitrary and violates Article 14's equality/non-arbitrariness guarantee.

SOURCE HEADING [4] - Prelims PYQ 9. UPSC 2021 GS-I Q92 - Right to Property

What is the position of the Right to Property in India?

- A. Legal right available to citizens only
- B. Legal right available to any person
- C. Fundamental Right available to citizens only
- D. Neither Fundamental Right nor legal right

INFERRED ANSWER - NOT OFFICIALLY VERIFIED: B (high confidence).

Explanation: Article 300A protects "no person," so it is not citizen-only. The technically fuller description is a constitutional right, not a Fundamental Right; among the options, B is correct.

SOURCE HEADING [4] - Prelims PYQ 10. UPSC 2021 GS-I Q96 - Bharat Ratna and Padma Awards

Consider the following statements:

1. Bharat Ratna and Padma Awards are titles under Article 18(1).
2. Padma Awards, instituted in 1954, were suspended only once.
3. The number of Bharat Ratna Awards is restricted to a maximum of five in a particular year.

Which of the above statements are not correct?

- A. 1 and 2 only
- B. 2 and 3 only
- C. 1 and 3 only
- D. 1, 2 and 3

INFERRED ANSWER - NOT OFFICIALLY VERIFIED: D (high confidence).

Explanation: National awards are not prohibited titles (*Balaji Raghavan*); Padma awards were suspended in more than one period; and Bharat Ratna regulations do not set a five-per-year maximum (the conventional annual cap is three). All three statements are incorrect.

SOURCE HEADING [4] - Prelims PYQ 11. UPSC 2022 GS-I Q18 - Mandamus and Quo Warranto

With reference to the writs issued by the Courts in India, consider the following statements:

1. Mandamus will not lie against a private organisation unless it is entrusted with a public duty.
2. Mandamus will not lie against a Company even though it may be a Government Company.
3. Any public-minded person can be a petitioner to move the Court to obtain the writ of Quo Warranto.

Which of the statements given above are correct?

- A. 1 and 2 only
- B. 2 and 3 only
- C. 1 and 3 only
- D. 1, 2 and 3

INFERRED ANSWER - NOT OFFICIALLY VERIFIED: C (high confidence).

Explanation: Mandamus can reach a private body entrusted with public duty and can reach a government company where public duty exists, so statement 2 is false. Quo warranto uses relaxed standing because it protects the public character of an office.

SOURCE HEADING [4] - Prelims PYQ 12. UPSC 2023 GS-I Q31 - Due Process

In essence, what does 'Due Process of Law' mean?

- A. The principle of natural justice
- B. The procedure established by law
- C. Fair application of law
- D. Equality before law

INFERRED ANSWER - NOT OFFICIALLY VERIFIED: A (moderate-to-high confidence).

Explanation: Due process in essence requires fair hearing, impartiality and non-arbitrary procedure - the principles of natural justice. Option C is close but less doctrinally precise; *Maneka Gandhi* reads fairness into Article 21's procedure-established formulation.

SOURCE HEADING [4] - Prelims PYQ 13. UPSC 2023 GS-I Q40 - Reservation and efficiency

Consider the following statements:

Statement I: The Supreme Court has held in some judgments that reservation policies made under Article 16(4) would be limited by Article 335 for maintenance of efficiency of administration.

Statement II: Article 335 defines the term 'efficiency of administration'.

Which one of the following is correct?

- A. Both are correct and II correctly explains I
- B. Both are correct but II does not explain I
- C. I is correct but II is incorrect
- D. I is incorrect but II is correct

INFERRED ANSWER - NOT OFFICIALLY VERIFIED: C (high confidence).

Explanation: Article 335 supplies the efficiency consideration but does not define "efficiency of administration." The Court has used it in reservation doctrine, so I is true and II false.

SOURCE HEADING [4] - Prelims PYQ 14. UPSC 2024 GS-I Q76 - Right to Privacy

Under which of the following Articles of the Constitution of India has the Supreme Court placed the Right to Privacy?

- A. Article 15
- B. Article 16
- C. Article 19
- D. Article 21

OFFICIAL LOCAL UPSC KEY VERIFIED: D.

Explanation: The local official Set-A key records Q76 as D. *Puttaswamy* placed privacy intrinsically within Article 21 and Part III.

SOURCE HEADING [4] - Prelims PYQ 15. UPSC 2026 GS-I Q54 - Article 13 and custom

'X' was addressing a seminar on the meaning of the term 'law' under Article 13. X explained that law included ordinances, orders, rules and regulations, but was not convinced that custom or usage having the force of law was included. 'Y' maintained that such custom or usage was included. Select the correct conclusion:

- A. X is correct, including on non-inclusion of custom
- B. Y's view that law includes custom is incorrect
- C. The views of both X and Y are correct
- D. Only Y's view is correct

PROVISIONAL 2026 KEY - NOT OFFICIAL: D.

Explanation: Article 13(3)(a) expressly includes custom or usage having in India the force of law. X's examples are correct, but X's rejection of custom is wrong; Y alone is correct. The local Set-A

provisional key records Q54 as D.

SOURCE HEADING [3] - Nine original solved Mains models

SOURCE HEADING [4] - OQ1. Fundamental Rights are qualified guarantees, not absolute liberties. Explain the constitutional method by which India limits and protects them. (10 marks, 150 words)

Model answer. Thesis: Part III protects liberty through structured limitation: government must point to constitutional text, valid law and a reasonable means, while courts preserve an enforceable core.

Architecture: Article 14 permits classification only through intelligible differentia and rational nexus and independently bars arbitrariness after *E.P. Royappa*. Article 19 supplies a closed list of restriction grounds - for example, speech can be limited only within Article 19(2), not for mere offensiveness. Articles 25-26 expressly recognise public order, morality and health; Article 25 also yields to other Fundamental Rights and reform under clause (2).

Judicial control: *Maneka Gandhi* requires fair, just and reasonable procedure; *Puttaswamy* adds legality, legitimate aim, proportionality and safeguards. Article 32 guarantees a direct constitutional remedy, while Article 226 is wider.

Qualification: Special clauses such as 31A-31C and Emergency Articles 358-359 narrow review or enforcement only within their own conditions; Articles 20 and 21 remain protected from Article 359.

Conclusion: Indian rights are neither absolute nor gifts of government: their limits are constitutionally enumerated, reasoned and judicially reviewable.

Why this earns marks: It explains a method rather than listing rights, uses Articles 14, 19, 25, 32, 31A-C and 358-359 plus three cases, and closes with the qualified proposition asked.

SOURCE HEADING [4] - OQ2. Article 13 makes judicial review practical through a family of doctrines. Discuss severability, eclipse and waiver. (10 marks, 150 words)

Model answer. Thesis: Article 13 invalidates law "to the extent" of inconsistency, allowing courts to protect rights without mechanically erasing an entire legal order.

Severability: If the offending provision can be removed and the remainder remains workable and legislatively intended, only the invalid portion falls. This gives operational meaning to "to the extent of."

Eclipse: Under *Bhikaji Narain Dhakras*, a pre-Constitution law inconsistent with a Fundamental Right lies dormant against that right rather than becoming dead for every purpose; it may revive if the constitutional shadow is removed. The classic rule does not automatically revive a post-Constitution law void under Article 13(2).

No waiver: *Bhasheshwar Nath* and *Olga Tellis* reject individual surrender or estoppel as a means to validate unconstitutional State action. Fundamental Rights are public limits on power, not merely private benefits.

Qualification: Constitutional amendments follow the Article 368/basic-structure route after Article 13(4) and *Kesavananda Bharati*.

Conclusion: The doctrines combine rights supremacy with legal continuity and calibrated remedies.

Why this earns marks: It defines all three doctrines, distinguishes pre/post-Constitution law, explains rationale and links amendment review without drifting into the whole basic-structure chapter.

SOURCE HEADING [4] - OQ3. Preventive detention is a constitutional anomaly within the Right to Freedom. Examine. (10 marks, 150 words)

Model answer. Thesis: Article 22 simultaneously constitutionalises detention without trial and attempts to civilise it through minimum procedural safeguards.

Anomaly: Preventive detention responds to anticipated conduct, unlike punitive detention after adjudication. Article 22(3) excludes preventive detainees from the ordinary clauses requiring counsel and magistrate production within 24 hours. This sits uneasily with *Maneka Gandhi's* fair-procedure principle and Article 21 liberty.

Safeguards: Articles 22(4)-(7) cap detention without Advisory Board approval at the presently operative three months; require communication of grounds as soon as may be; and provide the earliest opportunity to represent, while allowing public-interest withholding. Parliament and States legislate within their distribution-of-power fields.

Implementation concern: vague grounds, delayed communication and repetitive detention orders can make review formal rather than effective.

Qualification: The Forty-fourth Amendment's proposed two-month substitution was never commenced, so asserting two months as current law is wrong.

Conclusion: Preventive detention remains constitutionally valid but legitimate only as an exceptional, narrowly construed and rigorously reviewed power.

Why this earns marks: It answers "anomaly," contrasts punitive/preventive detention, names exact safeguards and the unenforced amendment trap, and offers a constitutionally grounded verdict.

SOURCE HEADING [4] - OQ4. India's reservation jurisprudence seeks substantive equality but is controlled by evidence, limits and administrative efficiency. Analyse. (15 marks, 250 words)

Model answer. Thesis: Reservation is a constitutional technique of equal opportunity, not a departure from equality; its legitimacy depends on identifying disadvantage and under-representation without converting enabling power into unreviewable allocation.

Constitutional basis: Articles 15(4)-(6) authorise educational/special provisions for SEBCs, SCs/STs and EWS; Articles 16(4), 16(4A), 16(4B) and 16(6) address appointment, promotion/backlog and EWS. Article 335 adds the efficiency consideration.

Judicial controls: *Indra Sawhney* upheld OBC reservation, required creamy-layer exclusion, set the ordinary 50 per cent ceiling and excluded promotion from Article 16(4). The 77th, 81st, 82nd and 85th Amendments rebuilt promotion/backlog tools. *M. Nagaraj* required data on inadequate representation and attention to efficiency; *Jarnail Singh* removed the need to re-prove SC/ST backwardness but retained inadequacy/efficiency discipline.

New dimensions: *Janhit Abhiyan* upheld the 103rd Amendment's EWS design by majority. *Davinder Singh* (2024) permitted evidence-based SC sub-classification to reach the most disadvantaged, without allowing States to alter Article 341 lists or mandating sub-quotas.

Assessment: Data prevents political assertion from replacing constitutional need; creamy layer guards capture; Article 335 requires capable administration. Yet "efficiency" cannot mean preserving historically exclusionary institutions.

Conclusion: Reservation serves substantive equality when targeted, evidence-based, reviewable and combined with education/training rather than treated as either permanent patronage or an anti-merit exception.

Why this earns marks: It follows claim -> provisions -> amendment/case evidence -> what each controls -> qualification, includes 2024 law and gives a balanced understanding of efficiency.

SOURCE HEADING [4] - OQ5. India's freedom of speech is protected through a structured test, not an absolute slogan. Discuss with special reference to digital speech and political information. (15 marks, 250 words)

Model answer. Thesis: Article 19(1)(a) presumptively protects expression, press circulation and democratic information, while Article 19(2) allows only eight enumerated, reasonable and law-based grounds.

Historical settlement: *Romesh Thappar* and *Brij Bhushan* invalidated circulation/pre-censorship restraints under the original text. The First Amendment added public order, friendly relations and incitement, but also inserted "reasonable"; the Sixteenth Amendment later added sovereignty and integrity.

Doctrinal test: *Kedar Nath* saved old IPC section 124A only by confining it to incitement to violence/public disorder. *Shreya Singhal* struck section 66A for vagueness, overbreadth and chilling effect, protected discussion/advocacy short of incitement, upheld section 69A and read down section 79.

Digital process: *Anuradha Bhasin* protected speech/trade through the internet and required published orders, proportionality, periodic review and no indefinite suspension; it did not create a standalone internet right.

Political information: *Association for Democratic Reforms* (2024) invalidated Electoral Bond secrecy because voters need political-funding information under Article 19(1)(a), linking transparency with political equality.

Current criminal law: BNS section 152 is a differently drafted successor focused on secession, rebellion, subversion and sovereignty; calling it a mere renaming obscures the new constitutional inquiry.

Conclusion: Speech protection succeeds when grounds remain closed and State process is precise, published, proportionate and reviewable.

Why this earns marks: It uses the historical sequence, exact doctrinal holdings, digital procedure, electoral transparency and current BNS control, while correcting two common overstatements.

SOURCE HEADING [4] - OQ6. Article 21 has transformed the Supreme Court into a guarantor of dignity, but its expansion also raises institutional concerns. Critically examine. (15 marks, 250 words)

Model answer. Thesis: Article 21's expansion is the Constitution's strongest dignity achievement, but the Court must distinguish enforceable minimums from policy administration.

Transformation: *Gopalan*'s narrow, siloed procedure yielded to *R.C. Cooper* and *Maneka Gandhi*, which required fair, just and reasonable law and linked Articles 14, 19 and 21. *Francis Coralie* made dignity central. *Hussainara* and *Hoskot* secured speedy trial/legal aid; *D.K. Basu* imposed arrest safeguards and compensation; *Sunil Batra* protected prisoners; *Olga Tellis* recognised livelihood; environmental cases protected clean air/water.

Autonomy: *Puttaswamy* recognised bodily, decisional and informational privacy through legality, legitimate aim, proportionality and safeguards. *Navtej Singh Johar* and reproductive-choice cases applied dignity to intimate autonomy. Article 21A's later insertion shows amendment can crystallise

judicially identified needs.

Institutional concern: Expansive declarations may lack budget, statutory detail or monitoring capacity. A right to livelihood, shelter or health can become rhetorically unlimited if detached from a concrete duty, responsible institution and remedy. *Olga Tellis* itself allowed eviction subject to fair procedure, illustrating remedial restraint.

Assessment: Courts are institutionally strongest at stopping coercion, requiring reasons, removing discrimination and enforcing emergency minima; legislatures/executives should design distributive systems above that floor.

Conclusion: Article 21 should remain a dynamic dignity floor, not an unbounded judicial policy code.

Why this earns marks: It presents both achievement and concern, supplies eight named authorities, explains remedial limits and gives an institutional rather than ideological criticism.

SOURCE HEADING [4] - OQ7. Religious freedom in India combines protection, regulation and reform. Critically examine the Essential Religious Practices doctrine within this model. (20 marks, 250 words)

Model answer. Thesis: Articles 25-26 create neither a theocratic privilege nor a strict separation wall; they protect conscience and denominational affairs while allowing public-order limits, secular regulation and social reform. ERP is the judiciary's contested device for drawing that boundary.

Constitutional design: Article 25 protects all persons, subject to public order, morality, health, other Fundamental Rights and Article 25(2) regulation/reform. Article 26 protects denominations in religious affairs but permits lawful regulation of property administration. Articles 27-28 restrain religious taxation and instruction.

ERP origin and use: *Shirur Mutt* distinguished religious matters from secular activities and referred essentiality to religious doctrines. The doctrine prevents every associated activity from claiming immunity. *Durgah Committee* introduced a narrower judicial filter; later cases often asked courts to determine theological centrality. In *Sabarimala* (2018), the majority rejected the exclusion practice through denomination, equality and constitutional-morality reasoning.

Defence: ERP preserves a protected religious core while enabling reform and preventing commercial/administrative practices from escaping law.

Criticism: Secular judges may become theologians; essentiality can freeze religion, privilege texts over lived practice and avoid the more transparent question of harm/proportionality.

Better approach: First classify individual/denominational claims and religious/secular activity; then apply explicit text, competing rights, harm, reform authority and proportionality. Essentiality should not substitute for the Constitution's express limits.

Conclusion: ERP is useful as a threshold but constitutionally legitimate only when disciplined by equality, dignity and institutional humility.

Why this earns marks: It covers all four religion Articles, origin/evolution/application, defence and criticism, and proposes a text-first test rather than a slogan.

SOURCE HEADING [4] - OQ8. "Article 32 is the heart and soul of the Constitution, but Article 226 is the wider remedial jurisdiction." Examine. (20 marks, 250 words)

Model answer. Thesis: Article 32 gives Fundamental Rights guaranteed access to the Supreme Court; Article 226 gives High Courts a wider subject-matter and public-duty reach. They are complementary pillars of judicial review.

Article 32: It is itself a Fundamental Right and authorises writs for enforcement of Part III. Ambedkar's "heart and soul" description reflects direct access, while *L. Chandra Kumar* and basic-structure doctrine protect judicial review from exclusion. The Supreme Court's jurisdiction is original but not exclusive.

Article 226: High Courts may issue writs for Fundamental Rights **and any other purpose**, including ordinary legal rights and public duties. Territorial/cause-of-action proximity and fact-sensitive supervision often make the High Court the effective first constitutional court. A non-State body performing a public duty may be reached even when Article 12 status fails.

Writ logic: Habeas corpus cures unlawful detention, including private detention; mandamus compels public duty; prohibition stops jurisdictional excess; certiorari quashes defective orders; quo warranto protects public office with relaxed standing.

Qualifications: Article 32 is not a general appeal over every illegality; an FR injury is essential. High Court relief is discretionary and may consider alternate remedy, delay or disputed facts, though these rules are not absolute bars in rights cases.

PIL contribution: Relaxed standing enabled bonded-labour and prisoner claims, but institutional detail belongs to the Supreme Court/PIL chapter.

Conclusion: Article 32 constitutionalises the right to a remedy; Article 226 decentralises and broadens public-law justice. Weakening either would impair basic structure.

Why this earns marks: It explains "heart and soul" and "wider" separately, uses the five writs and public-duty reach, states limits and preserves the cross-link boundary.

SOURCE HEADING [4] - OQ9. Part III reconciles rights with social revolution and constitutional emergency, but not without tension. Evaluate with reference to Articles 31A-31C, 33-35 and 358-359. (20 marks, 250 words)

Model answer. Thesis: The Constitution protects individual freedom while preserving defined space for redistribution, disciplined services and emergency action; legitimacy depends on narrow text, judicial review and a non-derogable core.

Social-revolution clauses: Article 31A saves specified reform categories from Article 14/19 attack. Article 31B and the Ninth Schedule protect listed laws, but *I.R. Coelho* subjects post-24 April 1973 insertions to basic-structure review. Article 31C protects genuine implementation of Article 39(b)/(c). *Property Owners Association* (2024) confirmed its survival while rejecting the claim that every private asset is automatically a material resource.

Institutional discipline: Article 33 lets Parliament restrict rights of armed/public-order/intelligence forces for discipline. Article 34 permits parliamentary indemnity connected with martial law; Article 35 reserves specified Part III legislation to Parliament. These are competence and necessity clauses, not rights-free zones.

Emergency: Article 358 automatically displaces Article 19 constraints only during war/external-aggression Emergency and within post-44th conditions. Article 359 requires a

Presidential order suspending court enforcement of specified rights. Articles 20 and 21 cannot be included.

Tensions: Saving clauses can shield coercive redistribution; discipline can suppress dissent; emergency power can normalise exceptional rule. The answers are relation-to-purpose, recital, temporality, proportionality and basic-structure review.

Conclusion: Part III reconciles transformation and necessity not by trusting the State, but by enumerating exceptional powers and keeping their boundaries judicially enforceable.

Why this earns marks: It integrates every requested Article family, uses *I.R. Coelho* and *Property Owners*, distinguishes martial law/Emergency and gives a mechanism-based evaluation.

SOURCE HEADING [2] - OPTIONAL ADVANCED DEPTH - NOT REQUIRED FOR A CORE ANSWER

Optional: The Core above is independently paper-complete. This section is for deeper 15/20-mark reasoning and unfamiliar hypotheticals.

SOURCE HEADING [4] - A. Equality as anti-subordination, not merely consistency

[ANALYSIS] Formal equality asks whether similarly situated persons receive the same rule.

Anti-subordination asks whether law entrenches a hierarchy such as caste, sex or disability. Articles 15(3)-(6), 16(4)-(6) and 17 show that the Constitution does not treat social power as irrelevant.

Advanced use: Reservation is strongest when defended as redistribution of effective opportunity and institutional voice, not as a permanent arithmetic exception to merit.

Qualification: Anti-subordination cannot eliminate evidence, tailoring, periodic review or Article 335.

SOURCE HEADING [4] - B. Proportionality and the danger of conclusory balancing

[ANALYSIS] "Balance rights and security" earns few marks unless decomposed:

1. What exact constitutional ground is available?
2. Is the measure suitable?
3. Is there a less restrictive alternative?
4. Are duration, publication and review controlled?
5. Who bears error costs?

Puttaswamy and *Anuradha Bhasin* make proportionality operational. The danger is judicial subjectivity if courts announce balance without showing each step.

SOURCE HEADING [4] - C. Horizontality and State protective obligations

[ANALYSIS] Direct horizontality makes private actors constitutional respondents. Indirect horizontality requires the State, through legislation and adjudication, to protect rights in private relationships.

Examples:

- Article 17 directly invalidates caste disability.
- Article 23 directly prohibits forced labour.
- *Vishaka* used Articles 14, 19(1)(g) and 21 to fill a statutory vacuum around workplace sexual harassment.

- Privacy disputes between individuals often operate through evidence, family, labour or data statutes rather than a simple Article 32 petition.

[LIMIT] A constitutional right does not automatically constitutionalise every private dispute.

SOURCE HEADING [4] - D. Positive obligations and institutional competence

[ANALYSIS] Article 21 may require emergency medical treatment, legal aid, prison safeguards or investigation. Courts are strongest at setting minimum standards, ordering reasons and ensuring non-discrimination; they are weaker at designing budgets or running institutions continuously.

Answer refinement: defend a judicially enforceable floor while leaving policy choice above that floor to accountable institutions.

SOURCE HEADING [4] - E. Transformative constitutionalism

[ANALYSIS] Articles 17, 23 and 25(2)(b) reveal a Constitution intended to transform society, not merely preserve a neutral marketplace of rights. *Navtej Singh Johar* and gender-justice jurisprudence use dignity, equality and constitutional morality to challenge inherited social domination.

[LIMIT] Constitutional morality must be tied to text, structure and rights; it cannot become a judge's free-floating personal morality.

SOURCE HEADING [4] - F. Rights, DPSPs and the Article 31C boundary

[ANALYSIS] Parts III and IV are complementary: rights prevent coercive means while DPSPs supply distributive ends. *Minerva Mills* treats harmony as basic structure. *Property Owners Association* makes the current boundary precise: Article 31C protects genuine 39(b)/(c) implementation, but the State cannot label every private asset a community resource.

Cross-link: detailed DPSP design belongs to Polity 08.

SOURCE HEADING [4] - G. Emergency constitutionalism and constitutional memory

[ANALYSIS] The post-Emergency Constitution did not make every right non-derogable. Instead, it:

- narrowed Article 358 to external Emergency;
- protected Articles 20 and 21 from Article 359;
- required tighter relation/recital controls; and
- retained judicial review of the Emergency architecture.

The advanced point is institutional: a Constitution proves its resilience when it controls the State precisely when ordinary politics is weakest.

SOURCE HEADING [4] - H. A novel-hypothetical method

For a new speech, surveillance, reservation, religious-practice or detention law:

1. classify the right and beneficiary;
2. locate State/private/public-duty status;
3. identify the exact textual restriction or enabling clause;
4. apply the controlling judicial test;
5. compare less restrictive alternatives;
6. check reasons, hearing, publication, duration and review;
7. identify saving/Emergency clauses;
8. state whether current litigation is settled, pending or deliberately omitted; and

9. conclude with the narrowest constitutionally supportable outcome.

SOURCE HEADING [2] - CONSOLIDATED REGISTER NOTES

SOURCE HEADING [4] - Part III master map

Block	Function
12	State definition
13	inconsistent laws void; judicial review
14-18	equality code
19-22	freedoms, criminal safeguards, life/liberty, education, arrest/detention
23-24	exploitation prohibitions
25-28	religion
29-30	culture and minority education
32	Supreme Court remedy
31A-31C	saving clauses
33-35	disciplined forces, martial law, Parliament-only laws

- Present rights = 6; originally 7.
- Property: removed from Part III by 44th Amendment -> Article 300A constitutional right for every person.
- FR workflow: beneficiary -> respondent -> right -> exact limit -> doctrine -> remedy -> saving/Emergency caveat.
- Qualified, justiciable and amendable only subject to basic structure.

SOURCE HEADING [4] - Beneficiary and horizontal-reach drill

- Citizen-specific text: Articles 15, 16, 19, 29.
- All-person text: Articles 14, 20, 21, 22, 23, 24, 25.
- Article 30 says "all minorities"; do not falsely quote "citizens."
- Direct private reach: 15(2), 17, 23, 24.
- Habeas corpus can reach private detention.
- Article 226 can reach a non-State body performing public duty.
- Negative right = State must not interfere unlawfully.
- Positive obligation = State may need to protect, investigate or supply minimum safeguards.

SOURCE HEADING [4] - Qualification and proportionality

- A restriction needs valid law + exact constitutional ground + reasonableness.
- Proportionality: legitimate aim -> suitability -> necessity/less restrictive alternative -> balancing -> safeguards.
- Do not begin with "balance"; begin with the Article's actual text.
- Procedure controls: reasons, publication, hearing, time limit and review.

SOURCE HEADING [4] - Article 12 rapid test

- Express: Union Government/Parliament; State Government/Legislature; local authorities.
- Other authority: financial, functional and administrative domination; public importance; monopoly; transferred department.
- Cases: *R.D. Shetty*, *Ajay Hasia*, *Pradeep Kumar Biswas*.
- Form not decisive: society/company can be State.
- Not Article 12 State may still face Article 226 public-duty writ.

SOURCE HEADING [4] - Article 13 and doctrine grid

- Law includes ordinance, order, bye-law, rule, regulation, notification, custom/usage with force of law.
- 13(1): pre-Constitution law void to inconsistency.
- 13(2): State cannot make abridging law.
- Severability: remove separable invalid part.
- Eclipse: pre-Constitution law dormant, potentially revivable.
- Waiver: FR cannot validate unconstitutional State action - *Basheshar Nath*, *Olga Tellis*.
- Prospective overruling: *Golaknath* applied new rule forward.
- Amendment route: 24th Amendment + Article 13(4); *Kesavananda* basic structure; *Minerva Mills* limited power/harmony.
- Competence doctrines such as pith and substance, territorial nexus and repugnancy belong to the federal doctrine route, not the Article 13 validity grid.

SOURCE HEADING [4] - Part XVI identification-benefit distinction

- Articles 341/342: President specifies SC/ST lists; Parliament alone includes/excludes.
- Article 342A: Central SEBC List plus State/UT lists after the 105th Amendment.
- List status identifies a class; Articles 15/16/330/332/335 or valid law separately authorise a benefit, representation or service measure.
- *Davinder Singh* sub-classification does not amend the Article 341 list.

SOURCE HEADING [4] - Article 14 equality code

- Equality before law = British, negative, no privilege.
- Equal protection = American, positive, like treatment in like circumstances.
- Classification test = intelligible differentia + rational nexus.
- Article 14 forbids class legislation, not classification.
- Anti-arbitrariness: *E.P. Royappa* -> *Maneka Gandhi* -> *Ajay Hasia*.
- Manifest arbitrariness review: *Shayara Bano*.
- Classification tests differentiation; arbitrariness tests capricious power.

SOURCE HEADING [4] - Article 15 register

- Prohibited grounds: religion, race, caste, sex, place of birth - discrimination **only** on these.
- 15(2): shops/restaurants/hotels/public entertainment + wells/tanks/ghats/roads/public resorts; horizontal.

- 15(3): women/children.
- 15(4): SEBC/SC/ST advancement; First Amendment after *Champakam*.
- 15(5): educational admissions incl private aided/unaided; Article 30(1) minority institutions excluded.
- 15(6): EWS incl up to 10 per cent.

SOURCE HEADING [4] - Article 16 and reservation mechanism

- 16(1): citizen equal opportunity in public employment.
- 16(2) adds descent and residence to barred grounds.
- 16(3): Parliament may prescribe residence.
- 16(4): backward class + inadequate representation; enabling, not compulsory.
- 16(4A): SC/ST promotion reservation.
- 16(4B): backlog separate class.
- 16(5): religious office.
- 16(6): EWS.

SOURCE HEADING [4] - Reservation cases and amendments

- *Indra Sawhney*: OBC 27 per cent upheld; creamy layer; ordinary 50 per cent ceiling; no promotion under 16(4).
- 77th: 16(4A); 81st: 16(4B); 82nd: Article 335 proviso; 85th: consequential seniority.
- *M. Nagaraj*: amendments upheld; data/inadequacy/efficiency discipline.
- *Jarnail Singh*: no fresh proof of SC/ST backwardness; inadequacy and efficiency retained.
- Article 335: claims consistent with efficiency; efficiency not a veto.
- 103rd Amendment: 15(6), 16(6).
- *Janhit Abhiyan*: EWS upheld by majority, not unanimously.
- *Davinder Singh* (1 Aug 2024): SC sub-classification permitted, evidence-based, not mandated; Article 341 list unchanged; no total exclusion of remaining classes.

SOURCE HEADING [4] - Articles 17-18 anti-hierarchy notes

- Article 17: untouchability abolished in any form; private reach; PCR Act 1955; SC/ST PoA Act 1989.
- Historical caste practice, not every social avoidance.
- Article 18: no titles except military/academic; foreign-title and foreign-present controls.
- *Balaji Raghavan* (1996): Bharat Ratna/Padma not titles; no prefix/suffix.
- Trap: untouchability = equality, not exploitation.

SOURCE HEADING [4] - Article 19 exact matrix

Freedom	Limit
speech 19(1)(a)	19(2): sovereignty/integrity; security; friendly relations; public order; decency/morality; contempt; defamation; incitement
assembly 19(1)(b)	19(3): sovereignty/integrity; public order
association 19(1)(c)	19(4): sovereignty/integrity; public order; morality
movement/residence 19(1)(d)/(e)	19(5): general public; ST protection
profession 19(1)(g)	19(6): general public; qualifications; State monopoly

- Citizens only.
- Movement/residence = internal India; foreign travel under Article 21.
- Assembly peaceful/unarmed; no FR to strike.
- Association does not guarantee recognition/success.
- Grounds cannot be borrowed across clauses.

SOURCE HEADING [4] - Speech doctrine timeline

- *Romesh Thappar* (1950): circulation; original Article 19(2).
- *Brij Bhushan* (1950): pre-censorship; original text.
- First Amendment (1951): public order + friendly relations + incitement + "reasonable."
- 16th Amendment (1963): sovereignty/integrity.
- *Kedar Nath* (1962): section 124A upheld only through incitement/violence/public-disorder reading.
- *S.G. Vombatkere*: 11 May 2022 abeyance; 12 Sep 2023 larger-Bench referral; no unverified later final claim.
- BNS 152 from 1 Jul 2024: secession/armed rebellion/subversion/separatism/sovereignty-unity-integrity; electronic/financial means; not simple renaming.

SOURCE HEADING [4] - Press, digital speech and information

- No separate press Article; derives from 19(1)(a).
- Right to know under democratic speech.
- Electoral Bonds, 15 Feb 2024: voter funding information under 19(1)(a); secrecy scheme/enabling provisions invalid; unlimited corporate funding change manifestly arbitrary.
- *Shreya Singhal*: 66A struck; discussion/advocacy/incitement; 69A upheld; 79 read down.
- *Anuradha Bhasin*: speech/trade through internet; orders published/reviewed/proportionate; no indefinite suspension; not standalone internet-right holding.
- *Subramanian Swamy*: criminal defamation upheld; reputation Article 21; current BNS section 356.

SOURCE HEADING [4] - Article 20 three shields

- 20(1): no retrospective offence or enhanced penalty; beneficial retrospectivity allowed.
- 20(2): no prosecution **and punishment** twice for same offence.
- 20(3): accused + compulsion + testimonial communication against self.
- Physical samples distinct from testimonial compulsion - *Kathi Kalu Oghad*.

- Involuntary narco/polygraph/brain mapping - *Selvi*.
- All persons; Article 359 cannot suspend enforcement.

SOURCE HEADING [4] - Article 21 doctrinal arc

- *Gopalan*: narrow, siloed.
- *R.C. Cooper*: effect over object; silos weaken.
- *Maneka*: fair, just, reasonable procedure; 14-19-21 interlock.
- Say "due-process standard," not textual American substitution.
- *Francis Coralie*: dignity.
- *Hussainara*: speedy trial.
- *Hoskot*: legal aid.
- *Olga Tellis*: livelihood + fair procedure, not no-eviction right.
- *Sunil Batra*: prisoner rights.
- *D.K. Basu*: arrest safeguards + compensation.
- *Parmanand Katara/Paschim Banga*: emergency care.
- Environmental cases: clean air/water.
- Travel abroad: *Maneka*.
- Choice/marriage: *Lata Singh, Shafin Jahan*.
- Sexual autonomy: *Navtej*.
- Reproductive autonomy: *Suchita Srivastava*.
- Qualification: rights floor, not unlimited judicial welfare code.

SOURCE HEADING [4] - Privacy, DNA and data control

- *Puttaswamy* (2017), nine judges: privacy intrinsic to Article 21 + Part III.
- Dimensions: body, decision, information, family/intimacy.
- Test: legality -> legitimate aim -> proportionality -> safeguards.
- DNA: bodily integrity + truth/identity + child's dignity.
- BSA 2023 section 116: legitimacy presumption; rebuttal through non-access.
- DNA order: strong prima facie/urgent need; less intrusive evidence; no fishing inquiry.
- *Bhabani Prasad Jena*: caution; *Nandlal Badwaik*: reliable DNA can matter when lawfully obtained.
- DPDP Act/Rules: G.S.R. 843(E) and 846(E) notified phased commencement; only the first tranche is operative by 21 Aug 2026.

SOURCE HEADING [4] - Article 21A education

- 86th Amendment: free/compulsory education, ages 6-14.
- Article 45: early childhood below 6.
- Article 51A(k): parent/guardian opportunity duty.
- *Mohini Jain* -> *Unni Krishnan* -> Article 21A.
- RTE Act 2009.
- *Society for Unaided Private Schools*: 25 per cent obligation upheld for non-minority unaided schools.

- *Pramati*: minority-institution protection.

SOURCE HEADING [4] - Article 22 arrest and detention

- Ordinary arrest: grounds; counsel; nearest magistrate within 24 hours excluding journey; no further detention without authority.
- Article 22(3): clauses (1)-(2) exceptions = enemy alien + preventive detention.
- Preventive detention: anticipated conduct; 3 months without Advisory Board under operative text; grounds + earliest representation; public-interest non-disclosure.
- 44th Amendment's two-month substitution not commenced.
- Structural anomaly: detention without trial inside freedom chapter.

SOURCE HEADING [4] - Articles 23-24 exploitation

- Article 23: trafficking, begar (forced unpaid labour), similar forced labour; State/private; all persons.
- *PUDR*: economic compulsion/below legal minimum can be forced labour.
- *Bandhua Mukti Morcha*: bonded labour + dignity + enforcement.
- 23(2): compulsory public service allowed; no religion/race/caste/class discrimination.
- Article 24: below 14 in factory, mine, hazardous employment.
- Child and Adolescent Labour Act 1986/2016; Bonded Labour Act 1976.
- Keep constitutional rule separate from broader statutory ban/exceptions.

SOURCE HEADING [4] - Articles 25-28 religion

- Article 25: conscience; profess/practise/propagate; all persons; public order/morality/health/other FRs; 25(2) secular regulation + reform.
- *Rev Stainislaus*: propagate != coercive/fraudulent conversion.
- Kirpan Sikh explanation; Hindu for 25(2)(b) includes Sikh/Jain/Buddhist.
- Article 26: denomination institutions, religious affairs, property; public order/morality/health.
- Article 27: bars specifically appropriated religious-promotion tax, not every fee/general tax.
- Article 28:
 - wholly State-maintained -> no instruction;
 - State-administered trust/endowment -> permitted;
 - recognised/aided -> no compulsion without consent.
- Principled distance = protection + equal engagement + regulation + reform.

SOURCE HEADING [4] - ERP doctrine

- *Shirur Mutt*: religious vs secular; essentiality linked to doctrines.
- Use sequence: claimant -> religious/secular -> essentiality -> explicit limits/reform/other FR -> proportionality.
- Defence: preserves religious core, regulates associated secular activity.
- Criticism: judges as theologians; freezes religion; may obscure harm/equality.
- Sabarimala: use the 2018 majority holding only; no later final status is asserted without a located official controlling decision.

SOURCE HEADING [4] - Articles 29-30

- 29(1): any section of citizens with distinct language/script/culture.
- 29(2): no citizen denied State-maintained/aided admission only on religion/race/caste/language.
- Article 29 not minority-only.
- Article 30: religious/linguistic minorities establish/administer institutions.
- *T.M.A. Pai*: State-wise minority assessment; autonomy + regulation.
- *P.A. Inamdar*: unaided professional autonomy under its framework.
- *St Xavier's, Malankara*: no right to maladminister; excellence regulation valid.

SOURCE HEADING [4] - Article 32 and writ recall

- Article 32 = Fundamental Right; SC enforcement of FRs; Ambedkar "heart and soul."
- Article 226 = FR + other legal rights/public duties; wider subject scope.
- Habeas corpus = unlawful detention, public/private.
- Mandamus = public duty.
- Prohibition = stop jurisdictional excess before completion.
- Certiorari = quash defective order.
- Quo warranto = test public-office claim; relaxed standing.
- Judicial review/basic remedial power = basic structure.
- Detailed PIL institutional analysis -> Polity 18.

SOURCE HEADING [4] - Articles 31A-31C

- 31A: specified estate/reform categories; not all property law.
- 31B: Ninth Schedule.
- *I.R. Coelho*: post-24 Apr 1973 entries face basic-structure review.
- 31C original: genuine Article 39(b)/(c) law protected from 14/19 challenge.
- *Property Owners*, 5 Nov 2024:
- original 31C survives;
- private resources may qualify;
- not every private asset;
- context: nature, scarcity, community effect, concentration, common good.

SOURCE HEADING [4] - Articles 33-35 and martial law

- Article 33: Parliament restricts/abrogates rights of specified armed/public-order/intelligence/communications forces for discipline.
- Article 34: indemnity/validation where martial law existed.
- Article 35: Parliament-only specified Part III laws.
- Martial law: local military control/restoration; term undefined; Article 34 recognition.
- National Emergency: express constitutional regime; ordinary institutions continue.
- Martial law does not automatically erase habeas corpus.

SOURCE HEADING [4] - Articles 358-359 emergency grid

- 358:

- automatic Article 19 effect;
- only war/external aggression Emergency after 44th;
- relation/recital conditions;
- prospective cessation after Emergency, past acts saved.
- 359:
- Presidential order;
- suspends right to move court for specified FR enforcement;
- rights not textually deleted;
- Articles 20 and 21 excluded.
- Trap: no automatic suspension of all FRs.
- Full Emergency architecture -> Polity 14.

SOURCE HEADING [4] - Current-law dated control

- 15 Feb 2024 - Electoral Bonds: voter information, political equality, transparency; scheme/enabling provisions struck.
- 1 Aug 2024 - *Davinder Singh*: SC sub-classification permitted, not mandated.
- 5 Nov 2024 - *Property Owners*: original 31C survives; contextual private-resource inquiry.
- 1 Jul 2024 - BNS/BNSS operative; Section 152 is not a simple 124A renaming. Supreme Court issued vires notice on 28 Aug 2025; no final merits disposition was located through 21 Aug 2026.
- DPDP Act/Rules: final 2025 notifications use phased commencement; as of 21 Aug 2026, do not describe the whole regime as operative.
- Omitted as live status: unverified 2025/26 judgments/orders, Waqf, Places of Worship and Sabarimala hearing claims.

SOURCE HEADING [4] - Verified PYQ route

- Mains 2019: France learning from Indian secularism.
- Mains 2021: India-US equality comparison.
- Mains 2022: movement/residence limits.
- Mains 2023: living Constitution/Article 21; gender justice.
- Mains 2024: privacy and prenatal DNA/paternity.
- Prelims 2018-2023: 13 routed questions, all labelled **INFERRED ANSWER - NOT OFFICIALLY VERIFIED**.
- Prelims 2024 Q76: **OFFICIAL LOCAL UPSC KEY VERIFIED: D.**
- Prelims 2026 Q54: **PROVISIONAL 2026 KEY - NOT OFFICIAL: D.**

SOURCE HEADING [4] - Last-minute trap sheet

- Property = Article 300A constitutional right, not FR.
- Article 30 text says minorities, not "citizens."
- Untouchability = equality.
- Travel abroad = Article 21.
- Propagate != force/fraud conversion.
- Article 27 tax != every fee.

- Article 22 current no-Board period = 3 months.
- Article 19 grounds are not interchangeable.
- First Amendment did not add sovereignty/integrity.
- *Kedar Nath* upheld by reading down.
- *Shreya* did not strike 69A.
- *Anuradha Bhasin* did not declare standalone internet FR.
- BNS 152 not simple renaming.
- *Janhit* majority, not unanimous.
- *Davinder* permission, not mandate.
- Ninth Schedule not absolutely immune.
- Article 31C = 39(b)/(c), not every DPSP.
- Articles 20/21 never within Article 359 order.

SOURCE HEADING [4] - Mains answer spines

Equality/reservation

Article 14 twin concepts -> classification + arbitrariness -> enabling Articles 15/16 -> named limit (*Indra Sawhney*, data, Article 335) -> EWS/*Davinder* current layer -> evidence-based substantive-equality verdict.

Speech/digital rights

19(1)(a) + exact 19(2) grounds -> 1950 cases/First Amendment -> *Kedar Nath* or *Shreya* -> *Anuradha Bhasin* process -> competing reputation/privacy -> dated BNS/electoral-bond control -> precise verdict.

Article 21

Gopalan -> *Cooper* -> *Maneka* -> 4-6 named dignity rights with limits -> *Puttaswamy* proportionality -> institutional-floor qualification -> living-Constitution verdict.

Religion

Articles 25-28 separate -> individual/denomination -> religious/secular -> ERP + criticism -> reform/equality limits -> principled-distance verdict.

Remedies

Article 32 as right -> select writ by defect -> Article 226 wider public-duty reach -> standing/PIL only as needed -> basic-structure and alternate-remedy qualification.

Saving/Emergency

31A/31B/31C distinct -> *I.R. Coelho* + *Property Owners* -> 33-35 competence/discipline -> martial law vs Emergency -> 358 vs 359 -> non-derogable 20/21 -> narrow-exception verdict.

SOURCE HEADING [3] - COMPLETE TOPIC ASCII MASTER FLOW DIAGRAM

High-yield use: Follow the panels as one topic-specific conceptual atlas: root question, classifications, processes or arguments, comparisons, objections and a final answer-writing spine. This text-native master is separate from both graphical flowchart artifacts.

SOURCE HEADING [4] - ASCII MASTER FLOW - PANEL 1/10: Part III as an operating architecture, not a list

PART III

- +-- GATEKEEPERS: Article 12 defines State; Article 13 controls law
- +-- EQUALITY: Articles 14-18
- +-- FREEDOMS: Articles 19-22
- +-- EXPLOITATION: Articles 23-24
- +-- RELIGION: Articles 25-28
- +-- CULTURE / EDUCATION: Articles 29-30
- +-- REMEDY: Article 32
- +-- SAVINGS / SPECIAL CONTROL: Articles 31A-31C and 33-35

REACH

vertical: person versus State

horizontal: express private reach in Articles 15(2), 17, 23 and 24

positive duty: State may need to protect rights against private domination

RIGHT = protected claim + justified limit + effective remedy.

SOURCE HEADING [4] - ASCII MASTER FLOW - PANEL 2/10: Article 12 and 13: who is bound and what becomes void

ARTICLE 12 INQUIRY

Union/State organs + local authorities + other authorities

- > deep and pervasive control?
- > financial, functional and administrative domination?
- > public importance tied to government?
- > Pradeep Kumar Biswas: cumulative instrumentality inquiry

ARTICLE 13 INQUIRY

pre-Constitution inconsistent law -> void to extent of inconsistency

post-Constitution abridging law -> prohibited and void to that extent

"law" includes ordinance, rule, regulation, notification, custom and usage

DOCTRINES

severability | eclipse | waiver generally unavailable | prospective overruling

AMENDMENTS: Article 13(4) + Article 368 -> Kesavananda basic-structure review.

SOURCE HEADING [4] - ASCII MASTER FLOW - PANEL 3/10: Equality code and reservation doctrine

ARTICLE 14

equality before law + equal protection

classification = intelligible differentia + rational nexus

Royappa/Maneka = arbitrariness is antithetical to equality

ARTICLES 15-16

non-discrimination + enabling substantive-equality clauses

Champakam -> First Amendment -> Article 15(4)

Indra Sawhney -> creamy layer, ordinary 50% ceiling, no 16(4) promotion

77th/81st/82nd/85th -> promotion, backlog, qualification and seniority tools

Nagaraj/Jarnail -> inadequacy data and Article 335 efficiency controls

103rd + Janhit -> EWS upheld by majority

Davinder Singh 2024 -> evidence-based SC sub-classification allowed, not mandated

ARTICLES 17-18 abolish untouchability and reject titles with narrow exceptions.

SOURCE HEADING [4] - ASCII MASTER FLOW - PANEL 4/10: Article 19: six freedoms and restriction-ground discipline

ARTICLE 19(1), CITIZENS ONLY

speech | assembly | association | movement | residence | profession
|

valid law + listed ground + reasonableness + proportionality

SPEECH GROUNDS UNDER 19(2)

sovereignty/integrity | State security | friendly relations | public order
decency/morality | contempt | defamation | incitement

ANCHORS

press and right to know derive from 19(1)(a)

Shreya Singhal: 66A void; advocacy differs from incitement

Anuradha Bhasin: shutdown orders require publication and proportionality

Kedar Nath: sedition read toward incitement

BNS section 152 requires exact analysis, not a claim that sedition was merely renamed.

SOURCE HEADING [4] - ASCII MASTER FLOW - PANEL 5/10: Articles 20-22: criminal process, dignity and detention

ARTICLE 20: ALL PERSONS

+-- no retrospective criminal offence or enhanced penalty

+-- no prosecution and punishment twice for same offence

+-- no compelled testimonial self-incrimination by an accused

ARTICLE 21

Gopalan compartmentalisation -> R.C. Cooper linkage

-> Maneka: just, fair and reasonable procedure

-> dignity family: privacy, livelihood, legal aid and speedy trial

Puttaswamy test: legality + legitimate aim + proportionality + safeguards

ARTICLE 22

ordinary arrest: grounds + lawyer + magistrate within 24 hours

preventive detention: distinct safeguards; no-board period remains three months

44th Amendment's proposed two-month substitution has not commenced.

SOURCE HEADING [4] - ASCII MASTER FLOW - PANEL 6/10: Exploitation, religion and minority autonomy

ARTICLES 23-24

trafficking and forced labour prohibited; minimum-wage coercion can implicate 23
children below 14 barred from factories, mines and hazardous employment under 24

ARTICLES 25-28

individual conscience and profession, practice and propagation

Article 26 denomination management

limits: public order, morality, health and other FRs

State may regulate secular activity and enact social reform

ARTICLES 29-30

29(1): any section of citizens with distinct language, script or culture

29(2): admission non-discrimination in covered institutions

30: religious and linguistic minorities may establish and administer institutions

Autonomy survives regulation; regulation cannot erase institutional identity.

SOURCE HEADING [4] - ASCII MASTER FLOW - PANEL 7/10: Article 32: writ remedies and the enforcement ladder

RIGHT VIOLATED

+-- ARTICLE 32 -> SUPREME COURT for Fundamental Rights

+-- ARTICLE 226 -> HIGH COURT for FRs and other legal rights

|

WRIT CHOICE

HABEAS CORPUS produce detained person; test detention

MANDAMUS compel public duty

PROHIBITION stop jurisdictional excess before completion

CERTIORARI quash completed order for jurisdictional or legal error

QUO WARRANTO test authority to hold public office

Article 32 is itself a Fundamental Right; legal fit still matters.

Article 226 is territorially and remedially wider, not constitutionally inferior.

SOURCE HEADING [4] - ASCII MASTER FLOW - PANEL 8/10: Saving clauses, property and amendment doctrine

ARTICLE 31A

specified reform categories protected from Article 14/19 attack

ARTICLE 31B + NINTH SCHEDULE

listed-law protection

-> I.R. Coelho: post-24 Apr 1973 insertions face basic-structure review

ARTICLE 31C

original protection for genuine Article 39(b)/(c) laws against 14 and 19

-> Kesavananda limits immunity

-> Minerva Mills defeats extension to all DPSPs

-> Property Owners 2024 preserves original 31C

-> not every private asset is automatically a community resource

44th Amendment: Article 31 leaves Part III

Article 300A: every person; deprivation only by authority of law.

SOURCE HEADING [4] - ASCII MASTER FLOW - PANEL 9/10: Article 358 and 359: emergency effects are not the same

ARTICLE 358

automatic operation

Article 19 only

war/external-aggression Emergency

changes State's Article 19 limit

post-44th nexus conditions apply

ARTICLE 359

Presidential order required

specified rights named in order

Emergency while order operates

suspends enforcement, not text

Articles 20 and 21 cannot be included

ARTICLES 33-35

Parliament may tailor FRs for forces and specified services;

may indemnify martial-law acts and has exclusive competence over listed matters.

MARTIAL LAW != NATIONAL EMERGENCY

local exceptional coercive control differs from constitutional proclamation.

No rule says all Fundamental Rights automatically disappear in Emergency.

SOURCE HEADING [4] - ASCII MASTER FLOW - PANEL 10/10: Exact 10/15-mark architecture: liberty, limitation and remedy

10 MARKS / 150 WORDS

1. Identify claimant, State action and exact Article.
2. State citizen/person reach, vertical/horizontal effect and duty.
3. Apply protected interest -> listed limit -> proportionality.
4. Add one controlling case and Article 32 or 226 remedy.
5. Conclude on validity with a narrow qualification.

15 MARKS / 250 WORDS

1. Frame Part III through gatekeepers, rights, limits, remedies and savings.
2. Explain the Article family with clause-level accuracy.
3. Apply Article 14 fairness and Article 19/21 proportionality where relevant.
4. Integrate rights-DPSP harmony through Minerva Mills.
5. Test amendment/immunity through Kesavananda and I.R. Coelho.
6. Distinguish Article 358 from 359 if Emergency is involved.
7. Conclude: governance requires legality, justification and remedy.

SOURCE ANNEX B - PAIRED SOLVED-PRACTICE WORKBOOK

Source path: upsc-ai-kit\knowledge\Learner-v2-Refreshed\Polity\Subject-Wide-Syllabus\learning-sessions\polity-07\g15\polity-07_Solved-Practice-Workbook_k_2026-08-23.md **SHA-256:**

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SOURCE HEADING [1] - Fundamental Rights - Learner-v2 Source-Complete Learning Session

SOURCE HEADING [2] - BASIC MCQS / REMEDIATION

SOURCE HEADING [3] - Forty core diagnostic MCQs

Answer placement is balanced, deterministic and non-patterned using a stable topic seed., repeated ten times.

SOURCE HEADING [4] - Q1. With reference to the architecture of Part III, consider the following statements:

1. Article 12 identifies bodies bound as the State for Part III purposes.
2. Article 13 makes every inconsistent law wholly non-existent for all purposes.
3. Article 32 is itself a Fundamental Right.
4. Articles 31A-31C create defined protections rather than a general immunity from judicial review.

Which of the statements given above are correct?

- A. 2, 3 and 4 only
- B. 1, 2, 3 and 4
- C. 1 and 2 only
- D. 1, 3 and 4 only

Answer: D.

Explanation: Statement 2 is overbroad: Article 13 uses "to the extent of" inconsistency, supporting severability and, for pre-Constitution law, eclipse. Article 32 is both a right and remedy. Saving clauses operate within their text and remain subject to basic-structure controls where applicable.

SOURCE HEADING [4] - Q2. Which one of the following correctly distinguishes beneficiary and horizontal application?

- A. Article 15 is citizen-specific, while Article 15(2) can directly prohibit specified private exclusion.
- B. Article 17 is citizen-only because caste is linked to citizenship.
- C. Every right available to all persons necessarily applies directly against private actors.
- D. Article 19 protects every person but only against the State.

Answer: A.

Explanation: Beneficiary and respondent are separate axes. Article 15 protects citizens, yet clause (2) reaches specified private denial of public-facing facilities. Article 17 is absolute and horizontal. Article 19 is citizen-only.

SOURCE HEADING [4] - Q3. A society is almost entirely financed by government, performs a function transferred from a department, and is subject to pervasive administrative control. Which is the most appropriate constitutional approach?

- A. It cannot be State because it is registered as a society.
- B. Its functional, financial and administrative relationship may make it an instrumentality under Article 12.
- C. It is automatically Parliament under Article 12.
- D. Only a statutory corporation can be an "other authority."

Answer: B.

Explanation: *Ajay Hasia* rejects form over substance. Registration as a society does not prevent Article 12 status. The inquiry is cumulative and functional; no claim that it becomes Parliament is involved.

SOURCE HEADING [4] - Q4. Which statement about Article 13 is correct?

- A. Every invalid part necessarily destroys the entire Act.

- B. A custom having the force of law is included, while constitutional amendments are controlled through Article 368 and basic structure.
- C. Constitutional amendments are ordinary laws and can be invalidated solely under Article 13(2).
- D. Custom is outside "law" because it is not enacted.

Answer: B.

Explanation: Article 13(3)(d) expressly includes custom/usage with force of law. Article 13(4) and *Kesavananda Bharati* place constitutional-amendment review on the basic-structure route. Severability prevents automatic destruction of the entire Act.

SOURCE HEADING [4] - Q5. A pre-Constitution transport law conflicts with a newly enforceable Fundamental Right but is not repealed. Later, the constitutional bar is validly removed. Which doctrine most directly explains possible revival?

- A. Pith and substance
- B. Colourable legislation
- C. Eclipse
- D. Territorial nexus

Answer: C.

Explanation: Under *Bhikaji Narain Dhakras*, a conflicting pre-Constitution law can remain dormant or eclipsed and revive if the shadow is removed. The other doctrines concern legislative competence.

SOURCE HEADING [4] - Q6. Which sequence most accurately describes the amendment-Fundamental Rights relationship?

- A. Golaknath created basic structure; Kesavananda abolished amendment review.
- B. Minerva Mills held that every DPSP automatically overrides every FR.
- C. Golaknath restricted amendment of FRs prospectively; the 24th Amendment responded; Kesavananda allowed amendment subject to basic structure.
- D. The 24th Amendment deleted Article 13.

Answer: C.

Explanation: *Golaknath* used prospective overruling and treated amendment power restrictively. The 24th Amendment affirmed Article 368 power and inserted Article 13(4). *Kesavananda* established the basic-structure limit; *Minerva Mills* defended limited amendment and Part III-IV harmony.

SOURCE HEADING [4] - Q7. A law creates two classes using an intelligible criterion, but the criterion has no relation to the law's stated objective. Under Article 14, the classification

- A. is valid because only intelligibility matters.
- B. is valid if passed unanimously.
- C. can be tested only under Article 21.
- D. fails the rational-nexus limb.

Answer: D.

Explanation: Reasonable classification requires both intelligible differentia and rational nexus to the objective. Legislative support does not cure constitutional irrationality.

SOURCE HEADING [4] - Q8. Which one best captures the relationship between classification and arbitrariness under Article 14?

- A. Classification tests differentiation; anti-arbitrariness also controls capricious State power beyond a neat class comparison.
- B. Classification applies only to executive action and arbitrariness only to statutes.
- C. Any classification is arbitrary.
- D. Anti-arbitrariness abolished all classification analysis.

Answer: A.

Explanation: *E.P. Royappa, Maneka Gandhi* and later cases broaden Article 14 without discarding reasonable-classification analysis. Both tools can be relevant.

SOURCE HEADING [4] - Q9. Which special provision is constitutionally authorised by Article 15(3)?

- A. Preventive detention without statutory authority
- B. A title conferred for social service
- C. A residence requirement for State employment made by a State executive order
- D. A measure specifically advancing women and children

Answer: D.

Explanation: Article 15(3) expressly saves special provisions for women and children. Article 16(3) residence conditions require parliamentary law; titles and detention are unrelated.

SOURCE HEADING [4] - Q10. Which statement concerning Article 16(4) is most accurate?

- A. It applies to private employment generally.
- B. It abolishes the Article 335 efficiency consideration.
- C. It enables the State to reserve appointments/posts for a backward class inadequately represented in State services.
- D. It creates an enforceable individual right to reservation in every service.

Answer: C.

Explanation: Article 16(4) is enabling and representation-linked. It does not compel reservation everywhere, does not generally regulate private employment and must operate with the wider constitutional scheme.

SOURCE HEADING [4] - Q11. Consider the following pairs:

1. Article 16(4A) - promotion reservation for SCs/STs
2. Article 16(4B) - separate treatment of backlog reserved vacancies
3. Article 335 proviso - relaxation in qualifying marks/standards for specified promotion reservation

How many pairs are correctly matched?

- A. None
- B. Only one
- C. All three
- D. Only two

Answer: C.

Explanation: All three are correctly matched. The provisions must still be read with *Nagaraj, Jarnail Singh* and data/efficiency doctrine.

SOURCE HEADING [4] - Q12. After State of Punjab v. Davinder Singh (2024), which proposition is correct?

- A. States may alter the Presidential Scheduled Castes list.
- B. One sub-class may receive the entire reservation without review.
- C. Every State must create a sub-quota.
- D. Evidence-based sub-classification within Scheduled Castes is permissible, without changing the Article 341 list.

Answer: D.

Explanation: The judgment permits, but does not mandate, sub-classification. Article 341 list-making remains constitutionally distinct, and exclusionary or unsupported design remains reviewable.

SOURCE HEADING [4] - Q13. Which combination is correct?

- A. Article 17 belongs to exploitation; Article 18 abolishes academic degrees.
- B. Article 17 permits caste disability if customary; Article 18 applies only to citizens.
- C. Article 17 directly reaches private untouchability; national awards are not Article 18 titles if not used as prefixes/suffixes.
- D. Article 17 covers only government untouchability; national awards are always prohibited.

Answer: C.

Explanation: Article 17 abolishes untouchability in any form and is horizontally enforceable. *Balaji Raghavan* upheld national awards while forbidding title-like use. Academic and military distinctions are expressly permitted.

SOURCE HEADING [4] - Q14. Which Article 19 restriction pairing is correct?

- A. Speech - protection of Scheduled Tribes under Article 19(5)
- B. Profession - contempt of court under Article 19(6)
- C. Association - sovereignty and integrity, public order and morality under Article 19(4)
- D. Movement - friendly relations with foreign States under Article 19(2)

Answer: C.

Explanation: Restriction grounds are clause-specific. ST protection belongs to movement/residence; friendly relations and contempt belong to speech; profession uses general-public interest, qualifications and State monopoly.

SOURCE HEADING [4] - Q15. With reference to the First Amendment's speech impact, consider the following:

1. It added public order.
2. It added friendly relations with foreign States.
3. It inserted "reasonable" before restrictions.
4. It added sovereignty and integrity of India.

Which are correct?

- A. 3 and 4 only

- B. 1 and 2 only
- C. 1, 2, 3 and 4
- D. 1, 2 and 3 only

Answer: D.

Explanation: The first three came through the First Amendment, 1951. Sovereignty and integrity was added by the Sixteenth Amendment, 1963.

SOURCE HEADING [4] - Q16. The 2024 Electoral Bonds judgment is best understood as holding that

- A. only the Scheme's administrative circular, not enabling provisions, was invalid.
- B. funding non-disclosure violated voter information, and unlimited corporate contribution architecture was manifestly arbitrary.
- C. donor privacy always defeats voter information.
- D. political funding lies wholly outside Article 19(1)(a).

Answer: B.

Explanation: The judgment connected political-funding information to informed voting and invalidated the Scheme/enabling secrecy architecture; it also found deletion of corporate limits manifestly arbitrary.

SOURCE HEADING [4] - Q17. Which statement accurately compares IPC section 124A and BNS section 152?

- A. BNS section 152 criminalises every criticism of government.
- B. Their wording and punishment are identical.
- C. Section 152 uses different ingredients focused on secession, armed rebellion, subversion, separatist activity and sovereignty/unity/integrity; "simple renaming" is inaccurate.
- D. Kedar Nath struck down section 124A, so no lineage exists.

Answer: C.

Explanation: The successor provision changes the protected object and ingredients and expressly covers electronic communication/financial means. *Kedar Nath* upheld the old law only through reading down.

SOURCE HEADING [4] - Q18. Which is a correct statement of Shreya Singhal?

- A. It struck down section 66A, upheld section 69A with safeguards and read down section 79.
- B. It held all offensive speech punishable.
- C. It upheld section 66A but struck down section 69A.
- D. It created a standalone Fundamental Right to internet access.

Answer: A.

Explanation: Vagueness, overbreadth and chilling effect invalidated 66A. Structured blocking under 69A survived, while intermediary knowledge under 79 was narrowed.

SOURCE HEADING [4] - Q19. Anuradha Bhasin most directly supports which proposition?

- A. Secret orders are valid if based on public order.

- B. Speech and trade through the internet are protected; orders require publication, review and proportionality, and indefinite suspension is impermissible.
- C. The Court declared internet access an independent Fundamental Right.
- D. All internet shutdowns are per se unconstitutional.

Answer: B.

Explanation: The Court protected constitutional freedoms exercised through the medium and imposed procedural/proportionality controls. It did not create the broad standalone right or invalidate every shutdown automatically.

SOURCE HEADING [4] - Q20. Which statement about criminal defamation is correct?

- A. *Subramanian Swamy* upheld criminal defamation; the present offence is carried by BNS section 356.
- B. Defamation is not mentioned in Article 19(2).
- C. Reputation has no Article 21 dimension.
- D. *Subramanian Swamy* invalidated criminal defamation.

Answer: A.

Explanation: Defamation is an express Article 19(2) ground, and the Court recognised reputation within Article 21. A critical answer may question proportionality without misstating the holding.

SOURCE HEADING [4] - Q21. Which Article 20 statement is correct?

- A. Article 20 can be included in an Article 359 suspension order.
- B. Article 20(1) bars retrospective creation/enhancement of criminal liability but permits a beneficial retrospective change.
- C. Article 20(3) applies only to citizens.
- D. Article 20(2) bars every departmental proceeding after a criminal case.

Answer: B.

Explanation: Article 20 protects all persons and is non-derogable under Article 359. Double jeopardy requires constitutional conditions; beneficial criminal retrospectivity is not the evil targeted by clause (1).

SOURCE HEADING [4] - Q22. Which of the following is most likely protected by Article 20(3)?

- A. Compelled testimonial disclosure by an accused that communicates personal knowledge against oneself
- B. Routine measurement of height
- C. Compulsory fingerprinting
- D. Collection of a lawfully authorised physical specimen in every circumstance

Answer: A.

Explanation: The core is compelled testimonial communication by an accused. Physical evidence is not automatically testimonial, though collection methods still face Article 21/statutory safeguards.

SOURCE HEADING [4] - Q23. Which sequence best represents Article 21's doctrinal expansion?

- A. Gopalan's siloed approach -> Cooper's effect analysis -> Maneka's fair, just and reasonable procedure

- B. Golaknath -> Minerva Mills -> Indra Sawhney
- C. Puttaswamy -> Gopalan -> Maneka
- D. Maneka -> Gopalan -> Cooper

Answer: A.

Explanation: The first sequence traces the transformation of liberty doctrine. The last concerns amendment/reservation rather than the Article 21 procedural arc.

SOURCE HEADING [4] - Q24. A court considers compulsory prenatal DNA testing solely because one party makes a bare allegation. Which is the strongest constitutional objection?

- A. Privacy is absolute, so DNA testing can never be ordered.
- B. Testing requires a strong lawful need, necessity, child-centred proportionality and attention to BSA section 116, not a roving inquiry.
- C. Article 21 does not protect bodily integrity.
- D. Paternity can never be litigated.

Answer: B.

Explanation: Privacy can yield to proportionate lawful need, but bare allegations do not satisfy that threshold. The legitimacy presumption and the child's dignity are material.

SOURCE HEADING [4] - Q25. Which statement about Article 21A is correct?

- A. It guarantees free and compulsory education for ages six to fourteen and is implemented principally through the RTE Act, 2009.
- B. It applies only to citizens over fourteen.
- C. It was inserted by the Forty-fourth Amendment.
- D. It guarantees university education to every person.

Answer: A.

Explanation: The Eighty-sixth Amendment inserted the age-bounded right and related changes to Article 45 and Article 51A(k).

SOURCE HEADING [4] - Q26. Which is correct regarding preventive detention under the current constitutional text?

- A. Article 22 prohibits it completely.
- B. Clauses 22(1)-(2) apply identically to preventive detention.
- C. Three months remains the no-Advisory-Board constitutional period because the 44th Amendment's two-month substitution was not commenced.
- D. Grounds never need communication.

Answer: C.

Explanation: Preventive detention is constitutionally permitted but separately safeguarded. Communication/representation duties apply subject to the public-interest withholding clause.

SOURCE HEADING [4] - Q27. Consider the following:

1. Article 23 applies against private forced labour.
2. Economic compulsion and payment below the legal minimum can enter forced-labour analysis.
3. Article 24 bars children below fourteen from factories, mines and hazardous employment.

How many are correct?

- A. Only two
- B. None
- C. Only one
- D. All three

Answer: D.

Explanation: All are correct. *PUDR* supplied the economic-compulsion insight; Article 24's constitutional text is hazard/factory/mine focused.

SOURCE HEADING [4] - Q28. Which statement correctly distinguishes Articles 25 and 26?

- A. Article 25 protects all persons and is subject to other Part III provisions; Article 26 protects denominations subject to public order, morality and health.
- B. Article 25 has no reform clause.
- C. Both are subject to other Fundamental Rights in identical words.
- D. Article 26 protects only individuals, not denominations.

Answer: A.

Explanation: The textual limits differ. Article 25(2) expressly permits secular regulation and social reform; Article 26 separates religious affairs from property administration.

SOURCE HEADING [4] - Q29. Which is the most accurate statement of the Essential Religious Practices doctrine?

- A. ERP originated in the Sabarimala case.
- B. ERP eliminates Article 25(2) reform power.
- C. Any practice asserted by a believer is automatically essential.
- D. *Shirur Mutt* distinguishes religious affairs from secular activity and examines essentiality by reference to religious doctrines, while the approach is criticised for judicial theology.

Answer: D.

Explanation: *Shirur Mutt* is the foundational authority. Essentiality is not established by assertion alone, and even religious claims face textual limits.

SOURCE HEADING [4] - Q30. Which statement about Articles 29 and 30 is correct?

- A. Article 29(1) is available only to numerical minorities.
- B. Article 30 creates a right to maladminister.
- C. Article 29(2) applies only to unaided private institutions.
- D. Article 29 can protect any distinct section of citizens; Article 30 protects religious and linguistic minority educational institutions.

Answer: D.

Explanation: Article 29's text says any section of citizens. Article 30 autonomy coexists with regulations for standards, and Article 29(2) addresses State-maintained/aided admissions.

SOURCE HEADING [4] - Q31. A tribunal is about to hear a matter that the statute plainly places outside its jurisdiction. Which writ is most directly preventive?

- A. Quo warrant

- B. Habeas corpus
- C. Prohibition
- D. Certiorari only after every appeal

Answer: C.

Explanation: Prohibition stops a lower court/tribunal from proceeding beyond jurisdiction. Certiorari generally quashes an order already made, though practical boundaries can overlap.

SOURCE HEADING [4] - Q32. Which proposition about Articles 32 and 226 is correct?

- A. Article 226 cannot reach a private body performing public duty.
- B. Article 32 is confined to Fundamental Rights, while Article 226 also reaches other legal rights and public duties.
- C. Article 32 and 226 are territorially and substantively identical.
- D. Article 32 enforces all legal rights; Article 226 only Fundamental Rights.

Answer: B.

Explanation: High Court writ jurisdiction is wider in subject matter. Article 32 is itself a Fundamental Right but requires an FR injury.

SOURCE HEADING [4] - Q33. Which statement about Article 31B is correct?

- A. Post-24 April 1973 Ninth Schedule insertions may be reviewed for damage to basic structure under *I.R. Coelho*.
- B. Every Ninth Schedule law is eternally immune.
- C. Only pre-Constitution laws can enter the Ninth Schedule.
- D. Article 31B is identical to Article 31C.

Answer: A.

Explanation: *I.R. Coelho* prevents Ninth Schedule placement from becoming a device to destroy basic-structure rights. Articles 31B and 31C use distinct mechanisms.

SOURCE HEADING [4] - Q34. After Property Owners Association (2024), which proposition is correct?

- A. Original Article 31C survives for Article 39(b)/(c), and private resources require a context-specific material-resource inquiry.
- B. Article 31C was completely deleted by *Minerva Mills*.
- C. Article 31C protects laws implementing any DPSP.
- D. Every private home is automatically a material resource.

Answer: A.

Explanation: The judgment rejects both the no-private-resource extreme and the all-private-resource extreme. Surviving Article 31C is tied to 39(a)/(d).

SOURCE HEADING [4] - Q35. Which combination is correctly matched?

1. Article 33 - Parliament may restrict rights of specified disciplined forces.
2. Article 34 - parliamentary indemnity/validation connected with martial law.
3. Article 35 - exclusive parliamentary competence over specified Part III matters.

- A. 1 and 2 only
- B. 1, 2 and 3
- C. 2 and 3 only
- D. 1 only

Answer: B.

Explanation: All are correct. State legislatures cannot exercise Article 33's special power, and martial law remains distinct from National Emergency.

SOURCE HEADING [4] - Q36. Which statement accurately distinguishes Articles 358 and 359?

- A. Article 359 deletes the specified rights permanently.
- B. Article 358 automatically concerns Article 19 in war/external-aggression Emergency; Article 359 is Presidential-order based and cannot include Articles 20-21.
- C. Article 358 applies to armed-rebellion Emergency and Article 359 can suspend Articles 20-21.
- D. Both automatically suspend all Fundamental Rights.

Answer: B.

Explanation: The mechanisms, triggers and effects differ. Article 359 suspends court enforcement for specified rights during the order; it does not amend the constitutional text.

SOURCE HEADING [4] - Q37. A candidate writes, "Article 27 prevents government from collecting any fee connected with a pilgrimage or religious institution." The correction is:

- A. Article 27 abolishes all general taxation.
- B. Article 27 applies only to citizens.
- C. Article 27 concerns religious instruction.
- D. Article 27 bars compelled taxation specifically appropriated to promote/maintain a particular religion; a regulatory or service fee is analytically different.

Answer: D.

Explanation: Tax versus fee and specific appropriation are the close-option controls. Religious instruction belongs to Article 28.

SOURCE HEADING [4] - Q38. A student writes, "Article 29 is only for minorities and Article 30 prevents all regulation." The best correction is:

- A. Both Articles apply only to the majority.
- B. Article 29(1) protects any distinct section of citizens; Article 30 minority autonomy remains subject to valid excellence/fairness regulation and carries no right to maladminister.
- C. Article 30 protects cultural festivals only.
- D. Article 29(2) permits religion-only denial of admission.

Answer: B.

Explanation: The two provisions have different claimants and objects. Institutional autonomy is real but not regulatory immunity.

SOURCE HEADING [4] - Q39. A candidate writes, "A Ninth Schedule law cannot be reviewed by any court." The correction is:

- A. Only Parliament may review it politically.

- B. Article 31B was repealed.
- C. Every Ninth Schedule law is automatically void.
- D. Post-24 April 1973 insertions are open to *I.R. Coelho* basic-structure review.

Answer: D.

Explanation: The Ninth Schedule still has protective force, but it cannot become a tunnel around basic structure.

SOURCE HEADING [4] - Q40. A student states, "Article 359 suspends the Fundamental Right itself, including Articles 20 and 21." The correct position is:

- A. Article 359 applies only to Article 19.
- B. It suspends the right to move courts for enforcement of specified rights during the order; Articles 20 and 21 cannot be included.
- C. Article 359 operates without a Presidential order.
- D. Article 359 permanently deletes the selected rights.

Answer: B.

Explanation: Enforcement suspension, textual extinction and Article 358 operation must be kept separate.

SOURCE HEADING [3] - Eight remedial MCQs

This separate eight-question remedial set rotates A -> C -> D -> B twice.

SOURCE HEADING [4] - R1. A candidate writes, "All Fundamental Rights are available only to citizens." The best correction is:

- A. Every Article protects companies in exactly the same manner.
- B. Articles 14, 20, 21, 22, 23, 24 and 25 protect persons; Articles 15, 16, 19 and 29 are textually citizen-specific, while Article 30 says "all minorities."
- C. Citizenship is irrelevant throughout Part III.
- D. Only Article 21 protects non-citizens.

Answer: B.

Explanation: The Constitution uses different beneficiary language. The remedy is textual reading, not a single memorised list detached from Article 30's wording and juristic-person limits.

SOURCE HEADING [4] - R2. A student says, "A private organisation can never face a Fundamental Rights remedy." The correct response is:

- A. Private actors are always Article 12 State.
- B. Only criminal courts can examine private rights violations.
- C. Article 32 applies to every private contract.
- D. Articles 15(2), 17, 23 and 24 have direct private reach; habeas corpus and Article 226 public-duty jurisdiction add remedial routes.

Answer: D.

Explanation: Horizontal reach is provision-specific. A private body is not automatically State, but explicit rights and public-duty remedies prevent the absolute claim.

SOURCE HEADING [4] - R3. A candidate writes, "The 50 per cent reservation ceiling is an exceptionless mathematical rule." The best correction is:

- A. Every State may cross it without reasons.
- B. There is no ceiling doctrine at all.
- C. *Indra Sawhney* states an ordinary 50 per cent rule with narrow extraordinary-situation space; later constitutional amendments and *Janhit Abhiyan* require precise treatment.
- D. The ceiling applies only to EWS.

Answer: C.

Explanation: Both absolutes are wrong. The ordinary ceiling remains a major doctrine, but EWS and exceptional-space jurisprudence make the word "never" unsafe.

SOURCE HEADING [4] - R4. A student writes, "Davinder Singh requires every State to create a Scheduled Caste sub-quota." The correction is:

- A. The case abolished SC reservation.
- B. The case transferred Article 341 list power to States.
- C. The case fixed one nationwide percentage.
- D. It permits evidence-based sub-classification without mandating it or altering the Presidential List.

Answer: D.

Explanation: Permission, compulsion and list alteration are three different propositions. Only the first is the controlling holding.

SOURCE HEADING [4] - R5. A candidate writes, "Anuradha Bhasin declared internet access a Fundamental Right." The best correction is:

- A. It concerned only Article 14.
- B. It upheld indefinite shutdowns.
- C. It protected speech and trade conducted through the internet and imposed publication, review, duration and proportionality controls; it did not make the broad standalone declaration.
- D. It removed the State's telecom-suspension power entirely.

Answer: C.

Explanation: The medium and the underlying freedom must be kept distinct. The case's procedural holdings are as important as its Article 19 analysis.

SOURCE HEADING [4] - R6. A student writes, "BNS section 152 is just IPC section 124A with a new number." The correct response is:

- A. Section 152 has differently framed ingredients centred on secession, armed rebellion, subversion, separatist activity and sovereignty/unity/integrity, including electronic/financial means.
- B. The provisions are unrelated to speech.
- C. Kedar Nath automatically invalidated it.
- D. Section 152 punishes only violence already completed.

Answer: A.

Explanation: "Simple renaming" suppresses material textual differences. Constitutional review must address the successor provision on its own language while using settled speech principles.

SOURCE HEADING [4] - R7. A candidate states, "Article 20(3) prevents collection of every bodily sample." The precise correction is:

- A. The clause applies only in civil suits.
- B. Bodily samples are always admissible regardless of procedure.
- C. The clause targets compelled testimonial communication; physical evidence is analytically distinct but still subject to Article 21 and statutory safeguards.
- D. Article 20(3) never applies to an accused.

Answer: C.

Explanation: *Kathi Kalu Oghad* supplies the testimonial/physical distinction. The correction avoids both overbreadth and a rights-free collection process.

SOURCE HEADING [4] - R8. A student says, "The 44th Amendment reduced preventive detention without Advisory Board approval to two months." The correct position is:

- A. The two-month substitution was not brought into force; the operative constitutional period remains three months.
- B. It transferred the power to courts.
- C. It increased the period to six months.
- D. It abolished preventive detention.

Answer: A.

Explanation: The amendment text and its commencement are distinct. UPSC repeatedly tests this unenforced clause.

SOURCE HEADING [2] - PYQS AND ANSWER PRACTICE

SOURCE HEADING [3] - Twenty-one verified routed PYQs with independent solutions

SOURCE HEADING [4] - Mains PYQ 1. UPSC 2019 GS-II Q5 - What can France learn from the Indian Constitution's approach to secularism? (10 marks, 150 words)

Model answer. Thesis: France can learn from India that secularism in a deeply plural society may require principled engagement with religion rather than only a strict public-private wall.

Constitutional design: Articles 25-26 protect individual conscience and denominational autonomy, while Articles 27-28 restrain religious taxation and instruction. Yet Article 25(2) allows regulation of secular activity and social reform; Article 17 abolishes untouchability. **Analysis:** This creates three lessons for French laïcité. First, equal citizenship need not erase public religious identity. Second, accommodation - such as denomination-sensitive autonomy - can coexist with public order, health, morality and equality. Third, the State may intervene asymmetrically where reform is needed, while maintaining equal concern for all faiths. *S.R. Bommai* treats secularism as a basic feature, and *Shirur Mutt* distinguishes protected religious affairs from regulable secular administration. **Qualification:** India's model also risks selective intervention and judicial theology through the ERP test; France cannot transplant it without its own constitutional history. **Conclusion:** The transferable lesson is not State religiosity, but context-sensitive neutrality: protect conscience, regulate harm and preserve equal citizenship.

Why this earns marks: It answers "what can learn," uses Articles 17 and 25-28 plus *Bommai* and *Shirur Mutt*, compares institutional logics, states a limitation and gives a graded conclusion.

SOURCE HEADING [4] - Mains PYQ 2. UPSC 2021 GS-II Q13 - Analyze the distinguishing features of the notion of Right to Equality in the Constitutions of the USA and India. (15 marks, 250 words)

Model answer. Thesis: Both Constitutions reject arbitrary hierarchy, but India constitutionalises a broader, group-conscious equality code while the US model centres on the Fourteenth Amendment's Equal Protection Clause.

Text and structure: Article 14 combines British **equality before law** with American **equal protection of laws**. India then adds Articles 15-16 on prohibited grounds and public opportunity, Article 17's abolition of untouchability, and Article 18's abolition of titles. The US Constitution has no direct equivalent of this five-Article code.

Substantive equality: India expressly authorises special provisions for women/children, SEBCs, SCs/STs and EWS under Articles 15(3)-(6), and service reservation under Article 16(4)-(6). In the US, affirmative action developed judicially/statutorily under a text that does not expressly authorise group reservations; judicial review uses tiered scrutiny.

Judicial tests: Indian courts use intelligible differentia plus rational nexus, and since *E.P. Royappa* and *Maneka Gandhi*, anti-arbitrariness. *Indra Sawhney* adds creamy-layer and ordinary ceiling discipline; *Janhit Abhiyan* upheld EWS by majority. US doctrine differentiates strict, intermediate and rational-basis scrutiny.

Enforcement and social context: Article 32 itself is a Fundamental Right; Article 17 directly reaches private caste practice. US equal-protection duties generally require State action, though civil-rights statutes regulate private discrimination.

Qualification: Neither system is purely formal or purely group-blind; both have contested affirmative-action histories. **Conclusion:** India's distinctive feature is an explicit anti-hierarchy and protective-discrimination Constitution, whereas US equality grows from a general clause through judicial tiers.

Why this earns marks: It compares text, beneficiaries, affirmative action, judicial tests, private reach and remedies rather than merely listing provisions; it uses named doctrine and avoids caricaturing either system.

SOURCE HEADING [4] - Mains PYQ 3. UPSC 2022 GS-II Q2 - "Right of movement and residence throughout the territory of India are freely available to the Indian citizens, but these rights are not absolute." Comment. (10 marks, 150 words)

Model answer. Thesis: Articles 19(1)(d) and 19(1)(e) make internal mobility and settlement core incidents of common citizenship, but Article 19(5) expressly subjects both to reasonable restrictions.

Scope: The freedoms belong only to citizens and operate against State restriction. They promote national integration, labour mobility and personal choice. Travel abroad, however, is protected under Article 21 after *Maneka Gandhi*, not Article 19(1)(d).

Limits: Article 19(5) permits restrictions in the interests of the general public or for protection of Scheduled Tribes. Constitutionally supportable illustrations include carefully drawn protected-area/tribal-land regimes, public-health quarantine and proportionate public-order restrictions. A restriction still requires valid law, rational connection, necessity and non-arbitrariness under Articles 14 and 19.

Qualification: "General public interest" is not an executive blank cheque; excessive duration, geographic breadth or discriminatory implementation can fail reasonableness.

Conclusion: Movement and residence are presumptive freedoms within a single Union, while Article 19(5) preserves proportionate protection of vulnerable communities and genuine public interests.

Why this earns marks: It names both freedoms and the exact Article 19(5) grounds, distinguishes foreign travel, applies proportionality and ends with a qualified comment.

SOURCE HEADING [4] - Mains PYQ 4. UPSC 2023 GS-II Q11 - "The Constitution of India is a living instrument with capabilities of enormous dynamism. It is a constitution made for a progressive society." Illustrate with special reference to the expanding horizons of the right to life and personal liberty. (15 marks, 250 words)

Model answer. Thesis: Article 21 demonstrates constitutional dynamism: an apparently procedural guarantee has become a dignity-based charter without textual replacement.

Doctrinal arc: *A.K. Gopalan* read "procedure established by law" narrowly and treated rights as silos. *R.C. Cooper* shifted attention to the effect of State action. *Maneka Gandhi* then required procedure to be fair, just and reasonable and linked Articles 14, 19 and 21.

Expanding horizons: *Francis Coralie Mullin* made dignity central; *Hussainara Khatoon* recognised speedy trial; *M.H. Hoskot* and Article 39A support free legal aid; *Olga Tellis* protected livelihood through fair procedure; *D.K. Basu* constitutionalised arrest safeguards and compensation; environmental cases linked clean air/water to life. *K.S. Puttaswamy* unanimously protected bodily, decisional and informational privacy. *Navtej Singh Johar* applied dignity, privacy and equality to intimate autonomy.

Progressive constitutionalism: These holdings allow old text to answer new problems - surveillance, data processing, custodial power and reproductive choice. The later insertion of Article 21A shows that interpretation and amendment can complement each other.

Qualification: Expansion must retain administrable standards. *Olga Tellis*, for example, did not create immunity from eviction; recognition of livelihood required fair procedure. Courts should secure a rights floor without converting every policy aspiration into an unlimited entitlement.

Conclusion: Article 21 is "living" because stable text is repeatedly applied through dignity, fairness and proportionality to changing forms of power.

Why this earns marks: It directly illustrates dynamism through a chronological case arc, uses more than six named holdings, explains what each proves and includes an institutional limitation.

SOURCE HEADING [4] - Mains PYQ 5. UPSC 2023 GS-II Q12 - Explain the constitutional perspectives of Gender Justice with the help of relevant Constitutional Provisions and case laws. (15 marks, 250 words)

Model answer. Thesis: The Constitution moves gender justice from formal non-discrimination to substantive equality, dignity, autonomy and institutional protection.

Equality: Articles 14 and 16 guarantee equality and public opportunity; Article 15(1) bars discrimination only on sex, while Article 15(3) authorises special provisions for women and children. This permits corrective measures rather than requiring gender blindness.

Freedom and dignity: Articles 19(1)(a)/(g) and 21 protect voice, work, bodily integrity, reproductive choice and decisional autonomy. Article 23 attacks trafficking; Article 39(d), 42 and 51A(e) strengthen equal pay, humane work/maternity relief and rejection of practices derogatory to women's dignity.

Cases: *Vishaka v. State of Rajasthan* converted Articles 14, 19(1)(g) and 21 plus CEDAW into binding workplace-harassment safeguards until legislation. *Anuj Garg* rejected paternalistic exclusion from employment. *Joseph Shine* invalidated adultery law that treated women as marital property. *Secretary, Ministry of Defence v. Babita Puniya* rejected stereotypes in permanent commission. *Suchita Srivastava* linked reproductive choice to liberty; *Shayara Bano* used equality/manifest arbitrariness against instant triple talaq.

Qualification: Protective law can itself become paternalistic; the test is whether it expands agency or fixes women into dependency. Social justice delivery and representation remain uneven despite constitutional doctrine.

Conclusion: Gender justice requires the State to remove direct discrimination, dismantle structural stereotypes and protect equal autonomy in public and private life.

Why this earns marks: It integrates Fundamental Rights, DPSPs/duty and six targeted cases, distinguishes protection from paternalism and preserves the Social Justice implementation cross-link.

SOURCE HEADING [4] - Mains PYQ 6. UPSC 2024 GS-II Q12 - Right to privacy is intrinsic to life and personal liberty and is inherently protected under Article 21 of the Constitution. Explain. In this reference discuss the law relating to D.N.A. testing of child in the womb to establish its paternity. (15 marks, 250 words)

Model answer. Thesis: Privacy is a constitutionally protected sphere of bodily integrity, decisional autonomy and personal information, but a lawful, necessary and proportionate intrusion may be justified for a compelling adjudicatory need.

Constitutional basis: *K.S. Puttaswamy* (2017), a nine-judge decision, held privacy intrinsic to Article 21 and Part III. Interference requires law, legitimate aim, proportionality and safeguards. Pregnancy and DNA sampling engage the woman's bodily integrity, the child's identity/dignity and family privacy; they cannot be treated as ordinary documentary discovery.

Paternity framework: Bharatiya Sakshya Adhiniyam, 2023 section 116 continues the conclusive presumption that a child born during a valid marriage, or within 280 days after dissolution while the mother remains unmarried, is legitimate unless non-access is proved. The presumption protects status and social dignity. Courts have therefore required a strong prima facie foundation or eminent need before DNA testing, considered less intrusive evidence, and prioritised the child's welfare. *Bhabani Prasad Jena* cautioned against routine tests; *Nandlal Wasudeo Badwaik* shows that reliable DNA evidence can become decisive where testing is lawfully justified.

Qualification: Truth-seeking is legitimate, but compulsion must not become a roving inquiry. Refusal may have evidentiary consequences only within fair procedure; it does not automatically erase bodily autonomy or the statutory presumption.

Conclusion: Privacy does not create absolute immunity from DNA evidence; it converts the judicial question into one of legality, necessity, child-centred proportionality and safeguards.

Why this earns marks: It answers both halves, updates the evidence-law section, uses *Puttaswamy* plus paternity authorities, applies the four-part privacy test and gives a precise qualified conclusion.

SOURCE HEADING [4] - Prelims PYQ 1. UPSC 2018 GS-I Q92 - Privacy

Right to Privacy is protected as an intrinsic part of Right to Life and Personal Liberty. Which of the following in the Constitution of India correctly and appropriately imply the above statement?

- A. Article 14 and the provisions under the Amendment to the Constitution

- B. Article 17 and the Directive Principles of State Policy in Part IV
- C. Article 21 and the freedoms guaranteed in Part III
- D. Article 24 and the provisions under the 44th Amendment to the Constitution

INFERRED ANSWER - NOT OFFICIALLY VERIFIED: C (high confidence).

Explanation: *Puttaswamy* states that privacy is intrinsic to Article 21 and forms part of the freedoms guaranteed by Part III. Article 14 contributes equality review, but option A's amendment formulation is not the holding.

SOURCE HEADING [4] - Prelims PYQ 2. UPSC 2019 GS-I Q56 - Right to marry

Which Article of the Constitution of India safeguards one's right to marry the person of one's choice?

- A. Article 19
- B. Article 21
- C. Article 25
- D. Article 29

INFERRED ANSWER - NOT OFFICIALLY VERIFIED: B (high confidence).

Explanation: Adult choice in marriage is protected through life, liberty, dignity and autonomy under Article 21, illustrated by *Lata Singh* and *Shafin Jahan*.

SOURCE HEADING [4] - Prelims PYQ 3. UPSC 2019 GS-I Q85 - Liberty

In the context of polity, which one of the following would you accept as the most appropriate definition of liberty?

- A. Protection against the tyranny of political rulers
- B. Absence of restraint
- C. Opportunity to do whatever one likes
- D. Opportunity to develop oneself fully

INFERRED ANSWER - NOT OFFICIALLY VERIFIED: D (high confidence).

Explanation: Constitutional liberty is not mere absence of restraint or licence; it creates the protected sphere in which personality and capacity can develop consistently with others' equal freedom.

SOURCE HEADING [4] - Prelims PYQ 4. UPSC 2020 GS-I Q4 - Untouchability

Which one of the following categories of Fundamental Rights incorporates protection against untouchability as a form of discrimination?

- A. Right against Exploitation
- B. Right to Freedom
- C. Right to Constitutional Remedies
- D. Right to Equality

INFERRED ANSWER - NOT OFFICIALLY VERIFIED: D (high confidence).

Explanation: Article 17 lies within Articles 14-18, the Right to Equality. Article 23, not Article 17, addresses begar (forced unpaid labour) and forced labour.

SOURCE HEADING [4] - Prelims PYQ 5. UPSC 2021 GS-I Q79 - Privacy Article

'Right to Privacy' is protected under which Article of the Constitution of India?

- A. Article 15
- B. Article 19
- C. Article 21
- D. Article 29

INFERRED ANSWER - NOT OFFICIALLY VERIFIED: C (high confidence).

Explanation: Privacy is intrinsic to Article 21 and Part III. Some privacy applications also engage Article 19, but the requested Article is 21.

SOURCE HEADING [4] - Prelims PYQ 6. UPSC 2021 GS-I Q82 - Judicial custody

With reference to India, consider the following statements:

1. Judicial custody means an accused is in the custody of the concerned magistrate and such accused is locked up in police station, not in jail.
2. During judicial custody, the police officer in charge of the case is not allowed to interrogate the suspect without the approval of the court.

Which of the statements given above is/are correct?

- A. 1 only
- B. 2 only
- C. Both 1 and 2
- D. Neither 1 nor 2

INFERRED ANSWER - NOT OFFICIALLY VERIFIED: B (high confidence).

Explanation: Judicial custody ordinarily places the accused in jail under judicial authority, not a police station, so statement 1 is false. Police interrogation during judicial custody requires court permission, making statement 2 correct.

SOURCE HEADING [4] - Prelims PYQ 7. UPSC 2021 GS-I Q83 - Parole

With reference to India, consider the following statements:

1. When a prisoner makes out a sufficient case, parole cannot be denied because it becomes a matter of right.
2. State Governments have their own Prisoners Release on Parole Rules.

Which of the statements given above is/are correct?

- A. 1 only
- B. 2 only
- C. Both 1 and 2
- D. Neither 1 nor 2

INFERRED ANSWER - NOT OFFICIALLY VERIFIED: B (high confidence).

Explanation: Parole is ordinarily discretionary and governed by applicable prison/parole rules; it is not an automatic Fundamental Right. Prisons are a State subject and States maintain their own rule frameworks.

SOURCE HEADING [4] - Prelims PYQ 8. UPSC 2021 GS-I Q85 - Unguided discretion

A legislation which confers on the executive or administrative authority an unguided and uncontrolled discretionary power in the matter of application of law violates which one of the following Articles?

- A. Article 14
- B. Article 28
- C. Article 32
- D. Article 44

INFERRED ANSWER - NOT OFFICIALLY VERIFIED: A (high confidence).

Explanation: Uncanalised discretion is arbitrary and violates Article 14's equality/non-arbitrariness guarantee.

SOURCE HEADING [4] - Prelims PYQ 9. UPSC 2021 GS-I Q92 - Right to Property

What is the position of the Right to Property in India?

- A. Legal right available to citizens only
- B. Legal right available to any person
- C. Fundamental Right available to citizens only
- D. Neither Fundamental Right nor legal right

INFERRED ANSWER - NOT OFFICIALLY VERIFIED: B (high confidence).

Explanation: Article 300A protects "no person," so it is not citizen-only. The technically fuller description is a constitutional right, not a Fundamental Right; among the options, B is correct.

SOURCE HEADING [4] - Prelims PYQ 10. UPSC 2021 GS-I Q96 - Bharat Ratna and Padma Awards

Consider the following statements:

1. Bharat Ratna and Padma Awards are titles under Article 18(1).
2. Padma Awards, instituted in 1954, were suspended only once.
3. The number of Bharat Ratna Awards is restricted to a maximum of five in a particular year.

Which of the above statements are not correct?

- A. 1 and 2 only
- B. 2 and 3 only
- C. 1 and 3 only
- D. 1, 2 and 3

INFERRED ANSWER - NOT OFFICIALLY VERIFIED: D (high confidence).

Explanation: National awards are not prohibited titles (*Balaji Raghavan*); Padma awards were suspended in more than one period; and Bharat Ratna regulations do not set a five-per-year maximum (the conventional annual cap is three). All three statements are incorrect.

SOURCE HEADING [4] - Prelims PYQ 11. UPSC 2022 GS-I Q18 - Mandamus and Quo Warranto

With reference to the writs issued by the Courts in India, consider the following statements:

1. Mandamus will not lie against a private organisation unless it is entrusted with a public duty.
2. Mandamus will not lie against a Company even though it may be a Government Company.

3. Any public-minded person can be a petitioner to move the Court to obtain the writ of Quo Warranto.

Which of the statements given above are correct?

- A. 1 and 2 only
- B. 2 and 3 only
- C. 1 and 3 only
- D. 1, 2 and 3

INFERRED ANSWER - NOT OFFICIALLY VERIFIED: C (high confidence).

Explanation: Mandamus can reach a private body entrusted with public duty and can reach a government company where public duty exists, so statement 2 is false. Quo warranto uses relaxed standing because it protects the public character of an office.

SOURCE HEADING [4] - Prelims PYQ 12. UPSC 2023 GS-I Q31 - Due Process

In essence, what does 'Due Process of Law' mean?

- A. The principle of natural justice
- B. The procedure established by law
- C. Fair application of law
- D. Equality before law

INFERRED ANSWER - NOT OFFICIALLY VERIFIED: A (moderate-to-high confidence).

Explanation: Due process in essence requires fair hearing, impartiality and non-arbitrary procedure - the principles of natural justice. Option C is close but less doctrinally precise; *Maneka Gandhi* reads fairness into Article 21's procedure-established formulation.

SOURCE HEADING [4] - Prelims PYQ 13. UPSC 2023 GS-I Q40 - Reservation and efficiency

Consider the following statements:

Statement I: The Supreme Court has held in some judgments that reservation policies made under Article 16(4) would be limited by Article 335 for maintenance of efficiency of administration.

Statement II: Article 335 defines the term 'efficiency of administration'.

Which one of the following is correct?

- A. Both are correct and II correctly explains I
- B. Both are correct but II does not explain I
- C. I is correct but II is incorrect
- D. I is incorrect but II is correct

INFERRED ANSWER - NOT OFFICIALLY VERIFIED: C (high confidence).

Explanation: Article 335 supplies the efficiency consideration but does not define "efficiency of administration." The Court has used it in reservation doctrine, so I is true and II false.

SOURCE HEADING [4] - Prelims PYQ 14. UPSC 2024 GS-I Q76 - Right to Privacy

Under which of the following Articles of the Constitution of India has the Supreme Court placed the Right to Privacy?

- A. Article 15

- B. Article 16
- C. Article 19
- D. Article 21

OFFICIAL LOCAL UPSC KEY VERIFIED: D.

Explanation: The local official Set-A key records Q76 as D. *Puttaswamy* placed privacy intrinsically within Article 21 and Part III.

SOURCE HEADING [4] - Prelims PYQ 15. UPSC 2026 GS-I Q54 - Article 13 and custom

'X' was addressing a seminar on the meaning of the term 'law' under Article 13. X explained that law included ordinances, orders, rules and regulations, but was not convinced that custom or usage having the force of law was included. 'Y' maintained that such custom or usage was included. Select the correct conclusion:

- A. X is correct, including on non-inclusion of custom
- B. Y's view that law includes custom is incorrect
- C. The views of both X and Y are correct
- D. Only Y's view is correct

PROVISIONAL 2026 KEY - NOT OFFICIAL: D.

Explanation: Article 13(3)(a) expressly includes custom or usage having in India the force of law. X's examples are correct, but X's rejection of custom is wrong; Y alone is correct. The local Set-A provisional key records Q54 as D.

SOURCE HEADING [3] - Nine original solved Mains models

SOURCE HEADING [4] - OQ1. Fundamental Rights are qualified guarantees, not absolute liberties. Explain the constitutional method by which India limits and protects them. (10 marks, 150 words)

Model answer. Thesis: Part III protects liberty through structured limitation: government must point to constitutional text, valid law and a reasonable means, while courts preserve an enforceable core.

Architecture: Article 14 permits classification only through intelligible differentia and rational nexus and independently bars arbitrariness after *E.P. Royappa*. Article 19 supplies a closed list of restriction grounds - for example, speech can be limited only within Article 19(2), not for mere offensiveness. Articles 25-26 expressly recognise public order, morality and health; Article 25 also yields to other Fundamental Rights and reform under clause (2).

Judicial control: *Maneka Gandhi* requires fair, just and reasonable procedure; *Puttaswamy* adds legality, legitimate aim, proportionality and safeguards. Article 32 guarantees a direct constitutional remedy, while Article 226 is wider.

Qualification: Special clauses such as 31A-31C and Emergency Articles 358-359 narrow review or enforcement only within their own conditions; Articles 20 and 21 remain protected from Article 359.

Conclusion: Indian rights are neither absolute nor gifts of government: their limits are constitutionally enumerated, reasoned and judicially reviewable.

Why this earns marks: It explains a method rather than listing rights, uses Articles 14, 19, 25, 32, 31A-C and 358-359 plus three cases, and closes with the qualified proposition asked.

SOURCE HEADING [4] - OQ2. Article 13 makes judicial review practical through a family of doctrines. Discuss severability, eclipse and waiver. (10 marks, 150 words)

Model answer. Thesis: Article 13 invalidates law "to the extent" of inconsistency, allowing courts to protect rights without mechanically erasing an entire legal order.

Severability: If the offending provision can be removed and the remainder remains workable and legislatively intended, only the invalid portion falls. This gives operational meaning to "to the extent of."

Eclipse: Under *Bhikaji Narain Dhakras*, a pre-Constitution law inconsistent with a Fundamental Right lies dormant against that right rather than becoming dead for every purpose; it may revive if the constitutional shadow is removed. The classic rule does not automatically revive a post-Constitution law void under Article 13(2).

No waiver: *Bhaskar Nath* and *Olga Tellis* reject individual surrender or estoppel as a means to validate unconstitutional State action. Fundamental Rights are public limits on power, not merely private benefits.

Qualification: Constitutional amendments follow the Article 368/basic-structure route after Article 13(4) and *Kesavananda Bharati*.

Conclusion: The doctrines combine rights supremacy with legal continuity and calibrated remedies.

Why this earns marks: It defines all three doctrines, distinguishes pre/post-Constitution law, explains rationale and links amendment review without drifting into the whole basic-structure chapter.

SOURCE HEADING [4] - OQ3. Preventive detention is a constitutional anomaly within the Right to Freedom. Examine. (10 marks, 150 words)

Model answer. Thesis: Article 22 simultaneously constitutionalises detention without trial and attempts to civilise it through minimum procedural safeguards.

Anomaly: Preventive detention responds to anticipated conduct, unlike punitive detention after adjudication. Article 22(3) excludes preventive detainees from the ordinary clauses requiring counsel and magistrate production within 24 hours. This sits uneasily with *Maneka Gandhi's* fair-procedure principle and Article 21 liberty.

Safeguards: Articles 22(4)-(7) cap detention without Advisory Board approval at the presently operative three months; require communication of grounds as soon as may be; and provide the earliest opportunity to represent, while allowing public-interest withholding. Parliament and States legislate within their distribution-of-power fields.

Implementation concern: vague grounds, delayed communication and repetitive detention orders can make review formal rather than effective.

Qualification: The Forty-fourth Amendment's proposed two-month substitution was never commenced, so asserting two months as current law is wrong.

Conclusion: Preventive detention remains constitutionally valid but legitimate only as an exceptional, narrowly construed and rigorously reviewed power.

Why this earns marks: It answers "anomaly," contrasts punitive/preventive detention, names exact safeguards and the unenforced amendment trap, and offers a constitutionally grounded verdict.

SOURCE HEADING [4] - OQ4. India's reservation jurisprudence seeks substantive equality but is controlled by evidence, limits and administrative efficiency. Analyse. (15 marks, 250 words)

Model answer. Thesis: Reservation is a constitutional technique of equal opportunity, not a departure from equality; its legitimacy depends on identifying disadvantage and under-representation without converting enabling power into unreviewable allocation.

Constitutional basis: Articles 15(4)-(6) authorise educational/special provisions for SEBCs, SCs/STs and EWS; Articles 16(4), 16(4A), 16(4B) and 16(6) address appointment, promotion/backlog and EWS. Article 335 adds the efficiency consideration.

Judicial controls: *Indra Sawhney* upheld OBC reservation, required creamy-layer exclusion, set the ordinary 50 per cent ceiling and excluded promotion from Article 16(4). The 77th, 81st, 82nd and 85th Amendments rebuilt promotion/backlog tools. *M. Nagaraj* required data on inadequate representation and attention to efficiency; *Jarnail Singh* removed the need to re-prove SC/ST backwardness but retained inadequacy/efficiency discipline.

New dimensions: *Janhit Abhiyan* upheld the 103rd Amendment's EWS design by majority. *Davinder Singh* (2024) permitted evidence-based SC sub-classification to reach the most disadvantaged, without allowing States to alter Article 341 lists or mandating sub-quotas.

Assessment: Data prevents political assertion from replacing constitutional need; creamy layer guards capture; Article 335 requires capable administration. Yet "efficiency" cannot mean preserving historically exclusionary institutions.

Conclusion: Reservation serves substantive equality when targeted, evidence-based, reviewable and combined with education/training rather than treated as either permanent patronage or an anti-merit exception.

Why this earns marks: It follows claim -> provisions -> amendment/case evidence -> what each controls -> qualification, includes 2024 law and gives a balanced understanding of efficiency.

SOURCE HEADING [4] - OQ5. India's freedom of speech is protected through a structured test, not an absolute slogan. Discuss with special reference to digital speech and political information. (15 marks, 250 words)

Model answer. Thesis: Article 19(1)(a) presumptively protects expression, press circulation and democratic information, while Article 19(2) allows only eight enumerated, reasonable and law-based grounds.

Historical settlement: *Romesh Thappar* and *Brij Bhushan* invalidated circulation/pre-censorship restraints under the original text. The First Amendment added public order, friendly relations and incitement, but also inserted "reasonable"; the Sixteenth Amendment later added sovereignty and integrity.

Doctrinal test: *Kedar Nath* saved old IPC section 124A only by confining it to incitement to violence/public disorder. *Shreya Singhal* struck section 66A for vagueness, overbreadth and chilling effect, protected discussion/advocacy short of incitement, upheld section 69A and read down section 79.

Digital process: *Anuradha Bhasin* protected speech/trade through the internet and required published orders, proportionality, periodic review and no indefinite suspension; it did not create a standalone internet right.

Political information: *Association for Democratic Reforms* (2024) invalidated Electoral Bond secrecy because voters need political-funding information under Article 19(1)(a), linking transparency with political equality.

Current criminal law: BNS section 152 is a differently drafted successor focused on secession, rebellion, subversion and sovereignty; calling it a mere renaming obscures the new constitutional inquiry.

Conclusion: Speech protection succeeds when grounds remain closed and State process is precise, published, proportionate and reviewable.

Why this earns marks: It uses the historical sequence, exact doctrinal holdings, digital procedure, electoral transparency and current BNS control, while correcting two common overstatements.

SOURCE HEADING [4] - OQ6. Article 21 has transformed the Supreme Court into a guarantor of dignity, but its expansion also raises institutional concerns. Critically examine. (15 marks, 250 words)

Model answer. Thesis: Article 21's expansion is the Constitution's strongest dignity achievement, but the Court must distinguish enforceable minimums from policy administration.

Transformation: *Gopalan*'s narrow, siloed procedure yielded to *R.C. Cooper* and *Maneka Gandhi*, which required fair, just and reasonable law and linked Articles 14, 19 and 21. *Francis Coralie* made dignity central. *Hussainara* and *Hoskot* secured speedy trial/legal aid; *D.K. Basu* imposed arrest safeguards and compensation; *Sunil Batra* protected prisoners; *Olga Tellis* recognised livelihood; environmental cases protected clean air/water.

Autonomy: *Puttaswamy* recognised bodily, decisional and informational privacy through legality, legitimate aim, proportionality and safeguards. *Navtej Singh Johar* and reproductive-choice cases applied dignity to intimate autonomy. Article 21A's later insertion shows amendment can crystallise judicially identified needs.

Institutional concern: Expansive declarations may lack budget, statutory detail or monitoring capacity. A right to livelihood, shelter or health can become rhetorically unlimited if detached from a concrete duty, responsible institution and remedy. *Olga Tellis* itself allowed eviction subject to fair procedure, illustrating remedial restraint.

Assessment: Courts are institutionally strongest at stopping coercion, requiring reasons, removing discrimination and enforcing emergency minima; legislatures/executives should design distributive systems above that floor.

Conclusion: Article 21 should remain a dynamic dignity floor, not an unbounded judicial policy code.

Why this earns marks: It presents both achievement and concern, supplies eight named authorities, explains remedial limits and gives an institutional rather than ideological criticism.

SOURCE HEADING [4] - OQ7. Religious freedom in India combines protection, regulation and reform. Critically examine the Essential Religious Practices doctrine within this model. (20 marks, 250 words)

Model answer. Thesis: Articles 25-26 create neither a theocratic privilege nor a strict separation wall; they protect conscience and denominational affairs while allowing public-order limits, secular regulation and social reform. ERP is the judiciary's contested device for drawing that boundary.

Constitutional design: Article 25 protects all persons, subject to public order, morality, health, other Fundamental Rights and Article 25(2) regulation/reform. Article 26 protects denominations in

religious affairs but permits lawful regulation of property administration. Articles 27-28 restrain religious taxation and instruction.

ERP origin and use: *Shirur Mutt* distinguished religious matters from secular activities and referred essentiality to religious doctrines. The doctrine prevents every associated activity from claiming immunity. *Durgah Committee* introduced a narrower judicial filter; later cases often asked courts to determine theological centrality. In *Sabarimala* (2018), the majority rejected the exclusion practice through denomination, equality and constitutional-morality reasoning.

Defence: ERP preserves a protected religious core while enabling reform and preventing commercial/administrative practices from escaping law.

Criticism: Secular judges may become theologians; essentiality can freeze religion, privilege texts over lived practice and avoid the more transparent question of harm/proportionality.

Better approach: First classify individual/denominational claims and religious/secular activity; then apply explicit text, competing rights, harm, reform authority and proportionality. Essentiality should not substitute for the Constitution's express limits.

Conclusion: ERP is useful as a threshold but constitutionally legitimate only when disciplined by equality, dignity and institutional humility.

Why this earns marks: It covers all four religion Articles, origin/evolution/application, defence and criticism, and proposes a text-first test rather than a slogan.

SOURCE HEADING [4] - OQ8. "Article 32 is the heart and soul of the Constitution, but Article 226 is the wider remedial jurisdiction." Examine. (20 marks, 250 words)

Model answer. Thesis: Article 32 gives Fundamental Rights guaranteed access to the Supreme Court; Article 226 gives High Courts a wider subject-matter and public-duty reach. They are complementary pillars of judicial review.

Article 32: It is itself a Fundamental Right and authorises writs for enforcement of Part III. Ambedkar's "heart and soul" description reflects direct access, while *L. Chandra Kumar* and basic-structure doctrine protect judicial review from exclusion. The Supreme Court's jurisdiction is original but not exclusive.

Article 226: High Courts may issue writs for Fundamental Rights **and any other purpose**, including ordinary legal rights and public duties. Territorial/cause-of-action proximity and fact-sensitive supervision often make the High Court the effective first constitutional court. A non-State body performing a public duty may be reached even when Article 12 status fails.

Writ logic: Habeas corpus cures unlawful detention, including private detention; mandamus compels public duty; prohibition stops jurisdictional excess; certiorari quashes defective orders; quo warranto protects public office with relaxed standing.

Qualifications: Article 32 is not a general appeal over every illegality; an FR injury is essential. High Court relief is discretionary and may consider alternate remedy, delay or disputed facts, though these rules are not absolute bars in rights cases.

PIL contribution: Relaxed standing enabled bonded-labour and prisoner claims, but institutional detail belongs to the Supreme Court/PIL chapter.

Conclusion: Article 32 constitutionalises the right to a remedy; Article 226 decentralises and broadens public-law justice. Weakening either would impair basic structure.

Why this earns marks: It explains "heart and soul" and "wider" separately, uses the five writs and public-duty reach, states limits and preserves the cross-link boundary.

SOURCE HEADING [4] - OQ9. Part III reconciles rights with social revolution and constitutional emergency, but not without tension. Evaluate with reference to Articles 31A-31C, 33-35 and 358-359. (20 marks, 250 words)

Model answer. Thesis: The Constitution protects individual freedom while preserving defined space for redistribution, disciplined services and emergency action; legitimacy depends on narrow text, judicial review and a non-derogable core.

Social-revolution clauses: Article 31A saves specified reform categories from Article 14/19 attack. Article 31B and the Ninth Schedule protect listed laws, but *I.R. Coelho* subjects post-24 April 1973 insertions to basic-structure review. Article 31C protects genuine implementation of Article 39(b)/(c). *Property Owners Association* (2024) confirmed its survival while rejecting the claim that every private asset is automatically a material resource.

Institutional discipline: Article 33 lets Parliament restrict rights of armed/public-order/intelligence forces for discipline. Article 34 permits parliamentary indemnity connected with martial law; Article 35 reserves specified Part III legislation to Parliament. These are competence and necessity clauses, not rights-free zones.

Emergency: Article 358 automatically displaces Article 19 constraints only during war/external-aggression Emergency and within post-44th conditions. Article 359 requires a Presidential order suspending court enforcement of specified rights. Articles 20 and 21 cannot be included.

Tensions: Saving clauses can shield coercive redistribution; discipline can suppress dissent; emergency power can normalise exceptional rule. The answers are relation-to-purpose, recital, temporality, proportionality and basic-structure review.

Conclusion: Part III reconciles transformation and necessity not by trusting the State, but by enumerating exceptional powers and keeping their boundaries judicially enforceable.

Why this earns marks: It integrates every requested Article family, uses *I.R. Coelho* and *Property Owners*, distinguishes martial law/Emergency and gives a mechanism-based evaluation.

PROVENANCE CLOSURE

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